HOTEL & HOSPITALITY REGULATORY KNOWLEDGE BASE

500-page source-anchored corpus for retrieval-augmented generation (RAG)

A source-first compilation of hotel classification, accommodation approval, food-business licensing, consumer protection, online booking, advertising, service-charge and operational guidance from the documents supplied in this conversation.

Prepared from 10 uploaded PDF documents plus a two-page screenshot-derived summary of the 4 July 2022 CCPA service-charge guideline. The corpus has three layers: retrieval cards, source-page text transcripts, and source metadata.

Accuracy principle: this file reports what the supplied sources say. It does not claim that every historical guideline, fee, measurement, portal, contact detail or legal provision remains current as of today.

Version 1.0 | Prepared 10 October 2026

Important

“Source-anchored” means grounded in the provided documents. It does not mean every old provision is certified current.

Purpose and scope

Purpose

This knowledge base is designed so a RAG system can retrieve small, traceable information units instead of depending only on long unstructured paragraphs. It includes 270 retrieval cards, followed by normalized text transcripts of each source PDF page and the two screenshot-derived summary pages for the 2022 CCPA service-charge guideline.

Included subject areas

Hotel project approval and star classification; legacy vintage hotel classification; guest-house approval; bed-and-breakfast and homestay categories; food-business licensing and hygiene; consumer rights and complaints; e-commerce entities and obligations; misleading advertising and endorsements; service-charge guidance from 2017 and 2022; COVID-19 operational recommendations from June 2020.

Scope boundary

The corpus is source-bounded. It does not add room-price benchmarks, hotel-specific policies, current tax rates, penalties, or legal conclusions unless the supplied source itself states them. The document register records the date and any currency limitations visible from the supplied copy.

How to use the corpus with RAG

Recommended retrieval path

1. Search retrieval cards first. Each card has a source title, authority, date, source-page locator, passage, tags and query prompts. 2. Retrieve the source-transcript page(s) indicated by the card. 3. Return the source title and page number with the answer. 4. When a question depends on current law, check an authoritative current consolidated source before giving a definitive current-law answer.

Recommended answer format

Answer: state only what the retrieved passage supports. Source: document title, issuing authority, date and PDF page number. Qualification: identify historical, voluntary, recommendation-only, OCR-transcribed or ambiguous material. If the source does not answer the question, say that the supplied corpus does not establish the answer.

Do not infer

Do not treat a hotel house rule as a national legal requirement; do not treat a voluntary Ministry classification scheme as a universal operating licence; do not treat a 2011 base regulation as a verified consolidated version; do not treat COVID-era guidance as current without checking; do not infer that all accommodation establishments are covered by the same scheme.

Evidence labels and reliability controls

STATUTE / RULE / REGULATION

The uploaded Consumer Protection Act, e-commerce rules and FSSAI licensing regulations are reproduced as source texts. Their supplied versions and amendments must still be checked before asserting current legal status.

MINISTRY SCHEME / CLASSIFICATION GUIDELINE

The Ministry of Tourism documents describe category-specific approval/classification schemes and criteria. Their stated voluntary or limited scheme scope must be retained.

GUIDELINE / OPERATIONAL RECOMMENDATION

The 2017 service-charge guideline and 2022 CCPA guideline are separate dated sources. The COVID-19 document is dated June 2020 and is treated as pandemic-era operational guidance.

OCR / SCREENSHOT TRANSCRIPTION

The Misleading Advertisement Guidelines and E-Commerce Rules were supplied as image-based scans and transcribed using OCR for the source appendix. The 2022 service-charge guideline was transcribed from screenshots. When exact wording is material, consult the original user-uploaded source image/PDF.

NO CURRENT-LAW CERTIFICATION

This compilation is designed for retrieval fidelity, not to replace legal review. A date on a source is not proof that the text is the latest consolidated version.

Source register (1 of 2)

1. Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011

Authority: FSSAI, Ministry of Health and Family Welfare. Source date: 1 August 2011. PDF: Licensing_Regulations.pdf, 54 pages. Content: definitions, food business registration/licensing, application processing, validity/renewal, changes, returns, forms, fees in the supplied historical copy, and hygiene schedules. Currency note: later amendments are not established by this file alone.

2. Consumer Protection Act, 2019

Authority: Ministry of Law and Justice, Legislative Department. Act No. 35 of 2019; dated 9 August 2019. PDF: CP Act 2019_1732700731.pdf, 40 pages. Content: consumer definitions and rights, complaints, CCPA, unfair trade practices, advertising, consumer commissions and remedies.

3. Consumer Protection (E-Commerce) Rules, 2020

Authority: Ministry of Consumer Affairs, Food and Public Distribution. PDF: Consumer Protection (E-Commerce) Rules, 2020.pdf, 8 scanned pages. Content: scope, definitions, e-commerce entity duties, marketplace and inventory models, seller duties and contravention. The scan includes a footnote about a substitution effective 17 May 2021; current consolidated status is not established here.

4. Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022

Authority: CCPA. Date referenced: 9 June 2022. PDF: scanned copy, 9 pages. Content: validity, bait/free claims, surrogate advertising, child-directed ads, disclaimers and endorsements. OCR was used.

5. Guidelines on Fair Trade Practices Related to Charging of Service Charge from Consumers by Hotels/Restaurants

Authority: Department of Consumer Affairs. Date: 21 April 2017. PDF: guidelines_servicecharge_hotel_250517.pdf, 2 pages. Historical guideline; the text refers to the Consumer Protection Act, 1986.

Source register (2 of 2)

6. Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants

Authority: CCPA as identified in the screenshot. Date: 4 July 2022. Source: user-supplied screenshots transcribed into two source pages. OCR/layout caveat applies.

7. Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels

Authority: Ministry of Tourism, H&R Division. PDF: 1667476361.pdf, 37 pages. Supplied compilation includes 2018 material. Content: project-stage approval, operational classification/reclassification, inspection, application documents and facility checklists.

8. Guidelines for Classification/Re-classification of Legacy Vintage Hotels

Authority: Ministry of Tourism. PDF: 1659457516.pdf, 33 pages. Supplied copy relates to a 2018-era scheme. Content: definition, Basic/Classic/Grand categories, minimum rooms, room/bath sizes, facilities and documents.

9. Guidelines for Approval of Guest Houses

Authority: Ministry of Tourism. Revised December 2009. PDF: 1659457446.pdf, 9 pages. Content: necessary/desirable facilities, minimum sizes, hygiene, documents and approval procedure. Old scheme copy.

10. Common National Standards and Guidelines for Classification of Incredible India B&B and Homestay Establishments

Authority: Ministry of Tourism. Memorandum dated 31 December 2018 referencing guidelines dated 10 December 2018. PDF: 1659456723 (1).pdf, 14 pages. Content: Silver/Gold categories, occupancy/residence distinction, room caps, inspection and documentation.

11. COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels

Authority: Ministry of Tourism. June 2020. PDF: 1659457469.pdf, 12 pages. Content: pandemic-era premises, staff, guest, reception, dining and housekeeping recommendations. Historical/time-bound context.

Topic map for retrieval

Classification and accommodation categories

Hotel project approval and star classification: retrieval cards tagged hotel_classification. Legacy vintage: legacy_vintage. Guest houses: guest_house. B&B/homestays: bnb_homestay. Each scheme has a distinct scope and application conditions.

Food safety and licensing

Food-business licensing, forms, inspection, records, fees and hygiene: fssai_licensing. Treat the 2011 text as a base historical source unless a current consolidated version is supplied.

Consumer, online commerce and advertising

Consumer Protection Act, 2019: consumer_act. E-commerce rules: ecommerce_rules. Misleading advertisements and endorsements: misleading_ads. Use the legislation/rule text that matches the question, and do not merge different instruments into a single rule.

Pricing and service charges

2017 guideline: service_2017. 2022 CCPA screenshot transcript: service_2022_screenshot. When responding about a service charge, prioritize the relevant dated provisions and mention the source date; avoid adding unsourced tax rates or fees.

Operational hygiene in a specific historical setting

COVID-19 safety/hygiene guidelines: covid_hotels. Because the document is from June 2020, it should be retrieved as historical pandemic guidance unless a current authority re-adopts it.

Rules for safe interpretation

A. Source scope controls

If a source is about a Ministry classification scheme, report it as a criterion of that scheme. Do not claim that the criterion automatically applies to every hotel in India. If a source is about B&B/homestay establishments, do not apply it to ordinary hotels without a supporting source.

B. Preserve numbers exactly and include their document context

A room size, fee, validity period, date, deadline or threshold should be returned together with the document title/date and the category or operator to which the source attaches it. Historic monetary values from the 2009, 2011, 2017 or 2018 documents are not to be presented as current prices or current fees.

C. Keep mandatory, desirable and recommended language separate

Words such as “necessary”, “mandatory”, “desirable”, “should”, “recommended”, and “may” are not interchangeable. The source language governs the label. Do not strengthen a recommendation into a legal requirement.

D. Report unresolved conflicts rather than resolving them by guesswork

Where documents have different dates or describe overlapping topics, cite the relevant source and explain that the sources differ in date, scheme or context. Do not silently replace older wording with current general knowledge.

E. OCR is not the authority

The source PDF/image remains the authority. OCR transcripts provide searchability, but where a precise legal phrase, table cell or number is critical, compare it to the supplied original scan.

Exclusions and boundary notes

Excluded as non-authoritative legal material

A personal legal notice about a specific booking cancellation/refund and an unrelated general hotel-industry overview screenshot are not included as rules in this corpus. The legal notice contains personal and booking-specific details and is not legislation or official policy.

Example hotel house rules

The earlier Scribd-style house-rule screenshots describe individual property policies, such as check-out, keys, noise and damage. Those statements are not treated as nationwide legal requirements. They are excluded from the authoritative core to avoid misclassification.

Historical estimates and tax figures

The generic industry overview screenshot contained historical industry forecasts and older VAT/service-tax/CENVAT statements. It is not used as an authority for current rates or regulatory obligations.

What is still not proven by this corpus

The supplied files do not establish current GST rates, all currently applicable Tamil Nadu municipal/police/fire permissions, the current consolidated FSSAI rules, or a current national list of hotels. Those topics require separate current official sources before a definitive answer can be generated.

Locator, metadata and corpus map

PDF page locator

Each retrieval card cites the page number(s) of the corresponding uploaded PDF, not necessarily the printed Gazette page number. The source-transcript appendix preserves one entry per PDF page in upload order. The 2022 CCPA service-charge guideline is marked as a screenshot transcription and uses page 1 or 2 of that transcript.

Primary fields available in the companion JSONL

card_id; source_key; source_title; source_short; source_file; authority; source_date; document_kind; source_status_note; pdf_page_start; pdf_page_end; source_pages; title; abstract; key_statements; source_passage; tags; ocr_involved; retrieval_questions.

Recommended RAG ingestion

Keep each retrieval-card JSONL item as a separate chunk with metadata. Use source_key, source date, document kind and source page as metadata filters. The PDF retrieval-card layout displays shortened evidence excerpts for legibility; the companion JSONL preserves each full card passage, and the appendix supplies page-level text extracts. For answers about current law, use a current official source layer in addition to this source-bounded historical corpus.

Page plan

Pages 1-10: guide and source register. Pages 11-280: 270 focused retrieval cards. Pages 281-500: 220 source-page transcripts (218 pages from the 10 uploaded PDFs plus two screenshot-derived summary pages for the 4 July 2022 CCPA service-charge guideline).

RAG-001 Transmittal notices and hotel classification scheme scope

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 1-2 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Transmittal notices and hotel classification scheme scope as described in Hotel Project Approval and Star Classification Guidelines. Source statement: These guidelines are required to be adhered to by all the existing Classified hotels/ Hotel Projects and those seeking Approval / Classification/Re-classification by the Ministry of Tourism under all categories and will come into force with immediate...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “These guidelines are required to be adhered to by all the existing Classified hotels/ Hotel Projects and those seeking Approval / Classification/Re-classification by the...”
- “Alll Indiatourism Offices in India Subject: Revised Guidelines for approval of Hotels at Project Stage and Star Classification / Re- Classification of Operational Hotels...”

Source passage excerpt

Government of India Ministry of Tourism (H&R Division) C-1 Hutments Dara Shukoh Road New Delhi — 110 011 Tel: 011-23012810 No. 8-TH-I (3)/2013-Pt-1 Dated: 19.01.2018 To, 1 Secretary (Tourism), All State Governments/UT Administrations 2 President, Federation of Hotel & Restaurant Associations of India (FHRAI) 3. President, Hotel Association of India (HAI) 4. President, Indian Heritage Hotels Association (IHHA) 5. President, Travel Agents Association of India (TAA) 6. President, Indian Association of Tour Operators (ATO) 7. Principal, IHMs 8. Alll Indiatourism Offices in India Subject: Revised Guidelines for approval of Hotels at Project Stage and Star Classification / Re- Classification of Operational Hotels Madam / Sir, 1. The undersigned is directed to enclose herewith a copy ofthe revised Guidelines for Approval of Hotels at Project Stage and Star Classification / Re- Classification of Operational Hotels. 2. These guidelines are required to be adhered to by all the existing Classified hotels/ Hotel Projects and those seeking Approval / Classification/Re-classification by the Ministry ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Transmittal notices and hotel classification scheme...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Transmittal notices and...
- Which source pages support an answer about Transmittal notices and hotel classification scheme scope?

OCR / screenshot source involved

RAG-002 Ministry of Tourism hotel classification guidelines

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 3 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Ministry of Tourism hotel classification guidelines as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Applications for Approval of Hotels at the Project Stage under any of the categories mentioned in para 1 above, should be submitted online on the portal https://wvvw.hotelclould.nic.in along with the fee payable by digital mode only in respect...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Applications for Approval of Hotels at the Project Stage under any of the categories mentioned in para 1 above, should be submitted online on…”
- “Applications for Approval of Hotels at the Project Stage and Classification/Re-classification of Operational Hotels under 3 Star, 2 Star and 1 Star categories with…”

Source passage excerpt

GOVERNMENT OF INDIA MINISTRY OF TOURISM (H&R DIVISION) GUIDELINES FOR APPROVAL OF HOTEL PROJECTS AND STAR CLASSIFICATION OF OPERATIONAL HOTELS Hotels are an important component of the tourism product. They contribute to the overall tourism experience through the standards of facilities, amenities and services offered by them. With the aim to provide contemporary standards of facilities and services, the Ministry of Tourism has a voluntary scheme for approval of Hotel Projects in the following categories: i. 5 – Star ii. 4 – Star iii. 3 – Star iv. 2 – Star v. 1 – Star vi. Heritage (Basic) The Ministry of Tourism also has a voluntary scheme for Classification/Reclassification of Operational Hotels in the following categories: i. 5 – Star Deluxe ii. 5 – Star with or without alcohol service iii. 4 – Star with or without alcohol service iv. 3 – Star v. 2 – Star vi. 1 – Star 2. Hotel Projects are approved at implementation stage. Hotels ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Ministry of Tourism hotel classification guidelines?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Ministry of Tourism...
- Which source pages support an answer about Ministry of Tourism hotel classification guidelines?

RAG-003 ANNEXURE-I

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 3-5 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on ANNEXURE-I as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Applications for Approval of Hotels at the Project Stage and Classification/Re-classification of Operational Hotels under 4 Star, 5 Star, 5 Star D e l u x e and Heritage (Basic) categories with the requisite fee may be made on www.hotelcloud.nic.in. Source statement: The...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Applications for Approval of Hotels at the Project Stage and Classification/Re-classification of Operational Hotels under 4 Star, 5 Star, 5 Star D e l...”
- “The Ministry of Tourism reserves the right to modify the Guidelines / Terms and Conditions from time to time. ***** 2 | P a...”

Source passage excerpt

1 | P a g e 5. Applications for Approval of Hotels at the Project Stage and Classification/Re-classification of Operational Hotels under 4 Star, 5 Star, 5 Star D e l u x e and Heritage (Basic) categories with the requisite fee may be made on www.hotelcloud.nic.in. Queries in this regard may be addressed to Member Secretary (HRACC), Hotels and Restaurants Division, Ministry of Tourism, Government of India, C-1 Hutments, Dara Shukoh Road, New Delhi 110011, Tel: 011-23012810. 6. The detailed Guidelines for the Approval of Hotel at the Project Stage and for Classification Re-classification of Operational Hotels are at Annexure-I and Annexure II respectively. 7. The Ministry of Tourism reserves the right to modify the Guidelines / Terms and Conditions from time to time. ***** 2 | P a g e ANNEXURE-I GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR APPROVAL OF HOTELS AT THE PROJECT LEVEL 1. Ministry of Tourism will approve hotels at project stage based on documentation. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about ANNEXURE-I?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on ANNEXURE-I?
- Which source pages support an answer about ANNEXURE-I?

RAG-004 Public areas

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 5-6 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Public areas as described in Hotel Project Approval and Star Classification Guidelines. Source statement: The application for Project Approval will be submitted online on the portal https://wwvv.hotelcloud.nic.in complete in all respect as per details given below. Source statement: The hotel must apply for Star Classification within 3 months of the hotel becoming operational.

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “The application for Project Approval will be submitted online on the portal https://wwvv.hotelcloud.nic.in complete in all respect as per details given below.”
- “The hotel must apply for Star Classification within 3 months of the hotel becoming operational.”

Source passage excerpt

3. The hotel must apply for Star Classification within 3 months of the hotel becoming operational. The application for Project Approval will be submitted online on the portal https://wwvv.hotelcloud.nic.in complete in all respect as per details given below. 4. Application Form should have the following details: i. Proposed name of the Hotel ii. Name of the promoters with a note on the business antecedents in not more than 60 words iii. Complete postal address of the promoter with Telephone, Fax and Email address. iv. Status of the owner/promoter: a. If Public/private limited company, the copies of Memorandum and Articles of Association. b. If Partnership, a copy of Partnership Deed and Certificate of Registration. c. If proprietary concern, name and address of proprietor / Certificate of Registration. v. Location of hotel site with postal address vi. Details of the site: a) Area (in sq. feet) b) Title - owned / leased with copies of sale / lease deed. c) Copy of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Public areas?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Public areas?
- Which source pages support an answer about Public areas?

RAG-005 Project approval

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 6-7 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Project approval as described in Hotel Project Approval and Star Classification Guidelines. Source statement: The hotel must immediately inform the Ministry of the date from which the hotel becomes operational and may apply for Classification within 3 months from the date of operation Source statement: Applications for project approvals under any category should be submitted online...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “The hotel must immediately inform the Ministry of the date from which the hotel becomes operational and may apply for Classification within 3 months…”
- “Applications for project approvals under any category should be submitted online on the portal https://www.hotelclould.nic.in along with the fee payable by digital mode only…”

Source passage excerpt

5. Blue prints/ Building Plans signed by the owner, the architect and approved by the competent authority showing: i. Site plan ii. Front and side elevation iii. Floor plans for all floors iv. Detail of guest rooms and bath rooms with dimensions in sq. ft. v. Details of Fire Fighting Measures/ Hydrants etc. vi. Air-conditioning details for guest rooms, public areas 6. Local approvals by: i. Municipal Authority ii. Concerned Police Authority iii. Any other local authority as may be applicable / required (viz. Pollution Control Board/ Ministry of Environment & Forests etc.) iv. Approval / NOC from Airports Authority of India for projects located near Airport 7. Note: The above mentioned approvals/ NOCs are the responsibility of the promoter / concerned company as the case may be. The Ministry's approval is no substitute for any statutory approval and the approval given is liable to be withdrawn in case of any violation without notice. 8. Proposed capital structure: a) Total ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Project approval?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Project approval?
- Which source pages support an answer about Project approval?

RAG-006 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 7 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: The promoter must file online returns showing quarterly progress in prescribed format on the portal https://www.hotelcloud.nic.in failing which the project approval is liable to be withdrawn. Source statement: The fee payable for the Project Approval and subsequent extension, if required, which is...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “The promoter must file online returns showing quarterly progress in prescribed format on the portal https://www.hotelcloud.nic.in failing which the project approval is liable to…”
- “The fee payable for the Project Approval and subsequent extension, if required, which is payable only by RTGS / NEFT/ Debit/Credit Card, is as…”

Source passage excerpt

14. The fee payable for the Project Approval and subsequent extension, if required, which is payable only by RTGS / NEFT/ Debit/Credit Card, is as under. Star Category Amount in Rs. 5- star 15,000 4-star 12,000 3-star 8,000 2-star 6,000 1-star 5,000 Heritage Category 12,000 15. The promoter must file online returns showing quarterly progress in prescribed format on the portal https://www.hotelcloud.nic.in failing which the project approval is liable to be withdrawn. On completion of the Hotel Project, the promoter shall submit a completion certificate issued by the competent authority. 16. The originals of documents are required to be uploaded on the online portal. All documents must be valid at the time of application. Documents in local language should be accompanied by a translated version in English which should also be duly certified / attested / notarized. 17. The application for Hotel Project Approval should indicate whether a few rooms or all rooms are to be let out on a … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-007

GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 7-9 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/ as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Application for approval of Hotel Project forwarded through post or delivered by hand will be summarily rejected and no action whatsoever shall be taken on such applications. Source statement: Classification for newly operational hotels, if approved...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Application for approval of Hotel Project forwarded through post or delivered by hand will be summarily rejected and no action whatsoever shall be taken...”
- “Classification for newly operational hotels, if approved by Ministry of Tourism at project stage, must be sought within 3 months of commencing of the...”

Source passage excerpt

21. Applicants are requested to go through the Checklist of Facilities & Services (Annexure-III) contained in this document before applying for Approval of Hotels at the Project Stage/Classification of Operational Hotels. 5 | P a g e 22. Application for approval of Hotel Project forwarded through post or delivered by hand will be summarily rejected and no action whatsoever shall be taken on such applications. 23. Only one application for approval of Hotel Project shall be permissible at a given point of time. Multiple applications for approval made under one or more categories for the same hotel project at a given point of time will be summarily rejected. ***** 6 | P a g e ANNEXURE – II GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/ RE-CLASSIFICATION OF OPERATIONAL HOTELS 1. With the aim to provide contemporary standards of facilities and services, the Ministry of Tourism has a voluntary scheme for Classification / Reclassification of Operational Hotels in the following ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about GENERAL TERMS, CONDITIONS & APPLICATION FORMAT...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on GENERAL TERMS, CONDITIONS...
- Which source pages support an answer about GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/?

RAG-008 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 9-10 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: The application for Classification/Reclassification should indicate whether the hotel proposes to let out a few rooms or all rooms on 'Time Share basis'. Source statement: Classification will be valid for a period of 5 (Five) years from the date of approval...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “The application for Classification/Reclassification should indicate whether the hotel proposes to let out a few rooms or all rooms on 'Time Share basis'.”
- “Classification will be valid for a period of 5 (Five) years from the date of approval of Chairman HRACC, or in the case of...”

Source passage excerpt

5. Classification will be valid for a period of 5 (Five) years from the date of approval of Chairman HRACC, or in the case of Re-classification, from the date of expiry of the last classification, provided that the application complete in all respect and free of all deficiencies has been received six months prior to the expiry of the current period of classification, along with all valid documents. Incomplete applications will not be accepted. 6. The application for Classification/Reclassification should indicate whether the hotel proposes to let out a few rooms or all rooms on 'Time Share basis'. Hotels which propose to let out part of or all its rooms on Time-share basis, will not be eligible for classification under this scheme. 7. Hotels applying for Classification/Re-classification must provide the following information/ documentation. i. Name of the Hotel ii. Complete postal address of the hotel with telephone, fax and Email address iii. Status of the owner / promoter; a) If ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-009 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 10-11 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Hotel will show the following NOCs / Licenses / Certificates which should be current, valid and in original at the time of its inspection by HRACC and upload the same on hotelcloud portal: 8 | P a g e a) Trade...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Hotel will show the following NOCs / Licenses / Certificates which should be current, valid and in original at the time of its inspection...”
- “Originals of Certificates / No Objection Certificates to be uploaded (copies should be current/ valid and duly self-attested / certified by an authorized representative...”

Source passage excerpt

A Sewage treatment plant will not be a mandatory condition for hotels which have obtained completion certificate for construction before 01.04.2012. x. Measures for energy and water conservation, water harvesting (use of CFL lamps, solar energy, water saving devices/ taps etc.). xi. Details of Fire Fighting Measures. xii. Security features viz. CCIV, X-Ray check, verification of staff etc. xiii. The architecture of the hotel building in hilly and ecologically fragile areas should incorporate creative architecture keeping in mind sustainability and energy efficiency and as far as possible in conformity. xiv. Any other additional facilities 10. Originals of Certificates / No Objection Certificates to be uploaded (copies should be current/ valid and duly self-attested / certified by an authorized representative of the hotel): i. Certificate / license from Municipality / Corporation to show that the establishment is registered as a Hotel ii. No Objection Certificate from the Fire Service Department (Local Fire Brigade Authority). iii. Affidavit on prescribed format for all ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-010 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 11-12 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: All applications for Classification and Re-Classification must be complete in all respects viz. application form, application fee, prescribed clearances / NOCs / certificates etc. Source statement: Upon receipt of application complete in all respects, the hotel will be inspected by the...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

• “All applications for Classification and Re-Classification must be complete in all respects viz. application form, application fee, prescribed clearances / NOCs / certificates etc.”
• “Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC).”

Source passage excerpt

12. All applications for Classification and Re-Classification must be complete in all respects viz. application form, application fee, prescribed clearances / NOCs / certificates etc. Incomplete applications will not be accepted. 13. The application fees for Classification / Re-classification is payable only by RTGS/NEFT/Debit/Credit Cards and are as follows. Star Category Classification / Re-classification fee in Rs. 1 – Star 6,000 2 – Star 8,000 3 – Star 10,000 4 – Star (with or without Alcohol service) 15,000 5 – Star (with or without Alcohol service) 20,000 5 – Star Deluxe 25,000 14. Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC). The Committee will be constituted as follows: A. For 4 & 5 Star category with and without Alcohol Service and 5 Star Deluxe categories: Chaired by Additional Director General (Tourism), Govt. of India/ Chairperson (HRACC) or a representative nominated by him/her Representative ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
• Which source pages support an answer about Operational hotel classification?

RAG-011 HRACC inspection

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 12 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on HRACC inspection as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with the hotel representatives during inspection. Source statement: If the observations of the committee on deficiencies are not complied...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with…”
- “If the observations of the committee on deficiencies are not complied within the said time frame, the application of the hotel will be rejected…”

Source passage excerpt

The HRACC representatives / nominees of FHRAI, HAI, IATO and TAAI should have requisite expertise and experience of the hospitality and tourism industry (hands on experience). C. The Chairperson and any 3 members will constitute a quorum. D. The recommendations duly signed by the inspection Committee will be uploaded on the hotelcloud portal along with all necessary licenses /NOCs /permissions etc. and the recommendation of the inspection committee will be approved/ rejected by the Chairperson (HRACC)/Joint Secretary(Tourism) / Addl. Director General (Tourism) expeditiously provided all the necessary documentation are complete in all respect. E. Appellate Authority: In case of any dissatisfaction with the decision of the HRACC, the hotel may appeal to Secretary (Tourism), Government of India for review and reconsideration within 30 days of receiving the communication regarding Classification/Re-classification. No request will be entertained beyond this period. 15. Hotels will be classified following a two stage procedure: a) The presence of facilities and services will be evaluated against the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about HRACC inspection?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on HRACC inspection?
- Which source pages support an answer about HRACC inspection?

RAG-012 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 12-13 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Any changes in the Building Plans or Management of the hotel should be informed to the HRACC, Ministry of Tourism, Govt. of India within 30 days, otherwise the classification will stand withdrawn / terminated. Source statement: The hotel must be able...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Any changes in the Building Plans or Management of the hotel should be informed to the HRACC, Ministry of Tourism, Govt. of India within…”
- “The hotel must be able to convince the committee that they are taking sufficient steps to conserve energy and harvest water, garbage segregation, and…”

Source passage excerpt

18. The Committee may assign a Star category lower but not higher than that applied for. 19. The hotel must be able to convince the committee that they are taking sufficient steps to conserve energy and harvest water, garbage segregation, and disposal/ recycling as per Pollution Control Board (PCB) norms and following other Eco-friendly measures. 20. For any change in the Star category, the promoter must apply afresh along with requisite fee. 10 | P a g e 21. Any changes in the Building Plans or Management of the hotel should be informed to the HRACC, Ministry of Tourism, Govt. of India within 30 days, otherwise the classification will stand withdrawn / terminated. In case of change of company name / hotel name, a copy of the fresh 'Certificate of Incorporation' or a copy of the 'Resolution of the Board of Directors' regarding the name change along with any other relevant documents should be submitted. 22. The minimum size of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-013 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 13 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: On the day a new staff member joins the Hotel, he / she would be required to take / sign the pledge. Source statement: The focal points of the hotel would be trained first within first six months of MOT approval.
Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “On the day a new staff member joins the Hotel, he / she would be required to take / sign the pledge.”
- “The focal points of the hotel would be trained first within first six months of MOT approval.”

Source passage excerpt

i. A signed copy of the Pledge and Undertaking of commitment towards "Safe & Honourable Tourism" should be attached with the application. The format of the 'Pledge & Undertaking - Code of Conduct for Safe & Honorable Tourism' are attached at Annexure VII and Annexure VIII respectively. ii. On the day a new staff member joins the Hotel, he / she would be required to take / sign the pledge. The pledge would be incorporated in the appointment letter I joining report of the staff. iii. Two focal points/Nodal Officers would be nominated (i.e., from HRD, security side etc.) at the time of applying for approval by the Hotel in the case of hotels which have more than 25 personnel. In the case of Hotels with less than 25 personnel, one focal point would have to be nominated. iv. The training would be provided to the staff of the classified/approved hotels by Ministry of Tourism under its Capacity Building of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-014 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 13-14 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Multiple applications for classification made under one or more categories for the same hotel project at a given point of time will be summarily rejected. Source statement: Efforts will be made to ensure that all cases of classification are given final...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

• “Multiple applications for classification made under one or more categories for the same hotel project at a given point of time will be summarily...”
• “Efforts will be made to ensure that all cases of classification are given final decision within three months from the date of receipt of...”

Source passage excerpt

As per Government of India's initiative for Promotion of Digital Transaction, it is mandatory for all Hotels classified/re-classified by the Ministry of Tourism, to submit data pertaining to Occupancy Reports and Digital Transaction as per prescribed template available online at https://wvvw.hotelcloud.nic.in positively by 20th of every month for the previous month. 26. Incomplete applications for Classification / Reclassification will not be entertained. Efforts will be made to ensure that all cases of classification are given final decision within three months from the date of receipt of the application, subject to the following: 11 | P a g e i. Receipt of the application complete in all respect (without deficiencies) ii. All essential documents of the inspected hotel being found to be current, valid and satisfactory by the inspection Committee (HRACC). iii. Timely uploading of all essential documents produced before the inspection committee (HRACC) on hotelcloud portal by the inspected hotel. iv. Compliance/rectification of deficiencies pointed out by the inspection committee ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
• Which source pages support an answer about Operational hotel classification?

RAG-015 HRACC inspection

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 14-15 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on HRACC inspection as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from all deficiencies, and confirmation of receipt of application fee by PAO, MoT. Source statement: In cases where re-visit...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from...”
- “In cases where re-visit by a committee / sub-committee is required, allotment of hotel, for inspection, to officer(s) nominated as Chairperson / Member (in...”

Source passage excerpt

1. Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from all deficiencies, and confirmation of receipt of application fee by PAO, MoT. 2. Inspection of Hotels: Inspection has to be scheduled within 40 working days of communication of nomination of an officer as Chairperson, by the nominated officer. 3. Uploading of Inspection report by Chairperson of Inspection Committee: Within 7 working days of inspection. a. In case of recommendation for rejection, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation. b. In case of compliance observations pertaining to physical compliances, online compliance verification will be done and submitted for online compliance approval of Competent Authority within 7 working days of online receipt of compliance observations. c. In case of recommendation for approval, the proposal will be processed for approval of Competent Authority within 12 working ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about HRACC inspection?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on HRACC inspection?
- Which source pages support an answer about HRACC inspection?

RAG-016 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 15-16 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from all deficiencies, and confirmation of receipt of application fee by PAO, MoT. Source statement: If the hotel...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from...”
- “If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.”

Source passage excerpt

b. In cases where re-visit is not required, the proposal will be processed for approval of Competent Authority within 15 working days of online receipt of compliance report, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected. 5. Approval of Competent Authority for classification / rejection – within 10 working days of receipt of recommendation (except in cases where there are queries / ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-017 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 16 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: In cases where re-visit by a committee / sub-committee is required, allotment of hotel, for inspection, to officer(s) nominated as Chairperson / Member (in case of a sub-committee where no officer is nominated as Chairperson) of inspection committee/ sub-committee will be...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “In cases where re-visit by a committee / sub-committee is required, allotment of hotel, for inspection, to officer(s) nominated as Chairperson / Member (in...”
- “If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected. b.”

Source passage excerpt

4. After submission of compliance report by the hotel. a. In cases where re-visit by a committee / sub-committee is required, allotment of hotel, for inspection, to officer(s) nominated as Chairperson / Member (in case of a sub-committee where no officer is nominated as Chairperson) of inspection committee/ sub-committee will be done within 15 working days of online submission of compliance report by the hotel. Inspection has to be scheduled within 40 working days of communication of such allotment / nomination of an officer as Chairperson, by the nominated officer. Uploading of Inspection report by Chairperson / Member of Inspection Committee will be done within 7 working days of inspection. In case of recommendation for rejection, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation. In case of recommendation for approval, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-018

CHECKLIST OF FACILITIES FOR CLASSIFICATION / RE-CLASSIFICATION OF

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 16-18 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on CHECKLIST OF FACILITIES FOR CLASSIFICATION / RE-CLASSIFICATION OF as described in Hotel Project Approval and Star Classification Guidelines. Source statement: If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected. Source statement: However, once the inspection report is uploaded on the online hotelcloud...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.”
- “However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the...”

Source passage excerpt

14 | P a g e free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected. 5. Approval of Competent Authority for classification / rejection – within 10 working days of receipt of recommendation (except in cases where there are queries / observations of Competent Authority necessitating further action / clarification. 6. Uploading of Classification letter – within 5 working days of online approval of Competent Authority. ***** 15 | P a g e ANNEXURE – III CHECKLIST OF FACILITIES FOR CLASSIFICATION / RE-CLASSIFICATION OF OPERATIONAL HOTELS FACILITIES & 1* 2* 3* 4* 5*/ Yes/ COMMENTS SERVICES 5*D No GENERAL Full time operation 7 days a N N N N ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about CHECKLIST OF FACILITIES FOR CLASSIFICATION /...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on CHECKLIST OF FACILITIES...
- Which source pages support an answer about CHECKLIST OF FACILITIES FOR CLASSIFICATION / RE-CLASSIFICATION OF?

RAG-019 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 18-19 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Mini bar / Fridge D D N N N Contents must conform to All 3 Star hotels shall have local laws. facility of a mini fridge and all 4 Star, 5 Star, and 5 Star Deluxe hotels shall have a the facility...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Mini bar / Fridge D D N N N Contents must conform to All 3 Star hotels shall have local laws. facility of a...”
- “3 Star, 4 Star, 5 Star and 5 Star Deluxe category hotels shall provide hair dryer facility in the room on complimentary basis.”

Source passage excerpt

16 | P a g e Minimum bedding 2 sheets, N N N N N Blankets available in air pillow and case, blanket, conditioned room as per mattress protector / bed cover seasonal requirement in non A/C rooms. Mattress protector is ‘desirable’ in 1 Star and 2 Star category hotels and ‘necessary’ for the other categories. Suite (2 rooms or 2 room- D D D N N Minimum 1 suite. A suite bays having a bedroom and must be sold as one room. separate sitting area, having one bathroom and one powder room.) Hairdryers D D N N N Where not provided in bathroom, must be available on request. 3 Star, 4 Star, 5 Star and 5 Star Deluxe category hotels shall provide hair dryer facility in the room on complimentary basis. In 1 Star and 2 Star hotels, this facility will be made available on request on complimentary basis. Safe keeping / in room safe D D D ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-020 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 19-20 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Minimum size of bathroom in 30 30 36 36 45 25% of bathrooms in 1 &2 square feet Star hotels to have western style WC. Source statement: A writing surface with D D N N N sufficient lighting Chairs N N N...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Minimum size of bathroom in 30 30 36 36 45 25% of bathrooms in 1 &2 square feet Star hotels to have western style...”
- “A writing surface with D D N N N sufficient lighting Chairs N N N N N Preferably one per bed Waste paper basket...”

Source passage excerpt

17 | P a g e A 5 amp earthed power N N N N N socket A bedside table and drawer N N N N N 1 per twin bed and two for a double bed. TV Cable if available D D N N N TV must have a remote. Exception: for eco and nature resorts TV cable is not mandatory for 3 Star to 5 Star Deluxe category hotels. However, it is mandatory that they provide a television with cable in the lobby or other common area. A writing surface with D D N N N sufficient lighting Chairs N N N N N Preferably one per bed Waste paper basket N N N N N Opaque curtains or screening N N N N N All 4 Star, 5 Star, and 5 Star at all windows Deluxe hotels shall have blackout curtains A mirror at least half length (3 N N N N ft.) A stationary folder ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-021 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 20-21 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: All Star hotels shall provide N N N N N water sprays or bidets or washlets or other modern water based post- toilet – paper hygiene facilities. Source statement: Clothes – hooks in each bath N N N N N All star...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “All Star hotels shall provide N N N N N water sprays or bidets or washlets or other modern water based post- toilet –...”
- “Clothes – hooks in each bath N N N N N All star category hotels shall / shower room provide two (2) clothes hooks...”

Source passage excerpt

18 | P a g e 1 bath towel and 1 hand towel N N N N N to be provided per guest Bath Mat D D N N N Guest toiletries to be N N N N N Quality products depending provided. Minimum 1 new on Star category. soap per guest. Bottled toiletry products to be D D D N N provided. Clothes – hooks in each bath N N N N N All star category hotels shall / shower room provide two (2) clothes hooks in the bath / shower room Sanitary bin N N N N N These must be covered Each western WC toilet to N N N N N have a seat with lid and toilet paper. All Star hotels shall provide N N N N N water sprays or bidets or washlets or other modern water based post- toilet – paper hygiene facilities. Floors and walls to have non N N N N N ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-022 Room and bathroom dimensions

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 21-22 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Room and bathroom dimensions as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Air – conditioning in common areas like lobby, restaurants, verandahs, bar where they are open to nature on one or more sides, shall not be mandatory for beach, lake, backwater, river, hill, mountain, forest or nature hotels & Resorts. Source...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Air – conditioning in common areas like lobby, restaurants, verandahs, bar where they are open to nature on one or more sides, shall not…”
- “Bathroom N N N N N Door width for room of the differently abled persons and bathroom of such rooms should allow easy accessibility…”

Source passage excerpt

19 | P a g e Reception facility N N N N N Manned minimum 16 hours. Call service 24 hours. Local directions to hotel including city street maps to be available. Valet (parking) services to be D D N N N available Availability of Room, F&B N N N N N and other tariff Heating and cooling to be - - - N N Temperatures to be between provided in public areas 20 degrees Celsius to 28 degrees Celsius. Air – conditioning in common areas like lobby, restaurants, verandahs, bar where they are open to nature on one or more sides, shall not be mandatory for beach, lake, backwater, river, hill, mountain, forest or nature hotels & Resorts. Public rest rooms for ladies N N N N N and gents, a wash basin with running hot and cold water, a mirror, a sanitary bin with lid in unisex 7 ladies toilet. ROOM AND FACILITIES FOR THE DIFFERENTLY ABLED GUEST ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Room and bathroom dimensions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Room and bathroom...
- Which source pages support an answer about Room and bathroom dimensions?

RAG-023 Public areas

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 22-24 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Public areas as described in Hotel Project Approval and Star Classification Guidelines. Source statement: 20 | P a g e For new hotels coming up after 01.04.2017, the minimum door width of such rooms and their bathroom shall be minimum 90 cm. Source statement: For new hotels coming up after 01.04.2017, the minimum door width of...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “20 | P a g e For new hotels coming up after 01.04.2017, the minimum door width of such rooms and their bathroom shall...”
- “For new hotels coming up after 01.04.2017, the minimum door width of such public rest room (unisex) shall be minimum 90 cm.”

Source passage excerpt

20 | P a g e For new hotels coming up after 01.04.2017, the minimum door width of such rooms and their bathroom shall be minimum 90 cm. The door width of the room and bathroom for differently abled persons in existing hotels shall be 90 cm. with effect from 01.04.2023 Bathroom for the differently abled guest shall have suitable fixtures like low wash basin with wheel chair accessibility, low vanity unit, Wall mounted seat in shower area, hand shower, Grab bars net to the WC and shower area. Ramps with anti-slip floors at N N N N N Fixed and anti – slip ramp to the entrance. Minimum door be provided in all public width should be one meter to areas. allow wheel chair access Free accessibility in all public areas, and to at least one restaurant in 5 star and 5 star deluxe hotel. Public Restrooms N N N N N All star category hotels should have a ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Public areas?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Public areas?
- Which source pages support an answer about Public areas?

RAG-024 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 24-25 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Wherever bar is allowed as per local law, the hotel will have to first obtain bar license before applying to the Ministry of Tourism for Classification of the hotel. Source statement: 5 Star category (with Grade A cities: alcohol service or...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Wherever bar is allowed as per local law, the hotel will have to first obtain bar license before applying to the Ministry of Tourism...”
- “5 Star category (with Grade A cities: alcohol service or with no alcohol service) and One 24 hour Multi Cuisine 5 Star Deluxe Restaurant...”

Source passage excerpt

The specialty Restaurant may either be indoors with air- conditioning, or outdoors. The Specialty Restaurant must serve specific form of cuisine. The Specialty Restaurant may be open for lunch / dinner. Cities other than grade A cities: One Multi – cuisine Restaurant cum Coffee Shop open from 07.00 am. To 11.00 pm. and 24 hr. Room Service. 5 Star category (with Grade A cities: alcohol service or with no alcohol service) and One 24 hour Multi Cuisine 5 Star Deluxe Restaurant cum Coffee Shop, one Specialty Restaurant and 24 hr. Room Service. The Specialty Restaurant may either be indoors with air – conditioning, or outdoors. The Specialty restaurant must serve specific form of cuisine. The Specialty Restaurant may be open for lunch / dinner. Cities other than Grade A cities: One 24 hour Multi Cuisine Restaurant cum Coffee Shop and 24 hr. Room Service. One Specialty Restaurant would be desirable. 22 | P a g e Grade A: Delhi, ** ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-025 KITCHEN / FOOD PRODUCTION AREA

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 25-26 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on KITCHEN / FOOD PRODUCTION AREA as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Six monthly medical check N N N N N Records to be submitted along ups for production staff with pathological records to HRACC during inspection of the hotel First aid training for all N N N N N kitchen...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Six monthly medical check N N N N N Records to be submitted along ups for production staff with pathological records to HRACC during...”
- “Receiving areas and stores N N N N N Should have sink with table distinct from garbage area. surface, weighing machine 23 | P...”

Source passage excerpt

Liquor shops/ liquor stores will not be considered while granting classification under ‘with alcohol’ category. KITCHEN / FOOD PRODUCTION AREA Refrigerator with deep N N N N N Capacity based on quantum of freezer F&B Operations. Segregated storage of meat, N N N N N Meat, fish and vegetables to be fish and vegetables kept in separate freezers Tiled walls, non slip floors N N N N N Colour coded synthetic N N N N N Wooden chopping boards chopping boards Head covering for N N N N N production staff Daily germicidal cleaning N N N N N of floors Good quality cooking N N N N N Use of aluminum vessels is vessels / utensils prohibited except for bakery All food grade equipment N N N N N containers. Drinking water N N N N N Water treated with UV+ filtration Ventilation system N N N N N Garbage to be segregated – N N N N N ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about KITCHEN / FOOD PRODUCTION AREA?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on KITCHEN / FOOD...
- Which source pages support an answer about KITCHEN / FOOD PRODUCTION AREA?

RAG-026 Staff

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 26-27 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Staff as described in Hotel Project Approval and Star Classification Guidelines. Source statement: English speaking front D D N N N This may be relaxed outside the office staff metros / sub-metros for 1 Star and 2 Star category hotels. Source statement: Percentage of Supervisory 20% 20% 40% 40% 80% Hotels of 4 Star category and...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “English speaking front D D N N N This may be relaxed outside the office staff metros / sub-metros for 1 Star and 2...”
- “Percentage of Supervisory 20% 20% 40% 40% 80% Hotels of 4 Star category and staff above should have qualified Heads of Departments.”

Source passage excerpt

Staff uniforms for front of N N N N N Uniforms to be clean and in good the house. condition. English speaking front D D N N N This may be relaxed outside the office staff metros / sub-metros for 1 Star and 2 Star category hotels. Percentage of Supervisory 20% 20% 40% 40% 80% Hotels of 4 Star category and staff above should have qualified Heads of Departments. The supervisory or the skilled staff may have training or skill certification as follows: Degree / Diploma from Central or Star IHMs/ FCIs or from NCHMCT affiliated IHMs or from other reputed Hospitality Schools. Percentage of skilled staff 20% 20% 30% 30% 60% The supervisory or the skilled staff may have t raining or skill certification as follows: Degree / Diploma from Central or Star IHMs/ FCIs or from NCHMCT affiliated IHMs or from other reputed Hospitality Schools. Skill training certificate issued under the guidelines and scheme of the Ministry of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Staff?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Staff?
- Which source pages support an answer about Staff?

RAG-027 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 27-28 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: This will be stated on the hotel’s website under the head ‘Facilities and Amenities provided on complimentary basis’ and mentioned to guest while checking in. Source statement: All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide luggage racks, portable...
Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “This will be stated on the hotel’s website under the head ‘Facilities and Amenities provided on complimentary basis’ and mentioned to guest while checking...”
- “All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide luggage racks, portable or fixed, for two large suitcases.”

Source passage excerpt

Provision for wheelchair for N N N N N Wheel chair to be made available the differently abled guest on complimentary basis in hotels of all categories. Valet (parking) services to D D N N N be available Dry cleaning / laundry D D D N N In house for 5 Star Deluxe hotels. For 5 Star category and below, may be outsourced. Tea / coffee making facility D D D N N Tea / coffee making facilities in in the room the room to be made available on complimentary basis in all 4 Star, 5 Star and 5 Star Deluxe hotels. Iron and Iron Board facility N N N N N Each hotel up to the level of 4 star to have a number of irons and ironing board equal to 20% of the number of lettable rooms, to be provided to a resident guest on request. 5 star and 5 star deluxe hotels to have iron and ironing ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-028 Staff

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 28-29 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Staff as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Verification N N N N N All hotels should conduct antecedent verification of their staff and suppliers by the Police / private security. Source statement: Staff trained in firefighting N N N N N All hotels to conduct periodic Drill fire drills and…

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Verification N N N N N All hotels should conduct antecedent verification of their staff and suppliers by the Police / private security.”
- “Staff trained in firefighting N N N N N All hotels to conduct periodic Drill fire drills and maintain ‘Manuals’ for disaster management, First…”

Source passage excerpt

Metal detectors (door frame D D N N N or hand held) CCTV at strategic location N N N N N 26 | P a g e X-Ray Machine D D D D N For 5 Star Deluxe category, it would be ‘Necessary’ to have an x-ray machine at the guest entrance for screening of baggage Manual check may be conducted for staff and suppliers at designated entry points. Under belly scanners to D D D N N screen vehicles. Verification N N N N N All hotels should conduct antecedent verification of their staff and suppliers by the Police / private security. Staff trained in firefighting N N N N N All hotels to conduct periodic Drill fire drills and maintain ‘Manuals’ for disaster management, First Aid and Fire Safety Security arrangements for N N N N N all hotels entrances. Each bedroom door to be D D N N N A safety chain / wishbone latch is fitted … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Staff?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Staff?
- Which source pages support an answer about Staff?

RAG-029 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 29-30 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Telephone facility within D D D N N arm’s reach of the toilet seat Provide at least two multi – N N N N N All Star hotels shall provide at purpose sockets least two multi-purpose sockets capable of handling US, European...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Telephone facility within D D D N N arm’s reach of the toilet seat Provide at least two multi – N N N N...”
- “However, till such time as this facility is 27 | P a g e provided on a permanent basis, it will be mandatory for...”

Source passage excerpt

Telephone facility within D D D N N arm’s reach of the toilet seat Provide at least two multi – N N N N N All Star hotels shall provide at purpose sockets least two multi-purpose sockets capable of handling US, European Community and Japanese plugs at or just above the table level. It should be possible for guest to charge a laptop and cell phone simultaneously. This condition shall be applicable to all new hotels that will start operating from 01.04.2016. For the hotels which have come into operation before 31.03.2016 this parameter will be applicable from 01.04.2022. However, till such time as this facility is 27 | P a g e provided on a permanent basis, it will be mandatory for all Star hotels to provide multi-socket adapter plugs on request. A telephone for incoming & D N N N N 4 star and above should have outgoing calls in the room direct dialing and STD / ISD ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-030 Star categories

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 30-31 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Star categories as described in Hotel Project Approval and Star Classification Guidelines. Source statement: All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools Parking Facilities D D N N N Should be adequate in relation...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide a luminous LED wall clock with numerals of three inches or more…”
- “D D D D N ECO FRIENDLY PRACTICES Sewage Treatment Plant N N N N N A Sewage Treatment Plant will not be a…”

Source passage excerpt

(This provision may be relaxed for resort destinations, tourist and pilgrimage centers). Swimming Pool D D D D N This can be relaxed for hill destinations. Mandatory to have trained Life Guard, Board containing Do’s and Don’ts, No Diving sign, pool depth etc. should be displayed at a strategic location in the pool area. All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools Parking Facilities D D N N N Should be adequate in relation to the number of rooms & banquet / convention hall capacity. Exclusively earmarked accessible parking nearest to the entrance for differently abled guest. Conference Facilities. D D D D N ECO FRIENDLY PRACTICES Sewage Treatment Plant N N N N N A Sewage Treatment Plant will not be a mandatory condition for hotels which have obtained completion certificate for construction before 01.04.2012. 28 | ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Star categories?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Star categories?
- Which source pages support an answer about Star categories?

RAG-031 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 31 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: All the hotels shall be required to submit an affidavit with respect to clearances along with their applications for approval of Hotel at the Project Stage and for Classification / Re-classification of Operational Hotels, as given in Annexure V and VI...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “All the hotels shall be required to submit an affidavit with respect to clearances along with their applications for approval of Hotel at the...”
- “(All hotels shall submit a compliance of Note 1 in the form of a screen shot of their website showing the “Facilities & Amentias...”

Source passage excerpt

There is no relaxation in the ‘Necessary’ criteria of the Checklist of Services and Facilities (Annexure II), except as specified in the comments column of said checklist. Note1. All hotels should clearly indicate on their websites the facilities and amenities provided to guests “free of cost” like complimentary breakfast (indicating broad classification like Indian breakfast, Continental breakfast or American breakfast), iron and iron board facility, shoe cleaning facility, shoe horn and slippers, other “free” facilities like dental kit, shaving kit etc. If any facility is provided only ‘on request’ but is included in the room rent, this should be mentioned on the hotel’s website under the head ‘Facilities and Amenities Provided on complimentary basis’ and also be mentioned to the guest when the hotel staff introduce the room to him / her on arrival. In case the ‘complimentary breakfast’ is not a buffet, the guest must be shown a list stating in English the name of all complimentary items. (All ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-032

Amount of Penalty to be paid for one time revocation of debarment:

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 31-32 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Amount of Penalty to be paid for one time revocation of debarment: as described in Hotel Project Approval and Star Classification Guidelines. Source statement: However, this Note shall not be applicable to hotels that have successfully applied online for “RE- CLASSIFICATION”, for the interim period between the date of expiry of the period of the previous...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “However, this Note shall not be applicable to hotels that have successfully applied online for “RE- CLASSIFICATION”, for the interim period between the date...”
- “However, the conditions specified under this Note shall be applicable to such hotels. d.”

Source passage excerpt

29 | P a g e have to be recorded in the inspection marks sheet by the committee. However, if a hotel is found to evoke the grounds for debarment mentioned hereinabove, at any point of time subsequent to the one-time revocation, it shall be declassified (if classified earlier) and debarred from applying for classification under any category for a minimum period of two years from the date of debarment by the competent authority i.e. the Chairman, HRACC. Amount of Penalty to be paid for one time revocation of debarment: • 1 Star – Rs. 25,000.00 • 2 Star – Rs. 50,000.00 • 3 Star – Rs. 1.00 lakh • 4 Star – Rs. 2.00 lakh • 5 Star & 5 Star Deluxe – 3.00 lakh Hotels that have been debarred from applying for classification prior to these guidelines coming into force, will also be extended a one-time opportunity for revocation of the debarment by paying a penalty as prescribed ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Amount of Penalty to be paid...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Amount of Penalty…
- Which source pages support an answer about Amount of Penalty to be paid for one time revocation...

RAG-033 ANNEXU RE-IV

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 32-33 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on ANNEXU RE-IV as described in Hotel Project Approval and Star Classification Guidelines. Source statement: I understand that the approval of the Ministry of Tourism is no substitute for any statutory approval, and the approval given is liable to be withdrawn in case of any violation or misrepresentation of facts or non-compliance of directions that may be...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “I understand that the approval of the Ministry of Tourism is no substitute for any statutory approval, and the approval given is liable to...”
- “In case of any dispute/ legal measure, the same may be eligible in the jurisdiction falling under the NCT of Delhi.”

Source passage excerpt

***** 30 | P a g e ANNEXU RE-IV FORMAT FOR UNDERTAKING (To be on official company letterhead) To, The Secretary (Tourism) Ministry of Tourism Govt. of India New Delhi UNDERTAKING I have read and understood all the terms and conditions mentioned in the Guidelines for Approval of Hotel Project under the Star category and hereby agree to abide by them. The information and documents provided are correct and authentic to the best of my knowledge. I understand that the approval of the Ministry of Tourism is no substitute for any statutory approval, and the approval given is liable to be withdrawn in case of any violation or misrepresentation of facts or non-compliance of directions that may be issued by the Ministry of Tourism, Government of India, without notice It is also to certify that in the event the hotel avails of subsidy / tax benefits I other benefits from the Government, the hotel will (would) not seek upgradation to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about ANNEXU RE-IV?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on ANNEXU RE-IV?
- Which source pages support an answer about ANNEXU RE-IV?

RAG-034 ANNEXURE-V

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 33-34 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on ANNEXURE-V as described in Hotel Project Approval and Star Classification Guidelines. Source statement: If at any stage, it is found that the Hotel Project has not obtained any clearance/permission/Noc from the local Authorities (Panchayat or Municipal) and /or State Government I Union Territory Administration and / or Government of India or any other relevant authority, or...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “If at any stage, it is found that the Hotel Project has not obtained any clearance/permission/Noc from the local Authorities (Panchayat or Municipal) and...”
- “Signature Name in block letters Seal of the applicant Place: ---------- Date: ---------- 31 | P a g e ANNEXURE-V (For Approval of Hotel...”

Source passage excerpt

Signature Name in block letters Seal of the applicant Place: ---------- Date: ---------- 31 | P a g e ANNEXURE-V (For Approval of Hotel at Project Stage) On Stamp Paper of Rs. 100.00 I.....son / daughter of Shri..... a resident of..... and Director / Partner / Owner / Chairman / Managing Director / CEO / Authorised representative of the Hotel Project..... On.....day of..... month..... year.....do hereby affirm and declare as follows: That the Hotel Project..... under proposed.....Star category located at (town/city)..... (State).....has obtained all necessary approvals / Permissions / clearances/ No objection certificates from the concerned authorities for construction of the Hotel Project from the Coastal Regulation Zone (CRZ), Environment & Forests, State Pollution Control Board (Consent to Establish), Police, Fire, Municipal/ Local Authority (s), Airports Authority of India etc. and that the Hotel Project..... will be constructed / is being constructed as per the Acts, Rules, Regulations and guidelines prescribed by the Local Authorities (Panchayat or Municipal) and / ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about ANNEXURE-V?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on ANNEXURE-V?
- Which source pages support an answer about ANNEXURE-V?

RAG-035 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 34-35 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Signature and stamp of the Notary Public 32 | P a g e ANNEXURE VI (For Classification/Re-classification of Operational Hotels On Stamp Paper of Rs. Source statement: 100.00 I, ..., son/daughter of Shri ....., a resident of ....., and Director /...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Signature and stamp of the Notary Public 32 | P a g e ANNEXURE VI (For Classification/Re-classification of Operational Hotels On Stamp Paper of...”
- “100.00 I, ..., son/daughter of Shri ....., a resident of ....., and Director / Partner / Owner / Chairman / Managing Director / CEO...”

Source passage excerpt

(Deponent) I, the undersigned, Notary Public, do hereby affirm that Shri/Smt ..... personally appeared before me on the..... day of..... and signed the above Affidavit. Signature and stamp of the Notary Public 32 | P a g e ANNEXURE VI (For Classification/Re-classification of Operational Hotels On Stamp Paper of Rs. 100.00 I, ..., son/daughter of Shri ....., a resident of ....., and Director / Partner / Owner / Chairman / Managing Director / CEO and Authorised representative of the Hotel ....., on ..... day of . . . . (month), ... (year), do hereby affirm and declare as follows: That the Hotel..... has obtained all necessary approvals from the concerned authorities for construction and running of the hotel ..... like clearances / no objection certificates from the Coastal Regulation zone (CRZ), Environment & Forests, Pollution Control, Police, Fire and Municipal / Local Authorities and that the hotel ..... has been constructed and ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
- Which source pages support an answer about Operational hotel classification?

RAG-036 Operational hotel classification

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 35 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Operational hotel classification as described in Hotel Project Approval and Star Classification Guidelines. Source statement: If at any stage it is found that the hotel has not obtained any clearance from the local Authorities (Panchayat or Municipal) and / or State Government / Union Territory Administration and / or Government of India or it is found...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

• “If at any stage it is found that the hotel has not obtained any clearance from the local Authorities (Panchayat or Municipal) and /...”

Source passage excerpt

If at any stage it is found that the hotel has not obtained any clearance from the local Authorities (Panchayat or Municipal) and / or State Government / Union Territory Administration and / or Government of India or it is found that such clearance (s) has / have been obtained on the basis of misrepresentation of fact (s) or if it is found that any fact mentioned in the application seeking the classification / re-classification status / approval is incorrect, then the classification / re-classification status / approval granted by the Ministry of Tourism, Government of India shall stand withdrawn with immediate effect and I, ..., Director / Owner/ Partner / Chairman / Managing Director / CEO and Authorized representative of the Hotel ..... shall be liable for facing criminal proceedings for misrepresentation of facts to the Ministry of Tourism, Government of India.

RAG retrieval prompts

• What does Hotel Project Approval and Star Classification Guidelines state about Operational hotel classification?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Operational hotel classification?
• Which source pages support an answer about Operational hotel classification?

RAG-037

PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM AND

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 35-36 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM AND as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Personally appeared before me on the ..... day of ....., and signed the above Affidavit. Source statement: We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Personally appeared before me on the ..... day of ....., and signed the above Affidavit.”
- “We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.”

Source passage excerpt

(Deponent) I, undersigned, Notary Public, do hereby affirm that Shri / Smt..... Personally appeared before me on the ..... day of ....., and signed the above Affidavit. (Notary Public) 33 | P a g e ANNEXURE - VII PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM AND SUSTAINABLE TOURISM (For internal circulation and use of hotel) I / we solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization and the tolerant and accommodating nature of our multicultural society and protect all individuals, especially women and children from all derogatory acts which are contrary to the spirit of our country. We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism. Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage protection standards, such ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about PLEDGE FOR COMMITMENT TOWARDS SAFE &...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on PLEDGE FOR COMMITMENT...
- Which source pages support an answer about PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM AND?

RAG-038 ANNEXURE-VIII

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 36-37 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on ANNEXURE-VIII as described in Hotel Project Approval and Star Classification Guidelines. Source statement: UNDERTAKING It is to hereby confirm that I / we have read and understood the "Code of Conduct for Safe and Honourable Tourism" adopted on 1st October 2010 as per copy attached with application with respect to Project Approval / Classification / Re-classification...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “UNDERTAKING It is to hereby confirm that I / we have read and understood the "Code of Conduct for Safe and Honourable Tourism" adopted...”
- “I / We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.”

Source passage excerpt

Signature Name On behalf of In the presence of 34 | P a g e ANNEXURE-VIII Format of 'Undertaking' in respect of the "Pledge for Commitment towards Safe & Honourable Tourism" (To be on official company letterhead) To The Secretary, Ministry of Tourism, Govt. of India, New Delhi. UNDERTAKING It is to hereby confirm that I / we have read and understood the "Code of Conduct for Safe and Honourable Tourism" adopted on 1st October 2010 as per copy attached with application with respect to Project Approval / Classification / Re-classification of hotels under the Star / Heritage categories and hereby agree to abide by them. That I/ We solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization, and the tolerant and accommodating nature of our multicultural society and protect all individuals, especially women and children from all derogatory acts which are contrary to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about ANNEXURE-VIII?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on ANNEXURE-VIII?
- Which source pages support an answer about ANNEXURE-VIII?

RAG-039 Project approval

Source: Guidelines for Approval of Hotel Projects and Star Classification of Operational Hotels
Authority/date: Government of India, Ministry of Tourism, Hotels and Restaurants Division / H&R Division | Supplied compilation includes 2018 notices and guideline material
PDF page(s): 37 | Type: Ministry of Tourism classification scheme and administrative guidelines

Source-derived abstract

This record focuses on Project approval as described in Hotel Project Approval and Star Classification Guidelines. Source statement: Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage protection standards, such that my / our present tourism resource requirements optimize both local community...

Source-status qualification: The copy describes a voluntary Ministry classification scheme and includes 2018-era procedures. Do not assume categories, portals, fees, addresses or criteria remain...

Supporting source statements

- “Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best...”
- “Signature Name in 'BLOCK LETTERS' Seal Place..... Date.....”

Source passage excerpt

Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage protection standards, such that my / our present tourism resource requirements optimize both local community benefit and further sustainable uses. Signature Name in 'BLOCK LETTERS' Seal Place..... Date..... 35 | P a g e

RAG retrieval prompts

- What does Hotel Project Approval and Star Classification Guidelines state about Project approval?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Project approval?
- Which source pages support an answer about Project approval?

RAG-040 Definition and categories of Legacy Vintage Hotels

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 1-2 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Definition and categories of Legacy Vintage Hotels as described in Legacy Vintage Hotel Classification Guidelines. Source statement: These. guidelines are required to be adhered to by all the hotels seeking Classification/Re-classification under the Legacy Vintage Category by the Ministry of Tourism and will come into force with immediate effect. Source statement: 8-TH-I (1)/2017-H&R 7 Dated...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

• “These. guidelines are required to be adhered to by all the hotels seeking Classification/Re- classification under the Legacy Vintage Category by the Ministry of...”
• “8-TH-I (1)/2017-H&R 7 Dated: 19.04.2018 To, i Secretary (Tourism), All State Governments/UT Administrations 24 Secretary General, Federation of Hotel & Restaurant Associations of India...”

Source passage excerpt

Es Government of India Ministry of Tourism (H&R Division) C-1 Hutments Dara Shukoh Road New Delhi~ 110011 Tel: 011-23012810 No. 8-TH-I (1)/2017-H&R 7 Dated: 19.04.2018 To, i Secretary (Tourism), All State Governments/UT Administrations 24 Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAI) & President, Hotel Association of India (HAI) 4. President, Indian Heritage Hotels Association (IHHA) BS President, Travel Agents Association of India (TAAI) 6. President, Indian Association of Tour Operators (IATO) i Principal, IHMs 8. All Indiatourism Offices in India Subject: Guidelines for Classification / Re- Classification of Legacy Vintage Hotels. Madam / Sir, 1. Enclosed please find enclosed a copy ofthe Guidelines for Classification / Re- Classification of Hotels. 2. These. guidelines are required to be adhered to by all the hotels seeking Classification/Re- classification under the Legacy Vintage Category by the Ministry of Tourism and will come into force with immediate effect. 3. You are requested to kindly circulate these revised guidelines to all ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Legacy Vintage Hotel Classification Guidelines state about Definition and categories of Legacy Vintage Hotels?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Definition and categories...
• Which source pages support an answer about Definition and categories of Legacy Vintage Hotels?

OCR / screenshot source involved

RAG-041 Legacy Vintage Hotels will be sub-classified in the following categories:

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 2-3 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Legacy Vintage Hotels will be sub-classified in the following categories: as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Legacy Vintage Hotels will be sub-classified in the following categories: Legacy Vintage Basic: This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1950. Source statement: Legacy Vintage...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Legacy Vintage Hotels will be sub-classified in the following categories: Legacy Vintage Basic: This category will cover hotels built with materials sourced from heritage...”
- “Legacy Vintage Classic: This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1935.”

Source passage excerpt

Legacy Vintage Hotels will be sub-classified in the following categories: Legacy Vintage Basic: This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1950. The hotel should have a minimum of 5 rooms (10 beds). SPECIAL FEATURES: General features and ambience should conform to the overall concept of heritage and architectural distinctiveness. At least 50% of the rooms should be air-conditioned (except in hill stations where there should be heating arrangements). CUISINE: The hotel should offer traditional cuisine of the area. Legacy Vintage Classic: This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1935. The hotel should have a minimum of 15 room (30 beds). SPECIAL FEATURES: General features and ambience should conform to the overall concept of heritage and architectural distinctiveness. 100% of the rooms should be air-conditioned (except in hill stations where there should be heating arrangements). The hotel should provide ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Legacy Vintage Hotels will be sub-classified in the...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Legacy Vintage Hotels...
- Which source pages support an answer about Legacy Vintage Hotels will be sub-classified in the following categories:?

RAG-042 Room & Bath Size:

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 3-4 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Room & Bath Size: as described in Legacy Vintage Hotel Classification Guidelines. Source statement: The hotel would be judged by the quality of service and the years of experience that the owner/staff have had in the business. Source statement: There must be a filtration/purification plant for drinking water. There must be three tier washing system...
Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “The hotel would be judged by the quality of service and the years of experience that the owner/staff have had in the business.”
- “There must be a filtration/purification plant for drinking water. There must be three tier washing system with running hot and cold water; hygienic…”

Source passage excerpt

Room & Bath Size: The Minimum Bedroom and Bathroom sizes for the respective sub-categories should be as follows: S.No. Name of Sub-Category Room Size (sq.ft.) Bathroom Size (sq.ft.) 1. Legacy Vintage Basic 130 36 2. Legacy Vintage Classic 140 36 3. Legacy Vintage Grand 200 45 MANAGEMENT: The Hotel may be managed and run by the owning family and/or professionals. Note: Classification in any of the above categories will be given keeping in view the overall standard of the property. The hotel would be judged by the quality of service and the years of experience that the owner/staff have had in the business. GENERAL FEATURES: There should be adequate parking space for cars. All public rooms and areas and the guest rooms should be well maintained and well equipped with quality carpets/area rugs/good quality durries, furniture, fittings etc. in good taste and in keeping with the traditional lifestyle. If carpeting is not provided, the quality of flooring ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Room & Bath Size:?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Room & Bath…
- Which source pages support an answer about Room & Bath Size:?

RAG-043 Minimum rooms and beds

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 5 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Minimum rooms and beds as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Applications for Classification/Re-classification of Legacy Vintage – Grand, Classic and Basic categories with the requisite fee may be made on www.hotelcloud.nic.in. Source statement: Applications for Classification / Reclassification of operational hotels under any of the above categories should be submitted online on…

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

• “Applications for Classification/Re-classification of Legacy Vintage – Grand, Classic and Basic categories with the requisite fee may be made on www.hotelcloud.nic.in.”
• “Applications for Classification / Reclassification of operational hotels under any of the above categories should be submitted online on the portal https://www.hotelclould.nic.in along with…”

Source passage excerpt

SERVICES: The hotel should offer good quality cuisine and the food and beverage service should be of high standard. There should be qualified, trained, experienced, efficient and courteous staff in service and clean uniforms and the staff coming in contact with the guests should understand English. Housekeeping at these hotels should be of the highest possible standard and there should be a plentiful supply of linen, blankets, towels, etc. which should be of the highest possible standard. Each guest room should be provided with a vacuum jug/flask with bacteria free drinking water. Arrangements for heating/cooling must be provided for the guest rooms depending upon the season. Places which have telephone lines must have at least one phone in the office. All guest rooms should have intercom facility. Arrangements for medical assistance must be there in case of need. The staff/room ratio must be in keeping with the number of guest room in … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Legacy Vintage Hotel Classification Guidelines state about Minimum rooms and beds?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Minimum rooms and…
• Which source pages support an answer about Minimum rooms and beds?

RAG-044 GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 5-8 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR as described in Legacy Vintage Hotel Classification Guidelines. Source statement: If a hotel fails to apply for Re-classification and complete its documentation six months before the expiry of the classification period, the application will be treated as a fresh case of classification 4. Source statement: Once a hotel applies...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “If a hotel fails to apply for Re-classification and complete its documentation six months before the expiry of the classification period, the application will...”
- “Once a hotel applies for Classification / Re-classification, it should be ready at all times for inspection by the inspection committee of the HRACC.”

Source passage excerpt

Shukoh Road, New Delhi 110011, Tel: 011 – 23012810. 2 . T h e detailed Guidelines for the Classification/Re-classification of Legacy Vintage Hotels are at Annexure-I. 3. The Ministry of Tourism reserves the right to modify the Guidelines / Terms and Conditions from time to time. ***** ANNEXURE I GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/RE-CLASSIFICATION OF OPERATIONAL LEGACY VINTAGE HOTELS 1. With the aim to provide contemporary standards of facilities and services, the Ministry of Tourism has introduced a voluntary scheme for Classification / Reclassification of Operational Hotels in the following categories: i. Legacy Vintage- Basic ii. Legacy Vintage- Classic iii. Legacy Vintage- Grand 2. Operating hotels may opt for Classification at any stage. However, hotels seeking Re-classification should apply for the same and complete the process at least six months prior to the expiry of the current period of classification 3. If a hotel fails to apply for Re-classification and complete its documentation six months before the … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on GENERAL TERMS, CONDITIONS...
- Which source pages support an answer about GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR?

RAG-045 Legacy vintage definition

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 8-9 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Legacy vintage definition as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC). Source statement: Hotels will be classified following a two stage procedure: a) The presence of facilities and services will be...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC).”
- “Hotels will be classified following a two stage procedure: a) The presence of facilities and services will be evaluated. b) The quality of facilities...”

Source passage excerpt

respects viz. application form, application fee, prescribed clearances / NOCs / certificates etc. Incomplete applications will not be accepted. 7. The application fees for Classification / Re-classification is payable only by RTGS/NEFT/Debit/Credit Cards and are as follows. Star Category Classification/Reclassification fee (in Rs.) Legacy Vintage- Basic 15,000 Legacy Vintage- Classic 15,000 Legacy Vintage- Grand 15,000 8. Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC). The Committee for all Legacy Vintage sub-categories will be constituted as follows: Chaired by Additional Director General (Tourism), Govt. of India/ Chairperson (HRACC) or a representative nominated by him/her Representative from FHRAI Representative from HAI Representative from IATO Representative from TAAI Representative from IHHA Principal Institute of Hotel Management OR his / her representative who shall be the member of teaching faculty of the Institute Regional Director, Indiatourism Office / local Indiatourism office ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Legacy vintage definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Legacy vintage definition?
- Which source pages support an answer about Legacy vintage definition?

RAG-046 Inspection

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 9-10 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Inspection as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with the hotel representatives during inspection. Source statement: In the event, the deficiencies are not complied within the said time frame, the...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with...”
- “In the event, the deficiencies are not complied within the said time frame, the application of the hotel will be rejected and the hotel...”

Source passage excerpt

10. The hotel is expected to maintain required standards at all times. The Classification Committee may inspect a hotel at any time without previous notice. The Committee may request that its members be accommodated overnight to inspect the level of services. 17. Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with the hotel representatives during inspection. The maximum time that may be given by the committee for rectification of deficiencies shall not exceed 3 months. In the event, the deficiencies are not complied within the said time frame, the application of the hotel will be rejected and the hotel may apply afresh under an appropriate category. Failure to comply within the stipulated will result in rejection of the application. 11. The Committee may assign a Legacy Vintage sub-category lower but not higher than that applied for. 12. The hotel must be able to convince the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Inspection?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Inspection?
- Which source pages support an answer about Inspection?

RAG-047 Land use and building approvals

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 10-11 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Land use and building approvals as described in Legacy Vintage Hotel Classification Guidelines. Source statement: On t h e day a new staff member joins t h e Hotel, h e / she would b e required to take / sign the pledge. Source statement: The focal points of the hotel would be trained first within…

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “On t h e day a new staff member joins t h e Hotel, h e / she would b e required to take…”
- “The focal points of the hotel would be trained first within first six months of MOT approval.”

Source passage excerpt

Conduct for Safe & Honorable Tourism’ is attached at Annexure II. ii. On t h e day a new staff member joins t h e Hotel, h e / she would b e required to take / sign the pledge. The pledge would be incorporated in the appointment letter / joining report of the staff. iii. Two focal points/Nodal Officers would be nominated (i.e., from HR, security side etc.) at the time of applying for approval by the Hotel in the case of hotels which have m o r e than 25 personnel. In the case of Hotels with less than 25 personnel, one focal point would have to be nominated. iv. The training would be provided to the staff of the classified/approved hotels by Ministry of Tourism under its Capacity Building of Service Providers (CBSP) scheme in connection with “Safe & Honourable Tourism”. The focal points of the hotel would be trained first within first six months of MOT … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Land use and building approvals?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Land use and…
- Which source pages support an answer about Land use and building approvals?

RAG-048 PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 11-13 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Efforts w i l l b e m a d e t o e n s u r e that all cases of classification are given final decision within three months from the date of receipt of the...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Efforts w i l l b e m a d e t o e n s u r e that all cases of classification...”
- “Signature: Name: On behalf of In the presence of ANNEXURE-III Format of ‘Undertaking’ in respect of the “Pledge for Commitment towards Safe & Honourable...”

Source passage excerpt

https://www.hotelcloud.nic.in positively by 20th of every month for the previous month. 17. Incomplete applications for Classification / Reclassification will not be entertained. Efforts w i l l b e m a d e t o e n s u r e that all cases of classification are given final decision within three months from the date of receipt of the application, subject to all essential documents being found to be current, valid and satisfactory and uploaded timely by the inspected hotel. ****** ANNEXURE – II PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM AND SUSTAINABLE TOURISM (For internal circulation and use of the hotel) I / we solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization and the tolerant and accommodating nature of our multicultural society and protects all individuals, especially women and children from all derogatory acts which are contrary to the spirit ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on PLEDGE FOR COMMITMENT...
- Which source pages support an answer about PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM?

RAG-049 Fire and police clearances

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 13-14 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Fire and police clearances as described in Legacy Vintage Hotel Classification Guidelines. Source statement: If at any stage it is found that the hotel has not obtained any clearance from the local Authorities (Panchayat or Municipal) and /or State Government / Union Territory Administration and / or Government of India or it is found that such...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “If at any stage it is found that the hotel has not obtained any clearance from the local Authorities (Panchayat or Municipal) and /or...”
- “(Deponent) I, undersigned, Notary Public, do hereby affirm that Shri/Smt.....personally appeared before me on the ----------day of ----------, and signed the above Affidavit.”

Source passage excerpt

Recognizing that every earth resource is finite and fragile, I / We further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage project standards, such that my / our present tourism resource requirements optimize both local community benefits and future sustainable uses. Signature:..... Name in ‘Block letters’ Seal Place_____ Date_____ ANNEXURE IV On Stamp Paper of Rs. 100.00 I ..... son/daughter of Shri..... a resident of..... and Director / Partner / Owner / Chairman / Managing Director / CEO/ Authorised representative of the Hotel.....on.....day of ..... month ..... year.....do hereby affirm and declare as follow: That the Hotel..... has obtained all necessary approvals from the concerned authorities for construction and running the hotel.....like clearances/no objection certificates from the Coastal Regulation Zone (CRZ), Environment & Forests, Pollution Control, Police, Fire and Municipal/ Local Authorities and that the hotel.....has been constructed and is being run as per the Acts, Rules, Regulations and guidelines prescribed by the local ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Fire and police clearances?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Fire and police...
- Which source pages support an answer about Fire and police clearances?

RAG-050

LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE TIME OF

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 15-17 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE TIME OF as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Licenses / NOCs Validity Status at the time of Remarks / period of inspection Yes / No Current validity 1 Trade license to operate as hotel 2 Certificate of extent of usage and age of materials...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Licenses / NOCs Validity Status at the time of Remarks / period of inspection Yes / No Current validity 1 Trade license to operate...”
- “Annexure V LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE TIME OF APPLICATION SUCH AS CERTIFICATION OF EXTENT OF USAGE AND AGE OF MATERIALS...”

Source passage excerpt

Annexure V LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE TIME OF APPLICATION SUCH AS CERTIFICATION OF EXTENT OF USAGE AND AGE OF MATERIALS USED FOR CONSTRUCTION ETC. (CHECKLIST) Sl. No. Licenses / NOCs Validity Status at the time of Remarks / period of inspection Yes / No Current validity 1 Trade license to operate as hotel 2 Certificate of extent of usage and age of materials used for construction from appropriate central / state/ local government authority. 3 NOC from Fire Department 4 Clearance certificate from Municipal Health Officer / Sanitary Inspector (Health NOC) 5 NOC from Police Department 6 Consent to operate from the State Pollution Control Board 7 Bar license wherever applicable 8 NOC from Ministry of Environment & Forests (wherever applicable) 9 NOC from Airport Authority of Indian for hotels located near the Airport 10 CRZ clearance if applicable 11 Land Use Permission 12 Building plans duly sanctioned / approved by the competent authority 13 Documents ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on LIST OF THE...
- Which source pages support an answer about LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE TIME OF?

RAG-051 Minimum rooms and beds

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 17-19 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Minimum rooms and beds as described in Legacy Vintage Hotel Classification Guidelines. Source statement: All Legacy Vintage (Classic) & Legacy Vintage (Grand) hotels shall provide a safe in the room. Source statement: The area bathroom in sq. ft may include the vestibule and other covered areas within the room but exclude outdoor verandah.

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “All Legacy Vintage (Classic) & Legacy Vintage (Grand) hotels shall provide a safe in the room.”
- “The area bathroom in sq. ft may include the vestibule and other covered areas within the room but exclude outdoor verandah.”

Source passage excerpt

Minimum no. of lettable 10 15 15 rooms, all rooms with outside windows / Ventilation. Minimum size of 130 140 200 Rooms should not be less than bedroom excluding the specified size. The area bathroom in sq. ft may include the vestibule and other covered areas within the room but exclude outdoor verandah. Air-conditioning - 50% 100% 100% Air-conditioning/ heating depends on climatic conditions % of Rooms & architecture. Room temp. should b e between 20c % to 28c. A clean change of bed and N N N Definitely required between bath linen daily and each check-in. On alternate between check-in days for 1 & 2 Star category hotels. Guest linen N N N Good quality linen to be provided. Minimum bed width for N N N single 90 cm and double 180 cm Mattress thickness N N N Coir, foam or spring foam minimum 10 cm Minimum bedding 2 sheets, N N N Blankets available in air pillow and ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Minimum rooms and beds?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Minimum rooms and...
- Which source pages support an answer about Minimum rooms and beds?

RAG-052 Minimum rooms and beds

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 19-21 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Minimum rooms and beds as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Minimum 1 new soap per guest Bottled toiletry products to D N N be provided Clothes - hooks i n each N N N All Star category hotels shall bath / shower room provide two (2) clothes hooks in the bath/shower room...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Minimum 1 new soap per guest Bottled toiletry products to D N N be provided Clothes - hooks i n each N N N...”
- “Minimum size of 36 36 45 Bathrooms to have western style WC. bathroom in square feet There is no ceiling / cap on the...”

Source passage excerpt

Shelves /drawer space N N N Necessary for all Legacy Vintage t o have a wardrobe. Wardrobe with minimum 4 N N N clothes hangers per bedding Sufficient lighting (1 lamp N N N per bed) A 5 a m p earthed N N N power socket A bedside table and drawer N N N 1 per two twin bed and two for a double bed. Cable TV if available D D D TV, if present, must have a remote. It is mandatory to provide a television with cable in the lobby or other common area. A writing surface with N N N sufficient lighting Chairs N N N Preferably one per bed Waste paper basket N N N Opaque curtains or N N N screening at all windows A mirror at least half length N N N (3”) A stationary folder N N N containing stationary A ‘do not disturb’ notice N N N Night spread/bedcover N N N ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Minimum rooms and beds?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Minimum rooms and...
- Which source pages support an answer about Minimum rooms and beds?

RAG-053 Minimum rooms and beds

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 21-22 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Minimum rooms and beds as described in Legacy Vintage Hotel Classification Guidelines. Source statement: All Star hotels shall provide N N N For the hotels which came into water sprays or bidets or operation before 31.03.2016, washlets or other modern these facilities will be water based post-toilet- mandatory from 01.04.2022. paper hygiene facilities. Source statement: Air-conditioning...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “All Star hotels shall provide N N N For the hotels which came into water sprays or bidets or operation before 31.03.2016, washlets or...”
- “Air-conditioning in common areas like lobby, restaurants, verandahs, bar where they are open to nature on one or more sides, shall not be mandatory...”

Source passage excerpt

All Star hotels shall provide N N N For the hotels which came into water sprays or bidets or operation before 31.03.2016, washlets or other modern these facilities will be water based post-toilet- mandatory from 01.04.2022. paper hygiene facilities. Floors and walls to have N N N non - porous surfaces Hot and cold running N N N Necessary for all categories. water available 24 hours Shower cabin N N N A s h o w e r w i t h shower curtain will suffice where shower cabin is not available. Bath tubs D D Water saving taps and N N N showers Energy saving lighting N N N Lounge or seating area in N N N Lobby shall h a v e furniture the lobby a n d fixtures which shall include chairs /arm chairs, sofa, tables and fresh floral display. Door man on duty for Legacy Vintage Classic and Grand categories. However, for all categories, the presence ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Minimum rooms and beds?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Minimum rooms and...
- Which source pages support an answer about Minimum rooms and beds?

RAG-054 Minimum rooms and beds

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 22-24 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Minimum rooms and beds as described in Legacy Vintage Hotel Classification Guidelines. Source statement: The door width of the room and bath room for differently abled persons in existing hotels shall be 90 cm. with effect from 01.04.2023. Source statement: For hotels that have come up after 01.04.2017, the minimum door width of such rooms and...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “The door width of the room and bath room for differently abled persons in existing hotels shall be 90 cm. with effect from 01.04.2023.”
- “For hotels that have come up after 01.04.2017, the minimum door width of such rooms and their bathroom shall be minimum 90 cm.”

Source passage excerpt

The almirah/cupboard doors in the differently abled room should be sliding to enable opening the same by the differently abled person. Blinking light in the room and bathroom should also be connected with the doorbell for the hearing impaired. Cordless telephone in the room. Direct calling facility to the front desk or operator. Bathroom N N N Door width for room of the differently abled persons and bathroom of such rooms should allow easy accessibility of wheel chair (made available by the hotel). For hotels that have come up after 01.04.2017, the minimum door width of such rooms and their bathroom shall be minimum 90 cm. The door width of the room and bath room for differently abled persons in existing hotels shall be 90 cm. with effect from 01.04.2023. Bathroom for the differently abled guest shall have suitable fixtures like low wash basin with wheel chair accessibility, low vanity counter, low seating on the WC, Wall mounted seat in ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Minimum rooms and beds?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Minimum rooms and...
- Which source pages support an answer about Minimum rooms and beds?

RAG-055 Inspection

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 24-26 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Inspection as described in Legacy Vintage Hotel Classification Guidelines. Source statement: First aid training for all N N N kitchen staff Pest control N N N Record to be shown to the HRACC during inspection of the hotel. Source statement: Six monthly medical check- N N N Records to be submitted along up for production staff...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “First aid training for all N N N kitchen staff Pest control N N N Record to be shown to the HRACC during inspection…”
- “Six monthly medical check- N N N Records to be submitted along up for production staff with pathological records to HRACC during inspection of…”

Source passage excerpt

Crockery and glassware N N N Plastic ware acceptable in pool area Cutlery to be at least N N N All category hotels should use stainless steel good quality metal cutlery. Aluminium cutlery is prohibited. D N N Bar will not be mandatory wherever bar licence is prohibited as per local law. Wherever bar is allowed as per local law, the hotel will have to first obtain bar licence before applying to the Ministry of Tourism for Classification of the hotel. Liquor shops will not be considered while granting classification. Refrigerator with deep N N N Capacity based on size of F&B freezer service. Segregated storage of meat, N N N Meat, fish and vegetables to be fish and vegetables kept in separate freezers. Tiled walls, non-slip floors N N N Colour coded synthetic N N N Wooden chopping boards chopping boards Head covering for N N N production staff Daily germicidal cleaning of N N N floors Good quality … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Inspection?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Inspection?
- Which source pages support an answer about Inspection?

RAG-056 Minimum rooms and beds

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 26-28 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Minimum rooms and beds as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Iron and Iron Board facility D N N Iron and iron board (properly secured) to be made available on request in Legacy Vintage (Basic) hotels on complimentary basis. Source statement: Provision for wheelchair for the N N N Wheel chair to be...

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Iron and Iron Board facility D N N Iron and iron board (properly secured) to be made available on request in Legacy Vintage (Basic)...”
- “Provision for wheelchair for the N N N Wheel chair to be made differently abled guest available on complimentary basis in hotels of all...”

Source passage excerpt

English speaking front N N N This may be relaxed outside office staff the metros/sub-metros for Legacy Vintage (Basic) hotels. Percentage of skilled staff 30% 30% 60% The supervisory or the skilled staff may have training or skill certification as follows: Degree/Diploma from Central or State IHMs/FCIs or from NCHMCT affiliated IHMs or from other reputed Hospitality Schools. Skill training certificate issued under the guidelines and scheme of the Ministry of Tourism. Staff Rest Rooms N N N Separate for male a n d female employees, with bunk beds. Rooms should be well lighted and ventilated Staff Locker Room N N N Toilet facilities N N N Full length mirror, hand dryer with liquid soap dispenser Separate Dining area & N N N Facility Display of Pledge N N N Pledge to be displayed prominently in the staff/back areas/office premises of all the Heads of Departments (HODs) Training for ‘Code of Conduct N N N At time of joining (orientation ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Minimum rooms and beds?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Minimum rooms and...
- Which source pages support an answer about Minimum rooms and beds?

RAG-057 Legacy vintage definition

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 28-29 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Legacy vintage definition as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Access to travel desk N N N facilities Left luggage facilities D D N This must be in a well secured room / 24-hour manned area. Source statement: Paid transportation on call N N N Guest should be able to travel from hotel.

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Access to travel desk N N N facilities Left luggage facilities D D N This must be in a well secured room / 24-hour…”
- “Paid transportation on call N N N Guest should be able to travel from hotel.”

Source passage excerpt

For Legacy Vintage Classic and Grand categories- to be available in the room on complimentary basis. Paid transportation on call N N N Guest should be able to travel from hotel. Shoe cleaning, shoe horn & D N N Free facility to be provided for slippers in house guests. Ice (from drinking water) on N N N Complimentary on request demand Acceptance of common N N N credit cards and facility / infrastructure for accepting/ making payments by digital transactions Assistance with luggage on N N N request A public telephone on N N N There should be at least one premises. Unit charges telephone no higher than 24” made known from floor level in 5 and 5 Star Deluxe (to also cater to differently abled guests) Wake - up call service on N N N request Messages for guests to N N N A prominently displayed message board will suffice for be recorded and delivered 1 & 2 Star ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Legacy vintage definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Legacy vintage definition?
- Which source pages support an answer about Legacy vintage definition?

RAG-058 Fire and police clearances

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 29-31 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Fire and police clearances as described in Legacy Vintage Hotel Classification Guidelines. Source statement: Telephone facility within N N N arm’s reach of the toilet seat Provide at least two multi- N N N All Legacy Vintage hotels shall purpose sockets. provide at least two multi- purpose sockets capable of handling US, European Community and Japanese…
Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “Telephone facility within N N N arm’s reach of the toilet seat Provide at least two multi- N N N All Legacy Vintage hotels…”
- “For hotels which have come into operation prior to 31.03.2016, this guideline will be applicable from 1.4.2022.”

Source passage excerpt

Under belly scanners to D N N screen vehicles. Verification N N N All hotels should conduct a antecedent verification of their staff and suppliers by the Police/ private security agencies. Staff trained in fire fighting N N N All hotels to conduct periodic fire drills and maintain Drill. ‘Manuals’ for Disaster Management, First Aid and Fire Safety. Quarterly drills as per Law. Security arrangements for N N N all hotel entrances Each bedroom door to be N N N A safety c h a i n / wishbone fitted with lock and key, latch is acceptable in place of viewport/ peephole & viewport/ peephole. internal securing device. Smoke Detectors. N N` N These may be battery operated. Fire and emergency alarms N N N should have visual & audible signals. First aid kit with over the N N N counter medicines at the front desk Fire Exit signs on guest N N N floors with emergency/ backup power. Telephone … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Fire and police clearances?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Fire and police…
- Which source pages support an answer about Fire and police clearances?

RAG-059 Sporting facilities

Source: Guidelines for Classification / Re-classification of Legacy Vintage Hotels
Authority/date: Government of India, Ministry of Tourism, H&R Division | 2018-era guidelines; the supplied letter is dated 19 April 2018
PDF page(s): 31-33 | Type: Ministry of Tourism classification guidelines

Source-derived abstract

This record focuses on Sporting facilities as described in Legacy Vintage Hotel Classification Guidelines. Source statement: All hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools. Source statement: It will be desirable for LV (Grand) hotels to have heated swimming pool.

Source-status qualification: Historical classification scheme copy. Criteria and documentation must be checked against current Ministry publications before use as a current eligibility determination.

Supporting source statements

- “All hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools.”
- “It will be desirable for LV (Grand) hotels to have heated swimming pool.”

Source passage excerpt

Fax, photocopy and printing N N N Services. In room Internet /Wi-Fi D N N Subject to local internet access connection being available. Wi- Fi wherever possible. Swimming Pool/ Health D N N At least one of the sporting Club/ Lawn Tennis/ Squash/ facilities is mandatory for LV Horse-riding/ Golf Course Classic hotels and at least two of the sporting facilities are mandatory for LV Grand hotels. Mandatory to have trained Life Guard/ Swimming pool attendant (for pools upto depth of 4 feet). Board containing Do’s and Don’ts, No Diving sign, pool depth etc. should be displayed at a strategic location in the pool area. All hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools. It will be desirable for LV (Grand) hotels to have heated swimming pool. Parking facilities N N N Should be adequate in relation t o t h e number o f rooms & … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Legacy Vintage Hotel Classification Guidelines state about Sporting facilities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Sporting facilities?
- Which source pages support an answer about Sporting facilities?

RAG-060 Necessary requirements for guest-house approval

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 1 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on Necessary requirements for guest-house approval as described in Guest House Approval Guidelines. Source statement: These measures may not only augment hotel accommodation in budget category but also generate employment and revenue for the States. Source statement: 6 of the Mark Sheet regarding Cleanliness/ Hygiene) (xi) Tie-up with nearby Hospital or Doctor-on-Call facility (xii) Safe- keeping facilities...

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “These measures may not only augment hotel accommodation in budget category but also generate employment and revenue for the States.”
- “6 of the Mark Sheet regarding Cleanliness/ Hygiene) (xi) Tie-up with nearby Hospital or Doctor-on-Call facility (xii) Safe- keeping facilities at the reception (xiii)...”

Source passage excerpt

Government of India Ministry of Tourism (H&R Division) GUIDELINES FOR APPROVAL OF GUEST HOUSES (Revised – December 2009) In order to meet the rising demand of hotel accommodation for budget tourists both domestic and foreign, Ministry of Tourism has decided to standardize and ensure good, clean, hygienic, fair and upgraded facilities and practices in the large number of Guest Houses and unregulated accommodation units that spring up in cities and towns. These measures may not only augment hotel accommodation in budget category but also generate employment and revenue for the States. With this aim in view, Govt. of India, Ministry of Tourism has a voluntary Scheme for approval of Guest Houses in the country. Guest Houses seeking approval should have the following features:- I. Necessary Requirement (i) Minimum 6 (six) lettable rooms with proper ventilation and 6 meters approach road for Taxi / Ambulance (the road width of minimum 6 metres would not be mandatory in those cities, where Guest ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about Necessary requirements for guest-house approval?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Necessary requirements for...
- Which source pages support an answer about Necessary requirements for guest-house approval?

RAG-061 II. DESIRABLE SERVICES

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 2-3 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on II. DESIRABLE SERVICES as described in Guest House Approval Guidelines. Source statement: For approval of Guest Houses, application along with the requisite fees may be sent to the Regional Director, Indiatourism Office in whose region the Guest House is located: 1. Source statement: Road, Guwahati - 781 005 Tel: 0361- 2341603 E-mail indtour@asm.nic.in Government of India...

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “For approval of Guest Houses, application along with the requisite fees may be sent to the Regional Director, Indiatourism Office in whose region the...”
- “Road, Guwahati - 781 005 Tel: 0361- 2341603 E-mail indtour@asm.nic.in Government of India Ministry of Tourism (H&R Division) GUIDELINES FOR APPROVAL OF GUEST HOUSES...”

Source passage excerpt

(xvii) Registration with local authorities like Police, Municipality, Electricity, Water, Fire, State Tourism Department or Corporation (xviii) CCTV in public areas with data backup is mandatory II. DESIRABLE SERVICES (i) Staff quality with 10% of the staff experienced or one year certificate course from the Catering / Hotel Management Institute (ii) Recycling of waste water (iii) Dishwasher (iv) Coffee, tea dispenser (v) Credit Card facilities (vi) Tie-up with travel agents / nearby Hospital or Doctor-on-Call facility (vii) Room, ramp and dedicated public restroom for the physically challenged persons The Hotel & Restaurant Approval & Classification Committee (HRACC) inspects and assesses the Guest Houses based on facilities and services offered. For approval of Guest Houses, application along with the requisite fees may be sent to the Regional Director, Indiatourism Office in whose region the Guest House is located: 1. Regional Director 2. Regional Director Indiatourism Indiatourism West & Central Region Northern Region 23, M. Karve Road 88, Janpath Mumbai-400020 New Delhi-110001 ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about II. DESIRABLE SERVICES?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on II. DESIRABLE SERVICES?
- Which source pages support an answer about II. DESIRABLE SERVICES?

RAG-062 NOCs and certificates

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 3-4 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on NOCs and certificates as described in Guest House Approval Guidelines. Source statement: (i) Certificate / licence from Municipality/ Corporation to show that the establishment is registered as a Guest House including Clearance by competent authority to the establishment on sanitary / hygienic point of view. Source statement: (iv) Public liability insurance (Desirable) (v) Bar Licence (required...

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “(i) Certificate / licence from Municipality/ Corporation to show that the establishment is registered as a Guest House including Clearance by competent authority to...”
- “(iv) Public liability insurance (Desirable) (v) Bar Licence (required where permissible as per local laws and regulations) (vi) Money Changers Licence (if any).”

Source passage excerpt

2. Name and address of the promoters/ owners with a note on their business antecedents 3. Complete postal address of the Guest House with Telephone No. / Fax / E-mail 4. Status of the owners/ promoters (i) If public /private limited company with copy of Memorandum and Articles of Association (ii) If partnership, a copy of Partnership Deed and Certificate of Registration (iii) If proprietor concern, name and address of proprietor/ certificate of registration 5. Date on which the Guest House became operational 6. Distance of Guest House (in kms.) from: a. Airport b. Railway Station c. City centre d. Downtown shopping area 7. Details of the Guest House: (i) Area (in sq. meters) with title-owned/ leased with copies of sale/ lease deed (ii) Copy of Land Use Permit / Licence to run Guest House from appropriate authority / Registration from local authorities (iii) Number of rooms (iv) Public restroom facilities for ladies and gents (v) Details of public ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about NOCs and certificates?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on NOCs and certificates?
- Which source pages support an answer about NOCs and certificates?

RAG-063 Voluntary approval

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 4 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on Voluntary approval as described in Guest House Approval Guidelines. Source statement: All applications for approval of Guest Houses must be complete in all respects- application form, application fee, prescribed clearances, NOCs, Certificates etc. Source statement: The recommendations will be sent to HRACC Division, Ministry of Tourism, Govt. of India within 3 weeks.

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “All applications for approval of Guest Houses must be complete in all respects- application form, application fee, prescribed clearances, NOCs, Certificates etc.”
- “The recommendations will be sent to HRACC Division, Ministry of Tourism, Govt. of India within 3 weeks.”

Source passage excerpt

Note: The above mentioned approvals/ No Objection Certificates are the responsibility of the owners/ promoters/ concerned Company as the case may be. The Ministry’s approval is no substitute for any statutory approval and the approval given is liable to be withdrawn without notice in case of any violations or misrepresentation of facts. 9. All applications for approval of Guest Houses must be complete in all respects- application form, application fee, prescribed clearances, NOCs, Certificates etc. Incomplete application is liable to be rejected. 10. The application fee payable for approval and renewal of a Guest House is Rs. 5000/-. The demand draft maybe made payable to "Pay & Accounts Officer, Ministry of Tourism, New Delhi". 11. The Committee for approval of Guest Houses will consist of the following:- (i) The Committee will be chaired by the Regional Director, Indiatourism Office of the concerned region; Director, State Tourism Department or his nominee; IATO; TAAI; IHM. In addition, a nominee of the Guest ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about Voluntary approval?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Voluntary approval?
- Which source pages support an answer about Voluntary approval?

RAG-064 Voluntary approval

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 5 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on Voluntary approval as described in Guest House Approval Guidelines. Source statement: Approval will be valid for five (5) years from the date of issue of orders or in case of re- approval from the date of expiry of the last approval provided that the application has been received within the stipulated time mentioned above, along with...

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “Approval will be valid for five (5) years from the date of issue of orders or in case of re- approval from the date...”
- “Any deficiencies/ rectification pointed out by the HRACC during inspection, must be complied within the stipulated time.”

Source passage excerpt

13. Any deficiencies/ rectification pointed out by the HRACC during inspection, must be complied within the stipulated time. Failure to do so will result in rejection of the application. 14. The Guest House must be able to convince the committee that they are taking sufficient steps to conserve energy and water, garbage segregation and disposal/ recycling as per Pollution Control Board (PCB) norms and other Eco-friendly measures. 15. Any changes in the plans for management of the Guest Houses should be informed to the HRACC, Govt. of India, Ministry of Tourism within 30 days otherwise the approval will stand withdrawn/ terminated. 16. Applicants are requested to go through the check list of facilities and services contained in this document before applying. 17. Incomplete applications will not be considered. As far as possible, cases of approval would be finalized within 3 months of the application being made. 18. Guest Houses seeking approval should apply 3 months prior to the expiry of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about Voluntary approval?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Voluntary approval?
- Which source pages support an answer about Voluntary approval?

RAG-065 FORMAT FOR UNDERTAKING

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 5-7 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on FORMAT FOR UNDERTAKING as described in Guest House Approval Guidelines. Source statement: Cold storage facilities 5 6. * Cleanliness/Hygiene 15 Front areas/ public areas, rooms, kitchen, store, pantry, refrigerator, dining area/bar (where applicable as per by-laws), garbage area, staff facilities and back areas including maintenance areas (*Note: Minimum 9 marks (60%) in this criteria are required...

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “Cold storage facilities 5 6. * Cleanliness/Hygiene 15 Front areas/ public areas, rooms, kitchen, store, pantry, refrigerator, dining area/bar (where applicable as per by-laws)...”
- “The information and documents provided by me are correct and authentic to the best of my knowledge.”

Source passage excerpt

21. The Govt. of India, Ministry of Tourism reserves the right to modify the ‘Guidelines/ Terms and Conditions’ from time to time. ***** FORMAT FOR UNDERTAKING (To be furnished on official Letter Head) To The Regional Director Indiatourism New Delhi/ Mumbai/ Kolkata/ Chennai/ Guwahati Undertaking I have read and understood all the terms and conditions mentioned above with respect to approval of Guest House and hereby agree to abide by them. The information and documents provided by me are correct and authentic to the best of my knowledge. Signature Name in block letters Seal Place: Date: Government of India Ministry of Tourism (H&R Division) GUIDELINES FOR APPROVAL OF GUEST HOUSES (Revised – December 2009) Mark Sheet for Assessment by HRACC Inspection Date: _____ Name of the Guest House: _____ Address: _____ Telephone no. & Fax No. _____ E-mail: _____ S. Criteria & Questions Maxi Marks Answers/ Details of No. mum obtained the facilities Marks offered 1. Location & décor 10 ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about FORMAT FOR UNDERTAKING?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on FORMAT FOR UNDERTAKING?
- Which source pages support an answer about FORMAT FOR UNDERTAKING?

RAG-066 Pest control

Source: Guidelines for Approval of Guest Houses
Authority/date: Government of India, Ministry of Tourism, H&R Division | Revised December 2009
PDF page(s): 7-8 | Type: Voluntary Ministry of Tourism approval scheme

Source-derived abstract

This record focuses on Pest control as described in Guest House Approval Guidelines. Source statement: Other facilities/ amenities under desirable 5 categories Total Marks: 100 Note: Minimum 9 marks (60%) is required under criteria No. Source statement: Pest Control 10 front of the house, guest rooms, kitchen and F&B areas, back areas, stores (where permitted), staff facilities and back areas...

Source-status qualification: Old voluntary scheme copy. Measurements, requirements, fees, authorities and contact details must not be assumed current or applicable outside the scheme described...

Supporting source statements

- “Other facilities/ amenities under desirable 5 categories Total Marks: 100 Note: Minimum 9 marks (60%) is required under criteria No.”
- “Pest Control 10 front of the house, guest rooms, kitchen and F&B areas, back areas, stores (where permitted), staff facilities and back areas 8.”

Source passage excerpt

7. Pest Control 10 front of the house, guest rooms, kitchen and F&B areas, back areas, stores (where permitted), staff facilities and back areas 8. Staff (Please give list of staff with percentage of 10 trained/ experienced employees) 9. Uniform and staff facilities (smart & clean 5 uniforms, staff lockers etc.) 10. RO treated/UV treated water / Branded bottled 5 water to be made available for guests. Availability of 24 Hour water . RO treated/UV treated water to be used for cooking 11. Parking facilities 5 (There should be adequate space for parking) 12. Safety and Security 5 CCTV in public areas with data backup 13. Other facilities/ amenities under desirable 5 categories Total Marks: 100 Note: Minimum 9 marks (60%) is required under criteria No. 6 – Cleanliness/ Hygiene- to qualify for approval. Overall minimum qualifying marks required 60 for approval Comments:_____
_____
_____
_____
_____ S. No. Members Name & Designation Signature 1. Chairman 2. Director State Tourism ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Guest House Approval Guidelines state about Pest control?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Pest control?
- Which source pages support an answer about Pest control?

RAG-067 Common standards for B&B and homestay classification

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 1-2 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on Common standards for B&B and homestay classification as described in B&B and Homestay Classification Guidelines. Source statement: 4-TH-II(21)/2016-Pt-II-H&R Dated: 10.12.2018 To, erie Secretary (Tourism), All State Governments/UT Administrations 2 Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAT) 3 President, Hotel Association of India (HAT) 4. Source statement: These guidelines are also available on...
Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “4-TH-II(21)/2016-Pt-II-H&R Dated: 10.12.2018 To, erie Secretary (Tourism), All State Governments/UT Administrations 2 Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAT) 3...”
- “These guidelines are also available on the official website of the Ministry of Tourism wiw.tourism. gov.in Yopys faithfully, wee (Sa@nlk Chowdhprry) Assistant Djrector Geyeral...”

Source passage excerpt

i i Government of India Ministry of Tourism (H&R Division) C-1 Hutments Dara Shukoh Road New Delhi - 110011 Tel: 011-23012810 No. 4-TH-II(21)/2016-Pt-II-H&R Dated: 10.12.2018 To, erie Secretary (Tourism), All State Governments/UT Administrations 2 Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAT) 3 President, Hotel Association of India (HAT) 4. President, Indian Association of Tour Operators (IATO) 5. President, Travel Agents: Association of India (TAAT) 6. Principal, All State and Central IHMs z All Indiatourism Offices in India Subject: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Estabtishments and Incredible India Homestay Establishments. Madam / Sir, 1. Enclosed please find a copy of the Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments. 2. These guidelines are required to be adhered to by all the Bed & Breakfast Establishments and Homestay Establishments seeking Classification / Re-classification under the Incredible India Bed & Breakfast Establishments and Incredible ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about Common standards for B&B and homestay classification?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Common standards for...
- Which source pages support an answer about Common standards for B&B and homestay classification?

OCR / screenshot source involved

RAG-068 CORRIGENDUM

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 3-4 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on CORRIGENDUM as described in B&B and Homestay Classification Guidelines. Source statement: Hotels and other supplementary accommodation are an integral part of a tourist's visit to a place and the services offered by them can make his/her visit memorable. Source statement: Government of India Ministry of Tourism (Hotels & Restaurants Division) 4-TH-11(21)/2016-PLI-H&R Date: 03.01.2019 CORRIGENDUM Reference is...

Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “Hotels and other supplementary accommodation are an integral part of a tourist's visit to a place and the services offered by them can make...”
- “Government of India Ministry of Tourism (Hotels & Restaurants Division) 4-TH-11(21)/2016-PLI-H&R Date: 03.01.2019 CORRIGENDUM Reference is invited to the Common national standards and guidelines...”

Source passage excerpt

Government of India Ministry of Tourism (Hotels & Restaurants Division) 4-TH-11(21)/2016-PLI-H&R Date: 03.01.2019 CORRIGENDUM Reference is invited to the Common national standards and guidelines for classification of Incredible India Bed & Breakfast Establishments and Incredible India homestay establishments dated 10.12.2018. Queries in this regard may be addressed to the concerned Regional Director, India Tourism Office, The office address of the Regional Directors are indicated as under: - Concerned Regional Director, Ministry of Tourism. No. _| is located. (1. [Haryana Regional Director, “Indiatourism (Northern Region), 88 Janpath, New Delhi - 110 001 [6 | Himachal Pradesh CSS Oe . sy i a ae . [10 | Gujarat" Regional Director, Indiatourism (Western & Central Region), [11 | Daman & Diu | 123 Maharshi Karve Road, Mumbai - 400 020 [12 | Dadar and Nagar Haveli [15 [Maharashtra a ae Regional Director, Indiatourism (Southern Region), 154, Anna [18 | Andhra Pradesh | Salat, Chennai-600002 Ce [20 | Kamataka SS 0 Regional Director, Indiatourism ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about CORRIGENDUM?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on CORRIGENDUM?
- Which source pages support an answer about CORRIGENDUM?

OCR / screenshot source involved

RAG-069 B&B definition

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 4-5 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on B&B definition as described in B&B and Homestay Classification Guidelines. Source statement: The details of the standards, facilities, services and the documents required for approval of such establishments will be as per these guidelines. Source statement: Once an establishment applies for- classification/ re-classification, it will have to be ready at all times for inspection by the...

Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “The details of the standards, facilities, services and the documents required for approval of such establishments will be as per these guidelines.”
- “Once an establishment applies for- classification/ re-classification, it will have to be ready at all times for inspection by the Regional Classification Committee.”

Source passage excerpt

2. The Incredible India Bed & Breakfast/Homestay facilities will be categorized as follows: - a) Silver b) Gold 3. The Regional Classification Committee, as specified in the guidelines, will inspect and assess the Bed & Breakfast / Homestay Establishments, based on facilities and services offered. The details of the standards, facilities, services and the documents required for approval of such establishments will be as per these guidelines. These guidelines will supersede the earlier guidelines for approval and registration of “Incredible India Bed & Breakfast / Homestay Establishments” 4. The Incredible India Bed & Breakfast / Homestay Establishments, once approved by Ministry of Tourism, will be duly publicized. A directory of all such approved establishments will also be prepared, so as to enable domestic as well as foreign tourists to live in a homely environment and to take advantage of the scheme. In addition, efforts will be made to organize short term training in hospitality trade to those who would opt ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about B&B definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on B&B definition?
- Which source pages support an answer about B&B definition?

RAG-070

Breakfast Establishments and Homestay Establishments will be as follows:

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 5-6 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on Breakfast Establishments and Homestay Establishments will be as follows: as described in B&B and Homestay Classification Guidelines. Source statement: Classification will be valid for two years from the date of issue of orders or in case of reclassification from the date of expiry of the last classification provided that the application has been received within the…
Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify…

Supporting source statements

- “Classification will be valid for two years from the date of issue of orders or in case of reclassification from the date of expiry…”
- “The application fees payable for classification/reclassification of Incredible India Bed & Breakfast Establishments and Homestay Establishments will be as follows: Star Category For Classification/Re-classification…”

Source passage excerpt

4. Classification will be valid for two years from the date of issue of orders or in case of reclassification from the date of expiry of the last classification provided that the application has been received within the stipulated time i.e. 3 months before the expiry of the previous classification. 5. Establishments desirous of classification as Incredible India Bed & Breakfast Establishments and Homestay Establishments and applying for classification will have to provide all the information supported by required documents as per the following formats: a) Application format as at Annexure —I. b) Checklist of facilities as at Annexure -II. c) Undertaking as at Annexure —III. 6. The application fees payable for classification/reclassification of Incredible India Bed & Breakfast Establishments and Homestay Establishments will be as follows: Star Category For Classification/Re-classification Silver Rs. 3,000 Gold Rs. 5,000 7. An Incredible India Bed & Breakfast Establishments and Homestay Establishment will be classified following two stage procedure. a) The presence of facilities … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about Breakfast Establishments and Homestay Establishments will be as…
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Breakfast Establishments and…
- Which source pages support an answer about Breakfast Establishments and Homestay Establishments will be as follows:?

RAG-071 B&B definition

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 6-7 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on B&B definition as described in B&B and Homestay Classification Guidelines. Source statement: In case of the category recommended being lower than the one applied for, then there will be no refund / adjustment of classification fee paid. Source statement: All cases of classification would be finalised within 30 days of the application, complete in all respects...
Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “In case of the category recommended being lower than the one applied for, then there will be no refund / adjustment of classification fee...”
- “All cases of classification would be finalised within 30 days of the application, complete in all respects and free from all deficiencies, being made...”

Source passage excerpt

11. The Committee may recommend to the concerned Regional Director, Ministry of Tourism, a category lower, but not higher than the one applied for. In case of the category recommended being lower than the one applied for, then there will be no refund / adjustment of classification fee paid. 12. The Incredible India Homestay Establishment will be expected to maintain required standards at all times. The Chairman, HRACC or the concerned Regional Director, Ministry of Tourism could authorize a surprise inspection of the establishment at any time without previous notice. 13. Any changes in the facilities of the Incredible India Bed & Breakfast Establishment and Homestay Establishment will have to be informed to the Regional Director, Indiatourism Office, within 30 days of such change. If any violation of this comes to the notice of the Approving Authority, then the classification will stand withdrawn/terminated. 14. All cases of classification would be finalised within 30 days of the application, complete in all ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about B&B definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on B&B definition?
- Which source pages support an answer about B&B definition?

RAG-072 B&B definition

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 7-9 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on B&B definition as described in B&B and Homestay Classification Guidelines. Source statement: (single/double/suites): (e) Number of attached baths: (f) Details of public areas for the following facilities in sq. ft.: (i) Lobby/lounge: (ii) Dining space: Source statement: Azad Road, Paltan 17 Meghalaya Bazar, Guwahati - 781 008 18 Mizoram 19 Nagaland 20 Sikkim 21 Tripura Note...

Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “(single/double/suites): (e) Number of attached baths: (f) Details of public areas for the following facilities in sq. ft.: (i) Lobby/lounge: (ii) Dining space:”
- “Azad Road, Paltan 17 Meghalaya Bazar, Guwahati - 781 008 18 Mizoram 19 Nagaland 20 Sikkim 21 Tripura Note: Items No.”

Source passage excerpt

Sl. State / UT in which the Homestay Concerned Regional Director, Ministry of No. Establishment is located. Tourism. 1. Haryana Regional Director, Indiatourism (Northern 2 Jammu & Kashmir Region), 88 Janpath, New Delhi - 110 001 3 Chandigarh 4 Daman & Diu Regional Director, Indiatourism (Western & 5 Dadar and Nagar Haveli Central Region), 123 Maharshi Karve Road, 6 Chhattisgarh Mumbai - 400 020 7 Tamil Nadu Regional Director, Indiatourism (Southern 8 Puducherry Region), 154 Anna Salai, Chennai-600002 9 Lakshawdeep 10 Jharkhand Regional Director, Indiatourism (Eastern 11 Odisha Region), 'Embassy', 4 Shakespeare Sarani, 12 Bihar Kolkata - 700 071 13 West Bengal 14 Arunachal Pradesh Regional Director, Indiatourism (North Eastern 15 Assam Region), Assam Paryatan Bhawan, 3rd Floor, 16 Manipur Near Nepali Mandir, A.K. Azad Road, Paltan 17 Meghalaya Bazar, Guwahati - 781 008 18 Mizoram 19 Nagaland 20 Sikkim 21 Tripura Note: Items No. 5 (c), 6, 8 and 15 may be suitably amended by the State Govt./ UT ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about B&B definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on B&B definition?
- Which source pages support an answer about B&B definition?

RAG-073 B&B definition

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 9-12 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on B&B definition as described in B&B and Homestay Classification Guidelines. Source statement: (iii) Par-king facilities: g) Additional facilities ‘available if any (not mandatory): (i) Eco -friendly facilities: (ii) Facilities for differently abled persons: (h) Details of Fire Fighting equipment/ hydrants etc. if any: 7. Source statement: Plains 120 200 Hills 100 120 5 Comfortable bed with...

Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “(iii) Par-king facilities: g) Additional facilities ‘available if any (not mandatory): (i) Eco -friendly facilities: (ii) Facilities for differently abled persons: (h) Details of...”
- “Plains 120 200 Hills 100 120 5 Comfortable bed with M M good quality linen & bedding preferably of Indian design; 6 Attached private...”

Source passage excerpt

(iii) Par-king facilities: g) Additional facilities ‘available if any (not mandatory): (i) Eco -friendly facilities: (ii) Facilities for differently abled persons: (h) Details of Fire Fighting equipment/ hydrants etc. if any: 7. Photographs of the building including interiors showing types of facilities available, bathroom, living room, bedroom, parking etc.: 8. Check list details as per Annexure II: 9. Consent of acceptance of the regulatory conditions (please enclose a copy of the prescribed undertaking as per Annexure III duly signed by the owner of the establishment) ***** Annexure-II Checklist for Classification of Incredible India Bed & Breakfast/ Homestay Establishment S. General Silver Gold Certification by Observations of No. the Establishment the Classification regarding the Committee facilities Yes/No 1 Well maintained and M M well equipped house and guest rooms with quality carpets / area rugs/ tiles or marble flooring, furniture, fittings etc. in keeping with the traditional lifestyle. 2 Sufficient parking with D M adequate road width. 3 Guest rooms: M ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about B&B definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on B&B definition?
- Which source pages support an answer about B&B definition?

RAG-074 B&B definition

Source: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments
Authority/date: Government of India, Ministry of Tourism | Memorandum dated 31 December 2018; enclosing guidelines dated 10 December 2018
PDF page(s): 13-14 | Type: Classification standards for B&B and homestays

Source-derived abstract

This record focuses on B&B definition as described in B&B and Homestay Classification Guidelines. Source statement: Note: - The grading in the various categories will depend on the quality of accommodation, facilities and services provided. Source statement: UNDERTAKING I have read and understood all the terms and conditions mentioned in the guidelines with respect to the approval and registration of...

Source-status qualification: Historical scheme copy. The document itself says the Ministry scheme applies where the relevant State/UT does not have its own scheme; verify...

Supporting source statements

- “Note: - The grading in the various categories will depend on the quality of accommodation, facilities and services provided.”
- “UNDERTAKING I have read and understood all the terms and conditions mentioned in the guidelines with respect to the approval and registration of the...”

Source passage excerpt

26 Heating and cooling to D M be provided in enclosed public rooms. 27 Garbage disposal M M facilities as per Municipal laws. 28 Energy Saving Lighting M M (CFL/ LED) in guest rooms and public areas. 29 Acceptance of cash M M /cheque / D.D. 30 Message facilities for M M guests. 31 Name, address and M M telephone number of doctors. 32 Left luggage facilities D M 33 Assistance with luggage, on request. 34 Safekeeping facilities in D M the room. 35 Smoke /heat detectors in D D the house. 36 Security guard facilities D M 37 Fire extinguisher / D M Firefighting system 38 Maintenance of register M M (physical or electronic format) for guest check- in and check-out records including passport details in case of foreign tourists. * 'M' stands for mandatory ** 'D' stands for- desirable. Note: - The grading in the various categories will depend on the quality of accommodation, facilities and services provided. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does B&B and Homestay Classification Guidelines state about B&B definition?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on B&B definition?
- Which source pages support an answer about B&B definition?

RAG-075 FSSAI licensing and registration: scope and definitions

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 1 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on FSSAI licensing and registration: scope and definitions as described in FSSAI Licensing Regulations, 2011. Source statement: 1.1.2: These regulations shall come into force on or after 5th August, 2011 1.2: Definitions- 1.2.1: In these regulations unless the context otherwise requires: 1. “Central Licensing Authority” means Designated Officer appointed by the Chief Executive Officer of the Food…
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “1.1.2: These regulations shall come into force on or after 5th August, 2011 1.2: Definitions- 1.2.1: In these regulations unless the context otherwise requires…”
- “MINISTRY OF HEALTH AND FAMILY WELFARE (Food Safety and Standards Authority of India) Notification New Delhi, dated the 1st August, 2011 F.No.”

Source passage excerpt

MINISTRY OF HEALTH AND FAMILY WELFARE (Food Safety and Standards Authority of India) Notification New Delhi, dated the 1st August, 2011 F.No. 2-15015/30/2010 Whereas in exercise of the powers conferred by clause (o) of sub section (2) of section 92 read with section 31 of Food Safety and Standards Act, 2006 (34 of 2006) the Food Safety and Standards Authority of India proposes to make Food Safety and Standards Regulations in so far as they relates to Food Safety and Standards(Licensing and Registration of Food Businesses) Regulations, 2011, and; Whereas these draft Regulations were published in consolidated form at pages 1 to 776 in the Gazette of India Extraordinary Part III – Sec. 4 dated 20th October 2010 inviting objections and suggestions from all persons likely to be affected thereby before the expiry of the period of thirty days from the date on which the copies of the Gazette containing the said notification were made available to the public; And … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about FSSAI licensing and registration: scope and definitions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on FSSAI licensing and…
- Which source pages support an answer about FSSAI licensing and registration: scope and definitions?

RAG-076 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 1-2 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: The expressions used in these Regulations but have not been defined herein shall have the meaning ascribed to them in the Act or as provided in the regulations, chapters and Appendices. Source statement: 6. “State Licensing Authority” means Designated Officers appointed under Section 36(1) of...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The expressions used in these Regulations but have not been defined herein shall have the meaning ascribed to them in the Act or as...”
- “6. “State Licensing Authority” means Designated Officers appointed under Section 36(1) of the Act by the Food Safety Commissioner of a State or UT.”

Source passage excerpt

2. “District” means a revenue district in state and UTs provided that the Commisioner of Food Safety may, for the purpose of this Act declare any local area as a district on the basis of: z Concentration of specific category of food businesses which may need special attention. z Risk assessment carried out by the Authority from time to time. z Any other specific regulatory requirements. 3. “Licensing Authority” means the Designated Officer appointed under section 36 (i) of the Act by the Commissioner of Food Safety of the state or by the Chief Executive Officer of the Food Safety and Standards Authority of India in his capacity of Food Safety Commissioner ; 4. “Petty Food Manufacturer” means any food manufacturer, who (a) manufactures or sells any article of food himself or a petty retailer, hawker, itinerant vendor or temporary stall holder; or distributes foods including in any religious or social gathering except a caterer; or 66 THE GAZETTE OF ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-077 LICENSING AND REGISTRATION OF FOOD BUSINESS

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 2 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on LICENSING AND REGISTRATION OF FOOD BUSINESS as described in FSSAI Licensing Regulations, 2011. Source statement: (4) In the event of an inspection being ordered, the registration shall be granted by the Registering Authority after being satisfied with the safety, hygiene and sanitary conditions of the premises as contained in Part II of Schedule 4 within a...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(4) In the event of an inspection being ordered, the registration shall be granted by the Registering Authority after being satisfied with the safety...”
- “(3) The Registering Authority shall consider the application and may either grant registration or reject it with reasons to be recorded in writing or...”

Source passage excerpt

Chapter-2 LICENSING AND REGISTRATION OF FOOD BUSINESS 2. 1 Registration and Licensing of Food Business All Food Business Operators in the country will be registered or licensed in accordance with the procedures laid down hereinafter; 2.1.1 Registration of Petty Food Business (1) Every petty Food Business Operator shall register themselves with the Registering Authority by submitting an application for registration in Form A under Schedule 2 of these Regulations along with a fee as provided in Schedule 3. (2) The petty food manufacturer shall follow the basic hygiene and safety requirements provided in Part I of Schedule 4 of these Regulations and provide a self attested declaration of adherence to these requirements with the application in the format provided in Annexure-1 under Schedule 2. (3) The Registering Authority shall consider the application and may either grant registration or reject it with reasons to be recorded in writing or issue notice for inspection, within 7 days of receipt of an application ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about LICENSING AND REGISTRATION OF FOOD BUSINESS?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on LICENSING AND REGISTRATION...
- Which source pages support an answer about LICENSING AND REGISTRATION OF FOOD BUSINESS?

RAG-078 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 2-3 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Provided further that any food business operator holding Registration/License under any other Act/Order as specified under schedule 2 of the FSS Act, 2006 with no specific validity or expiry date, and other wise entitled to obtain a license under these regulations, shall have to apply…

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

• “Provided further that any food business operator holding Registration/License under any other Act/Order as specified under schedule 2 of the FSS Act, 2006 with…”
• “Provided that any person or Food Business Operator carrying on food business on the date of notification of these Regulations, under a license, registration…”

Source passage excerpt

Provided that a producer of milk who is a registered member of a dairy Cooperative Society registered under Cooperative Societies Act and supplies or sells the entire milk to the Society shall be exempted from this provision for registration. 2.1.2 License for food business (1) Subject to Regulation 2.1.1, no person shall commence any food business unless he possesses a valid license. Provided that any person or Food Business Operator carrying on food business on the date of notification of these Regulations, under a license, registration or permission, as the case may be, under the Acts or Orders mentioned in the Second Schedule of the Act shall get their existing license converted into the license/registration under these regulations by making an application to the Licensing/Registering Authority after complying with the safety requirements mentioned in the Schedule 4 contained under different Parts dependent on nature of business, within one year of notification of these Regulations. In case of difficulty, the licensing … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
• Which source pages support an answer about Food-business registration?

RAG-079 Application forms and documentation

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 3 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Application forms and documentation as described in FSSAI Licensing Regulations, 2011. Source statement: In case the applicant fails to furnish the required information within the stipulated time of 30 days, the application for license shall stand rejected. Source statement: Provided that the Licensing Authority shall ensure periodical food safety audit and inspection of the licensed establishments...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “In case the applicant fails to furnish the required information within the stipulated time of 30 days, the application for license shall stand rejected.”
- “Provided that the Licensing Authority shall ensure periodical food safety audit and inspection of the licensed establishments through its own or agencies authorized for…”

Source passage excerpt

(5) The Food Business Operator shall ensure that all conditions of license as provided in Annexure 2 of Form B in Schedule 2 and safety, sanitary and hygienic requirements provided in the Schedule 4 contained under different Parts depending on nature of business are complied with at all times . Provided that the Licensing Authority shall ensure periodical food safety audit and inspection of the licensed establishments through its own or agencies authorized for this purpose by the FSSAI. Provided further that no person shall manufacture, import, sell, stock, exhibit for distribution or sale any article of food which has been subjected to the treatment of irradiation, except under a license obtained from Department of Atomic Energy under the Atomic Energy (Control of Irradiation of Food) Regulations, 1996. 2.1.3 Application for license to the Licensing Authority An application for the grant of a license shall be made in Form B of Schedule 2 to the concerned Licensing Authority as specified … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Application forms and documentation?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Application forms and...
- Which source pages support an answer about Application forms and documentation?

RAG-080 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 4 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (5) Within a period of 30 days from receipt of an inspection report excluding the time taken by the applicant in complying with the advice, if any, given in the inspection report and verification thereof, the concerned Licensing Authority shall consider the application and may…

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(5) Within a period of 30 days from receipt of an inspection report excluding the time taken by the applicant in complying with the…”
- “The applicant shall carry out the required steps, changes or alterations and intimate the Licensing Authority within 30 days or such period as may…”

Source passage excerpt

68 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] (3) On the receipt of a complete application including the additional information if asked for, the Licensing Authority shall issue an Application ID number to each applicant that will be referred to in all future correspondence between the Licensing Authority and the applicant. (4) After the issue of Application ID number the Licensing Authority may direct the Food Safety Officer or any other person or agency specially designated for such functions to inspect the premises in the manner prescribed by the Food Safety and Standard Authority of India in accordance with these Regulations. Such Inspecting Officer or person may issue a notice to the applicant, if it deems fit, guiding food business operator on necessary steps to be taken or changes or alteration to be made in the premises in order to ensure general sanitary and hygienic conditions as specified in Schedule 4. The applicant shall carry out the required ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-081 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 4 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: 2.1.6 Commencement of Business An applicant may commence his food business and the concerned licensing Authority shall not deny the applicant to commence such business if, from the date of making the completed application, a license is not issued within 60 days or the applicant...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “2.1.6 Commencement of Business An applicant may commence his food business and the concerned licensing Authority shall not deny the applicant to commence such...”
- “(4) Any renewal application filed beyond the period mentioned under Regulation 2.1.7 (2) above but before the expiry date, shall be accompanied by a...”

Source passage excerpt

2.1.6 Commencement of Business An applicant may commence his food business and the concerned licensing Authority shall not deny the applicant to commence such business if, from the date of making the completed application, a license is not issued within 60 days or the applicant has not received any intimation of inadequacy under Regulation 2.1.4(2) or inspection report indicating defects from the concerned Licensing Authority under Regulation 2.1.4(4) 2.1.7 Validity and Renewal of Registration and License (1) A Registration or license granted under these Regulations shall be valid and subsisting, unless otherwise specified, for a period of 1 to 5 years as chosen by the Food Business Operator, from the date of issue of registration or license subject to remittance of fee applicable for the period and compliance with all conditions of license. (2) Any application for the renewal of a registration or license granted under these Regulations shall be made in Form A or B of Schedule 2, as ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-082 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 5 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (5) A suspension or cancellation of registration or license under these Regulations shall not entitle the Food Business Operator for any compensation or refund of fee(s) paid in respect of the registration certificate or license or renewal thereof. Source statement: (2) The registering or Licensing...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(5) A suspension or cancellation of registration or license under these Regulations shall not entitle the Food Business Operator for any compensation or refund...”
- “(2) The registering or Licensing Authority, as the case may be, may direct an inspection of the Food Business Operator’s premise(s) within a reasonable...”

Source passage excerpt

(6) Food Business Operator having valid certificate of an accredited food safety auditor or from an agency accredited by Food Authority or any other organisation notified by food Authority for this purpose will not be normally required to be inspected before renewal of license. Provided that Designated Officer may order an inspection before renewal if considered necessary for reasons to be recorded in writing. 2.1.8 Suspension or cancellation of Registration Certificate or license (1) The Registering or Licensing Authority in accordance with the provisions of section 32 of the Act may, after giving the concerned Food Business Operator a reasonable opportunity of being heard, suspend any registration or license in respect of all or any of the activities for which the registration/license has been granted under these Regulations after recording a brief statement of the reasons for such suspension, if there is reason to believe that the Food Business Operator has failed to comply with the conditions within the period ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-083 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 5-6 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: While approving the afore mentioned changes the concerned registering or Licensing Authority shall take into account the feasibility of carrying on the business and the legal and other relevant aspects of the desired modifications or additions or changes in activities and, if required, may order...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

• “While approving the afore mentioned changes the concerned registering or Licensing Authority shall take into account the feasibility of carrying on the business and...”
• “Provided that any change that alters the information contained in the license certificate shall require an approval or endorsement in license prior to start...”

Source passage excerpt

2.1.9 Modifications, Expansion or Changes in premise(s) after grant of license or registration (1) Food Business Operators shall ensure that the Registering or Licensing Authority always has up-to-date information on their food business establishments and shall inform the relevant Authority of any modifications or additions or changes in product category, layout, expansion, closure, or any other material information based on which the license was granted and such information shall be conveyed before the changes occur. Provided that any change that alters the information contained in the license certificate shall require an approval or endorsement in license prior to start of business with such changes. The Food Business Operator shall submit the original license to the Licensing Authority along with a fee equivalent to one year license fee for effecting necessary changes. The licensing Authority may approve and issue an amended license incorporating such changes in activities within 30 days from the date of receipt of such information. While approving the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
• Which source pages support an answer about Food-business registration?

RAG-084 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 6 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Provided that the registering or licensing authority shall not refuse the request without giving the applicant an opportunity of being heard and for reasons to be recorded in writing. Source statement: (4) Upon filing of application for transfer and pending the decision of the authority...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Provided that the registering or licensing authority shall not refuse the request without giving the applicant an opportunity of being heard and for reasons...”
- “(4) Upon filing of application for transfer and pending the decision of the authority, the registration or license shall continue to be in force.”

Source passage excerpt

(a) the period of 90 days from the date of death of the holder of a Registration certificate or license; or (b) such longer period as the Designated Officer may allow, for reasons to be recorded in writing. (2) The legal representative or family member of the deceased holder of the registration certificate or license shall apply to the concerned Authority for transfer of such certificate or license in his favour. (3) The registering or Licensing Authority, as the case may be, may, after making such enquiry as it may deem fit, either approve the transfer of the Registration certificate or license if satisfied that the applicant is the legal representative, or refuse the request. Provided that the registering or licensing authority shall not refuse the request without giving the applicant an opportunity of being heard and for reasons to be recorded in writing. (4) Upon filing of application for transfer and pending the decision of the authority, the registration ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-085

SCHEDULE 1

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 6-7 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on SCHEDULE 1 as described in FSSAI Licensing Regulations, 2011. Source statement: (2) A separate return shall be filed for every license issued under the Regulations, irrespective of whether the same Food Business Operator holds more than one license. Source statement: (2) Guarantee Every manufacturer, distributor or dealer selling an article of food to a vendor shall...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(2) A separate return shall be filed for every license issued under the Regulations, irrespective of whether the same Food Business Operator holds more...”
- “(2) Guarantee Every manufacturer, distributor or dealer selling an article of food to a vendor shall give either separately or in the bill, cash...”

Source passage excerpt

(2) A separate return shall be filed for every license issued under the Regulations, irrespective of whether the same Food Business Operator holds more than one license. (3) Any delay in filing return beyond 31st May of each year shall attract a penalty of Rs 100 per day of delay. 2.1.14 Food Business Operator to be bound by directions or order (1) Every Food Business Operator to whom any direction or order is issued in pursuance of any provisions of this regulation shall be bound to comply with such directions or regulation and any failure on the part of the Food Business Operator to comply with such direction or order shall be deemed to be contravention of the provisions of these Regulations and will attract legal action under the provisions of the Act. (2) Guarantee Every manufacturer, distributor or dealer selling an article of food to a vendor shall give either separately or in the bill, cash memo, or label ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about SCHEDULE 1?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SCHEDULE 1?
- Which source pages support an answer about SCHEDULE 1?

RAG-086 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 8-9 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Name of Food category Quantity in Kg per day or M.T. per annum Please attach separate sheet if required (g) Total Annual turnover from the food business, if existing, alongwith any supporting document(s) showing proof of income (*In case of renewal): _____ _____ Source statement...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Name of Food category Quantity in Kg per day or M.T. per annum Please attach separate sheet if required (g) Total Annual turnover from...”
- “4] SCHEDULE 2 [See Regulation 2.1.1 and Regulation 2.1.7] Form ‘A’ Application for Registration / Renewal of Registration under Food Safety and Standards Act...”

Source passage excerpt

72 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] SCHEDULE 2 [See Regulation 2.1.1 and Regulation 2.1.7] Form ‘A’ Application for Registration / Renewal of Registration under Food Safety and Standards Act, 2006 Kind of business: □ Permanent/Temporary Stall holder □ Hawker (Itinerant / Mobile food vendor)) □ Home based canteens/dabba wallas □ Petty Retailer of snacks/tea shops Photograph of □ Manufacturer/Processor the Applicant □ Re Packer □ Food stalls/arrangements in Religious gatherings, fairs etc □ Milk producers (who are not member of dairy co operative society)/ milk vendor □ Dhaba □ Fish/meat/poultry shop/seller □ Other(s), please specify:_____ (a) Name of the Applicant/Company: _____ (b) Designation □ Individual □ Partner □ Proprietor □ Secretary of dairy co-operative society. □ Others (Please specify) (c) Proof of Identity of applicant: _____ [Note: Please submit a copy of photo ID like Driving License, Passport, Ration Card or Election ID card] (d) Correspondence address: _____ _____ Tel No:_____Mobile No.:_____ Fax No.:_____Email:_____ [Note: In ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-087 Kind of business (Please tick more than one, if applicable):

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 9-10 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Kind of business (Please tick more than one, if applicable): as described in FSSAI Licensing Regulations, 2011. Source statement: Name of Food Item Quantity in Kg per day or M.T. per annum If required attach separate sheet If already having valid license- mention annual quantity of each food category manufactured during last three years 9. Source...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Name of Food Item Quantity in Kg per day or M.T. per annum If required attach separate sheet If already having valid license- mention...”
- “Name and/or designation, qualification and address of technically qualified person in charge of operations as required under Regulation .....”

Source passage excerpt

(Signature of the Applicant) Form ‘B’ [See Regulation 2.1.2, Regulation 2.1.3 and Regulation2.1.7] Application for License / Renewal of license under Food Safety and Standards Act, 2006 Kind of business (Please tick more than one, if applicable): □ Manufacturing/Processing including sorting, grading etc. □ Milk Collection/chilling □ Slaughter House □ Solvent extracting unit □ Solvent extracting plant equipped with pre cleaning of oil seeds or pre expelling of oil. □ Solvent extracting and oil refining plant. □ Packaging □ Relabeling (manufactured by third party under own packing and labeling) □ Importing □ Storage/Warehouse/Cold Storage □ Retail Trade □ Wholesale Trade □ Distributor/Supplier □ Transporter of food □ Catering □ Dhabha or any other food vending establishment □ Club /canteen □ Hotel □ Restaurant □ Other(s), please specify:_____ 74 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] 1. Name of the Company/Organization: _____ 2. Registered Office Address: _____ 3. Address of Premise for which license is being applied _____ _____ ...
[excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Kind of business (Please tick more than one, if...
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Kind of business...
- Which source pages support an answer about Kind of business (Please tick more than one, if applicable):?

RAG-088 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 10-12 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: I further declare that the food business conducted or proposed to be conducted by/through me conforms/shall conform to the Food Safety and Standards Act, Regulations/ Bye-laws enacted there under, and specifically to the Guidelines on Hygiene and Sanitary Practices provided under Schedule 4 of the...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “I further declare that the food business conducted or proposed to be conducted by/through me conforms/shall conform to the Food Safety and Standards Act...”
- “In case of renewal or transfer of license granted under other laws as per proviso to Regulation 5(1) - period for which license required...”

Source passage excerpt

S.No. Name of Food Item Quantity in Kg per day or M.T. per annum If required attach separate sheet (ii) Average Quantity of milk per day to be used/handled in a. in lean season_____ b. in flush season_____ (iii) Milk products to be manufactured and their manufacturing capacity (tones/year) 1)..... 2)..... 3)..... 11. For Solvent -Extracted Oil, De oiled meal and Edible Flour: (i) Details of proposed business Name of From Solvent -Extracted Oil, De oiled meal and Edible Flour Vegetable Oil Oil bearing seed material or nut or cake Crude Neutralized Neutralized Refined De oiled Edible Flour & Bleached meal If already having valid license- mention annual quantity of each product manufactured during last three years ii) Name and address of factory or factories used by the miller or solvent extractor for processing oil bearing material produced or procured by him or for refining solvent extracted Oil produced by him. _____ _____ 12. Sanctioned electricity load or HP to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-089 State and central licensing

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 12-13 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on State and central licensing as described in FSSAI Licensing Regulations, 2011. Source statement: Authority letter with name and address of responsible person nominated by the manufacturer along with alternative responsible person indicating the powers vested with them viz assisting the officers in inspections, collection of samples, packing & dispatch. Source statement: Dated: (Signature) Annexure-2 Documents to...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Authority letter with name and address of responsible person nominated by the manufacturer along with alternative responsible person indicating the powers vested with them...”
- “Dated: (Signature) Annexure-2 Documents to be enclosed for new application for license to State/Central Licensing Authority 1.”

Source passage excerpt

Dated: (Signature) Annexure-2 Documents to be enclosed for new application for license to State/Central Licensing Authority 1. Form-B duly completed and signed (in duplicate) by the proprietor/ partner or the authorised signatory 2. Blueprint/layout plan of the processing unit showing the dimensions in metres/square metres and operation-wise area allocation. 3. List of Directors with full address and contact details 4. Name and List of Equipments and Machinery along with the number, installed capacity and horse power used. 5. Photo I.D and address proof issued by Government authority of Proprietor/Partner/Director(s)/Authorised Signatory. 6. List of food category desired to be manufactured. (In case of manufacturers). 7. Authority letter with name and address of responsible person nominated by the manufacturer along with alternative responsible person indicating the powers vested with them viz assisting the officers in inspections, collection of samples, packing & dispatch. 8. Analysis report (Chemical & Bacteriological) of water to be used as ingredient in food from a recognized/ public ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about State and central licensing?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on State and central...
- Which source pages support an answer about State and central licensing?

RAG-090 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 14 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Ensure that as much as possible the required temperature shall be maintained throughout the supply chain from the place of procurement or sourcing till it reaches the end consumer including chilling, transportation, storage etc. Source statement: Maintain factory's sanitary and hygienic standards and worker's Hygiene...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Ensure that as much as possible the required temperature shall be maintained throughout the supply chain from the place of procurement or sourcing till...”
- “Maintain factory's sanitary and hygienic standards and worker's Hygiene as specified in the Schedule - 4 according to the category of food business.”

Source passage excerpt

78 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] Annexure 3 Conditions of License All Food Business Operators shall ensure that the following conditions are complied with at all times during the course of its food business. Food Business Operators shall: 1. Display a true copy of the license granted in Form C shall at all times at a prominent place in the premises. 2. Give necessary access to Licensing Authorities or their authorised personnel to the premises 3. Inform Authorities about any change or modifications in activities /content of license. 4. Employ at least one technical person to supervise the production process. The person supervising the production process shall possess at least a degree in Science with Chemistry/Bio Chemistry/Food and Nutrition/ Microbiology or a degree or diploma in food technology/ Dairy technology/ dairy microbiology/ dairy chemistry/ dairy engineering/ oil technology /veterinary science /hotel management & catering technology or any degree or diploma in any other discipline related to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-091 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 14-15 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Every manufacturer [including ghani operator] or wholesale dealer in butter, ghee, vanaspati, edible oils, Solvent extracted oil, de oiled meal, edible flour and any other fats shall maintain a register showing the quantity of manufactured, received or sold, nature of oil seed used and quantity...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Every manufacturer [including ghani operator] or wholesale dealer in butter, ghee, vanaspati, edible oils, Solvent extracted oil, de oiled meal, edible flour and any...”
- “No producer or manufacturer of vegetable oil, edible oil and their products shall be eligible for license under this Act, unless he has own...”

Source passage excerpt

Food Business Operator selling cooked or prepared food shall display a notice board containing the nature of articles being exposed for sale 3. Every manufacturer [including ghani operator] or wholesale dealer in butter, ghee, vanaspati, edible oils, Solvent extracted oil, de oiled meal, edible flour and any other fats shall maintain a register showing the quantity of manufactured, received or sold, nature of oil seed used and quantity of de-oiled meal and edible flour used etc. as applicable and the destination of each consignment of the substances sent out from his factory or place of business, and shall present such register for inspection whenever required to do so by the Licensing Authority. 4. No producer or manufacturer of vegetable oil, edible oil and their products shall be eligible for license under this Act, unless he has own laboratory facility for analytical testing of samples. 5. Every sale or movement of stocks of solvent-extracted oil, 'semi refined' or 'raw grade I', ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-092 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 16-18 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Category of License: This license is granted under and is subject to the provisions of FSS Act, 2006 all of which must be complied with by the licensee. Source statement: Place: Date: Stamp and signature of Designated Officer Food Safety and Standards Authority of India…
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Category of License: This license is granted under and is subject to the provisions of FSS Act, 2006 all of which must be complied…”
- “Place: Date: Stamp and signature of Designated Officer Food Safety and Standards Authority of India Validation and Renewal Renewal Period of License Items of…”

Source passage excerpt

80 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] FORM 'C' License Format (See Regulation 2.1.4 (6)) Government of India Food Safety and Standards Authority of India License under FSS Act, 2006 License No _____ 1. Name and Registered Office address of licensee _____ 2. Address of authorized premises _____ 3. Kind of Business _____ 4. For dairy business details of location with address and capacity of Milk Chilling Centers (MCC) / Bulk Milk Cooling Centers (BMCs)/Milk Processing Unit/ Milk Packaging Unit owned by the holder of licensee/RC 5. Category of License: This license is granted under and is subject to the provisions of FSS Act, 2006 all of which must be complied with by the licensee. Place: Date: Stamp and signature of Designated Officer Food Safety and Standards Authority of India Validation and Renewal Renewal Period of License Items of Food products with capacities Installed/ Signature of Date validity fee paid authorized to Manufacture/ Re-pack/Re-label handling Capacity Designated … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-093 Schedule 4 hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 18-20 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Schedule 4 hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: Milk Marketing Type of Milk Quantity sold Average Fat % Average SNF% Consumer *(TLPD) price Rs per litre a) Milk sold in Retail Sub total A b) Milk sold I bulk to other dairies Sub total B Grand Total A+B *TLPD Thousand liters per…
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Milk Marketing Type of Milk Quantity sold Average Fat % Average SNF% Consumer *(TLPD) price Rs per litre a) Milk sold in Retail Sub…”
- “Purchase of Milk Products Name of Milk Source of Total quantity Average Average Quantity used Closing balance Products purchase purchased Fat % SNF% (MT)*…”

Source passage excerpt

Type of milk Total Qty Total fat Average Total SNF Price Price Price MT MT content Rs / kg Rs/kg Rs/kg MT of milk of fat of SNF 1 2 3 4 5 6 7 8 Fat% SNF% a b A)Own Sources Buffalo Mixed B) Milk supplied by other dairies Buffalo Mixed Total A+B 5. Purchase of Milk Products Name of Milk Source of Total quantity Average Average Quantity used Closing balance Products purchase purchased Fat % SNF% (MT)* (MT)* (MT)* 1. SMP 2. WMP 3. Butter Oil 4. White Butter *Metric Tones 6. Reconstitution Utilized for making liquid milk or Whole milk Skimmed milk Butter oil White milk products powder powder (MT)* butter (MT)* (MT)* (MT)* All liquid milks for sale z In lean season (Apr-Sep) z In flush season (Oct-Mar) Other milk products z In lean season (Apr-Sep) z In flush season (Oct-Mar) Sub Total Grand Total 7. Details of Milk products Manufactured, Sold and Stock position. Product … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Schedule 4 hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Schedule 4 hygiene?
- Which source pages support an answer about Schedule 4 hygiene?

RAG-094 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 20-22 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: 2000/— The fees paid by any applicant for a license shall not be refundable under any circumstances. Source statement: 1 2 3 4 a 4 b 5 6 7 8 9 10 11 Date: Signature of the Licensee A register detailing the above information shall...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “2000/— The fees paid by any applicant for a license shall not be refundable under any circumstances.”
- “1 2 3 4 a 4 b 5 6 7 8 9 10 11 Date: Signature of the Licensee A register detailing the above...”

Source passage excerpt

Name of Size of Qty. in Avg.fat/ Sale Value Qty Name of Rate per Value in Remarks the milk the can/ M T SNF for Price/kg in Rs. exported/ the kg or / Rs. products bottle/any milk or per imported country unit of other products unit of in KG or port packing package (%) packing of export C.I.F/ (like PP) Rs FOB or bulk Rs. package. 1 2 3 4 a 4 b 5 6 7 8 9 10 11 Date: Signature of the Licensee A register detailing the above information shall be maintained by each licensee for inspections. ' Name of Milk Products required to be listed in table 8 coloumn no. 1. Cream Voghurt White butter Butter milk Table butter Lassi Butter oil Paeer Ghee Khoa Skimmed milk powder Khoa sweets Whole milk powder Flavored milk pasteurized Dairy whitener Flavoured milk sterilized Infant Milk Food UHT-MILK Infant formula Ice cream Malted milk food Casein Dahi/curd lactorse Shrikhand/Amarkhand Whey ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-095 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 22-23 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: These are the basic - compulsory requirements for ensuring safety of the food manufactured in any premise and FBOs shall continuously try to improve the sanitary and hygienic conditions at the premises with a goal of attaining India HACCP standards within a - previously determined...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “These are the basic - compulsory requirements for ensuring safety of the food manufactured in any premise and FBOs shall continuously try to improve...”
- “The premises shall be located in a sanitary place and free from filthy surroundings and shall maintain overall hygienic environment.”

Source passage excerpt

Schedule 4 (See Regulation 2.1.2) General Hygienic and Sanitary practices to be followed by Food Business operators It is hereby recognized and declared as a matter of legislative determination that in the field of human nutrition, safe, clean, wholesome food - is indispensable to the health and welfare of the consumer of the country; that - food is a perishable commodity susceptible to contamination and adulteration; - and that - basic sanitary and hygienic conditions are deemed to be necessary for the production and distribution of milk - Meat products, service establishments etc. The establishment in which food is being handled, processed, manufactured, stored, distributed by the food business operator whether holder of registration certificate or a license as per the norms laid down in these regulations and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standards as specified below. It shall also be deemed to be the responsibility of the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-096 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 23 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Eating, chewing, smoking, spitting and nose blowing shall be prohibited within the premises especially while handling food. Source statement: Foods while in transport in packaged form or in containers shall maintain the required temperature.
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Eating, chewing, smoking, spitting and nose blowing shall be prohibited within the premises especially while handling food.”
- “Foods while in transport in packaged form or in containers shall maintain the required temperature.”

Source passage excerpt

Windows, doors and other openings shall be fitted with net or screen, as appropriate to make the premise insect free The water used in the manufacturing shall be potable and if required chemical and bacteriological examination of the water shall be done at regular intervals at any recognized laboratory. 6. Continuous supply of potable water shall be ensured in the premises. In case of intermittent water supply, adequate storage arrangement for water used in food or washing shall be made. 7. Equipment and machinery when employed shall be of such design which will permit easy cleaning. Arrangements for cleaning of containers, tables, working parts of machinery, etc. shall be provided. 8. No vessel, container or other equipment, the use of which is likely to cause metallic contamination injurious to health shall be employed in the preparation, packing or storage of food. (Copper or brass vessels shall have proper lining). 9. All equipments shall be kept clean, washed, dried and stacked … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact…
- Which source pages support an answer about Equipment and food-contact materials?

RAG-097 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 24 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Rubbish bin with cover shall be provided by food stall or vending cart owners for any waste generated in the process of serving and eating by consumers. Source statement: Working surfaces of vending carts shall be clean, hygienic, impermeable and easy to clean...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Rubbish bin with cover shall be provided by food stall or vending cart owners for any waste generated in the process of serving and...”
- “Working surfaces of vending carts shall be clean, hygienic, impermeable and easy to clean (like stainless steel), and placed at least 60 to 70...”

Source passage excerpt

88 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] A. SANITARY AND HYGIENIC REQUIREMENTS FOR STREET FOOD VENDORS AND UNITS OTHER THAN MANUFACTURING/PROCESSING 1. Potential sources of contamination like rubbish, waste water, toilet facilities, open drains and stray animals shall be avoided. 2. The surfaces of the Vending carts which come in contact with food or food storage utensils shall be built of solid, rust/ corrosion resistant materials and kept in clean and good condition They shall be protected from sun, wind and dust. When not in use, food vending vans shall be kept in clean place and properly protected. 3. Rubbish bin with cover shall be provided by food stall or vending cart owners for any waste generated in the process of serving and eating by consumers. 4. Working surfaces of vending carts shall be clean, hygienic, impermeable and easy to clean (like stainless steel), and placed at least 60 to 70 cm. from above ground. 5. Sale ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-098 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 24-25 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Eating, chewing, smoking, , spitting and nose blowing shall be prohibited within the premises. Source statement: Foods shall be prepared or cooked as per the day's requirement to avoid left over which might be used in the next day without ascertaining its safety for consumption...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Eating, chewing, smoking, , spitting and nose blowing shall be prohibited within the premises.”
- “Foods shall be prepared or cooked as per the day's requirement to avoid left over which might be used in the next day without...”

Source passage excerpt

All articles that are stored or intended for sale shall have proper cover to avoid contamination. Food should be stored only in food grade plastic containers as steel containers to prevent leaking. 17. Eating, chewing, smoking, , spitting and nose blowing shall be prohibited within the premises. 18. Foods shall be prepared or cooked as per the day's requirement to avoid left over which might be used in the next day without ascertaining its safety for consumption or use in food. Consumables left over shall be kept in the refrigerator immediately after their intended use. 19. Adequate number of racks shall be provided for storage of articles of food, with clear identity of each commodity. Proper compartment for each class shall also be provided wherever possible so that there is no cross contamination. 20. Rubbish or garbage bin shall be with a tight cover and shall be cleaned everyday by transferring contents into designated locations. 21. Vegetarian and non-vegetarian items ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-099 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 25 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Floors shall be sloped appropriately to facilitate drainage and the drainage shall flow in a direction opposite to the direction of food preparation / manufacturing process flow. Source statement: 2.3The floor of food processing / food service area shall have adequate and proper...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Floors shall be sloped appropriately to facilitate drainage and the drainage shall flow in a direction opposite to the direction of food preparation /...”
- “2.3The floor of food processing / food service area shall have adequate and proper drainage and shall be easy to clean and where necessary...”

Source passage excerpt

1 LOCATION AND SURROUNDINGS 1.1 Food Establishment shall ideally be located away from environmental pollution and industrial activities that produce disagreeable or obnoxious odour, fumes, excessive soot, dust, smoke, chemical or biological emissions and pollutants, and which pose a threat of contaminating food areas that are prone to infestations of pests or where wastes, either solid or liquid, cannot be removed effectively. 1.2 In case there are hazards of other environment polluting industry located nearby, appropriate measures should be taken to protect the manufacturing area from any potential contamination. 1.3 The manufacturing premise should not have direct access to any residential area. 2 LAYOUT AND DESIGN OF FOOD ESTABLISHMENT PREMISES As far as possible, the layout of the food establishment shall be such that food preparation / manufacturing processes are not amenable to cross-contamination from other pre and post manufacturing operations like goods receiving, pre-processing (viz. packaging, washing / portioning of ready-to-eat food etc). 2.1Floors, ceilings and walls must be ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-100 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 25-26 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: 3.2Equipment and utensils used in the preparation of food shall be kept at all times in good order and repair and in a clean and sanitary condition. Source statement: 3.5 Equipment shall be so located, designed and fabricated that it permits necessary maintenance...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “3.2Equipment and utensils used in the preparation of food shall be kept at all times in good order and repair and in a clean...”
- “3.5 Equipment shall be so located, designed and fabricated that it permits necessary maintenance and cleaning functions as per its intended use and facilitates...”

Source passage excerpt

3 EQUIPMENT & CONTAINERS 3.1Equipment and containers that come in contact with food and used for food handling, storage, preparation, processing, packaging and serving shall be made of corrosion free materials which do not impart any toxicity to the food material and should be easy to clean and /or disinfect (other than disposable single use types). 3.2Equipment and utensils used in the preparation of food shall be kept at all times in good order and repair and in a clean and sanitary condition. Such utensil or container shall not be used for any other purpose. 3.3 Every utensil or container containing any food or ingredient of food intended for sale shall at all times be either provided with a properly fitted cover/lid or with a clean gauze net or other material of texture sufficiently fine to protect the food completely from dust, dirt and flies and other insects. 90 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] 3.4 No ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-101 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 26 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: The facilities must have an adequate supply of hot and cold water if required. Source statement: 4 FACILITIES 4.1 Water supply 4.1.1 Only potable water, with appropriate facilities for its storage and distribution shall be used as an ingredient in processing and cooking.
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The facilities must have an adequate supply of hot and cold water if required.”
- “4 FACILITIES 4.1 Water supply 4.1.1 Only potable water, with appropriate facilities for its storage and distribution shall be used as an ingredient in...”

Source passage excerpt

4 FACILITIES 4.1 Water supply 4.1.1 Only potable water, with appropriate facilities for its storage and distribution shall be used as an ingredient in processing and cooking. 4.1.2 Water used for food handling, washing, should be of such quality that it does not introduce any hazard or contamination to render the finished food article unsafe. 4.1.3 Water storage tanks shall be cleaned periodically and records of the same shall be maintained in a register. 4.1.4 Non potable water can be used provided it is intended only for cleaning of equipment not coming in contact with food, which does not come into contact with food steam production, fire fighting & refrigeration equipment and provided that pipes installed for this purpose preclude the use of this water for other purposes and present no direct or indirect risk of contamination of the raw material, dairy products or food products so processed, packed & kept in the premise. 4.1.5 Non potable water pipes shall ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-102 Waste disposal

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 27 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Waste disposal as described in FSSAI Licensing Regulations, 2011. Source statement: 4.6.3 Rest and refreshments rooms shall be separate from food process and service areas and these areas shall not lead directly to food production, service and storage areas. Source statement: A refuse bin of adequate size with a proper cover preferably one which need not...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “4.6.3 Rest and refreshments rooms shall be separate from food process and service areas and these areas shall not lead directly to food production...”
- “A refuse bin of adequate size with a proper cover preferably one which need not be touched for opening shall be provided in the...”

Source passage excerpt

4.5 Drainage and waste disposal 4.5.1 Food waste and other waste materials shall be removed periodically from the place where food is being handled or cooked or manufactured to avoid building up. A refuse bin of adequate size with a proper cover preferably one which need not be touched for opening shall be provided in the premises for collection of waste material. This shall be emptied and washed daily with a disinfectant and dried before next use. 4.5.2 The disposal of sewage and effluents (solid, liquid and gas) shall be in conformity with requirements of Factory / Environment Pollution Control Board. Adequate drainage, waste disposal systems and facilities shall be provided and they shall be designed and constructed in such manner so that the risk of contaminating food or the potable water supply is eliminated. 4.5.3 Waste storage shall be located in such manner that it does not contaminate the food process, storage areas, the environment inside and outside the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Waste disposal?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Waste disposal?
- Which source pages support an answer about Waste disposal?

RAG-103 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 27-28 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: 5.2.3 Segregation shall be provided for the storage of raw, processed, rejected, recalled or returned materials or products which will be distinguishably marked and secured. Source statement: 5.1.3 Records of raw materials, food additives and ingredients as well as their source of procurement...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “5.2.3 Segregation shall be provided for the storage of raw, processed, rejected, recalled or returned materials or products which will be distinguishably marked and...”
- “5.1.3 Records of raw materials, food additives and ingredients as well as their source of procurement shall be maintained in a register for inspection.”

Source passage excerpt

4.7 Air quality and ventilation Ventilation systems natural and /or mechanical including air filters, exhaust fans, wherever required, shall be designed and constructed so that air does not flow from contaminated areas to clean areas. 4.8 Lighting Natural or artificial lighting shall be provided to the food establishment, to enable the employees/workers to operate in a hygienic manner. Lighting fixtures must wherever appropriate, be protected to ensure that food is not contaminated by breakages of electrical fittings. 5 FOOD OPERATIONS AND CONTROLS 5.1 Procurement of raw materials 5.1.1 No raw material or ingredient thereof shall be accepted by an establishment if it is known to contain parasites, undesirable micro-organisms, pesticides, veterinary drugs or toxic items, decomposed or extraneous substances, which would not be reduced to an acceptable level by normal sorting and/or processing. 5.1.2 All raw materials, food additives and ingredients, wherever applicable, shall conform to all the Regulations and standards laid down under the Act. 5.1.3 Records of raw ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-104 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 28 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Such control shall include time and temperature of receiving, processing, cooking, cooling, storage, packaging, distribution and food service upto the consumer, as applicable. Source statement: Processed / packaged and / or ready-to-eat food shall be protected as per the required storage conditions during...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Such control shall include time and temperature of receiving, processing, cooking, cooling, storage, packaging, distribution and food service upto the consumer, as applicable.”
- “Processed / packaged and / or ready-to-eat food shall be protected as per the required storage conditions during transportation and / or service.”

Source passage excerpt

5.3 Food Processing / Preparation, Packaging and Distribution / Service 5.3.1.Time and temperature control 5.3.1.1 The Food Business shall develop and maintain the systems to ensure that time and temperature are controlled effectively where it is critical to the safety and suitability of food. Such control shall include time and temperature of receiving, processing, cooking, cooling, storage, packaging, distribution and food service upto the consumer, as applicable. 5.3.1.2 Whenever frozen food / raw materials are being used / handled / transported, proper care should be taken so that defrosted / thawed material are not stored back after opening for future use. 5.3.1.3 If thawing is required then only required portion of the food should be thawed at a time. 5.3.1.4 Wherever cooking is done on open fire, proper outlets for smoke/steam etc. like chimney, exhaust fan etc. shall be provided. 5.4 Food Packaging 5.4.1 Packaging materials shall provide protection for all food products to prevent contamination, damage and shall accommodate ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-105 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 29 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: In case of complaints received and if so required, the company shall voluntarily do the testing either in the in- house laboratory or an accredited lab or lab notified by FSSAI. Source statement: 7 Food Testing Facilities 7.1 A well equipped, laboratory for...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “In case of complaints received and if so required, the company shall voluntarily do the testing either in the in- house laboratory or an...”
- “7 Food Testing Facilities 7.1 A well equipped, laboratory for testing of food materials / food for physical, microbiological and chemical analysis in accordance...”

Source passage excerpt

conveyances and / or containers used for transporting / serving foodstuffs shall be non toxic, kept clean and maintained in good condition in order to protect foodstuffs from any contamination. 5.5.3 Receptacles in vehicles and / or containers shall not be used for transporting anything other than foodstuffs where this may result in contamination of foodstuffs. Where the same conveyance or container is used for transportation of different foods, or high risk foods such as fish, meat, poultry, eggs etc., effective cleaning and disinfections shall be carried out between loads to avoid the risk of cross- contamination. For bulk transport of food, containers and conveyances shall be designated and marked for food use only and be used only for that purpose. 6 Management and Supervision 6.1 A detailed Standard Operating Procedure (SOP) for the processing of food as well as its packing, despatch and storage will be developed for proper management which in turn would help in identifying any problem ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-106 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 29 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Holes, drains and other places where pests are likely to gain access shall be kept in sealed condition or fitted with mesh / grills / claddings or any other suitable means as required and animals, birds and pets shall not be allowed to…
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Holes, drains and other places where pests are likely to gain access shall be kept in sealed condition or fitted with mesh / grills…”
- “Treatment with permissible chemical, physical or biological agents, within the appropriate limits, shall be”

Source passage excerpt

8 Audit, Documentation and Records 8.1 A periodic audit of the whole system according to the SOP shall be done to find out any fault / gap in the GMP / GHP system. 8.2 Appropriate records of food processing / preparation, production / cooking, storage, distribution, service, food quality, laboratory test results, cleaning and sanitation, pest control and product recall shall be kept and retained for a period of one year or the shelf-life of the product, whichever is more. 9 SANITATION AND MAINTENANCE OF ESTABLISHMENT PREMISES 9.1 Cleaning and Maintenance 9.1.1 A cleaning and sanitation programme shall be drawn up and observed and the record thereof shall be properly maintained, which shall indicate specific areas to be cleaned, cleaning frequency and cleaning procedure to be followed, including equipment and materials to be used for cleaning. Equipments used in manufacturing will be cleaned and sterilized at set frequencies. 9.1.2 Cleaning chemicals shall be handled and used carefully in accordance with … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact…
- Which source pages support an answer about Equipment and food-contact materials?

RAG-107 Food-handler hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 30 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-handler hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: 10.1.3 The factory staff shall be compulsorily inoculated against the enteric group of diseases as per recommended schedule of the vaccine and a record shall be kept for inspection. Source statement: A record of these examinations signed by a registered medical practitioner shall be maintained...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “10.1.3 The factory staff shall be compulsorily inoculated against the enteric group of diseases as per recommended schedule of the vaccine and a record...”
- “A record of these examinations signed by a registered medical practitioner shall be maintained for inspection purpose.”

Source passage excerpt

94 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] carried out without posing a threat to the safety or suitability of food. Records of pesticides / insecticides used along with dates and frequency shall be maintained. 10 PERSONAL HYGIENE 10.1 Health Status 10.1.1 Personnel known, or believed, to be suffering from, or to be a carrier of a disease or illness likely to be transmitted through food, shall not be allowed to enter into any food handling area . The Food Business shall develop system, whereby any person so affected, shall immediately report illness or symptoms of illness to the management and medical examination of a food handler shall be carried out apart from the periodic checkups, if clinically or epidemiologically indicated. 10.1.2 Arrangements shall be made to get the food handlers / employees of the establishment medically examined once in a year to ensure that they are free from any infectious, contagious and other communicable diseases. A record ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-handler hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-handler hygiene?
- Which source pages support an answer about Food-handler hygiene?

RAG-108 Food-handler hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 30-31 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-handler hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: 10.3.2 The Food Business shall ensure that visitors to its food manufacturing, cooking, preparation, storage or handling areas must wherever appropriate, wear protective clothing, footwear and adhere to the other personal hygiene provisions envisaged in this section. Source statement: 12.3 Periodic assessments of the effectiveness...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “10.3.2 The Food Business shall ensure that visitors to its food manufacturing, cooking, preparation, storage or handling areas must wherever appropriate, wear protective clothing...”
- “12.3 Periodic assessments of the effectiveness of training, awareness of safety requirements and competency level shall be made, as well as routine supervision and...”

Source passage excerpt

10.3 Visitors 10.3.1 Generally visitors should be discouraged from going inside the food handling areas. Proper care has to be taken to ensure that food safety & hygiene is not getting compromised due to visitors in the floor area. 10.3.2 The Food Business shall ensure that visitors to its food manufacturing, cooking, preparation, storage or handling areas must wherever appropriate, wear protective clothing, footwear and adhere to the other personal hygiene provisions envisaged in this section. 11 PRODUCT INFORMATION AND CONSUMER AWARNESS All packaged food products shall carry a label and requisite information as per provisions of Food Safety and Standards Act, 2006 and Regulations made there under so as to ensure that adequate and accessible information is available to the each person in the food chain to enable them to handle, store, process, prepare and display the food products safely and correctly and that the lot or batch can be easily traced and recalled if necessary. 12 TRAINING 12.1 … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-handler hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-handler hygiene?
- Which source pages support an answer about Food-handler hygiene?

RAG-109

I. SANITARY REQUIREMENTS

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 31 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on I. SANITARY REQUIREMENTS as described in FSSAI Licensing Regulations, 2011. Source statement: The occupier of a dairy establishment shall take appropriate measures to avoid cross-contamination of dairy products in accordance with the cleaning program as specified in point 9.1 of Part II. Source statement: The production of heat-treated milk or the manufacture of milk-based products, which...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The occupier of a dairy establishment shall take appropriate measures to avoid cross-contamination of dairy products in accordance with the cleaning program as specified...”
- “The production of heat-treated milk or the manufacture of milk-based products, which might pose a risk of contamination to other dairy products, shall be...”

Source passage excerpt

PART-III (See Regulation 2.1.2.(1)(5)) Specific Hygienic and Sanitary Practices to be followed by Food Business Operators engaged in manufacture, processing, storing and selling of Milk and Milk Products In addition to Part-II, the dairy establishment in which dairy based food is being handled, processed, manufactured, stored, distributed and ultimately sold by the food business operator, and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standard as specified below. I. SANITARY REQUIREMENTS 1. Dairy Establishments shall have the following: (a) Facilities for the hygienic handling and protection of raw materials and of non-packed or non-wrapped dairy products during loading and unloading, transport & storing including Bulk Milk cooling facilities. (b) Special watertight, non-corrodible containers to put raw materials or dairy products intended for human consumption. Where such raw materials or dairy products are removed through conduits, these shall be constructed and installed in such a way so as to avoid any risk ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about I. SANITARY REQUIREMENTS?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on I. SANITARY REQUIREMENTS?
- Which source pages support an answer about I. SANITARY REQUIREMENTS?

RAG-110 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 32 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: The Food Business Operator shall employ those persons only in such an establishment to work directly with and handle raw materials or dairy products if those persons have proved to the occupier's satisfaction by means of a medical certificate, on recruitment, that there is no...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

• “The Food Business Operator shall employ those persons only in such an establishment to work directly with and handle raw materials or dairy products…”
• “Disinfectants and similar substances used shall be used in such a way that they do not have any adverse effects on the machinery, equipment...”

Source passage excerpt

96 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] 7. Disinfectants and similar substances used shall be used in such a way that they do not have any adverse effects on the machinery, equipment, raw materials and dairy products kept at the dairy establishment. They shall be in clearly identifiable containers bearing labels with instructions for their use and their use shall be followed by thorough rinsing of such instruments and working equipment with potable water, unless supplier's instructions indicate otherwise. II. PERSONAL HYGIENE REQUIREMENTS 1. The Food Business Operator shall employ those persons only in such an establishment to work directly with and handle raw materials or dairy products if those persons have proved to the occupier's satisfaction by means of a medical certificate, on recruitment, that there is no medical impediment to their employment in that capacity. 2. Persons working directly with and handling raw materials or dairy products shall maintain the highest standards of personal cleanliness ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does FSSAI Licensing Regulations, 2011 state about Potable water?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
• Which source pages support an answer about Potable water?

RAG-111 III. .SANITARY REQUIREMENTS FOR STORAGE

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 32 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on III. .SANITARY REQUIREMENTS FOR STORAGE as described in FSSAI Licensing Regulations, 2011. Source statement: Where dairy products other than raw milk are stored under cooled conditions, their storage temperatures shall be registered and the cooling rate shall be such that the products reach the required temperature as quickly as possible. Source statement: If raw milk is...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Where dairy products other than raw milk are stored under cooled conditions, their storage temperatures shall be registered and the cooling rate shall be...”
- “If raw milk is brought to the dairy plant by a producer or farmer then it shall be ensured that he brings it within...”

Source passage excerpt

III. .SANITARY REQUIREMENTS FOR STORAGE 1. Immediately after procuring, raw milk shall be placed in a clean place, which is suitably equipped so as to prevent any kind of contamination. 2. The cans/ containers made up of mild steel metal and plastic material used for storage and transportation of milk and milk products shall not be allowed. 3. If raw milk is brought to the dairy plant by a producer or farmer then it shall be ensured that he brings it within four hours of milking and it shall be cooled as soon as practicable to a temperature of 4ºC or lower and maintained at that temperature until processed. 4. Where raw milk is collected daily from a producer, it shall be cooled immediately to a temperature of 4ºC to 6ºC or lower and maintained at that temperature until processed; 5. When the pasteurization process is completed, pasteurized milk shall be cooled immediately to a temperature of 4ºC or lower. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about III. .SANITARY REQUIREMENTS FOR STORAGE?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on III. .SANITARY REQUIREMENTS...
- Which source pages support an answer about III. .SANITARY REQUIREMENTS FOR STORAGE?

RAG-112 IV. WRAPPING AND PACKAGING

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 32-33 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on IV. WRAPPING AND PACKAGING as described in FSSAI Licensing Regulations, 2011. Source statement: It shall be handled by separate group of staff having experience in handling and product wrapping and (f) immediately after packaging, the dairy products shall be placed in the designated rooms provided for storage under required temperature. Source statement: Sealing shall be carried...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “It shall be handled by separate group of staff having experience in handling and product wrapping and (f) immediately after packaging, the dairy products...”
- “Sealing shall be carried out in the establishment in which the last heat-treatment of milk or liquid milk-based products have been carried out, immediately...”

Source passage excerpt

IV. WRAPPING AND PACKAGING 1. The wrapping and packaging of dairy products shall take place under satisfactory hygienic conditions and in rooms provided for that purpose. 2. The manufacture of dairy products and packaging operations may take place in the same room if the following conditions are satisfied: — (a) The room shall be sufficiently large and equipped to ensure the hygiene of the operations; (b) the wrapping and packaging shall have been brought to the treatment or processing establishment in protective cover in which they were placed immediately after manufacture and which protects the wrapping or packaging from any damage during transport to the dairy establishment, and they shall have been stored there under hygienic conditions in a room intended for that purpose; (c) the rooms for storing the packaging material shall be free from vermin and from dust which could constitute an unacceptable risk of contamination of the product and shall be separated from rooms containing substances which ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about IV. WRAPPING AND PACKAGING?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on IV. WRAPPING AND...
- Which source pages support an answer about IV. WRAPPING AND PACKAGING?

RAG-113 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 33 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: The premises shall be located at elevated level in a sanitary place. Source statement: Slaughter House Food Business Operator which slaughters large animals and small animals including sheep and goat or poultry birds within the premises of his factory for production of meat/ meat products...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The premises shall be located at elevated level in a sanitary place.”
- “Slaughter House Food Business Operator which slaughters large animals and small animals including sheep and goat or poultry birds within the premises of his…”

Source passage excerpt

PART IV (See Regulation 2.1.2 (1)(5)) Specific Hygienic and Sanitary Practices to be followed by Food Business Operators engaged in manufacture, processing, storing and selling of Meat and Meat Products A. Slaughter House Food Business Operator which slaughters large animals and small animals including sheep and goat or poultry birds within the premises of his factory for production of meat/ meat products for supply / sale/ distribution to the public shall comply with the following requirements:— 1. General Requirements: 1.1 No Objection Certificate to be obtained from local Authority before grant of license. 2. Location of Premises: Such establishments / Slaughter Houses should be linked to a meat market located away from Vegetable, fish or other food markets and shall be free from undesirable odour, smoke, dust or other contaminants. The premises shall be located at elevated level in a sanitary place. 3. Premise requirements: 3.1 The slaughter house shall have a reception area/animal holding yard/resting yard, lairage, slaughter hall, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-114 Schedule 4 hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 34 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Schedule 4 hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: Animals suspected of contagious or infectious diseases shall be segregated and kept in separate isolation pens which shall also be provided with arrangements for watering and feeding. Source statement: The resting yard must have overhead protective shelter.(This is not mandatory for registration category) 3.5...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Animals suspected of contagious or infectious diseases shall be segregated and kept in separate isolation pens which shall also be provided with arrangements for...”
- “The resting yard must have overhead protective shelter.(This is not mandatory for registration category) 3.5 The lairage shall be adequate in size for the...”

Source passage excerpt

98 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] 3.4 The reception area/animal holding yard/ resting yard shall have facilities for watering and examining animals before they are sent to holding pens/lairage. Animals suspected of contagious or infectious diseases shall be segregated and kept in separate isolation pens which shall also be provided with arrangements for watering and feeding. After confirmation for any notifiable disease, the designated Veterinary Authority shall notify the disease as per the existing procedures. The resting yard must have overhead protective shelter.(This is not mandatory for registration category) 3.5 The lairage shall be adequate in size for the number of animals to be laired. 3.6 Separate space shall be provided for stunning (Wherever applicable), for collection of blood and for dressing of the carcasses. The slaughtering of an animal shall not be done in the sight of other animals. The dressing of the carcass shall not be done on the floor. Suitable hoists will be ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Schedule 4 hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Schedule 4 hygiene?
- Which source pages support an answer about Schedule 4 hygiene?

RAG-115 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 34 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: 3.21 Suitable and sufficient facilities shall be provided in convenient places within the slaughter house for the sterilisation of knives and sharpner (mushtala) and other equipment used in the slaughter house. Source statement: No portion of the establishments / Slaughter Houses premises shall ever be...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

• “3.21 Suitable and sufficient facilities shall be provided in convenient places within the slaughter house for the sterilisation of knives and sharpner (mushtala) and...”
• “No portion of the establishments / Slaughter Houses premises shall ever be used for living or sleeping purposes unless it is separated from the...”

Source passage excerpt

3.10 Suitable and sufficient accommodation shall be provided for segregation, storage and disposal of condemned meat. 3.11 The establishments / Slaughter Houses shall be so constructed and maintained as to permit hygienic production. 3.12 Windows, doors and other openings suited to screening shall be fly proof. All doors shall have strong springs so that they may close automatically. 3.13 All operations in connection with the preparation or packing of meat / meat food products shall be carried out under hygienic conditions. No portion of the establishments / Slaughter Houses premises shall ever be used for living or sleeping purposes unless it is separated from the factory by a wall. 3.14 There shall be efficient drainage and plumbing systems and all drains and gutters shall be properly and permanently installed. There shall be provision for the disposal of refuse. 3.15 The drainage system for blood shall either be underground with facility for easy cleaning or a portable receptacle with lid. All ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does FSSAI Licensing Regulations, 2011 state about Potable water?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
• Which source pages support an answer about Potable water?

RAG-116 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 35 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Veterinary Microbiologist shall be a qualified veterinarian with two years of experience in Meat analysis or having degree of Master in Veterinary Public Health with specialization in Meat Hygiene. Source statement: 3.26 Suitable and sufficient facilities shall be provided for the isolation of...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Veterinary Microbiologist shall be a qualified veterinarian with two years of experience in Meat analysis or having degree of Master in Veterinary Public Health...”
- “3.26 Suitable and sufficient facilities shall be provided for the isolation of meat requiring further examination by the authorised veterinary officer in a suitable...”

Source passage excerpt

3.24 All slaughter house refuse and waste materials will be suitably processed to prepare animal bye products or dumped in pits that are suitably covered so as to prevent its access to scavengers. For large slaughter houses, a suitable provision of Effuent Treatment Plant will be made. 3.25 In case of small slaughter houses, waste material should be composted which can be used for manure purpose and in case of large slaughter houses, waste material should be rendered (cooked) in a rendering plant to produce meat, bone meal and inedible fats. 3.26 Suitable and sufficient facilities shall be provided for the isolation of meat requiring further examination by the authorised veterinary officer in a suitable laboratory (within the premises of the slaughter house). 3.27 Consistent with the size of the factory and volume and variety of meat food products manufactured, a laboratory shall be provided, equipped and staffed with qualified (chemist/analyst and Veterinary Microbiologist) and trained personnel. The licensing authority ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-117 Schedule 4 hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 35 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Schedule 4 hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: Sanitary Practices: 4.01 Every part of the internal surface above the floor or pavement of such slaughter house shall be washed thoroughly with hot lime wash within the first 10 days of March, June, September and December. Source statement: 4.07 The inner side of...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Sanitary Practices: 4.01 Every part of the internal surface above the floor or pavement of such slaughter house shall be washed thoroughly with hot...”
- “4.07 The inner side of the skin shall not be rubbed or caused to be rubbed upon the ground within any portion of the...”

Source passage excerpt

4. Sanitary Practices: 4.01 Every part of the internal surface above the floor or pavement of such slaughter house shall be washed thoroughly with hot lime wash within the first 10 days of March, June, September and December. Every part of the floor or pavement of the slaughter house and every part of the internal surface of every wall on which any blood or liquid refuse or filth may have been spilt or splashed or with which any offensive or noxious matter have been brought into contact during the process of slaughtering, dressing and cutting, shall be thoroughly cleaned, washed with water, wiped/dried and disinfectant within three hours after the completion of slaughter. 4.02 Rooms and compartments in which animals are slaughtered or any product is processed or prepared shall be kept sufficiently free from steam, vapours and moisture and obnoxious odours so as to ensure clean and hygienic operations. This will also apply to overhead structures in those rooms ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Schedule 4 hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Schedule 4 hygiene?
- Which source pages support an answer about Schedule 4 hygiene?

RAG-118 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 36 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: If required by the licensing authority, the water shall be got examined chemically and bacteriologic ally by a recognised laboratory. Source statement: 4] any meat food product is prepared or handled shall be free from dust and from odours emanating from dressing rooms, toilet rooms...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “If required by the licensing authority, the water shall be got examined chemically and bacteriologic ally by a recognised laboratory.”
- “4] any meat food product is prepared or handled shall be free from dust and from odours emanating from dressing rooms, toilet rooms, catch...”

Source passage excerpt

100 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] any meat food product is prepared or handled shall be free from dust and from odours emanating from dressing rooms, toilet rooms, catch basins, hide cellars, casing rooms and livestock pens. 4.09 Every practicable precaution shall be taken to exclude flies, rats, mice and vermin from the establishments / Slaughter Houses. The use of poisons for any purpose in rooms or compartments where any unpacked product is stored or handled is forbidden. The use of approved bait poisons in hide cellars, compartments where inedible products are stored, outhouses or similar buildings containing canned products is, however, not forbidden. 4.10 It shall be ensured that dogs, cats or birds do not have access to the slaughter hall. Open areas in the factory shall have covered wire rope netting to prevent carrion birds from access to the slaughter hall or the factory. 4.11 Water used in the establishments / Slaughter Houses shall ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-119 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 36 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: 6.2 The staff shall be inoculated against the enteric group of diseases and a certificate thereof shall be kept for inspection. Source statement: Personnel Hygiene: 6.1 No person suffering from infectious or contagious diseases shall be allowed to work in the factory.

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “6.2 The staff shall be inoculated against the enteric group of diseases and a certificate thereof shall be kept for inspection.”
- “Personnel Hygiene: 6.1 No person suffering from infectious or contagious diseases shall be allowed to work in the factory.”

Source passage excerpt

5. Equipment & Machinery: 5.1 The equipment and fittings in slaughter hall except for chopping blocks, cutting boards and brooms, shall be of such material and of such construction as to enable them to be kept clean. The implements shall be of metal or other cleanable and durable material resistant to corrosion. 5.2 No vessel, container or other equipment, the use of which is likely to cause metallic contamination injurious to health shall be employed in the preparation, packing or storage of meat food products. (Copper or brass vessels shall always be heavily lined. No iron or galvanised iron shall come in contact with meat food products). 6. Personnel Hygiene: 6.1 No person suffering from infectious or contagious diseases shall be allowed to work in the factory. Arrangements shall be made to get the factory staff medically examined at such intervals as the licensing authority deems fit, to ensure that they are free from infectious, contagious and other diseases. A ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-120 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 36-37 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: For journeys less than 12 hours no feed need be carried but for longer journeys sufficient feed shall be carried to last during the journey. Source statement: 1.11 A layer of clean sand to cover the floor to a thickness of not less than 6...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “For journeys less than 12 hours no feed need be carried but for longer journeys sufficient feed shall be carried to last during the...”
- “1.11 A layer of clean sand to cover the floor to a thickness of not less than 6 cm shall be provided.”

Source passage excerpt

1. Pre Slaughter Handling of Animal: Livestock are transported en masse from the farm to the slaughterhouse, a process called "live export". Depending on its length and circumstances, this exerts stress and injuries on the animals and some may die en route. Apart from being inhumane, unnecessary stress in transport may adversely affect the quality of the meat. In particular, the muscles of stressed animals are low in water and glycogen, and their pH fails to attain acidic values. Transportation of Animals Following requirements shall be satisfied for Transportation of Animals from a farm to the slaughter house. 1.0 General Conditions 1.1 Only healthy animals in good condition shall be transported unless they are meant for emergency slaughter. These animals should be certified by a qualified veterinary inspector for freedom from infectious diseases and ecto- parasitic diseases and their fitness to undertake the journey. 1.2 When animals are to be transported from endemic areas of a disease to non-endemic areas, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-121 Schedule 4 hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 37-38 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Schedule 4 hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: The floor of the ramp shall have cleats at intervals, so that animals do not slip as they climb or descend. Source statement: At any time of loading and unloading the vehicle shall be kept clean to avoid slipping of animals.
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The floor of the ramp shall have cleats at intervals, so that animals do not slip as they climb or descend.”
- “At any time of loading and unloading the vehicle shall be kept clean to avoid slipping of animals.”

Source passage excerpt

2.0 Loading 2.1 Loading during extremes of temperatures shall be avoided. 2.2 Suitable ramp shall be provided for loading and unloading the animals. The floor of the ramp shall have cleats at intervals, so that animals do not slip as they climb or descend. The ramp shall be covered with straw to avoid slipping. At any time of loading and unloading the vehicle shall be kept clean to avoid slipping of animals. Bale 2.3 In case of railway wagons when loading is done on the platform, the door of the wagon may be used as ramp. In such cases, bales or bags of hay, agricultural wastes etc. may be placed on the either side of the dropped door to prevent the animals from getting their legs between the sides of the wagons and platform. 3.0 Space Requirements 3.1 Overcrowding shall be avoided. Each animal shall have enough space to lie down. 102 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Schedule 4 hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Schedule 4 hygiene?
- Which source pages support an answer about Schedule 4 hygiene?

RAG-122 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 38 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: A low and controlled voltage must be maintained so that the stunning will not damage the heart and brain or cause physical disability and death to the animals. Source statement: If an animal shows signs of regaining consciousness after the initial stun, the...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “A low and controlled voltage must be maintained so that the stunning will not damage the heart and brain or cause physical disability and...”
- “If an animal shows signs of regaining consciousness after the initial stun, the animal must be immediately killed by the use of a captive...”

Source passage excerpt

4.1. Stunning: Stunning before slaughter should be mandatory. By inducing unconsciousness and insensibility, stunning can avoid and minimise reactions of fear and anxiety as well as pain, suffering and distress among the animals concerned. Stunning methods induce temporary loss of consciousness and rely on prompt and accurate sticking procedures to cause death. It is important that the equipment utilized for stunning and slaughter is maintained in good working condition and that all operators involved are well trained and have a positive attitude towards the welfare of animals. Electrical stunning consists of passing electricity through the brain to produce instantaneous insensibility. The following method of slaughter shall be considered humane:— (i) Mechanical stunning of cattle may be carried out by one of three methods; captive bolt stunning, mushroom head percussive stunning and pneumatic percussive stunning. For cattle, pneumatic stunning should be preferred and the optimum position is that the centre of the stunner should contact the animal at a point of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-123 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 38-39 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: The concentration of CO2 should be 90% by volume but shall not be less than 80% by volume. Source statement: Herding of animals should not be done through electric prods but with the help of plastic bags or sticks. z A high standard...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The concentration of CO2 should be 90% by volume but shall not be less than 80% by volume.”
- “Herding of animals should not be done through electric prods but with the help of plastic bags or sticks. z A high standard of...”

Source passage excerpt

Species Minimum current levels for head-only stunning Cattle 1.5 Amps Calves (bovines of less than 6 month of age) 1.0 Amps Pigs 1.25 Amps Sheep and goats 1.0 Amps Lambs 0.7 Amps Broilers 100 milli Amps Turkeys 150 milli Amps (iii) Gas stunning - Stunning of pigs by exposure to carbon dioxide (CO2) may be preferred. The concentration of CO2 should be 90% by volume but shall not be less than 80% by volume. Ideally pigs should be exposed for 3 minutes. Sticking should be done immediately after exit from the gas chamber. Over-crowding of animals should be avoided in the gas chamber. 5. Precautions for animal welfare: a. General: (1) The floor of the slaughter area should not cause slipping or falling of animals. (2) Vocalization is an indicator of animal discomfort and need to be watched for. (3) Use of electric pods for moving animal should be discouraged. Movement of animals can be managed by grouping, use of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-124 A Model programme shall envisage following:

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 39-40 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on A Model programme shall envisage following: as described in FSSAI Licensing Regulations, 2011. Source statement: A Model programme shall envisage following: Poultry Suppliers and processors must have a documented program for poultry welfare envisaging following; (a) Catching: Poultry intended for slaughter plant should be clean and in good health. Source statement: There shall be no crate/cage...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “A Model programme shall envisage following: Poultry Suppliers and processors must have a documented program for poultry welfare envisaging following; (a) Catching: Poultry intended...”
- “There shall be no crate/cage damage that would allow injury to poultry or allow crates to accidentally open.”

Source passage excerpt

6. Poultry welfare: Welfare programme The conditions under which broilers are housed and the way that they are managed during their growing phase, transportation and slaughter are set down in several government/industry endorsed Model Codes of Practice designed to safeguard their welfare. A model welfare program needs to be developed for pick-up, transport and broiler/chicken processing sectors. Processing unit shall incorporate elements of this welfare audit in their own quality plans and manuals. A Model programme shall envisage following: Poultry Suppliers and processors must have a documented program for poultry welfare envisaging following; (a) Catching: Poultry intended for slaughter plant should be clean and in good health. Every reasonable precaution should be taken to minimize injury to poultry. The catcher needs to be trained to this effect. (b) Transport: For transport of poultry crates shall be in good repair. There shall be no crate/cage damage that would allow injury to poultry or allow crates to accidentally open. Transport crates should ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about A Model programme shall envisage following:?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on A Model programme...
- Which source pages support an answer about A Model programme shall envisage following:?

RAG-125 Economic performance and welfare:

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 40 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Economic performance and welfare: as described in FSSAI Licensing Regulations, 2011. Source statement: Economic performance and welfare: High standards of poultry welfare and high levels of flock performance and economic performance are not incompatible - quite the contrary, they go hand in hand. Source statement: It is also important that sick or injured poultry that cannot...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Economic performance and welfare: High standards of poultry welfare and high levels of flock performance and economic performance are not incompatible - quite the...”
- “It is also important that sick or injured poultry that cannot be adequately or successfully treated are culled quickly and in a humane manner...”

Source passage excerpt

Economic performance and welfare: High standards of poultry welfare and high levels of flock performance and economic performance are not incompatible - quite the contrary, they go hand in hand. It simply makes good economic sense as well as being in the poultry's best interests to ensure that flocks are maintained in an environment, in which they are thermally comfortable, protected from injury, fed optimally and kept healthy. Therefore, all measures described elsewhere to ensure that chickens are kept in conditions which optimize their comfort (in terms of temperature, humidity, air flow and air quality), in which they are provided with water, shelter, and a high quality diet that matches their physiological needs, and which optimize their health have just as important effect in terms of poultry welfare as they do on the overall efficiency of the farming operation. Poultry health and welfare: When producing chicken meat in a welfare-friendly manner it is also important that the poultry receive prompt ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Economic performance and welfare:?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Economic performance and...
- Which source pages support an answer about Economic performance and welfare:?

RAG-126 Change of premises or activity

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 40 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Change of premises or activity as described in FSSAI Licensing Regulations, 2011. Source statement: Ante-mortem inspection (1) All animals shall be rested before slaughter and shall be subjected to ante-mortem examination and inspection well in advance of the time of slaughter. Source statement: (3) An animal showing signs of any disease at the time of ante-mortem...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Ante-mortem inspection (1) All animals shall be rested before slaughter and shall be subjected to ante-mortem examination and inspection well in advance of the...”
- “(3) An animal showing signs of any disease at the time of ante-mortem inspection that would cause its carcass being ultimately condemned on post-mortem...”

Source passage excerpt

7. Ante-mortem inspection (1) All animals shall be rested before slaughter and shall be subjected to ante-mortem examination and inspection well in advance of the time of slaughter. (2) No animal which has been received into a slaughter hall for the purpose of being slaughtered shall be removed from the slaughter hall before being slaughtered except with the written consent of the Qualified Veterinary Doctor. An animal which, on inspection is found to be not fit for slaughter shall be marked as "suspect" and kept separately. Each such animal shall be marked as "suspect" only by or under the personal supervision of the Qualified Veterinary Doctor and the marking shall not be removed or obliterated except by the Qualified Veterinary Doctor himself. (3) An animal showing signs of any disease at the time of ante-mortem inspection that would cause its carcass being ultimately condemned on post-mortem shall be marked as "condemned" and rejected. (4) An animal declared as "suspect" on ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Change of premises or activity?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Change of premises...
- Which source pages support an answer about Change of premises or activity?

RAG-127 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 41 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: A careful and detailed post-mortem examination and inspection of the carcasses and parts thereof of all animals slaughtered shall be made soon after slaughter. Source statement: The identity of such carcass including the detached parts and organs thereof shall be maintained until the final inspection...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “A careful and detailed post-mortem examination and inspection of the carcasses and parts thereof of all animals slaughtered shall be made soon after slaughter.”
- “The identity of such carcass including the detached parts and organs thereof shall be maintained until the final inspection is completed.”

Source passage excerpt

(8) All animals declared as "condemned" on ante-mortem inspection shall be marked as "condemned" and killed if not already dead. Such carcasses shall not be taken into the factory to be slaughtered or dressed, nor shall they be conveyed into any department of the factory used for edible products. 8. Post-mortem inspection— 1. A careful and detailed post-mortem examination and inspection of the carcasses and parts thereof of all animals slaughtered shall be made soon after slaughter. All organs and parts of the carcasses and blood to be used in the preparation of meat food products shall be held in such a manner as to preserve their identity till the completion of the post-mortem inspection so that they can be identified in the event of the carcasses being condemned. 2. Every carcass including all detached parts and organs thereof which show evidence of any condition which will render the meat or any part or organ unfit for human consumption and ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-128 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 41 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Post-mortem inspection shall be a detailed one and shall cover all parts of the carcass, the viscera, lymph glands and all organs and glands. Source statement: Any part of a carcass contaminated with anthrax infected material through contact with soiled instruments or otherwise...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Post-mortem inspection shall be a detailed one and shall cover all parts of the carcass, the viscera, lymph glands and all organs and glands.”
- “Any part of a carcass contaminated with anthrax infected material through contact with soiled instruments or otherwise shall be immediately condemned and disposed of...”

Source passage excerpt

All such condemned carcasses, parts and organs thereof shall remain in the custody of the Qualified Veterinary Doctor pending disposal at or before the close of the day on which they are marked "Inspected and condemned" in accordance with sub-paragraphs (11),(12) and (13) below. 6. Carcasses, parts and the organs thereof found to be sound, wholesome, healthful and fit for human consumption shall be marked as "Inspected and passed". 7. Carcasses found affected with anthrax before evisceration shall not be eviscerated but condemned and disposed of immediately in accordance with sub-paragraph (12) below. Any part of a carcass contaminated with anthrax infected material through contact with soiled instruments or otherwise shall be immediately condemned and disposed of as provided in sub-paragraph (12) below. 8. The portion of the slaughtering department including equipment, employees' boots and aprons, etc., contaminated by contact with anthrax material shall be cleaned and thoroughly disinfected immediately. 9. When on inspection only a portion of a carcass ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-129 State and central licensing

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 41 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on State and central licensing as described in FSSAI Licensing Regulations, 2011. Source statement: The post-mortem inspection shall be in accordance with the general rules laid down for such inspection in public slaughter houses under the control of local bodies besides special instructions that may be issued from time to time by the licensing authority. Source statement...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The post-mortem inspection shall be in accordance with the general rules laid down for such inspection in public slaughter houses under the control of...”
- “Destruction of condemned carcasses, organs or parts thereof shall be carried out under the direct supervision of the Qualified Veterinary Doctor.”

Source passage excerpt

The post-mortem inspection shall be in accordance with the general rules laid down for such inspection in public slaughter houses under the control of local bodies besides special instructions that may be issued from time to time by the licensing authority. 12. All condemned carcasses, organs or parts thereof shall be completely destroyed in the presence of the Qualified Veterinary Doctor by incineration or denatured, after being slashed freely with a knife, with crude carbolic acid, cresylic- disinfectant or any other prescribed agent unless such carcasses, organs or parts thereof are sterilized for the preparation of bone-cum-meat meal before leaving the slaughter house premises, subject to sub-paragraph (13) below. 13. Carcasses, organs or parts thereof condemned on account of anthrax shall be disposed of either by (i) complete incineration or (ii) thorough denaturing with prescribed denaturant in the manner prescribed in the foregoing paragraphs and also in accordance with the rules and regulations prescribed by the local authority. 14. Destruction ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about State and central licensing?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on State and central...
- Which source pages support an answer about State and central licensing?

RAG-130 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 42 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Sanitary and Hygienic Requirements for Meat processing units Following Sanitary and Hygienic requirements shall be satisfied by the meat processing unit. Source statement: If on subsequent inspection, the carcass, organ or part thereof is found to be unwholesome and unfit for human food…

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Sanitary and Hygienic Requirements for Meat processing units Following Sanitary and Hygienic requirements shall be satisfied by the meat processing unit.”
- “If on subsequent inspection, the carcass, organ or part thereof is found to be unwholesome and unfit for human food, the Qualified Veterinary Doctor…”

Source passage excerpt

106 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] examination, the carcass, organ or part thereof shall be marked as "Held". If on subsequent inspection, the carcass, organ or part thereof is found to be unwholesome and unfit for human food, the Qualified Veterinary Doctor shall mark such a carcass, organ or part thereof as "condemned" and shall dispose it of as described in the foregoing paragraphs. a. Sanitary and Hygienic Requirements for Meat processing units Following Sanitary and Hygienic requirements shall be satisfied by the meat processing unit. 1. Location: 1.1 Meat processing unit should be located in areas not subjected to regular and frequent flooding and free from objectionable odours, smoke dust and other contaminants; 1.2 Roadways and areas serving the meat processing unit which are within its boundaries or in its immediate vicinity should have a hard paved surface suitable for wheeled traffic. There should be adequate drainage and provision for cleaning; 1.3 Where appropriate, meat … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact…
- Which source pages support an answer about Equipment and food-contact materials?

RAG-131 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 43 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: 2.9 The use of construction materials which cannot be adequately cleaned and disinfected such as wood, should be avoided unless its use would clearly not be a source of contamination, and 2.10 Office accommodation should be provided for the use of the meat inspection agency....

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “2.9 The use of construction materials which cannot be adequately cleaned and disinfected such as wood, should be avoided unless its use would clearly...”
- “Supply of potable water under pressure should be available with facilities for its storage, where necessary for distribution, and with protection against contamination; 3.1.2.”

Source passage excerpt

2.9 The use of construction materials which cannot be adequately cleaned and disinfected such as wood, should be avoided unless its use would clearly not be a source of contamination, and 2.10 Office accommodation should be provided for the use of the meat inspection agency. 3. Sanitary Facilities: 3.1 Water Supply: 3.1.1. Supply of potable water under pressure should be available with facilities for its storage, where necessary for distribution, and with protection against contamination; 3.1.2. An supply of hot potable water should be available at all times during working hours; Note - This provision is intended to cover water for both cleaning purposes and the destruction of microorganisms (especially those pathogenic to man) on knives, utensils etc., and coming into direct contact with meat. For cleaning purposes the temperature of the water should be 65 degree Celsius. The hot water for disinfection purposes should be at 82 degree Celsius and dispensed in such a way (e.g. in specially designed ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-132 Waste disposal

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 43 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Waste disposal as described in FSSAI Licensing Regulations, 2011. Source statement: Hand washing facilities with warm or hot and cold water with suitable hygienic means of drying hands should be provided adjacent to toilets and in such a position that the employee must pass them when returning to the processing area. Source statement: Biological oxygen demand...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Hand washing facilities with warm or hot and cold water with suitable hygienic means of drying hands should be provided adjacent to toilets and...”
- “Biological oxygen demand level shall be less than 1500, and for that an effluent treatment plant, if necessary may be installed.”

Source passage excerpt

3.2 Effluent and Waste Disposal - Meat processing unit should have an efficient effluent and waste disposal system. All effluent lines (including sewer systems) should be large enough to carry peak loads and should be constructed in such a manner as to avoid contamination of potable water supplies. Biological oxygen demand level shall be less than 1500, and for that an effluent treatment plant, if necessary may be installed. 3.3 Facilities for Storage of Waste and Inedible Material. - Facilities should be provided for the storage of waste and inedible material prior to removal from the establishment. These facilities should be designed to prevent access to waste or inedible material by pests and to avoid contamination of food, potable water and equipment or building. 3.4 Changing Facilities and Toilets.- Suitable and conveniently located changing facilities and toilets should be provided in all establishments. Toilets should be so designed as to ensure hygienic removal of waste matter. These areas should be ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Waste disposal?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Waste disposal?
- Which source pages support an answer about Waste disposal?

RAG-133 Schedule 4 hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 43-44 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Schedule 4 hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: Where appropriate, the lighting should not alter colours and the intensity should not be less than 540 Lux (50 foot candles) at all inspection points. Source statement: 3.5.4 All facilities for cleaning and disinfecting of implements should be fitted with suitable means of supplying...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Where appropriate, the lighting should not alter colours and the intensity should not be less than 540 Lux (50 foot candles) at all inspection...”
- “3.5.4 All facilities for cleaning and disinfecting of implements should be fitted with suitable means of supplying hot water in sufficient quantity at all...”

Source passage excerpt

Notices should be posted directing personnel to wash their hands after using the toilets. 3.5 Hand Washing Facilities in Processing Areas: 3.5.1 Adequate and conveniently located facilities for hand washing and drying should be provided wherever the process demands. Where appropriate, facilities for hand disinfection should be provided. The facilities should be furnished with properly trapped waste pipes leading to drains. 3.5.2 All rooms used for deboning, preparing, packing or other handling of meat should be equipped with adequate facilities for cleaning and disinfecting implements, conveniently located for the use of personnel during operations. These facilities are for use exclusively in the cleaning and disinfection of knives, steels, cleavers, saws and other implements. 3.5.3 All facilities for cleaning and disinfecting implements should be of such nature and sizes as to permit proper cleaning and disinfection of implements . These facilities should be constructed of corrosion - resistant materials and should be capable of being easily cleaned. 3.5.4 All facilities for ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Schedule 4 hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Schedule 4 hygiene?
- Which source pages support an answer about Schedule 4 hygiene?

RAG-134 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 44 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: 4.2 Sanitary Design, Construction and Installation: 4.2.1 All equipments and utensils should be so designed and constructed as to prevent hygiene hazards and permits easy and thorough cleaning and disinfection and where practicable be visible for inspection. Source statement: 4.3 Equipment Identification -...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “4.2 Sanitary Design, Construction and Installation: 4.2.1 All equipments and utensils should be so designed and constructed as to prevent hygiene hazards and permits...”
- “4.3 Equipment Identification - Equipment and utensils used for inedible material or waste should be so identified and should not be used for edible...”

Source passage excerpt

4. Equipment and Utensils : 4.1 Materials - All equipments, implements and utensils used in establishments which come into contact with exposed meat and meat products should present a smooth impervious surface and be resistant to corrosion and should be made of material which is non-toxic, does not transmit odour or taste, is free from pits and crevices, is non-absorbent and capable of withstanding repeated exposure to normal cleaning and disinfection. Such equipment should be so constructed that they may be easily cleaned. 4.2 Sanitary Design, Construction and Installation: 4.2.1 All equipments and utensils should be so designed and constructed as to prevent hygiene hazards and permits easy and thorough cleaning and disinfection and where practicable be visible for inspection. Stationary equipment should be installed in such a manner as to permit easy access and thorough cleaning. 4.2.2 Containers for inedible material and waste should be leak proof, constructed of non-corrosive metal or other suitable impervious materials which should be ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-135 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 44 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: 5.2 Cleaning and Disinfection - Cleaning and disinfection should meet the following requirements : (i) Amenities provided for the use of employee and the inspection service including changing facilities, toilets and the inspection office space should be kept clean at all times. Source...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “5.2 Cleaning and Disinfection - Cleaning and disinfection should meet the following requirements : (i) Amenities provided for the use of employee and the...”
- “They shall also be cleaned and disinfected at the conclusion of each working day.”

Source passage excerpt

5. Hygiene Requirements : 5.1 Maintenance. The buildings, rooms, equipment and all other physical facilities of the meat processing unit, including drains, should be maintained in good repair and in orderly condition. Except for rooms where meat processing or cleaning operations are performed, they should be free from steam, vapour and surplus water. 5.2 Cleaning and Disinfection - Cleaning and disinfection should meet the following requirements : (i) Amenities provided for the use of employee and the inspection service including changing facilities, toilets and the inspection office space should be kept clean at all times. (ii) If rooms, intended and most of the time used for the handling, preparation, processing, packaging on storage of meat, are used for any other food preparation purposes, then cleaning and disinfection are necessary immediately before and after such use. (iii) The temperature in rooms for boning out and trimming should be controlled and held suitably low, unless cleaning of equipment and utensils are carried ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-136 Waste disposal

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 45 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Waste disposal as described in FSSAI Licensing Regulations, 2011. Source statement: (vi) Immediately after the cessation of work for the day or at such other times as may be required, the floors and wails should be cleaned to remove contamination. Source statement: 5.3 Hygiene Control Programme.-It is desirable that each meat processing unit in its own...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(vi) Immediately after the cessation of work for the day or at such other times as may be required, the floors and wails should...”
- “5.3 Hygiene Control Programme.-It is desirable that each meat processing unit in its own interest designates a single individual whose duties are diverted from...”

Source passage excerpt

(vi) Immediately after the cessation of work for the day or at such other times as may be required, the floors and wails should be cleaned to remove contamination. Floor drains should be kept in good condition and repair with strainers in place; and (vii) Roadways and yards in the immediate vicinity of and serving the meat processing unit should be kept clean. 5.3 Hygiene Control Programme.-It is desirable that each meat processing unit in its own interest designates a single individual whose duties are diverted from production, to be held responsible for the cleanliness of the meat processing unit. His staff should be a permanent part of the organisation or employed by the organisation and should be well trained in the use of special cleaning tools, methods of dismantling the equipment for cleaning and in the significance of contamination and the hazards involved. A permanent cleaning and disinfection schedule should be drawn up to ensure that all parts of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Waste disposal?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Waste disposal?
- Which source pages support an answer about Waste disposal?

RAG-137 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 45 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: Except as required for purpose of hygiene such substance which may contaminate meat packing material and ingredients should be handled and stored in a part of the meat processing unit which is not used for preparation, processing, handling, packing or storage of meat....

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Except as required for purpose of hygiene such substance which may contaminate meat packing material and ingredients should be handled and stored in a...”
- “6.4 Handling and Storage of Hazardous substances - Pesticides or other substance which may represent a hazard should be labelled with a warning about...”

Source passage excerpt

6. Pest Control 6.1 There should be an effective and continuous programme for the control of insects, birds, rodents or other vermin. Meat processing unit and surrounding areas should be regularly examined for evidence of infestation. 6.2 Should pests gain entrance to the meat processing unit or surrounding areas, eradication measures should be instituted. Control measures involving treatment with physical or chemical or biological agents should only be undertaken by or under direct supervision of personnel who have a thorough understanding of the potential hazards to health resulting from the use of these agents, including those which may arise from residues retained in the product. Such measures should be carried out in accordance with the recommendation of the official agency having jurisdiction and with the full knowledge of its inspector, and 6.3 Pesticides should only be employed if other precautionary methods cannot be used effectively. Only pesticides approved for use in the meat processing unit by competent authority should be ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-138 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 45-46 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: Personnel Hygiene and Health Requirements : 7.1 Medical examination - Persons who come into contact with meat in the course of their work should have a medical examination prior to their employment. Source statement: Medical examination of a meat handler shall be carried out routinely...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Personnel Hygiene and Health Requirements : 7.1 Medical examination - Persons who come into contact with meat in the course of their work should...”
- “Medical examination of a meat handler shall be carried out routinely and when clinically or epidemiologically indicated, at least once in 12 months.”

Source passage excerpt

7. Personnel Hygiene and Health Requirements : 7.1 Medical examination - Persons who come into contact with meat in the course of their work should have a medical examination prior to their employment. Medical examination of a meat handler shall be carried out routinely and when clinically or epidemiologically indicated, at least once in 12 months. 7.2 Communicable Diseases - The management should take care to ensure that no person, while known or suspected to be suffering from, or to be a carrier of a disease likely to be transmitted through meat or while afflicted with infected wounds, skin infections, sores or with diarrhoea, is permitted to work in any area in any capacity in which there is any likelihood of such a person directly or indirectly contaminating meat with pathogenic microorganisms. Any person so affected should immediately report to the management that he is ill. 110 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] 7.3 Injuries - Any ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-139 Schedule 4 hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 46 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Schedule 4 hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: 8.5 Visitors: Every person who visits an area in any meat processing unit where meat is handled should wear clean protective clothing and head cover. b) Sanitary &Hygienic Requirements for the Retail Meat Shops For ensuring the hygiene and safety of meat being sold...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “8.5 Visitors: Every person who visits an area in any meat processing unit where meat is handled should wear clean protective clothing and head...”
- “8.2 Aprons and similar items should not be washed on the floor; and 8.3 Such items should not be left on equipment in the...”

Source passage excerpt

8. Personnel Cleanliness: 8.1 Every person engaged in an area in meat processing unit where meat is handled should maintain a high degree of personnel cleanliness while on duty, and should at all times while so engaged wear suitable protective clothing including head covering and foot wear, all of which should be washed unless designed to be disposed and which should be maintained in a clean condition consistent with the nature of the work in which the person is engaged. 8.2 Aprons and similar items should not be washed on the floor; and 8.3 Such items should not be left on equipment in the working area. 8.4 Personal Behavior : Any behavior which can potentially contaminate the meat such as eating, use of tobacco, chewing, spitting, should be prohibited in any part of meat processing unit used for the preparation, handling, packaging or transportation of meat. 8.5 Visitors: Every person who visits an area in any meat processing unit where ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Schedule 4 hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Schedule 4 hygiene?
- Which source pages support an answer about Schedule 4 hygiene?

RAG-140 Food-handler hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 46 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-handler hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: It must be the responsibility of the meat shop owners to maintain a high standard of hygiene not only inside the shops, but also in the way leading to the shops road pavements or other adjoining place, particularly for insanitary materials originating from the meat...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “It must be the responsibility of the meat shop owners to maintain a high standard of hygiene not only inside the shops, but also...”
- “All the meat shops located in the vicinity of religious places shall be fitted with black glass doors, which must be kept closed all...”

Source passage excerpt

1. Location of Meat Shop 1. The meat shop / sale outlet should preferably be a unit of meat market located away from Vegetable, fish or other food markets and shall be free from undesirable odour, smoke, dust or other contaminants. Wherever a meat market is not available, individual meat shop can be set up considering the above factors, which have a direct bearing on the hygiene conditions of the premises and health of consumers. (a) The minimum distance between the licensed meat shop and any place of worship should not be less than 50 meters; (b) The condition of 100 meters distance will apply in case the premises situated directly opposite to the entry gate of religious place of any community. 2. All the meat shops located in the vicinity of religious places shall be fitted with black glass doors, which must be kept closed all times except in case of entry or exit. It must be the responsibility ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-handler hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-handler hygiene?
- Which source pages support an answer about Food-handler hygiene?

RAG-141 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 46-47 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: The walls up to the height of minimum 5 feet from the floor level shall be made of impervious concrete material (e.g. glazed tiles or hygienic panels, etc.) for easy washing and cleaning purposes. Source statement: In case the water supply is from bore well...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “The walls up to the height of minimum 5 feet from the floor level shall be made of impervious concrete material (e.g. glazed tiles...”
- “In case the water supply is from bore well the arrangement for softening of water for making the same potable shall be made in...”

Source passage excerpt

2. Size of Meat Shops 2.1 Considering the constraints of commercial space in residential areas in concerned Panchayats / Municipalities the size of meat shops may vary according to the size of business and activities being carried out there in the meat shops. 2.2 The height of shop in all above categories of meat shops should be not less than 3 meters, while in case of air- conditioned meat shops, it should not be less than 2.5 meters. 3. Premises 3.01 The premises shall be structurally sound. The walls up to the height of minimum 5 feet from the floor level shall be made of impervious concrete material (e.g. glazed tiles or hygienic panels, etc.) for easy washing and cleaning purposes. 3.02 The floor should be made of impervious and non-slippery materials with a slope for easy cleaning and removal of filth, waste and dirty water. The slope of the floor shall not be less than 5 cm. for a ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-142 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 47 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: 5.06 Washbasin made of stainless steel / porcelain shall be provided with liquid soap dispenser or other soap and nail brush for thorough cleaning of hands. Source statement: The non- corrosive hanging hooks for carcasses shall be 30 cm. apart and the distance...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “5.06 Washbasin made of stainless steel / porcelain shall be provided with liquid soap dispenser or other soap and nail brush for thorough cleaning...”
- “The non- corrosive hanging hooks for carcasses shall be 30 cm. apart and the distance between rails shall be 60 to 70 cm. depending...”

Source passage excerpt

4. Ventilation 4.01 The meat shop should be ventilated with facility of cross ventilation and may be provided with at-least one electric fan and one exhaust fan. 4.02 The rails and hanging hooks, if provided for hanging carcasses, should be of non-corrosive metal. The non-corrosive hanging hooks for carcasses shall be 30 cm. apart and the distance between rails shall be 60 to 70 cm. depending upon the size of animals slaughtered and carcasses hanged. 5. Equipment and Accessories 5.01 The meat shop should have suitable arrangement for fly proofing in the form of air-curtains, flytraps, etc. 5.02 It should have display cabinet type refrigerator of size for maintaining a temperature of 4 to 8 degrees C. or freezing cabinet if the meat is to be stored for more than 48 hours. 5.03 The weighing scales used shall be of a type which obviates unnecessary handling and contamination and the plate sketch of the scale shall be made of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact...
- Which source pages support an answer about Equipment and food-contact materials?

RAG-143 Change of premises or activity

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 47-48 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Change of premises or activity as described in FSSAI Licensing Regulations, 2011. Source statement: Transportation 6.01 The transportation of carcasses from the slaughter house to the premises shall be done under hygienic conditions in boxes of adequate size linked with zinc/aluminium/stainless steel or wire gauze meat safes, which must be washed daily. Source statement: Pest Control...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Transportation 6.01 The transportation of carcasses from the slaughter house to the premises shall be done under hygienic conditions in boxes of adequate size...”
- “Pest Control 7.01 The meat shop should have an effective and continuous programme for control of insects, rodents or other vermin within the premises.”

Source passage excerpt

6. Transportation 6.01 The transportation of carcasses from the slaughter house to the premises shall be done under hygienic conditions in boxes of adequate size linked with zinc/aluminium/stainless steel or wire gauze meat safes, which must be washed daily. 6.02 The transportation of carcasses from the slaughter house to the meat shops should be done in insulated refrigerated vans. Under no circumstances, carcasses will be transported in vehicles used for commuting of human beings, or in an exposed condition. 7. Pest Control 7.01 The meat shop should have an effective and continuous programme for control of insects, rodents or other vermin within the premises. The surrounding area of the shop should also be free from insects, birds, rodents and other vermin. 112 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] 7.02 The pest control measures adopted by the owner of shop should be kept as a record in the premises to be shown to any officer of the concerned ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Change of premises or activity?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Change of premises...
- Which source pages support an answer about Change of premises or activity?

RAG-144 Change of premises or activity

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 48 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Change of premises or activity as described in FSSAI Licensing Regulations, 2011. Source statement: 8.04 All the workers of the meat shop shall keep their finger nails short and clean and wash their hands with soap or detergent and hot water before commencement of work and after each absence, especially after using sanitary conveniences. Source statement...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “8.04 All the workers of the meat shop shall keep their finger nails short and clean and wash their hands with soap or detergent...”
- “Eating, spitting, nose cleaning or the use of tobacco in any form or chewing betel leaves shall be prohibited within the premises of meat...”

Source passage excerpt

8. Personnel Hygiene 8.01. Every person employed for meat handling at the meat shop shall be medically examined annually by a authorized registered medical practitioner and examination shall include examination of sputum and x-ray of the chest for tuberculosis. The medical examination shall also include examination of stool for protozoal and helminthic infestations for those parasites, which are transmitted by ingestion, and also for the presence of enteropathogenic Escherichia coli, Salmonella, Shigella spieces and Vibrio cholera. 8.02. A certificate / records of medical fitness of all workers handling meat should be kept as a record in the premises to be shown to any officer of the concerned Panchayats / Municipalities responsible for local administration / Corporation at the time of inspection. 8.03. No worker suspected to be suffering from fever, vomiting, diarrhoea, typhoid, dysentery or boils, cuts and sores and ulcers (however small) shall be permitted to work in the meat shops. 8.04 All the workers of the meat shop ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Change of premises or activity?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Change of premises...
- Which source pages support an answer about Change of premises or activity?

RAG-145 Change of premises or activity

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 48 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Change of premises or activity as described in FSSAI Licensing Regulations, 2011. Source statement: 9.07 Wholesome meat obtained from the authorized slaughter house shall only be sold at the meat shops and a record thereof shall be kept in the premises to be shown to any officer of the concerned Panchayats / Municipalities responsible for local…
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

• “9.07 Wholesome meat obtained from the authorized slaughter house shall only be sold at the meat shops and a record thereof shall be kept…”
• “Sanitary Practices 9.01 The chopping block should be sanitized daily by covering its top with sea-salt, after cleaning it with hot water at close…”

Source passage excerpt

9. Sanitary Practices 9.01 The chopping block should be sanitized daily by covering its top with sea-salt, after cleaning it with hot water at close of business activity. 9.02 The floor should be washed with appropriate disinfectant / detergent / sanitizer at the start and close of the business each working day. 9.03 There should be high standard of cleanliness and tidiness in the working area of shop with no organic or other material lying on the floor. 9.04 The refrigerated / freezing cabinet should be regularly cleaned and well maintained. 9.05 Slaughtering of animal / birds inside the shop premises should be strictly prohibited. 9.06 The carcasses shall not be allowed to be covered with wet-clothes. 9.07 Wholesome meat obtained from the authorized slaughter house shall only be sold at the meat shops and a record thereof shall be kept in the premises to be shown to any officer of the concerned Panchayats / Municipalities responsible for local administration … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does FSSAI Licensing Regulations, 2011 state about Change of premises or activity?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Change of premises…
• Which source pages support an answer about Change of premises or activity?

RAG-146 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 49 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Other Requirements 10.01 The prepared meat shall be packed in waxed paper and then placed in polyethylene bags or packed directly in bags made of food grade plastics. Source statement: 10.05 Retail meat shop license shall be granted subject to fulfillment of all the above...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Other Requirements 10.01 The prepared meat shall be packed in waxed paper and then placed in polyethylene bags or packed directly in bags made...”
- “10.05 Retail meat shop license shall be granted subject to fulfillment of all the above technical and administrative instructions in relation to the trade.”

Source passage excerpt

10. Other Requirements 10.01 The prepared meat shall be packed in waxed paper and then placed in polyethylene bags or packed directly in bags made of food grade plastics. 10.02 Failure to comply with any of these instructions may entail legal action against the defaulters, and even result in cancellation of license by the appropriate authority of the concerned Panchayats/Municipalities/Corporation. 10.03 No Objection Certificate from law and order point of view to be obtained from police department or the concerned Panchayats/Municipalities/Corporation before grant of license for buffalo meat and pork shop. 10.04 The concerned Panchayats/Municipalities responsible for local administration in the country shall appoint qualified Veterinary staff for the meat inspection (Ante mortem and Post mortem inspection) or if regular staff cannot be made available or deployed for the purpose shall make contractual arrangements for availing the services of qualified Veterinary staff for meat inspection available with the Animal Husbandry Depts. of the concerned state/UT in the country. 10.05 Retail ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-147 I. GOOD MANUFACTURING PRACTICES FOR WHOLE PREMISE

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 49 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on I. GOOD MANUFACTURING PRACTICES FOR WHOLE PREMISE as described in FSSAI Licensing Regulations, 2011. Source statement: It includes: (a) Eating Houses (b) Restaurants & Hotels (c) Snack Bars, (d) Canteens (Schools, Colleges, Office, Institutions) (e) Food Service at religious places (f) Neighbourhood Tiffin Services / dabba walas (g) Rail and airline catering (h) Hospital catering I....

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “It includes: (a) Eating Houses (b) Restaurants & Hotels (c) Snack Bars, (d) Canteens (Schools, Colleges, Office, Institutions) (e) Food Service at religious places...”
- “It includes premises where public is admitted for repose or for consumption of any food or drink or any place where cooked food is...”

Source passage excerpt

Part - V Specific Hygienic and Sanitary Practices to be followed by Practices to be followed by Food Business Operators engaged in catering / food service establishments In addition to Part-II the Catering/ food Service establishment in which food is being handled, processed, manufactured, stored, distributed and ultimately sold to the customers and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standard as specified below. It includes premises where public is admitted for repose or for consumption of any food or drink or any place where cooked food is sold or prepared for sale. It includes: (a) Eating Houses (b) Restaurants & Hotels (c) Snack Bars, (d) Canteens (Schools, Colleges, Office, Institutions) (e) Food Service at religious places (f) Neighbourhood Tiffin Services / dabba walas (g) Rail and airline catering (h) Hospital catering I. GOOD MANUFACTURING PRACTICES FOR WHOLE PREMISE I. Food Preparation Areas The following rules apply to rooms where ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about I. GOOD MANUFACTURING PRACTICES FOR WHOLE PREMISE?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on I. GOOD MANUFACTURING...
- Which source pages support an answer about I. GOOD MANUFACTURING PRACTICES FOR WHOLE PREMISE?

RAG-148 Equipment and food-contact materials

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 49-50 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Equipment and food-contact materials as described in FSSAI Licensing Regulations, 2011. Source statement: (3) Sinks with a draining board, detergent and hot water shall be provided to ensure proper cleaning of utensils, crockery and cutlery there will be a separate place for washing pots and pains. Source statement: Hand washing facilities and toilets (1) Adequate number…

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(3) Sinks with a draining board, detergent and hot water shall be provided to ensure proper cleaning of utensils, crockery and cutlery there will…”
- “Hand washing facilities and toilets (1) Adequate number of wash-hand basins made of porcelain/stainless steel shall be provided along with soap to wash hands…”

Source passage excerpt

Il . Hand washing facilities and toilets (1) Adequate number of wash-hand basins made of porcelain/stainless steel shall be provided along with soap to wash hands, with hot and cold running water, and materials for cleaning hands and drying them hygienically. Clean and dry towels shall be kept for the use of customers. (2) Separate sinks must be provided, where necessary, for washing raw food and cleaning equipment. (3) Sinks with a draining board, detergent and hot water shall be provided to ensure proper cleaning of utensils, crockery and cutlery there will be a separate place for washing pots and pains. 2. Changing facilities: Facilities for staff to change their clothes, where necessary must be provided. 114 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] II. GOOD FOOD HYGIENE PRACTICES 1. Cleaning z Food areas and equipment between different tasks, especially after handling raw food shall be cleaned. z The surface shall be thoroughly cleaned in case if somebody … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Equipment and food-contact materials?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Equipment and food-contact…
- Which source pages support an answer about Equipment and food-contact materials?

RAG-149 Preparation of fruits/ vegetables:

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 50 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Preparation of fruits/ vegetables: as described in FSSAI Licensing Regulations, 2011. Source statement: Raw materials shall be purchased from reliable and known dealers and checked for visible deterioration & off- odour. Source statement: (5) Previously prepared fruits/vegetables should be kept in clean and properly covered food grade containers under refrigeration or at a maximum temperature suitable...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Raw materials shall be purchased from reliable and known dealers and checked for visible deterioration & off- odour.”
- “(5) Previously prepared fruits/vegetables should be kept in clean and properly covered food grade containers under refrigeration or at a maximum temperature suitable for...”

Source passage excerpt

2. Raw materials 1. Raw materials shall be purchased from reliable and known dealers and checked for visible deterioration & off- odour. 2. There should be no physical hazards and foreign body contamination. 1. Raw paste, sauces etc. should be stored in properly covered containers made of food grade material and checked regularly for fungal growth, deterioration etc. Preparation of fruits/ vegetables: (1) Fruits and vegetables that have been protected from cross-contamination and properly conserved should be used. (3) Whole fruits and vegetables should be washed in potable water before being cut, mixed with other ingredients. Uncooked, ready-to-eat fruits & vegetables should be with 50 ppm chlorinated water before cutting, peeling or serving. (4) Fruits and vegetables should be peeled, squeezed and/or cut, as appropriate, with clean equipment/ utensils made of non-absorbent food grade materials. (5) Previously prepared fruits/vegetables should be kept in clean and properly covered food grade containers under refrigeration or at a maximum temperature suitable for the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Preparation of fruits/ vegetables:?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Preparation of fruits/...
- Which source pages support an answer about Preparation of fruits/ vegetables:?

RAG-150 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 50-51 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (f) Food hot held at 60°c and cooled at 21°c within 2 hrs or cooled to 5°c in 4 hours and thereafter refrigerated might be reheated. Source statement: (g) Reheated food must reach a minimum internal temperature of 74°C.When using microwave to reheat, food must...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(f) Food hot held at 60°c and cooled at 21°c within 2 hrs or cooled to 5°c in 4 hours and thereafter refrigerated might...”
- “(g) Reheated food must reach a minimum internal temperature of 74°C.When using microwave to reheat, food must reach a minimum temperature of 74°C and...”

Source passage excerpt

Preparation of Non-veg. Products:— (1) Raw meat and processed meat should be separated from other foods; items and surfaces. (2) Separate items (e.g. cutting boards, dishes, knives) and preparation area for raw meats and poultry and marine products should be used to avoid cross contamination of food. (3) Hands should be thoroughly washed before switching from preparing raw meat or poultry or marine products to any other activity. (4) Ensure proper cooking of all non vegetarian products. (5) Used surfaces should be washed with antibacterial cleaning agent, rinsed properly with water and sanitized after preparing raw meat/poultry. (6) Ensure that frozen products are thawed as per point no. 9 under special requirements for high risk foods. 3. Cooking (a) The preparation/ processing/ cooking should be adequate to eliminate and reduce hazards to an acceptable level which might have been introduced at the raw food level. (b) The preparation/ processing/ cooking methods should ensure that the foods are not re- contaminated. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-151 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 51 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: Also, fridge and display units should be maintained in good working condition to avoid food spoilage and contamination. Source statement: Chilling z Semi cooked or cooked dishes and other ready-to-eat foods such as prepared salads and desserts having short shelf life should not be left...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Also, fridge and display units should be maintained in good working condition to avoid food spoilage and contamination.”
- “Chilling z Semi cooked or cooked dishes and other ready-to-eat foods such as prepared salads and desserts having short shelf life should not be...”

Source passage excerpt

4. Chilling z Semi cooked or cooked dishes and other ready-to-eat foods such as prepared salads and desserts having short shelf life should not be left standing at room temperature. z Chilled food intended for consumption should be cold enough. z Food items that need to be chilled should be put straight away into the fridge. z Cooked food should be cooled as quickly as possible and then put it in the fridge. z Chilled food should be processed in the shortest time possible. z Fridge and display units should be cold enough and as per requirement. z In practice, fridge should be set at 5?C to make sure that food is kept in chilled condition. Also, fridge and display units should be maintained in good working condition to avoid food spoilage and contamination.

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-152

III. PERSONAL HYGIENE

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 51 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on III. PERSONAL HYGIENE as described in FSSAI Licensing Regulations, 2011. Source statement: All employees handling food should wash their hands properly: z before preparing food z after touching raw food or materials, specially meat/poultry or eggs Source statement: High standards of personal hygiene should be maintained.

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “All employees handling food should wash their hands properly: z before preparing food z after touching raw food or materials, specially meat/poultry or eggs”
- “High standards of personal hygiene should be maintained.”

Source passage excerpt

5. Cross-contamination Following should be done to avoid cross - contamination. z Raw food/ meat/poultry and ready-to-eat foods should be kept separate at all times. z Hands should be thoroughly washed after touching raw meat/poultry. z Work surfaces, chopping boards and equipments should be thoroughly cleaned before the preparing of food starts and after it has been used. z Separate chopping boards and knives for raw fruit/ vegetables/ meat/poultry and ready-to-eat food should be used. z Raw meat/poultry below ready-to-eat food should be kept in the fridge. z Separate fridge for raw meat/poultry should be kept. z Staff should be made aware how to avoid cross-contamination. III. PERSONAL HYGIENE 1. High standards of personal hygiene should be maintained. 2. All employees handling food should wash their hands properly: z before preparing food z after touching raw food or materials, specially meat/poultry or eggs

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about III. PERSONAL HYGIENE?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on III. PERSONAL HYGIENE?
- Which source pages support an answer about III. PERSONAL HYGIENE?

RAG-153 Food-handler hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 52 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-handler hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: (5) All foods during transportation must be kept covered and in such a way as to limit pathogen growth or toxin formation by controlling time of transportation, exposure, temperature control and using safe water for cleaning etc. Source statement: (2) Time required for transportation should...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(5) All foods during transportation must be kept covered and in such a way as to limit pathogen growth or toxin formation by controlling...”
- “(2) Time required for transportation should be minimum, to avoid microbial proliferation.”

Source passage excerpt

116 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4] z after breaks z after using the toilet z after cleaning the raw materials or utensils / equipments 3. Street shoes inside the food preparation area should not be worn while handling & preparing food. 4. Food handlers should ensure careful food handling & protect food from environmental exposure. 5. Food handlesr should not handle soiled currency notes to avoid cross contamination. IV. TRANSPORTATION AND HANDLING OF FOOD (1) The vehicle/transportation being used to carry cooked/prepared/processed food should be clean and, dedicated for this purpose and should not carry anything else. (2) Time required for transportation should be minimum, to avoid microbial proliferation. (3) Cooked food served hot should be kept at a temperature of at least 600 C to prevent microbial growth. (4) Cooked food to be served cold should be kept below 50 C to prevent growth of pathogens. (5) All foods during transportation must be kept covered ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-handler hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-handler hygiene?
- Which source pages support an answer about Food-handler hygiene?

RAG-154 V. STORAGE

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 52 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on V. STORAGE as described in FSSAI Licensing Regulations, 2011. Source statement: It is very important to store food properly for the purpose of food safety. Source statement: Following things must be ensured: z Foods should be cooked, stored and kept at right temperature z Raw meat/poultry should be stored separately from other foods z Veg. foods...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “It is very important to store food properly for the purpose of food safety.”
- “Following things must be ensured: z Foods should be cooked, stored and kept at right temperature z Raw meat/poultry should be stored separately from...”

Source passage excerpt

V. STORAGE 1. It is very important to store food properly for the purpose of food safety. Following things must be ensured: z Foods should be cooked, stored and kept at right temperature z Raw meat/poultry should be stored separately from other foods z Veg. foods should always be stored above non-veg. foods and cooked foods above uncooked foods on separate racks in the refrigerator. z Storage temperature of frozen food should be -18oC or below. z Cooked food to be eaten later should be cooled quickly, and kept it in the refrigerator - It is advisable to put date on food packages or containers, using stickers or any other way of identification , before keeping inside the refrigerator to keep track of food prepared date wise and use accordingly to minimise wastage . z Storage instructions over food packaging should be followed. z Dried foods (such as grains and pulses) should be stored off the floor, ideally in sealable ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about V. STORAGE?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on V. STORAGE?
- Which source pages support an answer about V. STORAGE?

RAG-155 VI. SPECIAL REQUIREMENTS FOR HIGH RISK FOODS

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 52-53 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on VI. SPECIAL REQUIREMENTS FOR HIGH RISK FOODS as described in FSSAI Licensing Regulations, 2011. Source statement: (5) Juice concentrates must be checked regularly for any fungal growth / change of colour, odour or gas formation in the bottle. Source statement: SPECIAL REQUIREMENTS FOR HIGH RISK FOODS This section deals selectively with varieties of food which are...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(5) Juice concentrates must be checked regularly for any fungal growth / change of colour, odour or gas formation in the bottle.”
- “SPECIAL REQUIREMENTS FOR HIGH RISK FOODS This section deals selectively with varieties of food which are high risk as per HACCP and may need...”

Source passage excerpt

Stock rotation The rule for stock rotation is FIFO (first in, first out) to make sure that older food is used first. This will help to prevent wastage. VI. SPECIAL REQUIREMENTS FOR HIGH RISK FOODS This section deals selectively with varieties of food which are high risk as per HACCP and may need special attention. The type of foods covered here are as follows: 1. Cut fruits/salads, fresh juices and beverages (1) Fresh fruits /vegetables cut or juiced should be used immediately; however, short storage should be only under refrigeration in sanitized and properly covered vessels. (2) Water used in beverages should be potable. (3) Ice used should be made of potable water only. (4) Food or beverages should not be stored in the same container used to store the ice intended for consumption. (5) Juice concentrates must be checked regularly for any fungal growth / change of colour, odour or gas formation in the bottle. (6) Juice dispensing machine ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about VI. SPECIAL REQUIREMENTS FOR HIGH RISK FOODS?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on VI. SPECIAL REQUIREMENTS...
- Which source pages support an answer about VI. SPECIAL REQUIREMENTS FOR HIGH RISK FOODS?

RAG-156 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 53 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: (5) Non-veg. products are cooked thoroughly (core temperature 750 C) for at least 15 seconds or an effective time/temperature control e.g. Source statement: Meat, poultry & fish products (1) Non veg. products/raw materials should be purchased (chilled products temperature should be at 50C or below...

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(5) Non-veg. products are cooked thoroughly (core temperature 750 C) for at least 15 seconds or an effective time/temperature control e.g.”
- “Meat, poultry & fish products (1) Non veg. products/raw materials should be purchased (chilled products temperature should be at 50C or below and frozen...”

Source passage excerpt

2. Confectionery products (1) Prepared confectionery products should be kept in airtight containers and displayed hygienically. (2) Cream to be used should be stored covered under refrigeration. (3) Finished products should be refrigerated with proper labels indicating date of expiry. (4) Products should be properly wrapped/ packaged after proper cooling. 3. Meat, poultry & fish products (1) Non veg. products/raw materials should be purchased (chilled products temperature should be at 50C or below and frozen products at -18 deg C or below) from authorized/ licensed slaughter houses/vendors. (2) Processing area should be cleaned and disinfected promptly. (3) Preparation and processing of meat, poultry and marine products should be separate. (4) Non-veg. products are washed with potable water before use. (5) Non-veg. products are cooked thoroughly (core temperature 750 C) for at least 15 seconds or an effective time/temperature control e.g. 65 0C for 10 minutes, 70 0C for 2 minutes. (6) Non-veg. products should be stored covered in refrigerator below ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-157 Food-handler hygiene

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 53 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-handler hygiene as described in FSSAI Licensing Regulations, 2011. Source statement: (5) Only permitted food additives should be used, if required, and be added in recommended quantities only. Source statement: (6) Spoiled products should be discarded immediately after confirmation of spoilage (change in colour/ texture/ odour).
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(5) Only permitted food additives should be used, if required, and be added in recommended quantities only.”
- “(6) Spoiled products should be discarded immediately after confirmation of spoilage (change in colour/ texture/ odour).”

Source passage excerpt

4. Water based chutneys, sauces etc. (1) All fruits/vegetables should be washed properly before processing. (2) Clean and disinfected chopping boards/grinding stone/machine should be used. (3) Personal hygiene of food handlers need to be ensured. (4) Water used in the chutneys should be safe and potable. (5) Only permitted food additives should be used, if required, and be added in recommended quantities only. (6) Spoiled products should be discarded immediately after confirmation of spoilage (change in colour/ texture/ odour). (7) Sauces and chutneys should be stored in glass/food grade plastic containers with proper lids. (8) Clean and intact containers should be used for storing sauces and chutneys. (9) Sauces and chutneys should be stored in refrigerator when not in use. (10) Perishable/uncooked chutneys should be consumed immediately.

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-handler hygiene?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-handler hygiene?
- Which source pages support an answer about Food-handler hygiene?

RAG-158 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 53-54 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (2) Food should be consumed or served for consumption within 4 hours of reheating. Source statement: Foods transported to point of sale from the point of cooking (1) Food should be reheated more than 740 C before consumption.

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(2) Food should be consumed or served for consumption within 4 hours of reheating.”
- “Foods transported to point of sale from the point of cooking (1) Food should be reheated more than 740 C before consumption.”

Source passage excerpt

5. Foods transported to point of sale from the point of cooking (1) Food should be reheated more than 740 C before consumption. (2) Food should be consumed or served for consumption within 4 hours of reheating. 6. Foods with Gravy (1) Food products should not be stored at room temperature for more than 2 hours during display or sale. 118 THE GAZETTE OF INDIA : EXTRAORDINARY [PART III—SEC. 4]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-159 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 54 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (2) For prolonged storage, foods should be stored in refrigerators or kept for hot holding at or above 60°C. Source statement: (3) No water should be added after cooking/reheating/boiling.
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(2) For prolonged storage, foods should be stored in refrigerators or kept for hot holding at or above 60°C.”
- “(3) No water should be added after cooking/reheating/boiling.”

Source passage excerpt

(2) For prolonged storage, foods should be stored in refrigerators or kept for hot holding at or above 60°C. (3) No water should be added after cooking/reheating/boiling.

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-160 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 54 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (3) Use of oils with high trans fats (like vanaspati) should be avoided as far as possible. Source statement: Fried Foods (1) Good quality / branded oils/fats should be used for food preparation, frying etc.
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(3) Use of oils with high trans fats (like vanaspati) should be avoided as far as possible.”
- “Fried Foods (1) Good quality / branded oils/fats should be used for food preparation, frying etc.”

Source passage excerpt

7. Fried Foods (1) Good quality / branded oils/fats should be used for food preparation, frying etc. (2) Use packaged oil only. (3) Use of oils with high trans fats (like vanaspati) should be avoided as far as possible. (4) Re-heating and reuse of oil should be avoided as far as possible. Avoid using leftover oil wherever possible.

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-161 Food-business registration

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 54 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Food-business registration as described in FSSAI Licensing Regulations, 2011. Source statement: (3) Garnishes etc., if added, should be prepared using fresh, thoroughly washed and freshly cut vegetables and used immediately. Source statement: Adding ingredients after cooking (1) Ingredients added to the cooked food should be thoroughly washed/ cleaned.

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “(3) Garnishes etc., if added, should be prepared using fresh, thoroughly washed and freshly cut vegetables and used immediately.”
- “Adding ingredients after cooking (1) Ingredients added to the cooked food should be thoroughly washed/ cleaned.”

Source passage excerpt

8. Adding ingredients after cooking (1) Ingredients added to the cooked food should be thoroughly washed/ cleaned. (2) After cooking or post cooked mixing, the food should be used immediately. (3) Garnishes etc., if added, should be prepared using fresh, thoroughly washed and freshly cut vegetables and used immediately. Reuse of cooked food is not recommended. z Potentially hazardous foods and high risk foods such as hollandaise sauce, refried beans, scrambled eggs and cut fruits are to be discarded. z All food at banquet setting that has been on display are to be discarded. z Food kept at more than 60°C during service may be reused, only by following the procedure indicated below: z never mix leftover with fresh product. If in doubt, throw out the product. z Reheat leftover food temperature to more than74°C

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Food-business registration?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Food-business registration?
- Which source pages support an answer about Food-business registration?

RAG-162 Potable water

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 54 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on Potable water as described in FSSAI Licensing Regulations, 2011. Source statement: Thawing-In Refrigerator z Items being thawed should be labelled with defrost date to indicate the beginning of 2nd shelf life. z Thaw food at 5°C or less. z Temperature controlled thawing is recommended for meat, poultry and fish. z Any other means of thawing apart...
Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

- “Thawing-In Refrigerator z Items being thawed should be labelled with defrost date to indicate the beginning of 2nd shelf life. z Thaw food at...”
- “Thawing In Running Water Items being thawed should be labelled with date and time. z Thawing in running water advisable shellfish and seafood. z...”

Source passage excerpt

9. Thawing of Frozen Products. Thawing-In Refrigerator z Items being thawed should be labelled with defrost date to indicate the beginning of 2nd shelf life. z Thaw food at 5°C or less. z Temperature controlled thawing is recommended for meat, poultry and fish. z Any other means of thawing apart from running water and microwave is not allowed. Thawing In Running Water Items being thawed should be labelled with date and time. z Thawing in running water advisable shellfish and seafood. z Thawing in running water should not exceed 90 minutes. z Ensure air break between tap and water. z Use sanitized food grade container. z Sink must not be used for other purposes during thawing z After thawing, product must be used within 12 hours. z Cold running water (from mains) should be at 15°C or less [F.No. 2-15015/30/2010]

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about Potable water?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Potable water?
- Which source pages support an answer about Potable water?

RAG-163 V.N. GAUR,

Source: Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011
Authority/date: Food Safety and Standards Authority of India (FSSAI), Ministry of Health and Family Welfare | Notification dated 1 August 2011
PDF page(s): 54 | Type: Regulation / Gazette notification

Source-derived abstract

This record focuses on V.N. GAUR, as described in FSSAI Licensing Regulations, 2011.

Source-status qualification: Historical base-text copy supplied; consolidation and later amendments are not established by this file alone.

Supporting source statements

Source passage excerpt

V.N. GAUR, Chief Executive Officer

RAG retrieval prompts

- What does FSSAI Licensing Regulations, 2011 state about V.N. GAUR,?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on V.N. GAUR,?
- Which source pages support an answer about V.N. GAUR,?

RAG-164 PUBLISHED BY AUTHORITY

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 1-2 | Type: Act of Parliament

Source-derived abstract

This record focuses on PUBLISHED BY AUTHORITY as described in Consumer Protection Act, 2019. Source statement: In this Act, unless the context otherwise requires,— (1) "advertisement" means any audio or visual publicity, representation, endorsement or pronouncement made by means of light, sound, smoke, gas, print, electronic media, internet or website and includes any notice, circular, label, wrapper, invoice or such...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “In this Act, unless the context otherwise requires,— (1) "advertisement" means any audio or visual publicity, representation, endorsement or pronouncement made by means of...”
- “(4) Save as otherwise expressly provided by the Central Government, by notification, this Act shall apply to all goods and services.”

Source passage excerpt

EXTRAORDINARY PART II — Section 1 izkf/kdkj ls izdkf'kr PUBLISHED BY AUTHORITY No. 54] NEW DELHI, FRIDAY, AUGUST 9, 2019/SHRAVANA 18, 1941 (SAKA) bl Hkkx esa fHkUu i`"B la[;k nh tkrh gS ftlls fd ;g vyx ladyu ds :i esa j[kk tk ldsA Separate paging is given to this Part in order that it may be filed as a separate compilation. MINISTRY OF LAW AND JUSTICE (Legislative Department) New Delhi, the 9th August, 2019/Shravana 18, 1941 (Saka) The following Act of Parliament received the assent of the President on the 9th August, 2019, and is hereby published for general information:— THE CONSUMER PROTECTION ACT, 2019 NO. 35 OF 2019 [9th August, 2019.] An Act to provide for protection of the interests of consumers and for the said purpose, to establish authorities for timely and effective administration and settlement of consumers' disputes and for matters connected therewith or incidental thereto. BE it enacted by Parliament in the Seventieth Year of the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about PUBLISHED BY AUTHORITY?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on PUBLISHED BY AUTHORITY?
- Which source pages support an answer about PUBLISHED BY AUTHORITY?

RAG-165 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 2 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (2) "appropriate laboratory" means a laboratory or an organisation— (i) recognised by the Central Government; or (ii) recognised by a State Government, subject to such guidelines as may be issued by the Central Government in this behalf; or (iii) established by or under...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(2) "appropriate laboratory" means a laboratory or an organisation— (i) recognised by the Central Government; or (ii) recognised by a State Government, subject to...”

Source passage excerpt

(2) "appropriate laboratory" means a laboratory or an organisation— (i) recognised by the Central Government; or (ii) recognised by a State Government, subject to such guidelines as may be issued by the Central Government in this behalf; or (iii) established by or under any law for the time being in force, which is maintained, financed or aided by the Central Government or a State Government for carrying out analysis or test of any goods with a view to determining whether such goods suffer from any defect; (3) "branch office" means— (i) any office or place of work described as a branch by the establishment; or (ii) any establishment carrying on either the same or substantially the same activity carried on by the head office of the establishment; (4) "Central Authority" means the Central Consumer Protection Authority established under section 10; (5) "complainant" means— (i) a consumer; or (ii) any voluntary consumer association registered under any law for the time being ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
• Which source pages support an answer about Central Consumer Protection Authority?

RAG-166 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 3

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 2-3 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 3 as described in Consumer Protection Act, 2019. Source statement: (a) fixed by or under any law for the time being in force; or SEC.

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(a) fixed by or under any law for the time being in force; or SEC.”

Source passage excerpt

(a) fixed by or under any law for the time being in force; or SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 3 (b) displayed on the goods or any package containing such goods; or (c) displayed on the price list exhibited by him by or under any law for the time being in force; or (d) agreed between the parties; (v) the goods, which are hazardous to life and safety when used, are being offered for sale to the public— (a) in contravention of standards relating to safety of such goods as required to be complied with, by or under any law for the time being in force; (b) where the trader knows that the goods so offered are unsafe to the public; (vi) the services which are hazardous or likely to be hazardous to life and safety of the public when used, are being offered by a person who provides any service and who knows it to be injurious ...
[excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 3?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 3?

RAG-167 Consumer rights

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 3-4 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer rights as described in Consumer Protection Act, 2019. Source statement: Explanation.—For the purposes of this clause,— (a) the expression "commercial purpose" does not include use by a person of goods bought and used by him exclusively for the purpose of earning his livelihood, by means of self-employment; (b) the expressions "buys any goods" and "hires...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “Explanation.—For the purposes of this clause,— (a) the expression "commercial purpose" does not include use by a person of goods bought and used by...”

Source passage excerpt

Explanation.—For the purposes of this clause,— (a) the expression "commercial purpose" does not include use by a person of goods bought and used by him exclusively for the purpose of earning his livelihood, by means of self-employment; (b) the expressions "buys any goods" and "hires or avails any services" includes offline or online transactions through electronic means or by teleshopping or direct selling or multi-level marketing; (8) "consumer dispute" means a dispute where the person against whom a complaint has been made, denies or disputes the allegations contained in the complaint; (9) "consumer rights" includes,— (i) the right to be protected against the marketing of goods, products or services which are hazardous to life and property; (ii) the right to be informed about the quality, quantity, potency, purity, standard and price of goods, products or services, as the case may be, so as to protect the consumer against unfair trade practices; 4 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (iii) ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Consumer rights?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer rights?
• Which source pages support an answer about Consumer rights?

RAG-168 Consumer and service definitions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 4-5 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer and service definitions as described in Consumer Protection Act, 2019. Source statement: (i) any act of negligence or omission or commission by such person which causes loss or injury to the consumer; and (ii) deliberate withholding of relevant information by such person to the consumer; (12) "design", in relation to a product, means the intended...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(i) any act of negligence or omission or commission by such person which causes loss or injury to the consumer; and (ii) deliberate withholding...”

Source passage excerpt

(i) any act of negligence or omission or commission by such person which causes loss or injury to the consumer; and (ii) deliberate withholding of relevant information by such person to the consumer; (12) "design", in relation to a product, means the intended or known physical and material characteristics of such product and includes any intended or known formulation or content of such product and the usual result of the intended manufacturing or other process used to produce such product; (13) "direct selling" means marketing, distribution and sale of goods or provision of services through a network of sellers, other than through a permanent retail location; (14) "Director-General" means the Director-General appointed under sub-section (2) of section 15; (15) "District Commission" means a District Consumer Disputes Redressal Commission established under sub-section (1) of section 28; (16) "e-commerce" means buying or selling of goods or services including digital products over digital or electronic network; (17) "electronic service provider" means a person ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Consumer and service definitions?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer and service...
• Which source pages support an answer about Consumer and service definitions?

RAG-169 Product liability

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 5 | Type: Act of Parliament

Source-derived abstract

This record focuses on Product liability as described in Consumer Protection Act, 2019. Source statement: Act, 2006; (22) "harm", in relation to a product liability, includes— (i) damage to any property, other than the product itself; (ii) personal injury, illness or death; (iii) mental agony or emotional distress attendant to personal injury or illness or damage to property; or (iv)...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “Act, 2006; (22) "harm", in relation to a product liability, includes— (i) damage to any property, other than the product itself; (ii) personal injury...”
• “(20) "express warranty" means any material statement, affirmation of fact, promise or description relating to a product or service warranting that it conforms to...”

Source passage excerpt

(20) "express warranty" means any material statement, affirmation of fact, promise or description relating to a product or service warranting that it conforms to such material statement, affirmation, promise or description and includes any sample or model of a product warranting that the whole of such product conforms to such sample or model; (21) "goods" means every kind of movable property and includes "food" as defined in clause (j) of sub-section (1) of section 3 of the Food Safety and Standards 34 of 2006. Act, 2006; (22) "harm", in relation to a product liability, includes— (i) damage to any property, other than the product itself; (ii) personal injury, illness or death; (iii) mental agony or emotional distress attendant to personal injury or illness or damage to property; or (iv) any loss of consortium or services or other loss resulting from a harm referred to in sub-clause (i) or sub-clause (ii) or sub-clause (iii), but shall not include any harm caused ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Product liability?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Product liability?
• Which source pages support an answer about Product liability?

RAG-170 Product liability

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 5-6 | Type: Act of Parliament

Source-derived abstract

This record focuses on Product liability as described in Consumer Protection Act, 2019. Source statement: (vi) any corporation, company or a body of individuals whether incorporated or not; (vii) any artificial juridical person, not falling within any of the preceding sub-clauses; (32) "prescribed" means prescribed by rules made by the Central Government, or, as the case may be, the State...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(vi) any corporation, company or a body of individuals whether incorporated or not; (vii) any artificial juridical person, not falling within any of the...”

Source passage excerpt

(ii) gives a false guarantee to, or is likely to mislead the consumers as to the nature, substance, quantity or quality of such product or service; or (iii) conveys an express or implied representation which, if made by the manufacturer or seller or service provider thereof, would constitute an unfair trade practice; or (iv) deliberately conceals important information; (29) "National Commission" means the National Consumer Disputes Redressal Commission established under sub-section (1) of section 53; 6 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (30) "notification" means a notification published in the Official Gazette and the term "notify" shall be construed accordingly; (31) "person" includes— (i) an individual; (ii) a firm whether registered or not; (iii) a Hindu undivided family; (iv) a co-operative society; (v) an association of persons whether registered under the Societies Registration Act, 1860 or not; 21 of 1860. (vi) any corporation, company or a body of individuals whether incorporated or not; (vii) any artificial juridical person, not ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Product liability?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Product liability?
• Which source pages support an answer about Product liability?

RAG-171 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 7

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 6-7 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 7 as described in Consumer Protection Act, 2019. Source statement: (36) "product manufacturer" means a person who— (i) makes any product or parts thereof; or (ii) assembles parts thereof made by others; or (iii) puts or causes to be put his own mark on any products made by any...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(36) "product manufacturer" means a person who— (i) makes any product or parts thereof; or (ii) assembles parts thereof made by others; or (iii)...”

Source passage excerpt

(36) "product manufacturer" means a person who— (i) makes any product or parts thereof; or (ii) assembles parts thereof made by others; or (iii) puts or causes to be put his own mark on any products made by any other person; or (iv) makes a product and sells, distributes, leases, installs, prepares, packages, labels, markets, repairs, maintains such product or is otherwise involved in placing such product for commercial purpose; or (v) designs, produces, fabricates, constructs or re-manufactures any product before its sale; or (vi) being a product seller of a product, is also a manufacturer of such product; (37) "product seller", in relation to a product, means a person who, in the course of business, imports, sells, distributes, leases, installs, prepares, packages, labels, markets, repairs, maintains, or otherwise is involved in placing such product for commercial purpose and includes— (i) a manufacturer who is also a product seller; or SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 7 (ii) a ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 7?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 7?

RAG-172 Consumer and service definitions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 7 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer and service definitions as described in Consumer Protection Act, 2019. Source statement: (39) "regulations" means the regulations made by the National Commission, or as the case may be, the Central Authority; (40) "Regulator" means a body or any authority established under any other law for the time being in force; (41) "restrictive trade practice" means...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(39) "regulations" means the regulations made by the National Commission, or as the case may be, the Central Authority; (40) "Regulator" means a body...”

Source passage excerpt

(39) "regulations" means the regulations made by the National Commission, or as the case may be, the Central Authority; (40) "Regulator" means a body or any authority established under any other law for the time being in force; (41) "restrictive trade practice" means a trade practice which tends to bring about manipulation of price or its conditions of delivery or to affect flow of supplies in the market relating to goods or services in such a manner as to impose on the consumers unjustified costs or restrictions and shall include— (i) delay beyond the period agreed to by a trader in supply of such goods or in providing the services which has led or is likely to lead to rise in the price; (ii) any trade practice which requires a consumer to buy, hire or avail of any goods or, as the case may be, services as condition precedent for buying, hiring or availing of other goods or services; (42) ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Consumer and service definitions?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer and service...
• Which source pages support an answer about Consumer and service definitions?

RAG-173 Consumer and service definitions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 8 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer and service definitions as described in Consumer Protection Act, 2019. Source statement: 8 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— cause significant change in the rights of such consumer, including the following, namely:— (i) requiring manifestly excessive security deposits to be given by a consumer for the performance of contractual obligations; or (ii) imposing any...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “8 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— cause significant change in the rights of such consumer, including the following, namely:— (i) requiring manifestly…”

Source passage excerpt

8 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— cause significant change in the rights of such consumer, including the following, namely:— (i) requiring manifestly excessive security deposits to be given by a consumer for the performance of contractual obligations; or (ii) imposing any penalty on the consumer, for the breach of contract thereof which is wholly disproportionate to the loss occurred due to such breach to the other party to the contract; or (iii) refusing to accept early repayment of debts on payment of applicable penalty; or (iv) entitling a party to the contract to terminate such contract unilaterally, without reasonable cause; or (v) permitting or has the effect of permitting one party to assign the contract to the detriment of the other party who is a consumer, without his consent; or (vi) imposing on the consumer any unreasonable charge, obligation or condition which puts such consumer to disadvantage; (47) "unfair trade practice" means a trade practice which, for the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer and service definitions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer and service...
- Which source pages support an answer about Consumer and service definitions?

RAG-174 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 9

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 8-9 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 9 as described in Consumer Protection Act, 2019. Source statement: (g) gives to the public any warranty or guarantee of the performance, efficacy or length of life of a product or of any goods that is not based on an adequate or proper test thereof: Provided that where a...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(g) gives to the public any warranty or guarantee of the performance, efficacy or length of life of a product or of any goods...”
- “Explanation.—For the purposes of this sub-clause, a statement that is,— (A) expressed on an article offered or displayed for sale, or on its wrapper...”

Source passage excerpt

(g) gives to the public any warranty or guarantee of the performance, efficacy or length of life of a product or of any goods that is not based on an adequate or proper test thereof: Provided that where a defence is raised to the effect that such warranty or guarantee is based on adequate or proper test, the burden of proof of such defence shall lie on the person raising such defence; (h) makes to the public a representation in a form that purports to be— (A) a warranty or guarantee of a product or of any goods or services; or (B) a promise to replace, maintain or repair an article or any part thereof or to repeat or continue a service until it has achieved a specified result, SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 9 if such purported warranty or guarantee or promise is materially misleading or if there is no reasonable prospect that such warranty, guarantee or ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 9?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 9?

RAG-175 Misleading advertisements

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 9 | Type: Act of Parliament

Source-derived abstract

This record focuses on Misleading advertisements as described in Consumer Protection Act, 2019. Source statement: (C) contained in or on anything that is sold, sent, delivered, transmitted or in any other manner whatsoever made available to a member of the public, shall be deemed to be a statement made to the public by, and only by, the person who had...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(C) contained in or on anything that is sold, sent, delivered, transmitted or in any other manner whatsoever made available to a member of...”
- “Explanation.—For the purpose of this sub-clause, "bargain price" means,— (A) a price that is stated in any advertisement to be a bargain price, by...”

Source passage excerpt

(C) contained in or on anything that is sold, sent, delivered, transmitted or in any other manner whatsoever made available to a member of the public, shall be deemed to be a statement made to the public by, and only by, the person who had caused the statement to be so expressed, made or contained; (ii) permitting the publication of any advertisement, whether in any newspaper or otherwise, including by way of electronic record, for the sale or supply at a bargain price of goods or services that are not intended to be offered for sale or supply at the bargain price, or for a period that is, and in quantities that are, reasonable, having regard to the nature of the market in which the business is carried on, the nature and size of business, and the nature of the advertisement. Explanation.—For the purpose of this sub-clause, "bargain price" means,— (A) a price that is stated in any advertisement to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Misleading advertisements?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Misleading advertisements?
- Which source pages support an answer about Misleading advertisements?

RAG-176 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 10 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (1) The Central Government shall, by notification, establish with effect from such Consumer date as it may specify in that notification, the Central Consumer Protection Council to be Protection Council. known as the Central Council. Source statement: (2) The Central Council shall be...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The Central Government shall, by notification, establish with effect from such Consumer date as it may specify in that notification, the Central Consumer...”
- “(2) The Central Council shall be an advisory council and consist of the following members, namely:—”

Source passage excerpt

10 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— Explanation.—For the purpose of this sub-clause, the participants of a scheme shall be deemed to have been informed of the final results of the scheme where such results are within a reasonable time published, prominently in the same newspaper in which the scheme was originally advertised; (iv) permitting the sale or supply of goods intended to be used, or are of a kind likely to be used by consumers, knowing or having reason to believe that the goods do not comply with the standards prescribed by the competent authority relating to performance, composition, contents, design, constructions, finishing or packaging as are necessary to prevent or reduce the risk of injury to the person using the goods; (v) permitting the hoarding or destruction of goods, or refusal to sell the goods or to make them available for sale or to provide any service, if such hoarding or destruction or refusal raises or tends ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-177 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 11

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 10-11 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 11 as described in Consumer Protection Act, 2019. Source statement: The objects of every State Council shall be to render advice on promotion and Objects of protection of consumer rights under this Act within the State. Source statement: The objects of the Central Council shall be to render advice...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The objects of every State Council shall be to render advice on promotion and Objects of protection of consumer rights under this Act within...”
- “The objects of the Central Council shall be to render advice on promotion and Central protection of the consumers' rights under this Act.”

Source passage excerpt

(a) the Minister-in-charge of the Department of Consumer Affairs in the Central Government, who shall be the Chairperson; and (b) such number of other official or non-official members representing such interests as may be prescribed. Procedure for 4. (1) The Central Council shall meet as and when necessary, but at least one meeting meetings of of the Council shall be held every year. Central Council. (2) The Central Council shall meet at such time and place as the Chairperson may think fit and shall observe such procedure in regard to the transaction of its business as may be prescribed. Objects of 5. The objects of the Central Council shall be to render advice on promotion and Central protection of the consumers' rights under this Act. Council. SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 11 6. (1) Every State Government shall, by notification, establish with effect from such State date as it may specify in such notification, a State Consumer Protection ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 11?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 11?

RAG-178

CHAPTER III

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 11-12 | Type: Act of Parliament

Source-derived abstract

This record focuses on CHAPTER III as described in Consumer Protection Act, 2019. Source statement: The objects of every District Council shall be to render advice on promotion and Objects of Districtprotection of consumer rights under this Act within the district. Source statement: (3) The District Council shall meet as and when necessary but not less than two meetings shall...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The objects of every District Council shall be to render advice on promotion and Objects of Districtprotection of consumer rights under this Act within...”
- “(3) The District Council shall meet as and when necessary but not less than two meetings shall be held every year.”

Source passage excerpt

8. (1) The State Government shall, by notification, establish for every District with District effect from such date as it may specify in such notification, a District Consumer Protection Consumer Protection Council to be known as the District Council. Council. (2) The District Council shall be an advisory council and consist of the following members, namely:— (a) the Collector of the district (by whatever name called), who shall be the Chairperson; and (b) such number of other official and non-official members representing such interests as may be prescribed. (3) The District Council shall meet as and when necessary but not less than two meetings shall be held every year. (4) The District Council shall meet at such time and place within the district as the Chairperson may think fit and shall observe such procedure in regard to the transaction of its business as may be prescribed. 9. The objects of every District Council shall be to render advice on promotion ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about CHAPTER III?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on CHAPTER III?
- Which source pages support an answer about CHAPTER III?

RAG-179 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 12 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (1) The Central Authority shall regulate the procedure for transaction of its business Central and allocation of its business amongst the Chief Commissioner and Commissioners as may Authority. be specified by regulations. Source statement: (2) The Chief Commissioner shall have the powers of...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The Central Authority shall regulate the procedure for transaction of its business Central and allocation of its business amongst the Chief Commissioner and...”
- “(2) The Chief Commissioner shall have the powers of general superintendence, direction and control in respect of all administrative matters of the Central Authority:”

Source passage excerpt

Qualifications, 11. The Central Government may, by notification, make rules to provide for the method of qualifications for appointment, method of recruitment, procedure for appointment, term ofrecruitment, etc., of Chief office, salaries and allowances, resignation, removal and other terms and conditions of the Commissioner service of the Chief Commissioner and Commissioners of the Central Authority. and Commissioners. Vacancy, etc., 12. No act or proceeding of the Central Authority shall be invalid merely by reason of— not to invalidate (a) any vacancy in, or any defect in the constitution of, the Central Authority; or proceedings of Central (b) any defect in the appointment of a person acting as the Chief Commissioner Authority. or as a Commissioner; or (c) any irregularity in the procedure of the Central Authority not affecting the merits of the case. Appointment 13. (1) The Central Government shall provide the Central Authority such number of of officers, officers and other employees as it considers necessary for the efficient ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-180 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 13

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 12-13 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 13 as described in Consumer Protection Act, 2019. Source statement: The District Collector (by whatever name called) may, on a complaint or on a Power of reference made to him by the Central Authority or the Commissioner of a regional office, District Collector. inquire into or investigate complaints regarding...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The District Collector (by whatever name called) may, on a complaint or on a Power of reference made to him by the Central Authority...”
- “(3) Every Additional Director-General, Director, Joint Director, Deputy Director and Assistant Director shall exercise his powers, and discharge his functions, subject to the general...”

Source passage excerpt

Provided that the Chief Commissioner may delegate such of his powers relating to administrative matters of the Central Authority, as he may think fit, to any Commissioner (including Commissioner of a regional office) or any other officer of the Central Authority. Investigation 15. (1) The Central Authority shall have an Investigation Wing headed by a Director- Wing. General for the purpose of conducting inquiry or investigation under this Act as may be directed by the Central Authority. (2) The Central Government may appoint a Director-General and such number of Additional Director-General, Director, Joint Director, Deputy Director and Assistant Director, from amongst persons who have experience in investigation and possess such qualifications, in such manner, as may be prescribed. (3) Every Additional Director-General, Director, Joint Director, Deputy Director and Assistant Director shall exercise his powers, and discharge his functions, subject to the general control, supervision and direction of the Director-General. (4) The Director-General may delegate all or any of his powers ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 13?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 13?

RAG-181 Unfair trade practices

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 13 | Type: Act of Parliament

Source-derived abstract

This record focuses on Unfair trade practices as described in Consumer Protection Act, 2019. Source statement: (1) The Central Authority shall— Powers and functions of (a) protect, promote and enforce the rights of consumers as a class, and prevent Central violation of consumers rights under this Act; Authority. Source statement: A complaint relating to violation of consumer rights or unfair...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The Central Authority shall— Powers and functions of (a) protect, promote and enforce the rights of consumers as a class, and prevent Central...”
- “A complaint relating to violation of consumer rights or unfair trade practices or Complaints to false or misleading advertisements which are prejudicial to the...”

Source passage excerpt

17. A complaint relating to violation of consumer rights or unfair trade practices or Complaints to false or misleading advertisements which are prejudicial to the interests of consumers as a authorities. class, may be forwarded either in writing or in electronic mode, to any one of the authorities, namely, the District Collector or the Commissioner of regional office or the Central Authority. 18. (1) The Central Authority shall— Powers and functions of (a) protect, promote and enforce the rights of consumers as a class, and prevent Central violation of consumers rights under this Act; Authority. (b) prevent unfair trade practices and ensure that no person engages himself in unfair trade practices; (c) ensure that no false or misleading advertisement is made of any goods or services which contravenes the provisions of this Act or the rules or regulations made thereunder; (d) ensure that no person takes part in the publication of any advertisement which is false or misleading. (2) Without ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Unfair trade practices?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Unfair trade practices?
- Which source pages support an answer about Unfair trade practices?

RAG-182 Consumer rights

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 13-14 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer rights as described in Consumer Protection Act, 2019. Source statement: (1) The Central Authority may, after receiving any information or complaint or Central directions from the Central Government or of its own motion, conduct or cause to be conducted Authority to refer matter a preliminary inquiry as to whether there exists a prima facie case...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The Central Authority may, after receiving any information or complaint or Central directions from the Central Government or of its own motion, conduct…”
- “(3) For the purposes of investigation under sub-section (1), the Central Authority, the Director General or the District Collector may call upon a person…”

Source passage excerpt

(e) recommend adoption of international covenants and best international practices on consumer rights to ensure effective enforcement of consumer rights; (f) undertake and promote research in the field of consumer rights; (g) spread and promote awareness on consumer rights; (h) encourage non-Governmental organisations and other institutions working in the field of consumer rights to co-operate and work with consumer protection agencies; (i) mandate the use of unique and universal goods identifiers in such goods, as may be necessary, to prevent unfair trade practices and to protect consumers' interest; 14 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (j) issue safety notices to alert consumers against dangerous or hazardous or unsafe goods or services; (k) advise the Ministries and Departments of the Central and State Governments on consumer welfare measures; (l) issue necessary guidelines to prevent unfair trade practices and protect consumers' interest. Power of 19. (1) The Central Authority may, after receiving any information or complaint or Central directions from the … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer rights?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer rights?
- Which source pages support an answer about Consumer rights?

RAG-183 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 14 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (a) recalling of goods or withdrawal of services which are dangerous, hazardous or unsafe; (b) reimbursement of the prices of goods or services so recalled to purchasers of such goods or services; and (c) discontinuation of practices which are unfair and prejudicial to...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(a) recalling of goods or withdrawal of services which are dangerous, hazardous or unsafe; (b) reimbursement of the prices of goods or services so...”
- “Where the Central Authority is satisfied on the basis of investigation that there is Central sufficient evidence to show violation of consumer rights or...”

Source passage excerpt

Power of 20. Where the Central Authority is satisfied on the basis of investigation that there is Central sufficient evidence to show violation of consumer rights or unfair trade practice by a person, Authority to it may pass such order as may be necessary, including— recall goods, etc. (a) recalling of goods or withdrawal of services which are dangerous, hazardous or unsafe; (b) reimbursement of the prices of goods or services so recalled to purchasers of such goods or services; and (c) discontinuation of practices which are unfair and prejudicial to consumers' interest: Provided that the Central Authority shall give the person an opportunity of being heard before passing an order under this section. Power of 21. (1) Where the Central Authority is satisfied after investigation that any Central advertisement is false or misleading and is prejudicial to the interest of any consumer or is in Authority to contravention of consumer rights, it may, by order, issue directions to the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-184 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 15

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 15 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 15 as described in Consumer Protection Act, 2019. Source statement: (8) The Central Authority shall give the person an opportunity of being heard before an order under this section is passed. Source statement: (5) No endorser shall be liable to a penalty under sub-sections (2) and (3) if he...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(8) The Central Authority shall give the person an opportunity of being heard before an order under this section is passed.”
- “(5) No endorser shall be liable to a penalty under sub-sections (2) and (3) if he has exercised due diligence to verify the veracity...”

Source passage excerpt

SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 15 Provided that the Central Authority may, for every subsequent contravention, prohibit such endorser from making endorsement in respect of any product or service for a period which may extend to three years. (4) Where the Central Authority is satisfied after investigation that any person is found to publish, or is a party to the publication of, a misleading advertisement, it may impose on such person a penalty which may extend to ten lakh rupees. (5) No endorser shall be liable to a penalty under sub-sections (2) and (3) if he has exercised due diligence to verify the veracity of the claims made in the advertisement regarding the product or service being endorsed by him. (6) No person shall be liable to such penalty if he proves that he had published or arranged for the publication of such advertisement in the ordinary course of his business: Provided that no such defence shall be ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 15?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 15?

RAG-185 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 15-16 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (2) The provisions of the Code of Criminal Procedure, 1973, relating to search and seizure shall apply, as far as may be, for search and seizure under this Act. Source statement: (5) In the case of articles other than the articles referred to...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) The provisions of the Code of Criminal Procedure, 1973, relating to search and seizure shall apply, as far as may be, for search...”
- “(5) In the case of articles other than the articles referred to in sub-section (4), provisions contained in clause (c) of sub-section (2) of...”

Source passage excerpt

(a) enter at any reasonable time into any such premises and search for any document or record or article or any other form of evidence and seize such document, record, article or such evidence; (b) make a note or an inventory of such record or article; or (c) require any person to produce any record, register or other document or article. 2 of 1974. (2) The provisions of the Code of Criminal Procedure, 1973, relating to search and seizure shall apply, as far as may be, for search and seizure under this Act. (3) Every document, record or article seized under clause (a) of sub-section (1) or produced under clause (c) of that sub-section shall be returned to the person, from whom they were seized or who produced the same, within a period of twenty days of the date of such seizure or production, as the case may be, after copies thereof or extracts therefrom certified by that person, in ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-186 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 16 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (1) The Central Authority shall maintain proper accounts and other relevant records audit. and prepare an annual statement of accounts in such form and manner as may be prescribed in consultation with the Comptroller and Auditor-General of India. Source statement: (2) The accounts...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The Central Authority shall maintain proper accounts and other relevant records audit. and prepare an annual statement of accounts in such form and...”
- “(2) The accounts of the Central Authority shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified...”

Source passage excerpt

Grants by 25. The Central Government may, after due appropriation made by Parliament by law in Central this behalf, make to the Central Authority grants of such sums of money as that Government Government. may think fit for being utilised for the purposes of this Act. Accounts and 26. (1) The Central Authority shall maintain proper accounts and other relevant records audit. and prepare an annual statement of accounts in such form and manner as may be prescribed in consultation with the Comptroller and Auditor-General of India. (2) The accounts of the Central Authority shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the Central Authority to the Comptroller and Auditor-General of India. (3) The Comptroller and Auditor-General of India or any other person appointed by him in connection with the audit of the accounts of the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-187

CHAPTER IV

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 16-17 | Type: Act of Parliament

Source-derived abstract

This record focuses on CHAPTER IV as described in Consumer Protection Act, 2019. Source statement: (2) Each District Commission shall consist of— (a) a President; and (b) not less than two and not more than such number of members as may be prescribed, in consultation with the Central Government. Source statement: (1) The State Government shall, by notification, establish a...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) Each District Commission shall consist of— (a) a President; and (b) not less than two and not more than such number of members...”
- “(1) The State Government shall, by notification, establish a District Consumer of District Disputes Redressal Commission, to be known as the District Commission, in...”

Source passage excerpt

(2) A copy of the annual report received under sub-section (1) shall be laid, as soon as may be after it is received, before each House of Parliament. CHAPTER IV CONSUMER DISPUTES REDRESSAL COMMISSION Establishment 28. (1) The State Government shall, by notification, establish a District Consumer of District Disputes Redressal Commission, to be known as the District Commission, in each district of Consumer Disputes the State: Redressal Provided that the State Government may, if it deems fit, establish more than oneCommission. District Commission in a district. (2) Each District Commission shall consist of— (a) a President; and (b) not less than two and not more than such number of members as may be prescribed, in consultation with the Central Government. SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 17 29. The Central Government may, by notification, make rules to provide for the Qualifications, qualifications, method of recruitment, procedure for appointment, term of office, resignation etc., of and removal of the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about CHAPTER IV?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on CHAPTER IV?
- Which source pages support an answer about CHAPTER IV?

RAG-188 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 17 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (2) A complaint shall be instituted in a District Commission within the local limits of whose jurisdiction,— (a) the opposite party or each of the opposite parties, where there are more than one, at the time of the institution of the complaint, ordinarily resides or...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) A complaint shall be instituted in a District Commission within the local limits of whose jurisdiction,— (a) the opposite party or each of...”
- “(1) Subject to the other provisions of this Act, the District Commission shall have Jurisdiction of jurisdiction to entertain complaints where the value of...”

Source passage excerpt

(b) the President or a member of any other District Commission specified in that notification to exercise the powers and discharge the functions of the President or member of that District Commission also. 33. (1) The State Government shall provide the District Commission with such officers Officers and and other employees as may be required to assist the District Commission in the discharge other of its functions. employees of District (2) The officers and other employees of the District Commission shall discharge their Commission. functions under the general superintendence of the President of the District Commission. (3) The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the District Commission shall be such as may be prescribed. 34. (1) Subject to the other provisions of this Act, the District Commission shall have Jurisdiction of jurisdiction to entertain complaints where the value of the goods or services paid as District ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-189 Consumer and service definitions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 17-18 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer and service definitions as described in Consumer Protection Act, 2019. Source statement: (2) Every complaint filed under sub-section (1) shall be accompanied with such fee and payable in such manner, including electronic form, as may be prescribed. Source statement: Explanation.—For the purposes of this sub-section, "recognised consumer association" means any voluntary consumer association registered under...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) Every complaint filed under sub-section (1) shall be accompanied with such fee and payable in such manner, including electronic form, as may be...”
- “Explanation.—For the purposes of this sub-section, "recognised consumer association" means any voluntary consumer association registered under any law for the time being in force.”

Source passage excerpt

(d) the complainant resides or personally works for gain. 18 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (3) The District Commission shall ordinarily function in the district headquarters and may perform its functions at such other place in the district, as the State Government may, in consultation with the State Commission, notify in the Official Gazette from time to time. Manner in 35. (1) A complaint, in relation to any goods sold or delivered or agreed to be sold or which delivered or any service provided or agreed to be provided, may be filed with a District complaint shall be made. Commission by— (a) the consumer,— (i) to whom such goods are sold or delivered or agreed to be sold or delivered or such service is provided or agreed to be provided; or (ii) who alleges unfair trade practice in respect of such goods or service; (b) any recognised consumer association, whether the consumer to whom such goods are sold ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer and service definitions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer and service...
- Which source pages support an answer about Consumer and service definitions?

RAG-190 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 18-19 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 as described in Consumer Protection Act, 2019. Source statement: (3) Where the District Commission does not decide the issue of admissibility of the complaint within the period so specified, it shall be deemed to have been admitted. Source statement: (2) On receipt of a complaint made under section...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(3) Where the District Commission does not decide the issue of admissibility of the complaint within the period so specified, it shall be deemed...”
- “(2) On receipt of a complaint made under section 35, the District Commission may, by order, admit the complaint for being proceeded with or...”

Source passage excerpt

Proceedings 36. (1) Every proceeding before the District Commission shall be conducted by the before President of that Commission and atleast one member thereof, sitting together: District Commission. Provided that where a member, for any reason, is unable to conduct a proceeding till it is completed, the President and the other member shall continue the proceeding from the stage at which it was last heard by the previous member. (2) On receipt of a complaint made under section 35, the District Commission may, by order, admit the complaint for being proceeded with or reject the same: Provided that a complaint shall not be rejected under this section unless an opportunity of being heard has been given to the complainant: Provided further that the admissibility of the complaint shall ordinarily be decided within twenty-one days from the date on which the complaint was filed. (3) Where the District Commission does not decide the issue of admissibility of the complaint within the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19?

RAG-191 Complaint eligibility

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 19 | Type: Act of Parliament

Source-derived abstract

This record focuses on Complaint eligibility as described in Consumer Protection Act, 2019. Source statement: (2) Where the complaint relates to any goods, the District Commission shall,— (a) refer a copy of the admitted complaint, within twenty-one days from the date of its admission to the opposite party mentioned in the complaint directing him to give his version of the...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(2) Where the complaint relates to any goods, the District Commission shall,— (a) refer a copy of the admitted complaint, within twenty-one days from...”

Source passage excerpt

(2) Where the complaint relates to any goods, the District Commission shall,— (a) refer a copy of the admitted complaint, within twenty-one days from the date of its admission to the opposite party mentioned in the complaint directing him to give his version of the case within a period of thirty days or such extended period not exceeding fifteen days as may be granted by it; (b) if the opposite party on receipt of a complaint referred to him under clause (a) denies or disputes the allegations contained in the complaint, or omits or fails to take any action to represent his case within the time given by the District Commission, proceed to settle the consumer dispute in the manner specified in clauses (c) to (g); (c) if the complaint alleges a defect in the goods which cannot be determined without proper analysis or test of the goods, obtain a sample of the goods from the complainant, seal it and ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Complaint eligibility?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Complaint eligibility?
• Which source pages support an answer about Complaint eligibility?

RAG-192 Complaint eligibility

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 19-20 | Type: Act of Parliament

Source-derived abstract

This record focuses on Complaint eligibility as described in Consumer Protection Act, 2019. Source statement: (f) if any of the parties disputes the correctness of the findings of the appropriate laboratory, or disputes the correctness of the methods of analysis or test adopted by the appropriate laboratory, require the opposite party or the complainant to submit in writing his objections...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(f) if any of the parties disputes the correctness of the findings of the appropriate laboratory, or disputes the correctness of the methods of...”

Source passage excerpt

(f) if any of the parties disputes the correctness of the findings of the appropriate laboratory, or disputes the correctness of the methods of analysis or test adopted by the appropriate laboratory, require the opposite party or the complainant to submit in writing his objections with regard to the report made by the appropriate laboratory; (g) give a reasonable opportunity to the complainant as well as the opposite party of being heard as to the correctness or otherwise of the report made by the appropriate laboratory and also as to the objection made in relation thereto under clause (f) and issue an appropriate order under section 39. (3) The District Commission shall, if the complaint admitted by it under sub-section (2) of section 36 relates to goods in respect of which the procedure specified in sub-section (2) cannot be followed, or if the complaint relates to any services,— (a) refer a copy of such complaint to the opposite party directing ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Complaint eligibility?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Complaint eligibility?
- Which source pages support an answer about Complaint eligibility?

RAG-193 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 20 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (6) Every complaint shall be heard by the District Commission on the basis of affidavit and documentary evidence placed on record: Provided that where an application is made for hearing or for examination of parties in person or through video conferencing, the District Commission may...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(6) Every complaint shall be heard by the District Commission on the basis of affidavit and documentary evidence placed on record: Provided that where...”
- “(7) Every complaint shall be disposed of as expeditiously as possible and endeavour shall be made to decide the complaint within a period of...”

Source passage excerpt

(c) decide the complaint on merits if the complainant fails to appear on the date of hearing. (4) For the purposes of sub-sections (2) and (3), the District Commission may, by order, require an electronic service provider to provide such information, documents or records, as may be specified in that order. (5) No proceedings complying with the procedure laid down in sub-sections (1) and (2) shall be called in question in any court on the ground that the principles of natural justice have not been complied with. (6) Every complaint shall be heard by the District Commission on the basis of affidavit and documentary evidence placed on record: Provided that where an application is made for hearing or for examination of parties in person or through video conferencing, the District Commission may, on sufficient cause being shown, and after recording its reasons in writing, allow the same. (7) Every complaint shall be disposed of as expeditiously as possible and endeavour ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-194 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 21

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 20-21 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 21 as described in Consumer Protection Act, 2019. Source statement: 1908 shall apply subject to the modification that every reference therein to a suit or decree shall be construed as a reference to a complaint or the order of the District Commission thereon. Source statement: (12) In the event...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “1908 shall apply subject to the modification that every reference therein to a suit or decree shall be construed as a reference to a...”
- “(12) In the event of death of a complainant who is a consumer or of the opposite party against whom the complaint has been...”

Source passage excerpt

(9) For the purposes of this section, the District Commission shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 while trying a 5 of 1908. suit in respect of the following matters, namely:— (a) the summoning and enforcing the attendance of any defendant or witness and examining the witness on oath; (b) requiring the discovery and production of any document or other material object as evidence; (c) receiving of evidence on affidavits; (d) the requisitioning of the report of the concerned analysis or test from the appropriate laboratory or from any other relevant source; (e) issuing of commissions for the examination of any witness, or document; and SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 21 (f) any other matter which may be prescribed by the Central Government. (10) Every proceeding before the District Commission shall be deemed to be a judicial 45 of 1860. proceeding within the meaning of sections ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 21?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 21?

RAG-195 Unfair trade practices

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 21 | Type: Act of Parliament

Source-derived abstract

This record focuses on Unfair trade practices as described in Consumer Protection Act, 2019. Source statement: (1) Where the District Commission is satisfied that the goods complained against Findings of suffer from any of the defects specified in the complaint or that any of the allegations District contained in the complaint about the services or any unfair trade practices, or...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(1) Where the District Commission is satisfied that the goods complained against Findings of suffer from any of the defects specified in the complaint...”

Source passage excerpt

39. (1) Where the District Commission is satisfied that the goods complained against Findings of suffer from any of the defects specified in the complaint or that any of the allegations District contained in the complaint about the services or any unfair trade practices, or claims for Commission. compensation under product liability are proved, it shall issue an order to the opposite party directing him to do one or more of the following, namely:— (a) to remove the defect pointed out by the appropriate laboratory from the goods in question; (b) to replace the goods with new goods of similar description which shall be free from any defect; (c) to return to the complainant the price, or, as the case may be, the charges paid by the complainant along with such interest on such price or charges as may be decided; (d) to pay such amount as may be awarded by it as compensation to the consumer for any loss ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Unfair trade practices?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Unfair trade practices?
• Which source pages support an answer about Unfair trade practices?

RAG-196 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 21-22 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: The District Commission shall have the power to review any of the order passed District by it if there is an error apparent on the face of the record, either of its own motion or on an Commission application made by any of the parties...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The District Commission shall have the power to review any of the order passed District by it if there is an error apparent on...”
- “(4) Every order made by the District Commission under sub-section (1) shall be signed by the President and the member who conducted the proceeding...”

Source passage excerpt

Provided that the minimum amount of sum so payable shall not be less than twenty-five per cent. of the value of such defective goods sold or service provided, as the case may be, to such consumers; 22 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (l) to issue corrective advertisement to neutralise the effect of misleading advertisement at the cost of the opposite party responsible for issuing such misleading advertisement; (m) to provide for adequate costs to parties; and (n) to cease and desist from issuing any misleading advertisement. (2) Any amount obtained under sub-section (1) shall be credited to such fund and utilised in such manner as may be prescribed. (3) In any proceeding conducted by the President and a member and if they differ on any point or points, they shall state the point or points on which they differ and refer the same to another member for hearing on such point or points and the opinion of the ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-197 Commission notify in the Official Gazette:

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 22-23 | Type: Act of Parliament

Source-derived abstract

This record focuses on Commission notify in the Official Gazette: as described in Consumer Protection Act, 2019. Source statement: (3) Each State Commission shall consist of— (a) a President; and (b) not less than four or not more than such number of members as may be prescribed in consultation with the Central Government. Source statement: Provided that the State Commission...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(3) Each State Commission shall consist of— (a) a President; and (b) not less than four or not more than such number of members...”
- “Provided that the State Commission may entertain an appeal after the expiry of the said period of forty-five days, if it is satisfied that...”

Source passage excerpt

Provided that the State Commission may entertain an appeal after the expiry of the said period of forty-five days, if it is satisfied that there was sufficient cause for not filing it within that period: Provided further that no appeal by a person, who is required to pay any amount in terms of an order of the District Commission, shall be entertained by the State Commission unless the appellant has deposited fifty per cent. of that amount in the manner as may be prescribed: Provided also that no appeal shall lie from any order passed under sub-section (1) of section 81 by the District Commission pursuant to a settlement by mediation under section 80. Establishment 42. (1) The State Government shall, by notification, establish a State Consumer of State Disputes Redressal Commission, to be known as the State Commission, in the State. Consumer Disputes (2) The State Commission shall ordinarily function at the State capital and perform its Redressal functions ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Commission notify in the Official Gazette:?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Commission notify in...
- Which source pages support an answer about Commission notify in the Official Gazette:?

RAG-198 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 23 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (a) to entertain— (i) complaints where the value of the goods or services paid as consideration, exceeds rupees one crore, but does not exceed rupees ten crore: Provided that where the Central Government deems it necessary so to do, it may prescribe such other value...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- "(a) to entertain— (i) complaints where the value of the goods or services paid as consideration, exceeds rupees one crore, but does not exceed..."
- "(1) The State Government shall determine the nature and categories of the officers Officers and and other employees required to assist the State Commission..."

Source passage excerpt

45. Any person appointed as President or, as the case may be, a member of the State Transitional Commission immediately before the commencement of this Act shall hold office as such, as provision. President or member, as the case may be, till the completion of his term. 46. (1) The State Government shall determine the nature and categories of the officers Officers and and other employees required to assist the State Commission in the discharge of its functions employees of and provide the Commission with such officers and other employees as it may think fit. State Commission. (2) The officers and other employees of the State Commission shall discharge their functions under the general superintendence of the President. (3) The salaries and allowances payable to and the other terms and conditions of service of, the officers and other employees of the State Commission shall be such as may be prescribed. 47. (1) Subject to the other provisions of this Act, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-199 Complaint eligibility

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 23-24 | Type: Act of Parliament

Source-derived abstract

This record focuses on Complaint eligibility as described in Consumer Protection Act, 2019. Source statement: (2) The jurisdiction, powers and authority of the State Commission may be exercised by Benches thereof, and a Bench may be constituted by the President with one or more members as the President may deem fit: Provided that the senior-most member shall preside over the...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) The jurisdiction, powers and authority of the State Commission may be exercised by Benches thereof, and a Bench may be constituted by the...”
- “(4) A complaint shall be instituted in a State Commission within the limits of whose jurisdiction,— (a) the opposite party or each of the...”

Source passage excerpt

(2) The jurisdiction, powers and authority of the State Commission may be exercised by Benches thereof, and a Bench may be constituted by the President with one or more members as the President may deem fit: Provided that the senior-most member shall preside over the Bench. (3) Where the members of a Bench differ in opinion on any point, the points shall be decided according to the opinion of the majority, if there is a majority, but if the members are equally divided, they shall state the point or points on which they differ, and make a reference to the President who shall either hear the point or points himself or refer the case for hearing on such point or points by one or more of the other members and such point or points shall 24 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— be decided according to the opinion of the majority of the members who have heard the case, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Complaint eligibility?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Complaint eligibility?
- Which source pages support an answer about Complaint eligibility?

RAG-200 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 24 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: On the application of the complainant or of its own motion, the State Commission cases. may, at any stage of the proceeding, transfer any complaint pending before a District Commission to another District Commission within the State if the interest of justice so requires. Source...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “On the application of the complainant or of its own motion, the State Commission cases. may, at any stage of the proceeding, transfer any...”
- “The State Commission shall have the power to review any of the order passed by State it if there is an error apparent on...”

Source passage excerpt

(c) the cause of action, wholly or in part, arises; or (d) the complainant resides or personally works for gain. Transfer of 48. On the application of the complainant or of its own motion, the State Commission cases. may, at any stage of the proceeding, transfer any complaint pending before a District Commission to another District Commission within the State if the interest of justice so requires. Procedure 49. (1) The provisions relating to complaints under sections 35, 36, 37, 38 and 39 shall, applicable to with such modifications as may be necessary, be applicable to the disposal of complaints by State the State Commission.Commission. (2) Without prejudice to the provisions of sub-section (1), the State Commission may also declare any terms of contract, which is unfair to any consumer, to be null and void. Review by 50. The State Commission shall have the power to review any of the order passed by State it if there is an error ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-201 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 25

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 24-25 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 25 as described in Consumer Protection Act, 2019. Source statement: An appeal filed before the State Commission or the National Commission, as the Hearing of case may be, shall be heard as expeditiously as possible and every endeavour shall be made appeal. to dispose of the appeal within a…
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “An appeal filed before the State Commission or the National Commission, as the Hearing of case may be, shall be heard as expeditiously as…”
- “(3) In an appeal involving a question of law, the memorandum of appeal shall precisely state the substantial question of law involved in the…”

Source passage excerpt

(2) Save as otherwise expressly provided under this Act or by any other law for the time being in force, an appeal shall lie to the National Commission from any order passed in appeal by any State Commission, if the National Commission is satisfied that the case involves a substantial question of law. (3) In an appeal involving a question of law, the memorandum of appeal shall precisely state the substantial question of law involved in the appeal. (4) Where the National Commission is satisfied that a substantial question of law is involved in any case, it shall formulate that question and hear the appeal on that question: SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 25 Provided that nothing in this sub-section shall be deemed to take away or abridge the power of the National Commission to hear, for reasons to be recorded in writing, the appeal on any other substantial question of law, if it is satisfied that the … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 25?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE…
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 25?

RAG-202 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 25 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (b) not less than four and not more than such number of members as may be prescribed. Source statement: (1) The Central Government shall, by notification, establish a National Consumer Establishment Disputes Redressal Commission, to be known as the National Commission. of National Consumer (2)...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(b) not less than four and not more than such number of members as may be prescribed.”
- “(1) The Central Government shall, by notification, establish a National Consumer Establishment Disputes Redressal Commission, to be known as the National Commission. of National...”

Source passage excerpt

Provided also that in the event of an appeal being disposed of after the period so specified, the State Commission or the National Commission, as the case may be, shall record in writing the reasons for the same at the time of disposing of the said appeal. 53. (1) The Central Government shall, by notification, establish a National Consumer Establishment Disputes Redressal Commission, to be known as the National Commission. of National Consumer (2) The National Commission shall ordinarily function at the National Capital Region Disputes and perform its functions at such other places as the Central Government may in consultation Redressal Commission. with the National Commission notify in the Official Gazette: Provided that the Central Government may, by notification, establish regional Benches of the National Commission, at such places, as it deems fit. 54. The National Commission shall consist of— Composition of National (a) a President; and Commission. (b) not less than four and not more than such number ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-203 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 25-26 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: The President and every other member appointed immediately before the provision. commencement of section 177 of the Finance Act, 2017 shall continue to be governed by the 7 of 2017. provisions of the Consumer Protection Act, 1986 and the rules made thereunder as if this...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The President and every other member appointed immediately before the provision. commencement of section 177 of the Finance Act, 2017 shall continue to be...”
- “(2) Neither the salary and allowances nor the other terms and conditions of service of President and members of the National Commission shall be...”

Source passage excerpt

(b) in the case of any other member, the age of sixty-seven years. (2) Neither the salary and allowances nor the other terms and conditions of service of President and members of the National Commission shall be varied to his disadvantage after his appointment. 26 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— Transitional 56. The President and every other member appointed immediately before the provision. commencement of section 177 of the Finance Act, 2017 shall continue to be governed by the 7 of 2017. provisions of the Consumer Protection Act, 1986 and the rules made thereunder as if this Act 68 of 1986. had not come into force. Other officers 57. (1) The Central Government shall provide, in consultation with the President of the and National Commission, such number of officers and other employees to assist the National employees of Commission in the discharge of its functions as it may think fit.National Commission. (2) The officers and other employees of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-204 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 26 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (1) The provisions relating to complaints under sections 35, 36, 37, 38 and 39 shall, applicable to with such modifications as may be considered necessary, be applicable to the disposal of National complaints by the National Commission. Source statement: (2) The jurisdiction, powers and authority...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The provisions relating to complaints under sections 35, 36, 37, 38 and 39 shall, applicable to with such modifications as may be considered...”
- “(2) The jurisdiction, powers and authority of the National Commission may be exercised by Benches thereof and a Bench may be constituted by the...”

Source passage excerpt

(b) to call for the records and pass appropriate orders in any consumer dispute which is pending before or has been decided by any State Commission where it appears to the National Commission that such State Commission has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity. (2) The jurisdiction, powers and authority of the National Commission may be exercised by Benches thereof and a Bench may be constituted by the President with one or more members as he may deem fit: Provided that the senior-most member of the Bench shall preside over the Bench. (3) Where the members of a Bench differ in opinion on any point, the points shall be decided according to the opinion of the majority, if there is a majority, but if the members are equally divided, they shall state the point ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-205 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 27

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 27 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 27 as described in Consumer Protection Act, 2019. Source statement: The National Commission shall have the power to review any of the order passed Review by by it if there is an error apparent on the face of the record, either of its own motion or on an National...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The National Commission shall have the power to review any of the order passed Review by by it if there is an error apparent...”
- “Where an order is passed by the National Commission ex parte, the aggrieved Power to set party may make an application to the Commission...”

Source passage excerpt

SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 27 60. The National Commission shall have the power to review any of the order passed Review by by it if there is an error apparent on the face of the record, either of its own motion or on an National Commission in application made by any of the parties within thirty days of such order. certain cases. 61. Where an order is passed by the National Commission ex parte, the aggrieved Power to set party may make an application to the Commission for setting aside such order. aside ex parte orders. 62. On the application of the complainant or of its own motion, the National Commission Transfer of may, at any stage of the proceeding, in the interest of justice, transfer any complaint pending cases. before the District Commission of one State to a District Commission of another State or before one State Commission to another State Commission. 63. When the office ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 27?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 27?

RAG-206 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 27 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (1) All notices, required by this Act to be served, shall be served by delivering or Service of transmitting a copy thereof by registered post acknowledgment due addressed to opposite notice, etc. party against whom complaint is made or to the complainant by speed post...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) All notices, required by this Act to be served, shall be served by delivering or Service of transmitting a copy thereof by registered...”
- “(2) Without prejudice to the provisions contained in sub-section (1), the notice required by this Act may be served on an electronic service provider...”

Source passage excerpt

65. (1) All notices, required by this Act to be served, shall be served by delivering or Service of transmitting a copy thereof by registered post acknowledgment due addressed to opposite notice, etc. party against whom complaint is made or to the complainant by speed post or by such courier service, approved by the District Commission, the State Commission or the National Commission, as the case may be, or by any other mode of transmission of documents including electronic means. (2) Without prejudice to the provisions contained in sub-section (1), the notice required by this Act may be served on an electronic service provider at the address provided by it on the electronic platform from where it provides its services as such and for this purpose, the electronic service provider shall designate a nodal officer to accept and process such notices. (3) When an acknowledgment or any other receipt purporting to be signed by the opposite party or his agent ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-207 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 27-28 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: Provided that where the notice was properly addressed, pre-paid and duly sent by registered post acknowledgment due, a declaration referred to in this sub-section shall be made notwithstanding the fact that the acknowledgment has been lost or misplaced, or for any other reason, has not...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “Provided that where the notice was properly addressed, pre-paid and duly sent by registered post acknowledgment due, a declaration referred to in this sub-section...”
- “Where the National Commission or the State Commission, as the case may be, on assist an application by a complainant or otherwise, is of...”

Source passage excerpt

Provided that where the notice was properly addressed, pre-paid and duly sent by registered post acknowledgment due, a declaration referred to in this sub-section shall be made notwithstanding the fact that the acknowledgment has been lost or misplaced, or for any other reason, has not been received by the District Commission, the State Commission or the National Commission, as the case may be, within thirty days from the date of issue of notice. 28 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (4) All notices required to be served on an opposite party or to complainant, as the case may be, shall be deemed to be sufficiently served, if addressed in the case of the opposite party, to the place where business or profession is carried on, and in case of the complainant, the place where such person actually and voluntarily resides. Experts to 66. Where the National Commission or the State Commission, as the case may be, on assist an ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-208 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 28 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (1) The District Commission, the State Commission or the National Commission period. shall not admit a complaint unless it is filed within two years from the date on which the cause of action has arisen. Source statement: (2) Notwithstanding anything contained in sub-section (1), a...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The District Commission, the State Commission or the National Commission period. shall not admit a complaint unless it is filed within two years…”
- “(2) Notwithstanding anything contained in sub-section (1), a complaint may be entertained after the period specified in sub-section (1), if the complainant satisfies the...”

Source passage excerpt

Provided further that no appeal by a person who is required to pay any amount in terms of an order of the National Commission shall be entertained by the Supreme Court unless that person has deposited fifty per cent. of that amount in the manner as may be prescribed. Finality of 68. Every order of a District Commission or the State Commission or the National orders. Commission, as the case may be, shall, if no appeal has been preferred against such order under the provisions of this Act, be final. Limitation 69. (1) The District Commission, the State Commission or the National Commission period. shall not admit a complaint unless it is filed within two years from the date on which the cause of action has arisen. (2) Notwithstanding anything contained in sub-section (1), a complaint may be entertained after the period specified in sub-section (1), if the complainant satisfies the District Commission, the State Commission or the National Commission, … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-209 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 29

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 28-29 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 29 as described in Consumer Protection Act, 2019. Source statement: (5) The State Commission shall furnish, periodically or as and when required to the State Government any information including pendency of cases in such form and manner as may be prescribed. Source statement: (3) The State Commission shall have...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(5) The State Commission shall furnish, periodically or as and when required to the State Government any information including pendency of cases in such...”
- “(3) The State Commission shall have administrative control over all the District Commissions within its jurisdiction in all matters referred to in sub-section (1).”

Source passage excerpt

(c) issuance of instructions regarding adoption of uniform procedure in the hearing of matters, prior service of copies of documents produced by one party to the opposite parties, furnishing of english translation of judgments written in any language, speedy grant of copies of documents; SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 29 (d) overseeing the functioning of the State Commission or the District Commission either by way of inspection or by any other means, as the National Commission may like to order from time to time, to ensure that the objects and purposes of the Act are best served and the standards set by the National Commission are implemented without interfering with their quasi-judicial freedom. (2) There shall be a monitoring cell to be constituted by the President of the National Commission to oversee the functioning of the State Commissions from the administrative point of view. (3) The State Commission shall have administrative control over all the District Commissions within ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 29?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 29?

RAG-210 Commission, as the case may be:

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 29-30 | Type: Act of Parliament

Source-derived abstract

This record focuses on Commission, as the case may be: as described in Consumer Protection Act, 2019. Source statement: (3) Save as otherwise provided, the offences under sub-section (1) shall be tried summarily by the District Commission or the State Commission or the National Commission, as the case may be. Source statement: (2) Except as provided in sub-section (1), no...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(3) Save as otherwise provided, the offences under sub-section (1) shall be tried summarily by the District Commission or the State Commission or the...”
- “(2) Except as provided in sub-section (1), no appeal shall lie before any court, from any order of a District Commission or a State...”

Source passage excerpt

2 of 1974. (2) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, the District Commission, the State Commission or the National Commission, as the case may be, shall have the power of a Judicial Magistrate of first class for the trial of offences under sub-section (1), and on conferment of such powers, the District Commission or the State Commission or the National Commission, as the case may be, shall be deemed to be a Judicial Magistrate of first class for the purposes of the Code of Criminal Procedure, 1973. (3) Save as otherwise provided, the offences under sub-section (1) shall be tried summarily by the District Commission or the State Commission or the National Commission, as the case may be. 2 of 1974. 73. (1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, Appeal against where an order is passed under sub-section (1) of section 72, an appeal shall lie, both on order passed facts and ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Commission, as the case may be:?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Commission, as the...
- Which source pages support an answer about Commission, as the case may be:?

RAG-211 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 30 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (1) The State Government shall establish, by notification, a consumer mediation of consumer cell to be attached to each of the District Commissions and the State Commissions of that mediation State.cell. Source statement: (2) The Central Government shall establish, by notification, a consumer mediation cell...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The State Government shall establish, by notification, a consumer mediation of consumer cell to be attached to each of the District Commissions and...”
- “(2) The Central Government shall establish, by notification, a consumer mediation cell to be attached to the National Commission and each of the regional...”

Source passage excerpt

CHAPTER V MEDIATION Establishment 74. (1) The State Government shall establish, by notification, a consumer mediation of consumer cell to be attached to each of the District Commissions and the State Commissions of that mediation State.cell. (2) The Central Government shall establish, by notification, a consumer mediation cell to be attached to the National Commission and each of the regional Benches. (3) A consumer mediation cell shall consist of such persons as may be prescribed. (4) Every consumer mediation cell shall maintain— (a) a list of empanelled mediators; (b) a list of cases handled by the cell; (c) record of proceeding; and (d) any other information as may be specified by regulations. (5) Every consumer mediation cell shall submit a quarterly report to the District Commission, State Commission or the National Commission to which it is attached, in the manner specified by regulations. Empanelment 75. (1) For the purpose of mediation, the National Commission or the State Commission of mediators. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-212 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 31

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 30-31 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 31 as described in Consumer Protection Act, 2019. Source statement: (1) The mediation shall be held in the consumer mediation cell attached to the Procedure for District Commission, the State Commission or the National Commission, as the case may be. mediation. Source statement: (3) The mediator so nominated shall...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The mediation shall be held in the consumer mediation cell attached to the Procedure for District Commission, the State Commission or the National...”
- “(3) The mediator so nominated shall conduct mediation within such time and in such manner as may be specified by regulations.”

Source passage excerpt

Nomination of 76. The District Commission, the State Commission or the National Commission shall, mediators while nominating any person from the panel of mediators referred to in section 75, consider from panel. his suitability for resolving the consumer dispute involved. Duty of 77. It shall be the duty of the mediator to disclose— mediator to (a) any personal, professional or financial interest in the outcome of the consumer disclose certain facts. dispute; (b) the circumstances which may give rise to a justifiable doubt as to his independence or impartiality; and (c) such other facts as may be specified by regulations. Replacement 78. Where the District Commission or the State Commission or the National of mediator Commission, as the case may be, is satisfied, on the information furnished by the mediator or in certain on the information received from any other person including parties to the complaint and cases. after hearing the mediator, it shall replace such mediator by another mediator. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 31?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 31?

RAG-213

CHAPTER VI

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 31 | Type: Act of Parliament

Source-derived abstract

This record focuses on CHAPTER VI as described in Consumer Protection Act, 2019. Source statement: (1) The District Commission or the State Commission or the National Commission, Recording as the case may be, shall, within seven days of the receipt of the settlement report, pass settlement and suitable order recording such settlement of consumer dispute and dispose of the matter...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) The District Commission or the State Commission or the National Commission, Recording as the case may be, shall, within seven days of the...”
- “(3) Where no agreement is reached between the parties within the specified time or the mediator is of the opinion that settlement is not...”

Source passage excerpt

80. (1) Pursuant to mediation, if an agreement is reached between the parties with Settlement respect to all of the issues involved in the consumer dispute or with respect to only some of through the issues, the terms of such agreement shall be reduced to writing accordingly, and signed mediation. by the parties to such dispute or their authorised representatives. (2) The mediator shall prepare a settlement report of the settlement and forward the signed agreement along with such report to the concerned Commission. (3) Where no agreement is reached between the parties within the specified time or the mediator is of the opinion that settlement is not possible, he shall prepare his report accordingly and submit the same to the concerned Commission. 81. (1) The District Commission or the State Commission or the National Commission, Recording as the case may be, shall, within seven days of the receipt of the settlement report, pass settlement and suitable order recording such ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about CHAPTER VI?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on CHAPTER VI?
- Which source pages support an answer about CHAPTER VI?

RAG-214 Product liability

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 31-32 | Type: Act of Parliament

Source-derived abstract

This record focuses on Product liability as described in Consumer Protection Act, 2019. Source statement: (1) A product manufacturer shall be liable in a product liability action, if— Liability of product (a) the product contains a manufacturing defect; or manufacturer. Source statement: A product seller who is not a product manufacturer shall be liable in a product product sellers. liability...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) A product manufacturer shall be liable in a product liability action, if— Liability of product (a) the product contains a manufacturing defect; or...”
- “A product seller who is not a product manufacturer shall be liable in a product product sellers. liability action, if—”

Source passage excerpt

83. A product liability action may be brought by a complainant against a product Product manufacturer or a product service provider or a product seller, as the case may be, for any liability action. harm caused to him on account of a defective product. 84. (1) A product manufacturer shall be liable in a product liability action, if— Liability of product (a) the product contains a manufacturing defect; or manufacturer. (b) the product is defective in design; or (c) there is a deviation from manufacturing specifications; or (d) the product does not conform to the express warranty; or (e) the product fails to contain adequate instructions of correct usage to prevent any harm or any warning regarding improper or incorrect usage. 32 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (2) A product manufacturer shall be liable in a product liability action even if he proves that he was not negligent or fraudulent in making the express warranty of a product. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Product liability?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Product liability?
- Which source pages support an answer about Product liability?

RAG-215 Product liability

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 32 | Type: Act of Parliament

Source-derived abstract

This record focuses on Product liability as described in Consumer Protection Act, 2019. Source statement: (1) A product liability action cannot be brought against the product seller if, at the product time of harm, the product was misused, altered, or modified. liability action. Source statement: (2) In any product liability action based on the failure to provide adequate warnings or...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(1) A product liability action cannot be brought against the product seller if, at the product time of harm, the product was misused, altered...”
- “(2) In any product liability action based on the failure to provide adequate warnings or instructions, the product manufacturer shall not be liable, if—...”

Source passage excerpt

(a) he has exercised substantial control over the designing, testing, manufacturing, packaging or labelling of a product that caused harm; or (b) he has altered or modified the product and such alteration or modification was the substantial factor in causing the harm; or (c) he has made an express warranty of a product independent of any express warranty made by a manufacturer and such product failed to conform to the express warranty made by the product seller which caused the harm; or (d) the product has been sold by him and the identity of product manufacturer of such product is not known, or if known, the service of notice or process or warrant cannot be effected on him or he is not subject to the law which is in force in India or the order, if any, passed or to be passed cannot be enforced against him; or (e) he failed to exercise reasonable care in assembling, inspecting or maintaining ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Product liability?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Product liability?
- Which source pages support an answer about Product liability?

RAG-216 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 33

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 32-33 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 33 as described in Consumer Protection Act, 2019. Source statement: Whoever, fails to comply with any direction of the Central Authority under Penalty for sections 20 and 21, shall be punished with imprisonment for a term which may extend to six non- months or with fine which may extend...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “Whoever, fails to comply with any direction of the Central Authority under Penalty for sections 20 and 21, shall be punished with imprisonment for...”
• “Any manufacturer or service provider who causes a false or misleading Punishment advertisement to be made which is prejudicial to the interest of consumers...”

Source passage excerpt

(c) the product was one which was legally meant to be used or dispensed only by or under the supervision of an expert or a class of experts and the product manufacturer had employed reasonable means to give the warnings or instructions for usage of such product to such expert or class of experts; or (d) the complainant, while using such product, was under the influence of alcohol or any prescription drug which had not been prescribed by a medical practitioner. SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 33 (3) A product manufacturer shall not be liable for failure to instruct or warn about a danger which is obvious or commonly known to the user or consumer of such product or which, such user or consumer, ought to have known, taking into account the characteristics of such product. CHAPTER VII OFFENCES AND PENALTIES 88. Whoever, fails to comply with any direction of the Central Authority under Penalty for sections 20 ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 33?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
• Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 33?

RAG-217 Consumer and service definitions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 33-34 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer and service definitions as described in Consumer Protection Act, 2019. Source statement: Explanation.—For the purposes of this section,— (a) "adulterant" means any material including extraneous matter which is employed or used for making a product unsafe; (b) "grievous hurt" shall have the same meaning as assigned to it in section 320 45 of 1860. of...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “Explanation.—For the purposes of this section,— (a) "adulterant" means any material including extraneous matter which is employed or used for making a product unsafe...”
- “(2) The offences under clauses (c) and (d) of sub-section (1) shall be cognizable and non-bailable.”

Source passage excerpt

(c) causing injury resulting in grievous hurt to the consumer, with imprisonment for a term which may extend to seven years and with fine which may extend to five lakh rupees; and (d) results in the death of a consumer, with imprisonment for a term which shall not be less than seven years, but which may extend to imprisonment for life and with fine which shall not be less than ten lakh rupees. (2) The offences under clauses (c) and (d) of sub-section (1) shall be cognizable and non-bailable. (3) Notwithstanding the punishment under sub-section (1), the court may, in case of first conviction, suspend any licence issued to the person referred to in that sub-section, under any law for the time being in force, for a period up to two years, and in case of second or subsequent conviction, cancel the licence. Explanation.—For the purposes of this section,— (a) "adulterant" means any material including extraneous matter which is employed ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer and service definitions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer and service...
- Which source pages support an answer about Consumer and service definitions?

RAG-218 CHAPTER VIII

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 34 | Type: Act of Parliament

Source-derived abstract

This record focuses on CHAPTER VIII as described in Consumer Protection Act, 2019. Source statement: No cognizance shall be taken by a competent court of any offence under sections 88 offence by and 89 except on a complaint filed by the Central Authority or any officer authorised by it in court. this behalf. Source statement: (2) The offences under clauses...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “No cognizance shall be taken by a competent court of any offence under sections 88 offence by and 89 except on a complaint filed...”
- “(2) The offences under clauses (b) and (c) of sub-section (1) shall be cognizable and non-bailable.”

Source passage excerpt

(b) causing injury resulting in grievous hurt to the consumer, with imprisonment for a term which may extend to seven years and with fine which may extend to five lakh rupees; (c) results in the death of a consumer, with imprisonment for a term which shall not be less than seven years, but may extend to imprisonment for life and with fine which shall not be less than ten lakh rupees. (2) The offences under clauses (b) and (c) of sub-section (1) shall be cognizable and non-bailable. (3) Notwithstanding the punishment under sub-section (1), the court may, in case of first conviction, suspend any licence issued to the person referred to in that sub-section, under any law for the time being in force, for a period up to two years, and in case of second or subsequent conviction, cancel the licence. Cognizance of 92. No cognizance shall be taken by a competent court of any offence under sections 88 offence ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about CHAPTER VIII?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on CHAPTER VIII?
- Which source pages support an answer about CHAPTER VIII?

RAG-219 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 35

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 34-35 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 35 as described in Consumer Protection Act, 2019. Source statement: (5) The acceptance of the sum of money for compounding an offence in accordance with sub-section (1) by the Central Authority or an officer of the Central Authority empowered in this behalf shall be deemed to amount to an...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(5) The acceptance of the sum of money for compounding an offence in accordance with sub-section (1) by the Central Authority or an officer...”
- “(1) Any offence punishable under sections 88 and 89, may, either before or after of offences. the institution of the prosecution, be compounded, on...”

Source passage excerpt

Compounding 96. (1) Any offence punishable under sections 88 and 89, may, either before or after of offences. the institution of the prosecution, be compounded, on payment of such amount as may be prescribed: Provided that no compounding of such offence shall be made without the leave of the court before which a complaint has been filed under section 92: Provided further that such sum shall not, in any case, exceed the maximum amount of the fine, which may be imposed under this Act for the offence so compounded. (2) The Central Authority or any officer as may be specially authorised by him in this behalf, may compound offences under sub-section (1). SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 35 (3) Nothing in sub-section (1) shall apply to person who commits the same or similar offence, within a period of three years from the date on which the first offence, committed by him, was compounded. Explanation.—For the purposes of this ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 35?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 35?

RAG-220 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 35 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: The penalty collected under section 21 and the amount collected under section 96 Manner of shall be credited to such fund as may be prescribed. crediting penalty. Source statement: The provisions of this Act shall be in addition to and not in derogation...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “The penalty collected under section 21 and the amount collected under section 96 Manner of shall be credited to such fund as may be...”
- “The provisions of this Act shall be in addition to and not in derogation of the Act not in provisions of any other law...”

Source passage excerpt

97. The penalty collected under section 21 and the amount collected under section 96 Manner of shall be credited to such fund as may be prescribed. crediting penalty. 98. No suit, prosecution or other legal proceeding shall lie against the Presidents and Protection of members of the District Commission, the State Commission and the National Commission, action taken in good faith. the Chief Commissioner, the Commissioner, any officer or employee and other person performing any duty under this Act, for any act which is in good faith done or intended to be done in pursuance of this Act or under any rule or order made thereunder. 99. (1) Without prejudice to the foregoing provisions of this Act, the Central Authority, Power to give shall, in exercise of its powers or the performance of its functions under this Act, be bound directions by by such directions on questions of policy, as the Central Government may give in writing to Central Government. ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-221 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 35-36 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (a) the other class or classes of persons including public utility entities under clause (19) of section 2; (b) the contest, lottery, game of chance or skill which are to be exempted under item (b) of sub-clause (iii) of clause (47) of section...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(a) the other class or classes of persons including public utility entities under clause (19) of section 2; (b) the contest, lottery, game of...”

Source passage excerpt

(a) the other class or classes of persons including public utility entities under clause (19) of section 2; (b) the contest, lottery, game of chance or skill which are to be exempted under item (b) of sub-clause (iii) of clause (47) of section 2; (c) the manner of issuing bill or cash memo or receipt for goods sold or services rendered under sub-clause (vii) of clause (47) of section 2; (d) the number of other official or non-official members of the Central Council under clause (b) of sub-section (2) of section 3; (e) the time and place of meeting of Central Council and the procedure for the transaction of its business under sub-section (2) of section 4; (f) the number of Commissioners in the Central Authority under sub-section (2) of section 10; 36 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (g) the qualifications for appointment, method of recruitment, procedure of appointment, term of office, salaries and allowances, resignation, removal and ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
• Which source pages support an answer about Central Consumer Protection Authority?

RAG-222 Mediation

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 36 | Type: Act of Parliament

Source-derived abstract

This record focuses on Mediation as described in Consumer Protection Act, 2019. Source statement: (k) the officer and the manner of disposing of articles which are subject to speedy or natural decay under sub-section (4) of section 22; (l) the form and manner for preparing annual statement of accounts by the Central Authority in consultation with the Comptroller and Auditor-General...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

• “(k) the officer and the manner of disposing of articles which are subject to speedy or natural decay under sub-section (4) of section 22...”

Source passage excerpt

(k) the officer and the manner of disposing of articles which are subject to speedy or natural decay under sub-section (4) of section 22; (l) the form and manner for preparing annual statement of accounts by the Central Authority in consultation with the Comptroller and Auditor-General of India under sub-section (1) of section 26; (m) the form in which, and the time within which, an annual report, other reports and returns may be prepared by the Central Authority under sub-section (1) of section 27; (n) the qualifications for appointment, method of recruitment, procedure for appointment, term of office, resignation and removal of President and members of the District Commission under section 29; (o) the other value of goods and services in respect of which the District Commission shall have jurisdiction to entertain complaints under proviso to sub-section (1) of section 34; (p) the manner of electronically filing complaint under the proviso to sub-section (1) of section 35; (q) the fee, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection Act, 2019 state about Mediation?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Mediation?
• Which source pages support an answer about Mediation?

RAG-223 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 37

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 36-37 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 37 as described in Consumer Protection Act, 2019. Source statement: (v) the form and the manner in which appeal may be preferred to the State Commission under section 41; (w) the qualifications for appointment, method of recruitment, procedure for appointment, term of office, resignation and removal of the President...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(v) the form and the manner in which appeal may be preferred to the State Commission under section 41; (w) the qualifications for appointment...”

Source passage excerpt

(v) the form and the manner in which appeal may be preferred to the State Commission under section 41; (w) the qualifications for appointment, method of recruitment, procedure for appointment, term of office, resignation and removal of the President and members of the State Commission under section 43; (x) the other value of goods and services in respect of which the State Commission shall have jurisdiction under the proviso to sub-clause (i) of clause (a) of sub-section (1) of section 47; SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 37 (y) the form and manner of filing appeal to the National Commission, and the manner of depositing fifty per cent. of the amount before filing appeal, under sub-section (1) of section 51; (z) the number of members of the National Commission under clause (b) of section 54; (za) the qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the President and members ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 37?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 37?

RAG-224 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 37 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (zi) the fund to which the penalty and amount collected shall be credited under section 97; and (zj) any other matter which is to be, or may be, prescribed, or in respect of which provisions are to be, or may be, made by...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(zi) the fund to which the penalty and amount collected shall be credited under section 97; and (zj) any other matter which is to...”
- “(1) The State Governments may, by notification, make rules for carrying out the Power of provisions of this Act: State Government Provided that the...”

Source passage excerpt

(zi) the fund to which the penalty and amount collected shall be credited under section 97; and (zj) any other matter which is to be, or may be, prescribed, or in respect of which provisions are to be, or may be, made by rules. 102. (1) The State Governments may, by notification, make rules for carrying out the Power of provisions of this Act: State Government Provided that the Central Government may, frame model rules in respect of all or any of to make rules. the matters with respect to which the State Government may make rules under this section, and where any such model rules have been framed in respect of any such matter, they shall apply to the State until the rules in respect of that matter is made by the State Government and while making any such rules, so far as is practicable, they shall conform to such model rules. (2) In particular, and without prejudice to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-225 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 37-38 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (d) the time and place of meeting of the State Council and the procedure for the transaction of its business under sub-section (4) of section 6; (e) the number of other official and non-official members of District Council under clause (b) of sub-section (2) of...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(d) the time and place of meeting of the State Council and the procedure for the transaction of its business under sub-section (4) of...”

Source passage excerpt

(d) the time and place of meeting of the State Council and the procedure for the transaction of its business under sub-section (4) of section 6; (e) the number of other official and non-official members of District Council under clause (b) of sub-section (2) of section 8; (f) the time and place of meeting of the District Council and procedure for the transaction of its business under sub-section (4) of section 8; 38 THE GAZETTE OF INDIA EXTRAORDINARY [PART II— (g) the number of members of the District Commission under clause (b) of sub-section (2) of section 28; (h) the salaries and allowances payable to, and other terms and conditions of service of, the President and members of the District Commission under section 30; (i) the salaries and allowances payable to, and other terms and conditions of service of, the officers and other employees of the District Commission under sub-section (3) of section 33; (j) the manner of authentication of ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-226 Consumer commissions

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 38 | Type: Act of Parliament

Source-derived abstract

This record focuses on Consumer commissions as described in Consumer Protection Act, 2019. Source statement: (2) In particular, and without prejudice to the generality of the foregoing power, such regulations may make provisions for— (a) the costs for adjournment to be imposed by the District Commission under the second proviso to sub-section (7) of section 38; (b) the costs for…
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may make provisions for— (a) the costs for adjournment…”
- “(o) the form in which the State Commission shall furnish information to the State Government under sub-section (5) of section 70; (p) the persons…”

Source passage excerpt

(o) the form in which the State Commission shall furnish information to the State Government under sub-section (5) of section 70; (p) the persons in the consumer mediation cell under sub-section (3) of section 74; (q) any other matter which is to be, or may be prescribed, or in respect of which provisions are to be, or may be, made by rules. Power of 103. (1) The National Commission may, with the previous approval of the Central National Government, by notification, make regulations not inconsistent with this Act to provide for Commission all matters for which provision is necessary or expedient for the purpose of giving effect toto make regulations. the provisions of this Act. (2) In particular, and without prejudice to the generality of the foregoing power, such regulations may make provisions for— (a) the costs for adjournment to be imposed by the District Commission under the second proviso to sub-section (7) of section 38; (b) the costs for … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Consumer commissions?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer commissions?
- Which source pages support an answer about Consumer commissions?

RAG-227 SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 39

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 39 | Type: Act of Parliament

Source-derived abstract

This record focuses on SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 39 as described in Consumer Protection Act, 2019. Source statement: (2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:— (a) the procedure for engaging experts and professionals and the number of such...
Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following...”
- “(1) The Central Authority may, with the previous approval of the Central Power of Government, by notification, make regulations not inconsistent with this Act...”

Source passage excerpt

SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 39 (f) the conditions for re-empanelment of mediators for another term under sub-section (3) of section 75; (g) the other facts to be disclosed by mediators under clause (c) of section 77; (h) the time within which, and the manner in which, mediation may be conducted under sub-section (3) of section 79; and (i) such other matter for which provision is to be, or may be, made by regulation. 104. (1) The Central Authority may, with the previous approval of the Central Power of Government, by notification, make regulations not inconsistent with this Act, for the purpose Central Authority to of giving effect to the provisions of this Act. make regulations. (2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:— (a) the procedure for engaging experts and professionals and the number of such experts and professionals ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 39?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on SEC. 1] THE...
- Which source pages support an answer about SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 39?

RAG-228 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 39 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: (2) Every rule made by a State Government under this Act shall be laid as soon as may be after it is made, before the State Legislature. Source statement: (1) Every rule and every regulation made under this Act shall be laid, as...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “(2) Every rule made by a State Government under this Act shall be laid as soon as may be after it is made, before...”
- “(1) Every rule and every regulation made under this Act shall be laid, as soon as Rules and may be after it is made...”

Source passage excerpt

(d) such other matter for which provision is to be, or may be, made by regulation. 105. (1) Every rule and every regulation made under this Act shall be laid, as soon as Rules and may be after it is made, before each House of Parliament, while it is in session, for a total regulations to be laid before period of thirty days which may be comprised in one session or in two or more successive each House of sessions, and if, before the expiry of the session immediately following the session or the Parliament. successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-229 Central Consumer Protection Authority

Source: The Consumer Protection Act, 2019
Authority/date: Government of India, Ministry of Law and Justice, Legislative Department | Act No. 35 of 2019; assent/publication dated 9 August 2019
PDF page(s): 39-40 | Type: Act of Parliament

Source-derived abstract

This record focuses on Central Consumer Protection Authority as described in Consumer Protection Act, 2019. Source statement: Provided that no such order shall be made after the expiry of a period of two years from the commencement of this Act. Source statement: 1] (3) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect...

Source-status qualification: Statutory text as supplied. This copy does not by itself establish whether every provision has later been amended or how every provision...

Supporting source statements

- “Provided that no such order shall be made after the expiry of a period of two years from the commencement of this Act.”
- “1] (3) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect the general application of section 6...”

Source passage excerpt

Provided that no such order shall be made after the expiry of a period of two years from the commencement of this Act. 68 of 1986. 107. (1) The Consumer Protection Act, 1986 is hereby repealed. Repeal and savings. (2) Notwithstanding such repeal, anything done or any action taken or purported to have been done or taken under the Act hereby repealed shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act. 40 THE GAZETTE OF INDIA EXTRAORDINARY [PART II—SEC. 1] (3) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect the general application of section 6 of the General Clauses Act, 1897 with regard to 10 of 1897. the effect of repeal. ———— DR. G. NARAYANA RAJU, Secretary to the Govt. of India. UPLOADED BY THE MANAGER, GOVERNMENT OF INDIA PRESS, MINTO ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection Act, 2019 state about Central Consumer Protection Authority?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Central Consumer Protection...
- Which source pages support an answer about Central Consumer Protection Authority?

RAG-230 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 1-2 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (2) They shall come into force on the date of their publication in the Official Gazette. Source statement: Short title and commencement.—(1) These rules may be called the Consumer Protection (E-Commerce) Rules, 2020.
Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “(2) They shall come into force on the date of their publication in the Official Gazette.”
- “Short title and commencement.—(1) These rules may be called the Consumer Protection (E-Commerce) Rules, 2020.”

Source passage excerpt

The Consumer Protection (E-Commerce) Rules, 2020 CONTENTS Rules Pages 1. Short title and commencement .....csssssssssssssseseeeeeeeeeees — 80 2.. Scope and Applicability. sss cssassescessnsvesstsssessssssssivsis8tstssvesoeeseoensseses 80 BL Doe Himanth OM eg caeczeteezeeteeereer daa ctcenenececconrrzenereavocscccnsssssssogecerrerseeernsee 80 4. Duties of e-commerce entities 0.2... BL 5. Liabilities of marketplace e-commerce entities .....:0.:.:csssesesssee 83 6. Duties of sellers on marketplace .....sssssssssessssssseeseceeessssssssesess 84 7. Duties and liabilities of inventory e-commerce entities ..... 85 SIE Contravertiom\ Of cUlest.ors.ccar..csceaeatsesctotesserere7 cieerereeren noe ree 86 “ = > ;) | [79] | The Consumer Protection (E-Commerce) Rules, 2020' In exercise of the powers conferred by sub-clause (zg) of sub-section (1) of Section 101 of the Consumer Protection Act, 2019 (35 of 2019), the Central Government hereby makes the following rules, namely— 1. Short title and commencement.—(1) These rules may be called the Consumer Protection (E-Commerce) Rules, 2020. (2) They shall come into force on the date of their publication in the Official Gazette. 2. Scope and Applicability —(1) Save as ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-231 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 2 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: Definitions.—(1) In these rules unless the context otherwise requires,— (a) “Act” means the Consumer Protection Act, 2019 (35 of 2019); (b) “e-commerce entity” means any person who owns, operates or manages digital or electronic facility or platform for electronic commerce, but does not include...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “Definitions.—(1) In these rules unless the context otherwise requires,— (a) “Act” means the Consumer Protection Act, 2019 (35 of 2019); (b) “e-commerce entity” means...”
- “(d) all forms of unfair trade practices across all models of e-commerce: : Provided that these rules shall not apply to any activity of...”

Source passage excerpt

(d) all forms of unfair trade practices across all models of e-commerce: : Provided that these rules shall not apply to any activity of a a natural person carried out in a personal capacity not being part of ¢ any professional or commercial activity undertaken on a regular or é systematic basis. a (2) Notwithstanding anything contained in sub-rule (1), these rules shall apply to a e-commerce entity which is not established in India, but systematically offers goods or services to consumers in India. 3. Definitions.—(1) In these rules unless the context otherwise requires,— (a) “Act” means the Consumer Protection Act, 2019 (35 of 2019); (b) “e-commerce entity” means any person who owns, operates or manages digital or electronic facility or platform for electronic commerce, but does not include a seller offering his goods or services for sale on a marketplace e-commerce entity; (c) “grievance” includes any complaints to an e-commerce entity regarding violations of the provisions of the Act ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-232 R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 2-3 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81 as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: [80] R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81 (e) “information” shall have the same meaning as to it clause (v) of sub-section (1) of Section 2 of the Information Technology Act, 2000 (21 of 2000); (f) “inventory e-commerce entity…

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the…

Supporting source statements

• “[80] R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81 (e) “information” shall have the same meaning as to it clause (v) of sub-section (1) of…”

Source passage excerpt

[80] R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81 (e) “information” shall have the same meaning as to it clause (v) of sub-section (1) of Section 2 of the Information Technology Act, 2000 (21 of 2000); (f) “inventory e-commerce entity means an e-commerce entity which owns the inventory of goods or services and sells such goods or services directly to the consumers and shall include single brand retailers and multi-channel single brand retailers; (g) “marketplace e-commerce entity” means an e-commerce entity which provides an information technology platform on a digital or electronic network to facilitate transactions between buyers and sellers; (4) “PAN” means Permanent Account Number as under Section 139-A of the Income Tax Act, 1961 (43 of 1961); () “platform” means an online interface in the form of any software including a website or a part thereof and applications including mobile applications; Gj) “ranking” means the relative prominence or relevance given to the goods or services offered through a marketplace ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection (E-Commerce) Rules, 2020 state about R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on R.4] CONSUMER PROTECTION…
• Which source pages support an answer about R.4] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 81?

OCR / screenshot source involved

RAG-233 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 3 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: Prior to substitution it read as: “(1) An e-commerce entity shall: (@) be a company incorporated under the Companies Act, 1956 (1 of 1956) or the Companies Source statement: () “user” means any person who accesses or avails any computer resource 15 of an...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “Prior to substitution it read as: “(1) An e-commerce entity shall: (@) be a company incorporated under the Companies Act, 1956 (1 of 1956)...”
- “() “user” means any person who accesses or avails any computer resource 15 of an e-commerce entity. coal (2) The words and expressions used...”

Source passage excerpt

() “user” means any person who accesses or avails any computer resource 15 of an e-commerce entity. coal (2) The words and expressions used herein and not defined, but defined in the b Act or in the Information Technology Act, 2000 (21 of 2000) or the rules made } thereunder shall have the same meaning as respectively assigned to them in those Acts or rules. 4. Duties of e-commerce entities —*[(1) Where an e-commerce entity is a company incorporated under the Companies Act, 1956 (1 of 1956) or under the Companies Act, 2013 (18 of 2013) or a foreign company covered under clause (42) of Section 2 of the Companies Act, 2013 (18 of 2013) or an office, branch or agency outside India owned or controlled by a person resident in India as provided in sub- clause (iv) of clause (v) of Section 2 of the Foreign Exchange Management Act, 1999 (42 of 1999), it shall appoint a nodal officer ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-234 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 3-4 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (3) No e-commerce entity shall adopt any unfair trade practice, whether in the course of business on its platform or otherwise. Source statement: Act, 2013 (18 of 2013) or a foreign company covered under clause (42) of Section 2 of the Companies Act, 2013...
Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “(3) No e-commerce entity shall adopt any unfair trade practice, whether in the course of business on its platform or otherwise.”
- “Act, 2013 (18 of 2013) or a foreign company covered under clause (42) of Section 2 of the Companies Act, 2013 (18 of 2013)...”

Source passage excerpt

Act, 2013 (18 of 2013) or a foreign company covered under clause (42) of Section 2 of the Companies Act, 2013 (18 of 2013) or an office, branch or agency outside India owned or controlled by a person resident in India as provided in sub-clause (iii) of clause (v) of Section 2 of the Foreign Exchange Management Act, 1999 (42 of 1999); and (@) appoint a nodal person of contact or an alternate senior designated functionary who is resident in India, to ensure compliance with the provisions of the Act or the rules made thereunder.” 82 CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 (R.4 functionary who is resident in India, to ensure compliance with the provisions of the Act or the rules made thereunder.] (2) Every e-commerce entity shall provide the following information in a clear and accessible manner on its platform, displayed prominently to its users, namely— (a) legal name of the e-commerce entity; (b) principal geographic address of its headquarters ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-235 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 4 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (5) Every e-commerce entity shall ensure that the grievance officer referred to in sub-rule (4) acknowledges the receipt of any consumer complaint within forty- eight hours and redresses the complaint within one month from the date of receipt of the complaint. Source statement: 4...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- "(5) Every e-commerce entity shall ensure that the grievance officer referred to in sub-rule (4) acknowledges the receipt of any consumer complaint within forty-..."
- "4 (7) Every e-commerce entity shall endeavour on a best effort basis to become a partner in the convergence process of the National Consumer..."

Source passage excerpt

(4) Every e-commerce entity shall establish an adequate grievance redressal mechanism having regard to the number of grievances ordinarily received by such entity from India, and shall appoint a grievance officer for consumer grievance redressal, and shall display the name, contact details, and designation of such officer on its platform. (5) Every e-commerce entity shall ensure that the grievance officer referred to in sub-rule (4) acknowledges the receipt of any consumer complaint within forty- eight hours and redresses the complaint within one month from the date of receipt of the complaint. (6) Where an e-commerce entity offers imported goods or services for sale, it = shall mention the name and details of any importer from whom it has purchased such goods or services, or who may be a seller on its platform. 4 (7) Every e-commerce entity shall endeavour on a best effort basis to become a partner in the convergence process of the National Consumer Helpline of the Central ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-236 R. 5] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 83

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 4-5 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on R. 5] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 83 as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (10) Every e-commerce entity shall effect all payments towards accepted refund requests of the consumers as prescribed by the Reserve Bank of India or any other competent authority under any law for the time being in force, within...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “(10) Every e-commerce entity shall effect all payments towards accepted refund requests of the consumers as prescribed by the Reserve Bank of India or...”
- “(11) No e-commerce entity shall— (a) manipulate the price of the goods or services offered on its platform in such a manner as to...”

Source passage excerpt

(10) Every e-commerce entity shall effect all payments towards accepted refund requests of the consumers as prescribed by the Reserve Bank of India or any other competent authority under any law for the time being in force, within a reasonable period of time, or as prescribed under applicable laws. (11) No e-commerce entity shall— (a) manipulate the price of the goods or services offered on its platform in such a manner as to gain unreasonable profit by imposing on | consumers any unjustified price having regard to the prevailing market — conditions, the essential nature of the good or service, any extraordinary R. 5] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 83 circumstances under which the good or service is offered, and any other relevant consideration in determining whether the price charged is justified; (b) discriminate between consumers of the same class or make any arbitrary classification of consumers affecting their rights under the Act. 5. Liabilities of marketplace e-commerce entities —(... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about R. 5] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 83?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on R. 5] CONSUMER...
- Which source pages support an answer about R. 5] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 83?

OCR / screenshot source involved

RAG-237 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 5 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (3) Every marketplace e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently to its users at the appropriate place on its platform: (a) details about the sellers offering goods and services, including the name of their business, whether...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “(3) Every marketplace e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently to its users at the appropriate...”
- “(2) Every marketplace e-commerce entity shall require sellers through an undertaking to ensure that descriptions, images, and other content pertaining to goods or services...”

Source passage excerpt

(2) Every marketplace e-commerce entity shall require sellers through an undertaking to ensure that descriptions, images, and other content pertaining to goods or services on their platform is accurate and corresponds directly with the appearance, nature, quality, purpose and other general features of such good or service. (3) Every marketplace e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently to its users at the appropriate place on its platform: (a) details about the sellers offering goods and services, including the name of their business, whether registered or not, their geographic address, customer care number, any rating or other aggregated feedback about such seller, and any other information necessary for enabling consumers 1a to make informed decisions at the prepurchase stage: “ — Provided that a marketplace e-commerce entity shall, on a request a in writing made by a consumer after the purchase of any goods or ; services on its platform by such consumer, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-238 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 5-6 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (6) a ticket number for each complaint lodged through which the consumer can track the status of the complaint; (c) information relating to return, refund, exchange, warranty and guarantee, delivery and shipment, modes of payment, and grievance redressal mechanism, and any other similar information...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- "(6) a ticket number for each complaint lodged through which the consumer can track the status of the complaint; (c) information relating to return..."
- "(4) Every marketplace e-commerce entity shall include in its terms and conditions generally governing its relationship with sellers on its platform, a description of..."

Source passage excerpt

(6) a ticket number for each complaint lodged through which the consumer can track the status of the complaint; (c) information relating to return, refund, exchange, warranty and guarantee, delivery and shipment, modes of payment, and grievance redressal mechanism, and any other similar information which may be required by consumers to make informed decisions; (d) information on available payment methods, the security of those payment methods, any fees or charges payable by users, the procedure to cancel regular payments under those methods, charge-back options, if any, and the contact information of the relevant payment service provider; (e) all information provided to it by sellers under sub-rule (5) of Rule 6; and 84 CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 [R. 6 (f an explanation of the main parameters which, individually or collectively, are most significant in determining the ranking of goods or sellers on its platform and the relative importance of those main parameters through an easily and publicly available description drafted ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-239 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 6 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (5) Every marketplace e-commerce entity shall take reasonable efforts to maintain a record of relevant information allowing for the identification of all sellers who have repeatedly offered goods or services that have previously been removed or access to which has previously been disabled under...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “(5) Every marketplace e-commerce entity shall take reasonable efforts to maintain a record of relevant information allowing for the identification of all sellers who...”
- “Duties of sellers on marketplace —(1) No seller offering goods or services through a marketplace e-commerce entity shall adopt any unfair trade practice whether...”

Source passage excerpt

(5) Every marketplace e-commerce entity shall take reasonable efforts to maintain a record of relevant information allowing for the identification of all sellers who have repeatedly offered goods or services that have previously been removed or access to which has previously been disabled under the Copyright Act, 1957 (14 of 1957), the Trade Marks Act, 1999 (47 of 1999) or the Information Technology Act, 2000 (21 of 2000): Provided that no such e-commerce entity shall be required to terminate the access of such seller to its platform pursuant to this sub-rule but may do so on a voluntary basis. 6. Duties of sellers on marketplace —(1) No seller offering goods or services through a marketplace e-commerce entity shall adopt any unfair trade practice whether in the course of the offer on the e-commerce entity’ s platform or otherwise. = (2) No such seller shall falsely represent itself as a consumer and post reviews ¢ about goods or services or misrepresent ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-240 R.7] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 85

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 6-7 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on R.7] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 85 as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: Duties and liabilities of inventory e-commerce entities—(1) Every inventory e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently to its users: (a) accurate information related to return, refund, exchange, warranty and guarantee, delivery…

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the…

Supporting source statements

• “Duties and liabilities of inventory e-commerce entities—(1) Every inventory e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently…”
• “(4) Any seller offering goods or services through a marketplace e-commerce entity shall: (a) have a prior written contract with the respective e-commerce entity…”

Source passage excerpt

Provided that in the case of late delivery, this sub-rule shall not be applied if such late delivery was due to force majeure. (4) Any seller offering goods or services through a marketplace e-commerce entity shall: (a) have a prior written contract with the respective e-commerce entity in order to undertake or solicit such sale or offer; (b) appoint a grievance officer for consumer grievance redressal and ensure that the grievance officer acknowledges the receipt of any consumer complaint within forty-eight hours and redresses the complaint within one month from the date of receipt of the complaint; R.7] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 85 (c) ensure that the advertisements for marketing of goods or services are consistent with the actual characteristics, access and usage conditions of such goods or services. (d) provide to the e-commerce entity its legal name, principal geographic address of its headquarters and all branches, the name and details of its website, its e-mail address, customer care … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Consumer Protection (E-Commerce) Rules, 2020 state about R.7] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 85?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on R.7] CONSUMER PROTECTION…
• Which source pages support an answer about R.7] CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 85?

OCR / screenshot source involved

RAG-241 Cancellation charges

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 8 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on Cancellation charges as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: LS eneeeeeeseeiisiseeaeeeeeee— Pen 86 CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 [R.8 methods, any fees or charges payable by users, charge back options, if any, and the contact information of the relevant payment service provider; (d) all contractual information required to be disclosed by law; (e)...

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

• “LS eneeeeeeseeiisiseeaeeeeeee— Pen 86 CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 [R.8 methods, any fees or charges payable by users, charge back options, if any, and...”

Source passage excerpt

LS eneeeeeeseeiisiseeaeeeeeee— Pen 86 CONSUMER PROTECTION (E-COMMERCE) RULES, 2020 [R.8 methods, any fees or charges payable by users, charge back options, if any, and the contact information of the relevant payment service provider; (d) all contractual information required to be disclosed by law; (e) total price in single figure of any good or service along with the breakup price for the good or service, showing all the compulsory and voluntary charges, such as delivery charges, postage and handling charges, conveyance charges and the applicable tax; and

RAG retrieval prompts

• What does Consumer Protection (E-Commerce) Rules, 2020 state about Cancellation charges?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Cancellation charges?
• Which source pages support an answer about Cancellation charges?

OCR / screenshot source involved

RAG-242 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 8 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: (2) No inventory e-commerce entity shall falsely represent itself as a consumer and post reviews about goods and services or misrepresent the quality or the features of any goods or services. Source statement: (f) aticket number for each complaint lodged, through which the consumer....

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- "(2) No inventory e-commerce entity shall falsely represent itself as a consumer and post reviews about goods and services or misrepresent the quality or..."
- "(f) aticket number for each complaint lodged, through which the consumer. can track the status of their complaint."

Source passage excerpt

(f) aticket number for each complaint lodged, through which the consumer. can track the status of their complaint. (2) No inventory e-commerce entity shall falsely represent itself as a consumer and post reviews about goods and services or misrepresent the quality or the features of any goods or services. (3) Every inventory e-commerce entity shall ensure that the advertisements for marketing of goods or services are consistent with the actual characteristics, access and usage conditions of such goods or services; (4) No inventory e-commerce entity shall refuse to take back goods, or withdraw or discontinue services purchased or agreed to be purchased, or refuse to refund consideration, if paid, if such goods or services are defective, deficient spurious, or if the goods or services are not of the characteristics or features as advertised or as agreed to, or if such goods or services are delivered late from the

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-243 E-commerce entities

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 8 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on E-commerce entities as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: =. stated delivery schedule: = Provided that in the case of late delivery, this sub rule shall not apply if suck 5 late delivery was due to force majeure. of (5) Any inventory e-commerce entity which explicitly or implicitly vouches > for the authenticity...
Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

- “=. stated delivery schedule: = Provided that in the case of late delivery, this sub rule shall not apply if suck 5 late delivery...”

Source passage excerpt

=. stated delivery schedule: = Provided that in the case of late delivery, this sub rule shall not apply if suck 5 late delivery was due to force majeure. of (5) Any inventory e-commerce entity which explicitly or implicitly vouches > for the authenticity of the goods or services sold by it, or guarantees that such goods q or services are authentic, shall bear appropriate liability in any action related to the authenticity of such good or service.

RAG retrieval prompts

- What does Consumer Protection (E-Commerce) Rules, 2020 state about E-commerce entities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on E-commerce entities?
- Which source pages support an answer about E-commerce entities?

OCR / screenshot source involved

RAG-244 Consumer consent

Source: Consumer Protection (E-Commerce) Rules, 2020
Authority/date: Government of India, Ministry of Consumer Affairs, Food and Public Distribution | 2020 Rules; scan includes a footnote referring to substitution effective 17 May 2021
PDF page(s): 8 | Type: Rules under the Consumer Protection Act, 2019 / scanned document

Source-derived abstract

This record focuses on Consumer consent as described in Consumer Protection (E-Commerce) Rules, 2020. Source statement: Contravention of rules.—The provisions of the Consumer Protection Act, 2019 (35 of 2019) shall apply for any violation of the provisions of these rules.

Source-status qualification: Scanned copy transcribed with OCR. The document notes a 2021 substitution in rule 4. Check the current consolidated rules before treating the...

Supporting source statements

• “Contravention of rules.—The provisions of the Consumer Protection Act, 2019 (35 of 2019) shall apply for any violation of the provisions of these rules.”

Source passage excerpt

8. Contravention of rules.—The provisions of the Consumer Protection Act, 2019 (35 of 2019) shall apply for any violation of the provisions of these rules.

RAG retrieval prompts

• What does Consumer Protection (E-Commerce) Rules, 2020 state about Consumer consent?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer consent?
• Which source pages support an answer about Consumer consent?

OCR / screenshot source involved

RAG-245

Misleading advertising

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 1-2 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on Misleading advertising as described in Misleading Advertisement Guidelines, 2022. Source statement: Definitions—(1) In these guidelines, unless the context otherwise requires,— (a) “Act” means the Consumer Protection Act, 2019 (35 of 2019); (b) “advertiser” means a person who designs, produces and publishes advertisements either by his own effort or by entrusting it to others in . order...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

• “Definitions—(1) In these guidelines, unless the context otherwise requires,— (a) “Act” means the Consumer Protection Act, 2019 (35 of 2019); (b) “advertiser” means a...”
• “(2) It shall come into force on the date of its publication in the Official Gazette.”

Source passage excerpt

The Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022 CONTENTS Sections Pages 1. Short title and commencement .....csoissssssssscesosarcosssestectnseceseeens 152 2. Wefimitions: scacccscccscnssspssscesssessssserassiswannieieiteecccreeneersennceeeess, 152. 3. Application ...csssssssesseueessssuseusessstisnisststussiineee — 153 4. Conditions for non-misleading and valid advertisement .....0 153 5. Conditions for bait advertisement «0... — 153 6. Prohibition of surrogate advertising ....eccscsccsssseeseeeene 154 7. Free claims advertisements .....0.csssssssecsssssseeesssssneeseesnnesseeee 155 8. Children targeted advertisements .....-.scccsssssccccetescesnees — 155 9. Advertisements prohibited by laW .....-sssccccccssessesmseessseneee — 156 : 10. Guidelines not in derogation of other laWS .....sesssecseseeees 1ST 11. Disclaimers in Advertisement .....:cssscsssssssssseesese — 157 12. Duties of manufacturer, service provider, advertiser and advertising AGENCY <:sscsyserccuccsriestmepeerteetattceseessseeceeennees, 57 13. Due diligence required for endorsement of advertisements ..... 158 14. Disclosure of material connection .....csssssssecceneeeeeneeee — 158 1S. “Tnterpretation ticts..ccscss. nn cactocmrnnsmmesenacunn erences » 159 [151] The Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022' In exercise of the powers conferred by Section 18 of the Consumer Protection ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Misleading Advertisement Guidelines, 2022 state about Misleading advertising?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Misleading advertising?
• Which source pages support an answer about Misleading advertising?

OCR / screenshot source involved

RAG-246

S.5] GUIDELINES FOR PREVENTION OF MISLEADING 153

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 2-3 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on S.5] GUIDELINES FOR PREVENTION OF MISLEADING 153 as described in Misleading Advertisement Guidelines, 2022. Source statement: Application.—These guidelines shall apply to— (a) all advertisements regardless of form, format or medium; (b) a manufacturer, service provider or trader whose goods, product or service is the subject of an advertisement, or to an advertising agency or endorser whose...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

• “Application.—These guidelines shall apply to— (a) all advertisements regardless of form, format or medium; (b) a manufacturer, service provider or trader whose goods, product...”
• “Conditions for non-misleading and valid advertisement—(1) An advertisement shall be considered to be valid and not misleading, if— (a) it contains truthful and honest...”

Source passage excerpt

(e) “child” means a child as defined in clause (12) of Section 2 of the Juvenile Justice (Care and Protection of Children) Act, 2015 (2 of 2016); (f) “endorser” includes an individual or a group or an institution making endorsement of any goods, product or service in an advertisement whose opinion, belief, finding or experience being the message which such advertisement appears to reflect; (g) “service provider” means a person who provides service of any description to a potential user; (h) “surrogate advertisement” means an advertisement for goods, product or service, whose advertising is otherwise prohibited or restricted by law, by circumventing such prohibition or restriction and portraying it to be an advertisement for other goods, product or service, the advertising of which is not prohibited or restricted by law. 1. Central Consumer Protection Authority, Noti. No. F. No. J-25/4/2020- CCPA (Reg), dated June 9, 2022 and published in the Gazette of India, Extra., Part III, Section 4, dated 9th ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does Misleading Advertisement Guidelines, 2022 state about S.5] GUIDELINES FOR PREVENTION OF MISLEADING 153?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on S.5] GUIDELINES FOR...
• Which source pages support an answer about S.5] GUIDELINES FOR PREVENTION OF MISLEADING 153?

OCR / screenshot source involved

RAG-247 Valid claims

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 3-4 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on Valid claims as described in Misleading Advertisement Guidelines, 2022. Source statement: (2) Notwithstanding anything contained in sub-paragraph (1), if any occasional and unintentional lapse in the fulfilment of an advertised promise or claim occurs while carrying out mass manufacture and distribution of goods, products and services, such unintentional lapse may not invalidate the advertisement, provided— (a)...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “(2) Notwithstanding anything contained in sub-paragraph (1), if any occasional and unintentional lapse in the fulfilment of an advertised promise or claim occurs while...”
- “MISLEADING ADVERTISEMENTS, 2022 (a) such advertisement shall not seek to entice consumers to purchase goods, products or services without a reasonable prospect of selling...”

Source passage excerpt

(e) it does not mislead about the nature or extent of the risk to consumers” personal security, or that of their family if they fail to purchase the advertised goods, product or service; (f) it ensures that the claims that have not been independently substantiated but are based merely on the content of a publication do not mislead consumers; (g) it complies with the provisions contained in any other sector specific law and the rules and regulations made thereunder. (2) Notwithstanding anything contained in sub-paragraph (1), if any occasional and unintentional lapse in the fulfilment of an advertised promise or claim occurs while carrying out mass manufacture and distribution of goods, products and services, such unintentional lapse may not invalidate the advertisement, provided— (a) Such promise or claim is capable of fulfilment by a typical specimen of the product advertised; (b) the proportion of product failures is within the generally acceptable limits; (c) the advertiser has taken prompt action to ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about Valid claims?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Valid claims?
- Which source pages support an answer about Valid claims?

OCR / screenshot source involved

RAG-248

S. 8] GUIDELINES FOR PREVENTION OF MISLEADING 155

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 4-5 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on S. 8] GUIDELINES FOR PREVENTION OF MISLEADING 155 as described in Misleading Advertisement Guidelines, 2022. Source statement: (2) An advertisement shall be considered to be a surrogate advertisement or indirect advertisement, if— (a) such advertisement indicates or suggests directly or indirectly to consumers that it is an advertisement for the goods, product or service whose advertising...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “(2) An advertisement shall be considered to be a surrogate advertisement or indirect advertisement, if— (a) such advertisement indicates or suggests directly or indirectly...”
- “(d) such advertisement does not mislead consumers about the market conditions with respect to the goods, products or services or the lack of their...”

Source passage excerpt

(d) such advertisement does not mislead consumers about the market conditions with respect to the goods, products or services or the lack of their availability in order to induce consumers to purchase such goods, a products or services at conditions less favourable than normal market ks conditions. > 6. Prohibition of surrogate advertising —(1) No surrogate advertisement or] indirect advertisement shall be made for goods or services whose advertising is otherwise prohibited or restricted by law, by circumventing such prohibition or T restriction and portraying it to be an advertisement for other goods or services, the 7 advertising of which is not prohibited or restricted by law. (2) An advertisement shall be considered to be a surrogate advertisement or indirect advertisement, if— (a) such advertisement indicates or suggests directly or indirectly to consumers that it is an advertisement for the goods, product or service whose advertising is prohibited or restricted by law; (b) such advertisement uses any brand name, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about S. 8] GUIDELINES FOR PREVENTION OF MISLEADING 155?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on S. 8] GUIDELINES...
- Which source pages support an answer about S. 8] GUIDELINES FOR PREVENTION OF MISLEADING 155?

OCR / screenshot source involved

RAG-249 Children-targeted advertising

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 5-6 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on Children-targeted advertising as described in Misleading Advertisement Guidelines, 2022. Source statement: (ii) the cost of response, including the price of goods, product or service which the consumer has to purchase to take advantage of such offer, has been increased, except where such increase results from factors unrelated to the cost of promotion; or (iii) the quality...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “(ii) the cost of response, including the price of goods, product or service which the consumer has to purchase to take advantage of such...”
- “Children targeted advertisements.—(1) An advertisement that addresses or targets or uses children shall not— (a) condone, encourage, inspire or unreasonably emulate behaviour that could...”

Source passage excerpt

(ii) the cost of response, including the price of goods, product or service which the consumer has to purchase to take advantage of such offer, has been increased, except where such increase results from factors unrelated to the cost of promotion; or (iii) the quality or quantity of the goods, product or service that a consumer shall purchase to take advantage of the offer has been reduced; (d) not describe an element of a package as free if such element is included in the package price; (e) not use the term ‘free trial’ to describe a ‘satisfaction or your money back’ offer or an offer for which a non-refundable purchase is required. 8. Children targeted advertisements.—(1) An advertisement that addresses or targets or uses children shall not— (a) condone, encourage, inspire or unreasonably emulate behaviour that could be dangerous for children; (b) take advantage of children’s inexperience, credulity or sense of loyalty; (c) exaggerate the features of goods, product or ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about Children-targeted advertising?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Children-targeted advertising?
- Which source pages support an answer about Children-targeted advertising?

OCR / screenshot source involved

RAG-250 Children-targeted advertising

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 6 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on Children-targeted advertising as described in Misleading Advertisement Guidelines, 2022. Source statement: (4) Any advertisement which offers promotional gifts to persuade children to buy goods, product or service without necessity or promotes illogical consumerism shall be discouraged. Source statement: (3) An advertisement for junk foods, including chips, carbonated beverages and such other snacks and drinks shall not...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “(4) Any advertisement which offers promotional gifts to persuade children to buy goods, product or service without necessity or promotes illogical consumerism shall be...”
- “(3) An advertisement for junk foods, including chips, carbonated beverages and such other snacks and drinks shall not be advertised during a program meant...”

Source passage excerpt

(j) make it difficult for children to judge the size, characteristics and performance of advertised products and to distinguish between real life situations and fantasy; (k) exaggerate what is attainable by an ordinary child using the product being marketed; (J) exploit children’s susceptibility to charitable appeals and shall explain the extent to which their participation will help in any charity-linked promotions; (m) resort to promotions that require a purchase to participate and include a direct exhortation to make a purchase addressed to or targeted at children; (n) claim that consumption of a product advertised shall have an effect on enhancing intelligence or physical ability or bring exceptional recognition without any valid substantiation or adequate scientific evidence; (0) claim any health or nutritional claims or benefits without being adequately and scientifically substantiated by a recognized body; 4 (p) be published in any mass media, including advertisement on network & games in respect of medical services, drugs, dietary supplements, ~. medical instruments, ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about Children-targeted advertising?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Children-targeted advertising?
- Which source pages support an answer about Children-targeted advertising?

OCR / screenshot source involved

RAG-251 S. 12] GUIDELINES FOR PREVENTION OF MISLEADING 157

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 7 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on S. 12] GUIDELINES FOR PREVENTION OF MISLEADING 157 as described in Misleading Advertisement Guidelines, 2022. Source statement: Disclaimers in Advertisements.—(1) A Disclaimer in advertisement- (a) may expand or clarify a claim made in such advertisement or make qualifications or resolve ambiguities therein in order to explain such claim in further detail, but such disclaimer shall not...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “Disclaimers in Advertisements.—(1) A Disclaimer in advertisement- (a) may expand or clarify a claim made in such advertisement or make qualifications or resolve ambiguities...”
- “Guidelines not in derogation of other laws.—Where an advertisement is regulated under any other law for the time being in force, including the Press...”

Source passage excerpt

S. 12] GUIDELINES FOR PREVENTION OF MISLEADING 157 ADVERT. ETC. MISLEADING ADVERTISEMENTS, 2022 10. Guidelines not in derogation of other laws.—Where an advertisement is regulated under any other law for the time being in force, including the Press Council Act, 1978 (37 of 1978) and the Cable Television Networks (Regulation) Act, 1995 (7 of 1995) or the rules or regulations made thereunder, the provisions contained in these guidelines shall be in addition to and not in derogation of, such regulation in other laws. 11. Disclaimers in Advertisements.—(1) A Disclaimer in advertisement- (a) may expand or clarify a claim made in such advertisement or make qualifications or resolve ambiguities therein in order to explain such claim in further detail, but such disclaimer shall not contradict the material claim made in the advertisement or contradict the main message conveyed by the advertiser or change the dictionary meaning of the words used in the claims received or perceived by a consumer; (b) shall ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about S. 12] GUIDELINES FOR PREVENTION OF MISLEADING 157?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on S. 12] GUIDELINES...
- Which source pages support an answer about S. 12] GUIDELINES FOR PREVENTION OF MISLEADING 157?

OCR / screenshot source involved

RAG-252 Advertiser duties

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 7-8 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on Advertiser duties as described in Misleading Advertisement Guidelines, 2022. Source statement: MISLEADING ADVERTISEMENTS, 2022 (c) advertisement shall not contain any reference to a person, firm or institution in a manner which confers an unjustified advantage on the product so advertised or tends to bring such person, firm or institution to ridicule or disrepute, unless requisite permission...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “MISLEADING ADVERTISEMENTS, 2022 (c) advertisement shall not contain any reference to a person, firm or institution in a manner which confers an unjustified advantage...”
- “Y”, instead shall clearly indicate a fixed period of guarantee of the product or a fixed price at which the product is being offered...”

Source passage excerpt

12. Duties of manufacturer, service provider, advertiser and advertising agency.—Every manufacturer, service provider, advertiser or advertising agency to whom these guidelines apply shall ensure that— (a) all descriptions, claims and comparisons in an advertisement which relate to matters of objectively ascertainable facts shall be capable of substantiation and produce such substantiation if required by the Central Authority; (b) the advertisement indicates the source and date of independent research or assessment in cases where claims in the advertisement are expressly stated to be based on or supported by such research or assessments; oe . ane _ 158 GUIDELINES FOR PREVENTION OF MISLEADING [S. 13 ADVERT. ETC. MISLEADING ADVERTISEMENTS, 2022 (c) advertisement shall not contain any reference to a person, firm or institution in a manner which confers an unjustified advantage on the product so advertised or tends to bring such person, firm or institution to ridicule or disrepute, unless requisite permission from such person, firm or institution has been obtained by ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about Advertiser duties?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Advertiser duties?
- Which source pages support an answer about Advertiser duties?

OCR / screenshot source involved

RAG-253

S. 15] GUIDELINES FOR PREVENTION OF MISLEADING 159

Source: Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022
Authority/date: Central Consumer Protection Authority (CCPA) | Notification dated 9 June 2022; page numbering in source begins at 152
PDF page(s): 8-9 | Type: CCPA guideline / scanned document

Source-derived abstract

This record focuses on S. 15] GUIDELINES FOR PREVENTION OF MISLEADING 159 as described in Misleading Advertisement Guidelines, 2022. Source statement: Due diligence required for endorsement of advertisements.—(1) Any endorsement in an advertisement must reflect the genuine, reasonably current opinion of the individual, group or organisation making such representation and must be based on adequate information about, or experience with...

Source-status qualification: Scanned copy transcribed with OCR for this knowledge base. Check the original image for any ambiguous OCR characters. The supplied copy alone...

Supporting source statements

- “Due diligence required for endorsement of advertisements.—(1) Any endorsement in an advertisement must reflect the genuine, reasonably current opinion of the individual, group or...”
- “Interpretation —In case of any ambiguity or dispute in interpretation of these guidelines, the decision of the Central Authority shall be final.”

Source passage excerpt

misleading claims for the advertised product. 13. Due diligence required for endorsement of advertisements.—(1) Any endorsement in an advertisement must reflect the genuine, reasonably current opinion of the individual, group or organisation making such representation and must be based on adequate information about, or experience with, the identified goods, product or service and must not otherwise be deceptive. (2) Where, Indian professionals, whether resident in India or otherwise, are barred under any law for the time being in force from making endorsement in any advertisement pertaining to any profession, then, foreigner professionals of such profession shall also be not permitted to make endorsement in such advertisement. Explanation.—For the purposes of this paragraph, “foreigner professional” means a person who is not a citizen of India. 14. Disclosure of material connection—Where there exists a connection between the endorser and the trader, manufacturer or advertiser of the endorsed S. 15] GUIDELINES FOR PREVENTION OF MISLEADING 159 ADVERT. ETC. MISLEADING ADVERTISEMENTS, 2022 product that ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does Misleading Advertisement Guidelines, 2022 state about S. 15] GUIDELINES FOR PREVENTION OF MISLEADING 159?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on S. 15] GUIDELINES...
- Which source pages support an answer about S. 15] GUIDELINES FOR PREVENTION OF MISLEADING 159?

OCR / screenshot source involved

RAG-254

GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF

Source: Guidelines on Fair Trade Practices Related to Charging of Service Charge from Consumers by Hotels/Restaurants
Authority/date: Government of India, Department of Consumer Affairs | 21 April 2017
PDF page(s): 1 | Type: Consumer-affairs guideline

Source-derived abstract

This record focuses on GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF as described in 2017 Service Charge Guidelines. Source statement: J- 24/9/2014-CPU(pt.) Government of India Ministry of Consumer Affairs, Food and Public Distribution (Department of Consumer Affairs) Krishi Bhavan, New Delhi The 21st April, 2017 GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF SERVICE CHARGE FROM CONSUMERS...

Source-status qualification: Historical guideline. Read together with the separately supplied 4 July 2022 CCPA guidelines; the 2017 document cites the then Consumer Protection Act...

Supporting source statements

• “J- 24/9/2014-CPU(pt.) Government of India Ministry of Consumer Affairs, Food and Public Distribution (Department of Consumer Affairs) Krishi Bhavan, New Delhi The 21st April...”

Source passage excerpt

: BY! Zz 1 No. J- 24/9/2014-CPU(pt.) Government of India Ministry of Consumer Affairs, Food and Public Distribution (Department of Consumer Affairs) Krishi Bhavan, New Delhi The 21st April, 2017 GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF SERVICE CHARGE FROM CONSUMERS BY HOTELS/RESTAURANTS Whereas, the Department of Consumer Affairs, Government of India is mandated to ensure that consumers are protected as per the provisions of the Consumer Protection Act, 1986 (hereinafter referred as ‘The Act’); Whereas, a customer visiting a hotel or restaurant for availing its hospitality, which includes buying the food & beverages and availing services connected therewith or incidental thereto for consideration, falls under the definition of consumer as per the Act; Whereas, it has come to the notice of this Department that some hotels and restaurants are charging tips/gratuities from the customers without their express consent in the name of service charges; Whereas, it has also come to the notice of this Department that some ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does 2017 Service Charge Guidelines state about GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on GUIDELINES ON FAIR...
• Which source pages support an answer about GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF?

OCR / screenshot source involved

RAG-255 Service charge

Source: Guidelines on Fair Trade Practices Related to Charging of Service Charge from Consumers by Hotels/Restaurants
Authority/date: Government of India, Department of Consumer Affairs | 21 April 2017
PDF page(s): 1 | Type: Consumer-affairs guideline

Source-derived abstract

This record focuses on Service charge as described in 2017 Service Charge Guidelines. Source statement: Whereas, it has also come to the notice of this Department that in some cases hotels/restaurants are restraining customers from entering the premises if they are not in prior agreement to pay the mandatory —— Whereas, public interest has ance due to a number of...

Source-status qualification: Historical guideline. Read together with the separately supplied 4 July 2022 CCPA guidelines; the 2017 document cites the then Consumer Protection Act...

Supporting source statements

• “Whereas, it has also come to the notice of this Department that in some cases hotels/restaurants are restraining customers from entering the premises if…”
• “Charging for anything other than the afore-mentioned, without express consent of the customer, would amount to unfair trade practice as defined under the Act.”

Source passage excerpt

Whereas, it has also come to the notice of this Department that in some cases hotels/restaurants are restraining customers from entering the premises if they are not in prior agreement to pay the mandatory —— Whereas, public interest has ance due to a number of grievances reported against mandatory levy of service charges by the hotels and restaurants; Now therefore, the Government considers it appropriate to clearly distinguish between the fair and unfair trade practices in respect of service charges, charged by the hotels/restaurants, and issues the following guidelines: (1) A component of service is inherent in provision of food and beverages ordered by a customer. Pricing of the product therefore is expected to cover both the goods and service components. i (2) Placing of an order by a customer amounts to his/her agreement to pay the prices displayed on the menu card along with the applicable taxes. Charging for anything other than the afore-mentioned, without express consent of the … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does 2017 Service Charge Guidelines state about Service charge?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Service charge?
• Which source pages support an answer about Service charge?

OCR / screenshot source involved

RAG-256 Menu prices

Source: Guidelines on Fair Trade Practices Related to Charging of Service Charge from Consumers by Hotels/Restaurants
Authority/date: Government of India, Department of Consumer Affairs | 21 April 2017
PDF page(s): 1 | Type: Consumer-affairs guideline

Source-derived abstract

This record focuses on Menu prices as described in 2017 Service Charge Guidelines.

Source-status qualification: Historical guideline. Read together with the separately supplied 4 July 2022 CCPA guidelines; the 2017 document cites the then Consumer Protection Act...

Supporting source statements

Source passage excerpt

Goat

RAG retrieval prompts

- What does 2017 Service Charge Guidelines state about Menu prices?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Menu prices?
- Which source pages support an answer about Menu prices?

OCR / screenshot source involved

RAG-257 Service charge

Source: Guidelines on Fair Trade Practices Related to Charging of Service Charge from Consumers by Hotels/Restaurants
Authority/date: Government of India, Department of Consumer Affairs | 21 April 2017
PDF page(s): 2 | Type: Consumer-affairs guideline

Source-derived abstract

This record focuses on Service charge as described in 2017 Service Charge Guidelines. Source statement: Therefore, if a hotel/restaurant considers that entry of a customer to a hotel/restaurant amounts to : his/her implied consent to pay a fixed amount of service charge, it is not correct. Source statement: 2 (3) Tip or gratuity paid by a customer is towards hospitality...
Source-status qualification: Historical guideline. Read together with the separately supplied 4 July 2022 CCPA guidelines; the 2017 document cites the then Consumer Protection Act...

Supporting source statements

- “Therefore, if a hotel/restaurant considers that entry of a customer to a hotel/restaurant amounts to : his/her implied consent to pay a fixed amount...”
- “2 (3) Tip or gratuity paid by a customer is towards hospitality received by him/her, beyond the basic minimum service already contracted between him/her...”

Source passage excerpt

2 (3) Tip or gratuity paid by a customer is towards hospitality received by him/her, beyond the basic minimum service already contracted between him/her and the hotel management. It is a separate transaction between the customer and the staff of the hotel or restaurant, which is entered into, at the customer's discretion. (4) The point of time when a customer decides to give a tip/gratuity is not when he/she enters the hotel/restaurant and also not when he/she places his/her order®It is only after completing the meal that the customer is in a position to assess quality of service, and decide whether or not to pay a tip/gratuity and if so, how much. Therefore, if a hotel/restaurant considers that entry of a customer to a hotel/restaurant amounts to : his/her implied consent to pay a fixed amount of service charge, it is not correct. Further, any restriction of entry based on this amounts to a trade practice which imposes an : ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does 2017 Service Charge Guidelines state about Service charge?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Service charge?
- Which source pages support an answer about Service charge?

OCR / screenshot source involved

RAG-258 Consumer complaint routes

Source: Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants
Authority/date: Central Consumer Protection Authority (CCPA), as represented in user-provided screenshots | 4 July 2022
PDF page(s): 1 | Type: CCPA guideline transcribed from screenshots

Source-derived abstract

This record focuses on Consumer complaint routes as described in CCPA Service Charge Guidelines, 4 July 2022.
Source-status qualification: Screenshot-derived summary, not a full verbatim transcript; consult source images to resolve exact wording or formatting.

Supporting source statements

Source passage excerpt

F.No. J-25/57/2022-CCPA. Central Consumer Protection Authority. Krishi Bhawan, New Delhi. Dated 4 July 2022. Subject:

RAG retrieval prompts

- What does CCPA Service Charge Guidelines, 4 July 2022 state about Consumer complaint routes?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer complaint routes?
- Which source pages support an answer about Consumer complaint routes?

OCR / screenshot source involved

RAG-259 Consumer complaint routes

Source: Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants
Authority/date: Central Consumer Protection Authority (CCPA), as represented in user-provided screenshots | 4 July 2022
PDF page(s): 1 | Type: CCPA guideline transcribed from screenshots

Source-derived abstract

This record focuses on Consumer complaint routes as described in CCPA Service Charge Guidelines, 4 July 2022. Source statement: Guidelines to prevent unfair trade practices and protection of consumer interest with regard to levy of service charge in hotels and restaurants. Source statement: The source states that section 18(2)(l) empowers the CCPA to issue necessary guidelines to prevent unfair trade...

Source-status qualification: Screenshot-derived summary, not a full verbatim transcript; consult source images to resolve exact wording or formatting.

Supporting source statements

- “Guidelines to prevent unfair trade practices and protection of consumer interest with regard to levy of service charge in hotels and restaurants.”
- “The source states that section 18(2)(l) empowers the CCPA to issue necessary guidelines to prevent unfair trade practices and protect consumer interests.”

Source passage excerpt

Guidelines to prevent unfair trade practices and protection of consumer interest with regard to levy of service charge in hotels and restaurants. The Central Consumer Protection Authority (CCPA) was established under the Consumer Protection Act, 2019 to regulate matters relating to violations of consumer rights, unfair trade practices and false or misleading advertisements prejudicial to consumer and public interests. The source states that section 18(2)(l) empowers the CCPA to issue necessary guidelines to prevent unfair trade practices and protect consumer interests.

RAG retrieval prompts

- What does CCPA Service Charge Guidelines, 4 July 2022 state about Consumer complaint routes?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer complaint routes?
- Which source pages support an answer about Consumer complaint routes?

OCR / screenshot source involved

RAG-260 Automatic service charge

Source: Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants
Authority/date: Central Consumer Protection Authority (CCPA), as represented in user-provided screenshots | 4 July 2022
PDF page(s): 1 | Type: CCPA guideline transcribed from screenshots

Source-derived abstract

This record focuses on Automatic service charge as described in CCPA Service Charge Guidelines, 4 July 2022. Source statement: It records complaints that hotels and restaurants were adding service charges by default, without informing consumers that payment was voluntary and optional, and sometimes describing the charge under other names. Source statement: The document states that the price of food and…

Source-status qualification: Screenshot-derived summary, not a full verbatim transcript; consult source images to resolve exact wording or formatting.

Supporting source statements

- “It records complaints that hotels and restaurants were adding service charges by default, without informing consumers that payment was voluntary and optional, and sometimes…”
- “The document states that the price of food and beverages covers goods and service components, and that placing an order amounts to agreement to…”

Source passage excerpt

It records complaints that hotels and restaurants were adding service charges by default, without informing consumers that payment was voluntary and optional, and sometimes describing the charge under other names. The document states that the price of food and beverages covers goods and service components, and that placing an order amounts to agreement to pay the menu prices and applicable taxes. It says charging anything beyond that amount without consent may amount to an unfair trade practice under the Act.

RAG retrieval prompts

- What does CCPA Service Charge Guidelines, 4 July 2022 state about Automatic service charge?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Automatic service charge?
- Which source pages support an answer about Automatic service charge?

OCR / screenshot source involved

RAG-261 Automatic service charge

Source: Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants
Authority/date: Central Consumer Protection Authority (CCPA), as represented in user-provided screenshots | 4 July 2022
PDF page(s): 2 | Type: CCPA guideline transcribed from screenshots

Source-derived abstract

This record focuses on Automatic service charge as described in CCPA Service Charge Guidelines, 4 July 2022. Source statement: The 4 July 2022 CCPA guideline states: (i) no hotel or restaurant shall add service charge automatically or by default to the bill; (ii) service charge shall not be collected from consumers by another name; (iii) a hotel or restaurant shall...
Source-status qualification: Screenshot-derived summary, not a full verbatim transcript; consult source images to resolve exact wording or formatting.

Supporting source statements

- “The 4 July 2022 CCPA guideline states: (i) no hotel or restaurant shall add service charge automatically or by default to the bill; (ii)…”

Source passage excerpt

The 4 July 2022 CCPA guideline states: (i) no hotel or restaurant shall add service charge automatically or by default to the bill; (ii) service charge shall not be collected from consumers by another name; (iii) a hotel or restaurant shall not force a consumer to pay service charge and shall clearly inform the consumer that it is voluntary, optional and at the consumer's discretion;

RAG retrieval prompts

- What does CCPA Service Charge Guidelines, 4 July 2022 state about Automatic service charge?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Automatic service charge?
- Which source pages support an answer about Automatic service charge?

OCR / screenshot source involved

RAG-262 Restriction on entry

Source: Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants
Authority/date: Central Consumer Protection Authority (CCPA), as represented in user-provided screenshots | 4 July 2022
PDF page(s): 2 | Type: CCPA guideline transcribed from screenshots

Source-derived abstract

This record focuses on Restriction on entry as described in CCPA Service Charge Guidelines, 4 July 2022. Source statement: (iv) no restriction on entry or provision of services based on collection of service charge shall be imposed; and (v) service charge shall not be collected by adding it along with the food bill and levying GST on the total amount....
Source-status qualification: Screenshot-derived summary, not a full verbatim transcript; consult source images to resolve exact wording or formatting.

Supporting source statements

- "(iv) no restriction on entry or provision of services based on collection of service charge shall be imposed; and (v) service charge shall not..."
- "The source says these guidelines are in addition to, and not in derogation of, the Department of Consumer Affairs guidelines dated 21 April 2017."

Source passage excerpt

(iv) no restriction on entry or provision of services based on collection of service charge shall be imposed; and (v) service charge shall not be collected by adding it along with the food bill and levying GST on the total amount. The source says these guidelines are in addition to, and not in derogation of, the Department of Consumer Affairs guidelines dated 21 April 2017.

RAG retrieval prompts

- What does CCPA Service Charge Guidelines, 4 July 2022 state about Restriction on entry?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Restriction on entry?
- Which source pages support an answer about Restriction on entry?

OCR / screenshot source involved

RAG-263 Consumer complaint routes

Source: Guidelines to Prevent Unfair Trade Practices and Protect Consumer Interest with Regard to Levy of Service Charge in Hotels and Restaurants
Authority/date: Central Consumer Protection Authority (CCPA), as represented in user-provided screenshots | 4 July 2022
PDF page(s): 2 | Type: CCPA guideline transcribed from screenshots

Source-derived abstract

This record focuses on Consumer complaint routes as described in CCPA Service Charge Guidelines, 4 July 2022. Source statement: It describes complaint routes: request the hotel or restaurant to remove the charge; contact the National Consumer Helpline (the source states 1915); complain to the Consumer Commission, including through the e-Daakhil portal; or submit a complaint to the District Collector for...

Source-status qualification: Screenshot-derived summary, not a full verbatim transcript; consult source images to resolve exact wording or formatting.

Supporting source statements

- “It describes complaint routes: request the hotel or restaurant to remove the charge; contact the National Consumer Helpline (the source states 1915); complain to...”
- “This is a structured summary transcribed from user-supplied screenshots, not a full verbatim copy; consult the source image for exact wording, layout and details...”

Source passage excerpt

It describes complaint routes: request the hotel or restaurant to remove the charge; contact the National Consumer Helpline (the source states 1915); complain to the Consumer Commission, including through the e-Daakhil portal; or submit a complaint to the District Collector for investigation and subsequent proceedings by the CCPA. This is a structured summary transcribed from user-supplied screenshots, not a full verbatim copy; consult the source image for exact wording, layout and details not repeated here.

RAG retrieval prompts

- What does CCPA Service Charge Guidelines, 4 July 2022 state about Consumer complaint routes?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Consumer complaint routes?
- Which source pages support an answer about Consumer complaint routes?

OCR / screenshot source involved

RAG-264 Housekeeping

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 1-4 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on Housekeeping as described in COVID-19 Hotel Operational Recommendations. Source statement: Operational Recommendations for Hotels Ministry of Tourism Government of India Hotel & Restaurant Division June 2020 COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) Table of Contents 1. Source statement: Page 3 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines...

Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately...

Supporting source statements

- “Operational Recommendations for Hotels Ministry of Tourism Government of India Hotel & Restaurant Division June 2020 COVID-19 Safety and Hygiene Guidelines for Tourism Sector...”
- “Page 3 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) 2.”

Source passage excerpt

Operational Recommendations for Hotels Ministry of Tourism Government of India Hotel & Restaurant Division June 2020 COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) Table of Contents 1. Introduction 3 2. Guidelines for Hotels 2.1 For Hotel premises 4 2.2 For Staff 5 2.3 For Guests 6 2.4 Specific guidelines per area of operation (i) Reception 7 (ii) Dining/Room service 8 (iii) Room cleaning & Housekeeping 9 Page 2 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) 1. Introduction Given the current COVID-19 outbreak, it is important that all hotels, restaurants and other hospitality units take suitable measures to restrict any further transmission of the virus while providing accommodation and other tourist services post lockdown. The guidelines aim to minimize all possible physical contacts between Staff and Guest and maintain social distancing and other preventive and safety measures against COVID-19. It also endeavors to make the traceability of the guests ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does COVID-19 Hotel Operational Recommendations state about Housekeeping?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Housekeeping?
- Which source pages support an answer about Housekeeping?

RAG-265 Isolation facilities

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 4-5 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on Isolation facilities as described in COVID-19 Hotel Operational Recommendations. Source statement: Page 4 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (vi) Adequate isolation facilities should be kept ready and made available in case of any requirement for the suspected COVID guest or staff. Source statement: (vii)...

Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately...

Supporting source statements

- “Page 4 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (vi) Adequate isolation facilities should...”
- “(vii) For air-conditioning/ventilation, the guidelines of CPWD shall be followed which inter alia emphasizes that the temperature setting of all air conditioning devices should...”

Source passage excerpt

(iii) It is recommended to have Gowns/ Aprons & Personal Protective Gears available 24/7. (iv) All touch points in public areas like door handles, elevator buttons, counter tops, tabletops, railings, etc. are cleaned continuously using a sanitizer/disinfectant. It is advised to use Sodium Hypochlorite 1% solution having at least 70% alcohol to clean these frequently touched points. (v) Posters/standees should be displayed at various location for information and awareness: Emergency helpline numbers - at the reception. Social distancing (6 feet) - Reception & other strategic places. General Information – Reception. Hand Washing - Reception & Inside the room. Respiratory hygiene - Reception & Inside the room. Dos & Don’ts – At all appropriate places. Page 4 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (vi) Adequate isolation facilities should be kept ready and made available in case of any requirement for the suspected COVID guest ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does COVID-19 Hotel Operational Recommendations state about Isolation facilities?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Isolation facilities?
- Which source pages support an answer about Isolation facilities?

RAG-266 Rapid response team

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 5-6 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on Rapid response team as described in COVID-19 Hotel Operational Recommendations. Source statement: Page 5 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (vii) Ensure that staff follow restricted movement (only in cases of work) around rooms. Source statement: (x) The rapid response team should ensure training of...

Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately…

Supporting source statements

- “Page 5 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (vii) Ensure that staff follow…”
- “(x) The rapid response team should ensure training of employees in hygiene and sanitation practices and troubleshooting risks (log of the training/ video record…”

Source passage excerpt

(v) Ensure social distancing is maintained among staff and guests and staff should refraining from hugging & shaking hands with guests as well as among themselves. (vi) Ensure that all staff should wear shoes while operating at the property and shoes should not be opened while cleaning the property. It is advised to wear a disposable shoe cover while cleaning. Page 5 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (vii) Ensure that staff follow restricted movement (only in cases of work) around rooms. (viii) Establishing Rapid Response Team. A management team should be constituted, to be headed by “Rapid Response Leader”, ideally an officer from the higher management or a specially appointed officer and “Rapid Response officers” from each operational department. The team should be responsible to prevent incidents, effectively manage cases and mitigate impact among guests, staff and other involved parties. (ix) The rapid response team should … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

- What does COVID-19 Hotel Operational Recommendations state about Rapid response team?
- What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Rapid response team?
- Which source pages support an answer about Rapid response team?

RAG-267 Guest precautions

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 6-8 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on Guest precautions as described in COVID-19 Hotel Operational Recommendations. Source statement: Standing space signs will be placed on the floor to maintain social distancing. All guests must mandatorily download Aarogya Setu mobile application. Guest details to be sent in advance for guest registration along with government approved identity card, any other information required by…

Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately…

Supporting source statements

• “Standing space signs will be placed on the floor to maintain social distancing. All guests must mandatorily download Aarogya Setu mobile application. ...”
• “Page 6 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (iii) Keep the doors closed...”

Source passage excerpt

(ii) Wear a mask whenever outside the room. Page 6 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) (iii) Keep the doors closed and avoid any contact with the doorknobs. (iv) Always keep a safe distance as per social distancing norms. (v) Wash your hands frequently with the soaps/sanitizers provided. (vi) Put all disposable plates /cups/ bottles after use in the garbage bag. (vii) Guests should not visit containment zone. 2.4 Specific guidelines per area of operation (i) Reception: Ensure check-in formalities are completed in contactless manner (QR code/online forms) to reduce contact and time at the front desk. Guests must be requested to maintain a queue with 6 feet distance between them. Standing space signs will be placed on the floor to maintain social distancing. All guests must mandatorily download Aarogya Setu mobile application. Guest details to be sent in advance for guest registration along with ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does COVID-19 Hotel Operational Recommendations state about Guest precautions?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Guest precautions?
• Which source pages support an answer about Guest precautions?

RAG-268 Dining and room service

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 8-9 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on Dining and room service as described in COVID-19 Hotel Operational Recommendations. Source statement: Page 8 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) It is advisable to use disposable cutlery for all purposes which must be disposed inside a garbage bag. In case of non-disposable…
Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately…

Supporting source statements

• “Page 8 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) It is advisable to…”
• “(iii) Dining/Room Service Gloves should be worn when handling used dishes and utensils. Communication between guests and in-house staff should be strictly…”

Source passage excerpt

 Guests should be briefed about the Do’s & Don’ts while at the hotel. Luggage should be disinfected before sending the luggage to room. (ii) Check-out: Guests should inform at reception using intercom or personal mobile, an hour before the check-out. Payments should be made online or via an online platform with cashless transactions only. (iii) Dining/Room Service Gloves should be worn when handling used dishes and utensils. Communication between guests and in-house staff should be strictly through intercom or mobile phone. Any items required such as water bottle/ toiletries/ medicine/ linen should be given to the guests while maintaining 6 feet distance & trays must be used to avoid hand contact. Physical distancing of minimum 6 feet should be maintained in dining area/ restaurants as well. Page 8 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) It is advisable to use disposable … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does COVID-19 Hotel Operational Recommendations state about Dining and room service?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Dining and room…
• Which source pages support an answer about Dining and room service?

RAG-269 COVID-era requirements

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 9-11 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on COVID-era requirements as described in COVID-19 Hotel Operational Recommendations. Source statement: Light Disinfectant, Daily Light switches to be Switches/ Duster cleaned of dust, spots& Over bed finger marks, clean with a lights damp cloth Over bed lighting to be damp dusted, clean with damp cloth Toilet Pot/ R1/ Soap Whenever Inside Of toilet...
Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately...

Supporting source statements

• “Light Disinfectant, Daily Light switches to be Switches/ Duster cleaned of dust, spots& Over bed finger marks, clean with a lights damp cloth...”
• “ Cleaning of Common areas and other areas- Disinfection of common areas like corridors, elevators, stairs etc. must be done regularly.The requirement of cleaning...”

Source passage excerpt

 Cleaning of Common areas and other areas- Disinfection of common areas like corridors, elevators, stairs etc. must be done regularly.The requirement of cleaning for various areas/ items have been provided in the following table: Area/Item Item/ Frequenc Method/procedure Equipment y General R2/ Detergent Twice a Scrub floors with hot water Cleaning & Warm day & detergent using minimal Water, water Disinfectant Clean with plain water Allow to dry & MOP with disinfectant Page 9 of 12 Ministry of Tourism, Government of India COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) Lockers, Damp Duster Daily Damp dust with regular Tables with disinfectants Cupboard, disinfectant Wardrobes Railings Detergent/ Twice a Damp dust with warm Sanitizer-hot day water & detergent followed water, by disinfection Disinfectant Mirrors & Warm water/ Daily Using warm water & a Glass Detergent small quantity of detergent water/ Cleaning & using a damp cloth, wipe solution damp over the mirror, then ... [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does COVID-19 Hotel Operational Recommendations state about COVID-era requirements?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on COVID-era requirements?
• Which source pages support an answer about COVID-era requirements?

RAG-270 Housekeeping

Source: COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels) / Operational Recommendations for Hotels
Authority/date: Government of India, Ministry of Tourism, Hotel & Restaurant Division | June 2020
PDF page(s): 11-12 | Type: Time-bound public-health operational recommendations

Source-derived abstract

This record focuses on Housekeeping as described in COVID-19 Hotel Operational Recommendations. Source statement: Staff must sanitize their hands or wash their hands with soap before & after the cleaning process. During the cleaning process, guests should stay in the lobby near the room without touching anything. In case of room cleaning after checkout, clean linen and towels…

Source-status qualification: Pandemic-era guidance from June 2020. Do not treat its temporary measures (including app, screening or distancing instructions) as current requirements unless separately…

Supporting source statements

• “Staff must sanitize their hands or wash their hands with soap before & after the cleaning process. During the cleaning process, guests should…”
• “powder & scrubber Toilet Floor R1/ Soap Whenever Scrub with soap powder & /Sink powder, required the scrubbing brush scrubbing Wash with…”

Source passage excerpt

powder & scrubber Toilet Floor R1/ Soap Whenever Scrub with soap powder & /Sink powder, required the scrubbing brush scrubbing Wash with water brush Taps & Warm water, Whenever Wipe over taps & fittings Fittings/ Detergent required with a damp cloth & Shower powder, Nylon detergent area scrubber Care should be taken to clean the underside of taps & fittings Cleaning of rooms: The Guest will have an option to opt out from daily cleaning. Linen should be changed as per the request by the guest. Housekeeping staff must wear masks or PPE (wherever applicable) while cleaning/ deep cleaning. Staff must sanitize their hands or wash their hands with soap before & after the cleaning process. During the cleaning process, guests should stay in the lobby near the room without touching anything. In case of room cleaning after checkout, clean linen and towels to be provided. Linen cleaning Page … [excerpt shortened; full passage retained in JSONL/source appendix]

RAG retrieval prompts

• What does COVID-19 Hotel Operational Recommendations state about Housekeeping?
• What conditions, exceptions, deadlines, values or procedures are stated in the cited passage on Housekeeping?
• Which source pages support an answer about Housekeeping?

SOURCE TEXT EXTRACT: FSSAI Licensing Regulations, 2011

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MINISTRY OF HEALTH AND FAMILY WELFARE
(Food Safety and Standards Authority of India)
Notification
New Delhi, dated the 1st August, 2011

F.No. 2-15015/30/2010 Whereas in exercise of the powers conferred by clause (o) of sub section (2) of section 92 read with section 31 of Food Safety and Standards Act, 2006 (34 of 2006) the Food Safety and Standards Authority of India proposes to make Food Safety and Standards Regulations in so far as they relates to Food Safety and Standards(Licensing and Registration of Food Businesses) Regulations, 2011, and;

Whereas these draft Regulations were published in consolidated form at pages 1 to 776 in the Gazette of India Extraordinary Part III – Sec. 4 dated 20th October 2010 inviting objections and suggestions from all persons likely to be affected thereby before the expiry of the period of thirty days from the date on which the copies of the Gazette containing the said notification were made available to the public;
And whereas the copies of the Gazette were made available to the public on the 21st October 2010;

And whereas objections and suggestions received from the stakeholders within the specified period on the said draft Regulations have been considered and finalized by the Food Safety and Standards Authority of India.

Now therefore, the Food Safety and Standards Authority of India hereby makes the following Regulations, namely,-

FOOD SAFETY AND STANDARDS (LICENSING AND REGISTRATION OF FOOD BUSINESSES), REGULATIONS 2011

CHAPTER 1
GENERAL

1.1: Short title and commencement-

1.1.1: These regulations may be called the Food Safety and Standards (Licensing and Registration of Food Businesses) Regulations, 2011.

1.1.2: These regulations shall come into force on or after 5th August, 2011

1.2: Definitions-

1.2.1: In these regulations unless the context otherwise requires:

1. “Central Licensing Authority” means Designated Officer appointed by the Chief Executive Officer of the Food Safety and Standards Authority of India in his capacity of Food Safety Commissioner.

2. “District” means a revenue district in state and UTs provided that the Commisioner of Food Safety may, for the purpose of this Act declare any local area as a district on the basis of:

z Concentration of specific category of food businesses which may need special attention.

z Risk assessment carried out by the Authority from time to time.

z Any other specific regulatory requirements.

3. “Licensing Authority” means the Designated Officer appointed under section 36 (i) of the Act by the Commissioner of Food Safety of the state or by the Chief Executive Officer of the Food Safety and Standards Authority of India in his capacity of Food Safety Commissioner ;

4. “Petty Food Manufacturer” means any food manufacturer, who

(a) manufactures or sells any article of food himself or a petty retailer, hawker, itinerant vendor or temporary stall holder; or distributes foods including in any religious or social gathering except a caterer; or

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(b) such other food businesses including small scale or cottage or such other industries relating to food business or tiny food businesses with an annual turnover not exceeding Rs 12 lakhs and/or whose
(i) production capacity of food (other than milk and milk products and meat and meat products) does not exceed 100 kg/ltr per day or
(ii) procurement or handling and collection of milk is up to 500 litres of milk per day or
(iii) slaughtering capacity is 2 large animals or 10 small animals or 50 poultry birds per day or less.
5. Registering Authority" means Designated Officer/ Food Safety Officer or any official in Panchayat, Municipal Corporation or any other local body or Panchayat in an area, notified as such by the State Food Safety Commissioner for the purpose of registration as specified in these Regulations.
6. "State Licensing Authority" means Designated Officers appointed under Section 36(1) of the Act by the Food Safety Commissioner of a State or UT.
The expressions used in these Regulations but have not been defined herein shall have the meaning ascribed to them in the Act or as provided in the regulations, chapters and Appendices.

Chapter-2
LICENSING AND REGISTRATION OF FOOD BUSINESS

2. 1 Registration and Licensing of Food Business
All Food Business Operators in the country will be registered or licensed in accordance with the procedures laid down hereinafter;

2.1.1 Registration of Petty Food Business
(1) Every petty Food Business Operator shall register themselves with the Registering Authority by submitting an application for registration in Form A under Schedule 2 of these Regulations along with a fee as provided in Schedule 3.
(2) The petty food manufacturer shall follow the basic hygiene and safety requirements provided in Part I of Schedule 4 of these Regulations and provide a self attested declaration of adherence to these requirements with the application in the format provided in Annexure-1 under Schedule 2.
(3) The Registering Authority shall consider the application and may either grant registration or reject it with reasons to be recorded in writing or issue notice for inspection, within 7 days of receipt of an application for registration.
(4) In the event of an inspection being ordered, the registration shall be granted by the Registering Authority after being satisfied with the safety, hygiene and sanitary conditions of the premises as contained in Part II of Schedule 4 within a period of 30 days.
If registration is not granted, or denied, or inspection not ordered within 7 days as provided in above sub regulation (3) or no decision is communicated within 30 days as provided in above sub regulation (4), the petty food manufacturer may start its business, provided that it will be incumbent on the Food Business Operator to comply with any improvement suggested by the Registering Authority even later.
Provided that registration shall not be refused without giving the applicant an opportunity of being heard and for reasons to be recorded in writing.
(5) The Registering Authority shall issue a registration certificate and a photo identity card, which shall be displayed at a prominent place at all times within the premises or vehicle or cart or any other place where the person carries on sale/manufacture of food in case of Petty Food Business.
(6) The Registering Authority or any officer or agency specifically authorized for this purpose shall carry out food safety inspection of the registered establishments at least once in a year.

Provided that a producer of milk who is a registered member of a dairy Cooperative Society registered under Cooperative Societies Act and supplies or sells the entire milk to the Society shall be exempted from this provision for registration.

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2.1.2 License for food business

(1) Subject to Regulation 2.1.1, no person shall commence any food business unless he possesses a valid license. Provided that any person or Food Business Operator carrying on food business on the date of notification of these Regulations, under a license, registration or permission, as the case may be, under the Acts or Orders mentioned in the Second Schedule of the Act shall get their existing license converted into the license/registration under these regulations by making an application to the Licensing/Registering Authority after complying with the safety requirements mentioned in the Schedule 4 contained under different Parts dependent on nature of business, within one year of notification of these Regulations. In case of difficulty, the licensing authority with the approval of the Food Safety Commissioner in the State will determine the advisability of applying any specific condition keeping in view the need to ensure safety of food and public interest. No license fee will have to be paid for the remaining period of the validity of the earlier license or registration granted under any of the said Acts or Orders. Non-compliance with this provision by a Food Business Operator will attract penalty under section 55 of the Act. Provided further that any food business operator holding Registration/License under any other Act/Order as specified under schedule 2 of the FSS Act, 2006 with no specific validity or expiry date, and other wise entitled to obtain a license under these regulations, shall have to apply and obtain a Registration/License under these Regulations within one year from the date of notification by paying the applicable fees.
(2) Notwithstanding the provisions contained in Regulation 2.1.2(1) above or in any of the registration or license certificates issued under existing Acts or Orders mentioned in the second schedule of the Act, the Licensing Authority, if it has reason to believe that the Food Business Operator has failed to comply with all or any of the conditions of the existing registration or license or the safety requirements given in Schedule 4, may give appropriate direction to the Food Business Operator to comply with.
(3) License for commencing or carrying on food business, which falls under Schedule 1, shall be granted by the Central Licensing Authority, provided that Food Authority may through notification make such changes or modify the list given in the Schedule I as considered necessary.
(4) License for commencing or carrying on food business, which are not covered under Schedule 1, shall be granted by the concerned State/UT's Licensing Authority.
(5) The Food Business Operator shall ensure that all conditions of license as provided in Annexure 2 of Form B in Schedule 2 and safety, sanitary and hygienic requirements provided in the Schedule 4 contained under different Parts depending on nature of business are complied with at all times .
Provided that the Licensing Authority shall ensure periodical food safety audit and inspection of the licensed establishments through its own or agencies authorized for this purpose by the FSSAI.
Provided further that no person shall manufacture, import, sell, stock, exhibit for distribution or sale any article of food which has been subjected to the treatment of irradiation, except under a license obtained from Department of Atomic Energy under the Atomic Energy (Control of Irradiation of Food) Regulations, 1996.

2.1.3 Application for license to the Licensing Authority
An application for the grant of a license shall be made in Form B of Schedule 2 to the concerned Licensing Authority as specified in Regulation 2.1.2 (3) and 2.1.2 (4) and it will be accompanied by a self-attested declaration in the format provided in the Annexure-1 and copies of documents mentioned in the Annexure 2 of Schedule-2 along with the applicable fees prescribed in Schedule 3.

2.1.4 Processing of Application for license
(1) A license shall, subject to the provisions of these Regulations, be issued by the concerned Licensing Authority within a period of 60 days from the date of issue of an application ID number as provided in subsection (3) below.
(2) If, upon scrutiny of the application within 15 days from the date of receipt of the application, the concerned Licensing Authority requires any additional information with respect to an application or if the application is incomplete, the Licensing Authority shall inform the applicant in writing, to furnish such additional information or complete the application, as the case may be, within 30 days from such notice. In case the applicant fails to furnish the required information within the stipulated time of 30 days, the application for license shall stand rejected.

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(3) On the receipt of a complete application including the additional information if asked for, the Licensing Authority shall issue an Application ID number to each applicant that will be referred to in all future correspondence between the Licensing Authority and the applicant.
(4) After the issue of Application ID number the Licensing Authority may direct the Food Safety Officer or any other person or agency specially designated for such functions to inspect the premises in the manner prescribed by the Food Safety and Standard Authority of India in accordance with these Regulations. Such Inspecting Officer or person may issue a notice to the applicant, if it deems fit, guiding food business operator on necessary steps to be taken or changes or alteration to be made in the premises in order to ensure general sanitary and hygienic conditions as specified in Schedule 4. The applicant shall carry out the required steps, changes or alterations and intimate the Licensing Authority within 30 days or such period as may be allowed by the Licensing Authority.
(5) Within a period of 30 days from receipt of an inspection report excluding the time taken by the applicant in complying with the advice, if any, given in the inspection report and verification thereof, the concerned Licensing Authority shall consider the application and may either grant license or reject the application.
Provided that before refusing license an applicant shall be given an opportunity of being heard and the reasons for refusal shall be recorded in writing.
(6) The Licensing Authority shall issue a License in Format C under Schedule 2 of these Regulations, a true copy of which shall be displayed at a prominent place at all times within the premises where the Food Business Operator carries on the food business.

2.1.5 Procedure for License in certain local areas
(1) A single license may be issued by the Licensing Authority for one or more articles of food and also for different establishments or premises in the same local area including collection and chilling units run by milk cooperatives or its members.
(2) The Chief Executive Officer of the Food Safety and Standards Authority of India in the capacity of Food Safety Commissioner may appoint a Designated Officer or Food Safety Officer for Central Government organizations like Railways, Defense etc., which have a large number of food establishments, to ensure food safety in those establishments and to ensure that all other conditions laid down for running food business under the Act and these Regulations are complied with. Provided further that the Food Authority may carry out food safety audit of these establishments once in a year through its own or accredited agencies.

2.1.6 Commencement of Business
An applicant may commence his food business and the concerned licensing Authority shall not deny the applicant to commence such business if, from the date of making the completed application, a license is not issued within 60 days or the applicant has not received any intimation of inadequacy under Regulation 2.1.4(2) or inspection report indicating defects from the concerned Licensing Authority under Regulation 2.1.4(4)

2.1.7 Validity and Renewal of Registration and License
(1) A Registration or license granted under these Regulations shall be valid and subsisting, unless otherwise specified, for a period of 1 to 5 years as chosen by the Food Business Operator, from the date of issue of registration or license subject to remittance of fee applicable for the period and compliance with all conditions of license.
(2) Any application for the renewal of a registration or license granted under these Regulations shall be made in Form A or B of Schedule 2, as the case may be, not later than 30 days prior to the expiry date indicated in the license.
(3) The Registration or License shall continue to be in force till such time that the orders are passed on the renewal application which in no case shall be beyond 30 days from the date of expiry of registration or license.
(4) Any renewal application filed beyond the period mentioned under Regulation 2.1.7 (2) above but before the expiry date, shall be accompanied by a late fee of Rs 100 per day for each day of delay.
(5) Any Registration or license for which renewal has not been applied for within the period mentioned in Regulation 2.1.7 (2) or 2.1.7 (4) above shall expire and the Food Business Operator shall stop all business activity at the premises. The Food Business Operator will have to apply for fresh Registration or license as provided in Regulation 2.1.1 and 2.1.3 as the case may be, if it wants to restart the business.

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(6) Food Business Operator having valid certificate of an accredited food safety auditor or from an agency accredited by Food Authority or any other organisation notified by food Authority for this purpose will not be normally required to be inspected before renewal of license.
Provided that Designated Officer may order an inspection before renewal if considered necessary for reasons to be recorded in writing.

2.1.8 Suspension or cancellation of Registration Certificate or license
(1) The Registering or Licensing Authority in accordance with the provisions of section 32 of the Act may, after giving the concerned Food Business Operator a reasonable opportunity of being heard, suspend any registration or license in respect of all or any of the activities for which the registration/license has been granted under these Regulations after recording a brief statement of the reasons for such suspension, if there is reason to believe that the Food Business Operator has failed to comply with the conditions within the period mentioned in any Improvement Notice served under Section 32 of the Act. A copy of such statement shall be furnished to the concerned Food Business Operator whose Registration or license has been suspended.
(2) The registering or Licensing Authority, as the case may be, may direct an inspection of the Food Business Operator's premise(s) within a reasonable period which shall not be less than 14 days from the date of order of suspension.
(3) In the event that the Registering or Licensing Authority is of the opinion, on a review of the inspection report, that the Food Business Operator has still failed to rectify the defects or omissions or comply with the conditions of the improvement notice causing the suspension, such authority may cancel the license/registration of the Food Business Operator after giving him an opportunity to show cause as provided under Section 32 (3) of the Act.
(4) Notwithstanding anything contained in these Regulations, the Registering or Licensing Authority may suspend or cancel any registration or license forthwith in the interest of public health for reasons to be recorded in writing.
(5) A suspension or cancellation of registration or license under these Regulations shall not entitle the Food Business Operator for any compensation or refund of fee(s) paid in respect of the registration certificate or license or renewal thereof.
(6) After a period of 3 months from the date of cancellation under Regulation 2.1.8 (3) above the Food Business Operator may make fresh application for Registration or license to the concerned authority if all observations made in the improvement notice have been complied with. .

2.1.9 Modifications, Expansion or Changes in premise(s) after grant of license or registration
(1) Food Business Operators shall ensure that the Registering or Licensing Authority always has up-to-date information on their food business establishments and shall inform the relevant Authority of any modifications or additions or changes in product category, layout, expansion, closure, or any other material information based on which the license was granted and such information shall be conveyed before the changes occur.
Provided that any change that alters the information contained in the license certificate shall require an approval or endorsement in license prior to start of business with such changes. The Food Business Operator shall submit the original license to the Licensing Authority along with a fee equivalent to one year license fee for effecting necessary changes. The licensing Authority may approve and issue an amended license incorporating such changes in activities within 30 days from the date of receipt of such information. While approving the afore mentioned changes the concerned registering or Licensing Authority shall take into account the feasibility of carrying on the business and the legal and other relevant aspects of the desired modifications or additions or changes in activities and, if required, may order an inspection of the premises before granting the approval.

2.1.10 Mode of payment:
All fees and charges payable under these regulations shall be paid vide pay order or demand draft or any online mode of payment as may be prescribed in this regard, by the concerned Food Safety Commissioner.

2.1.11 Transfer of registration certificate or License in case of death
(1) In the event of death of the holder of a Registration certificate or license, such certificate or license shall subsist for the benefit of the legal representative or any family member of the deceased or until the expiry of:—

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(a) the period of 90 days from the date of death of the holder of a Registration certificate or license; or

(b) such longer period as the Designated Officer may allow, for reasons to be recorded in writing.

(2) The legal representative or family member of the deceased holder of the registration certificate or license shall apply to the concerned Authority for transfer of such certificate or license in his favour.

(3) The registering or Licensing Authority, as the case may be, may, after making such enquiry as it may deem fit, either approve the transfer of the Registration certificate or license if satisfied that the applicant is the legal representative, or refuse the request. Provided that the registering or licensing authority shall not refuse the request without giving the applicant an opportunity of being heard and for reasons to be recorded in writing.

(4) Upon filing of application for transfer and pending the decision of the authority, the registration or license shall continue to be in force.

2.1.12 Appeal
(1) A Food Business Operator aggrieved by an order of the Registering Authority or Licensing Authority, as the case may be, under these Regulations may prefer an appeal to the concerned Designated Officer or the Food Safety Commissioner, as per provisions laid down under Section 31(8) and 32 (4) - (5) of the Act.

2.1.13 Return
(1) Every licensee shall on or before 31st May of each year, submit a return electronically or in physical form as may be prescribed by the concerned Food Safety Commissioner, in ‘Form D-1’ provided in Schedule 2 of these Regulations to the Licensing Authority in respect of each class of food products handled by him during the previous financial year.

Provided however that every licensee engaged in manufacturing of milk and/or milk products shall file half yearly returns for the periods 1st April to 30th September and 1st October to 31st March of every financial year in the form D-2, as provided in Schedule-2 of these regulations. Such returns will be filed within a month from the end of the period.

(2) A separate return shall be filed for every license issued under the Regulations, irrespective of whether the same Food Business Operator holds more than one license.
(3) Any delay in filing return beyond 31st May of each year shall attract a penalty of Rs 100 per day of delay.

2.1.14 Food Business Operator to be bound by directions or order
(1) Every Food Business Operator to whom any direction or order is issued in pursuance of any provisions of this regulation shall be bound to comply with such directions or regulation and any failure on the part of the Food Business Operator to comply with such direction or order shall be deemed to be contravention of the provisions of these Regulations and will attract legal action under the provisions of the Act.
(2) Guarantee Every manufacturer, distributor or dealer selling an article of food to a vendor shall give either separately or in the bill, cash memo, or label a warranty in Form E. (Refer Form A for form of Guarantee)

2.1.15 Power of State/UT governments to constitute advisory committee
The state/UT Governments, may, if required designate an existing advisory committee at panchayat/district/ state level or where such a committee does not exist, constitute an advisory committee to assist, aid or advise on any matter concerning food safety.

2.1.16: Jurisdiction of Designated officer
The Commissioner of Food Safety shall, by an order, appoint the Designated officer, who shall not be below the rank of a Sub- Divisional Officer, to be in-charge of food safety administration for each district as defined under regulation 1.2.1 (2)

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SCHEDULE 1
[See Regulation 2.1.2 (3)]
List of food business falling under the purview of Central Licensing Authority
I. Dairy units including milk chilling units equipped to handle or process more than 50,000 litres of liquid milk/day or 2500 MT of milk solid per annum.
II. Vegetable oil processing units and units producing vegetable oil by the process of solvent extraction and refineries including oil expeller unit having installed capacity more than 2 MT per day.
III. All slaughter houses equipped to slaughter more than 50 large animals or 150 or more small animals including sheep and goats or 1000 or more poultry birds per day.
IV. Meat processing units equipped to handle or process more than 500 kg of meat per day or 150 MT per annum.
V. All food processing units other than mentioned under (I) to (IV) including relabellers and repackers having installed capacity more than 2 MT/day except grains, cereals and pulses milling units.
VI. 100 % Export Oriented Units.
VII. All Importers importing food items including food ingredients and additives for commercial use.
VIII. All food business operators manufacturing any article of food containing ingredients or substances or using technologies or processes or combination thereof whose safety has not been established through these regulations or which do not have a history of safe use or food containing ingredients which are being introduced for the first time into the country.
IX. Food Business Operator operating in two or more states.
X. Food catering services in establishments and units under Central government Agencies like Railways, Air and airport, Seaport, Defence etc.

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SCHEDULE 2
[See Regulation 2.1.1 and Regulation 2.1.7]
Form 'A'
Application for Registration / Renewal of Registration under Food Safety and Standards Act, 2006

Kind of business:

□ Permanent/Temporary Stall holder
□ Hawker (Itinerant / Mobile food vendor))
□ Home based canteens/dabba wallas
□ Petty Retailer of snacks/tea shops
Photograph of □ Manufacturer/Processor
the Applicant □ Re Packer
□ Food stalls/arrangements in Religious gatherings, fairs etc
□ Milk producers (who are not member of dairy co operative society)/ milk vendor
□ Dhaba
□ Fish/meat/poultry shop/seller
□ Other(s), please specify:_____
(a) Name of the Applicant/Company: _____
(b) Designation
□ Individual
□ Partner
□ Proprietor
□ Secretary of dairy co-operative society.
□ Others (Please specify)
(c) Proof of Identity of applicant: _____
[Note: Please submit a copy of photo ID like Driving License, Passport, Ration Card or Election ID card]
(d) Correspondence address: _____
_____
Tel No:_____Mobile No.:_____
Fax No.:_____Email:_____
[Note: In case the number(s) are a PP or common number(s), please specify the name of the contact person as well]
(e) Area or Location where food business is to be conducted/Address of the premises: _____
_____
(f) Description of the food items proposed to be Manufactured or sold:

S.No. Name of Food category Quantity in Kg per day or M.T. per annum

Please attach separate sheet if required

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(g) Total Annual turnover from the food business, if existing, alongwith any supporting document(s) showing proof of income (*In case of renewal): _____
_____
(h) In case of new business - intended date of start: _____
(i) In case of seasonal business, state the opening and closing period of the year:_____
(j) Source of water supply:
Public supply Private supply Any other source
(k) Whether any electric power is used in manufacture of the food items:
 Yes
 No
If yes, please state the exact HP used or sanctioned Electricity load: _____
(l) I/We have forwarded a sum of Rs.....towards registration fees according to the provision of the Food Safety and Standards (Licensing and Registration) Regulations, 2011 vide:
 Demand Draft no. (payable to _____)
 Cash

(Signature of the Applicant)
Form 'B'
[See Regulation 2.1.2, Regulation 2.1.3 and Regulation2.1.7]
Application for License / Renewal of license under Food Safety and Standards Act, 2006
Kind of business (Please tick more than one, if applicable):
 Manufacturing/Processing including sorting, grading etc.
 Milk Collection/chilling
 Slaughter House
 Solvent extracting unit
 Solvent extracting plant equipped with pre cleaning of oil seeds or pre expelling of oil.
 Solvent extracting and oil refining plant.
 Packaging
 Relabeling (manufactured by third party under own packing and labeling)
 Importing
 Storage/Warehouse/Cold Storage
 Retail Trade
 Wholesale Trade
 Distributor/Supplier
 Transporter of food
 Catering
 Dhabha or any other food vending establishment
 Club /canteen
 Hotel
 Restaurant
 Other(s), please specify:_____

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1. Name of the Company/Organization: _____
2. Registered Office Address: _____
3. Address of Premise for which license is being applied _____
_____
4. Name and/or designation, qualification and address of technically qualified person in charge of operations as required under Regulation .....
Name:
Qualification:
Address:
Telephone Number(s):
Mobile no:
Email:
Photo Identity card no and expiry date
5. Name and/or designation, address and contact details of person responsible for complying with conditions of license (if different from 4 Above):
Name:
Address:
Telephone Number(s):
Mobile no
Email:
Photo Identity card no and expiry date
6. Correspondence address (if different from 3 above)
_____
7. TelNo.:_____ Mobile No.:_____
Fax No:_____ Email:_____
8. Food items proposed to be manufactured:

S.No. Name of Food Item Quantity in Kg per day or M.T. per annum

If required attach separate sheet
If already having valid license- mention annual quantity of each food category manufactured during last three years
9. Installed Capacity food product wise (per day)_____
10. For Dairy units
(i) Location and installed capacity of Milk Chilling Centers (MCC) / Bulk Milk Cooling Centers (BMCs)/ Milk Processing Unit/ Milk Packaging Unit in litres owned or managed by the applicant.

S.No. Name of Food Item Quantity in Kg per day or M.T. per annum

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If required attach separate sheet
(ii) Average Quantity of milk per day to be used/handled in
a. in lean season_____
b. in flush season_____
(iii) Milk products to be manufactured and their manufacturing capacity (tones/year)
1).....
2).....
3).....
11. For Solvent -Extracted Oil, De oiled meal and Edible Flour:
(i) Details of proposed business

Name of From Solvent -Extracted Oil, De oiled meal and Edible Flour Vegetable Oil
Oil bearing seed
material or nut or
cake

Crude Neutralized Neutralized Refined De oiled Edible Flour
& Bleached meal

If already having valid license- mention annual quantity of each product manufactured during last three years
ii) Name and address of factory or factories used by the miller or solvent extractor for processing oil bearing material produced or procured by him or for refining solvent extracted Oil produced by him.
_____
_____
12. Sanctioned electricity load or HP to be used _____
13. Whether unit is equipped with an analytical laboratory _____
If yes the details thereof:_____
14. In case of renewal or transfer of license granted under other laws as per proviso to Regulation 5(1) - period for which license required (1 to 5 years) _____
15. I/We have forwarded a sum of Rs._____ towards License fees according to the provision of the Food Safety and Standards Regulations, 2011 vide:

Demand Draft no (payable to .....)

(Signature of the applicant/authorized signatory)

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Annexure I.
Declaration

I, Mr./Ms./Mrs. _____ S/o / D/o Mr. _____,R/o _____
do hereby solemnly affirm and declare that all information and particulars furnished here by me are true and correct to the best of my knowledge. I further declare that the food business conducted or proposed to be conducted by/through me conforms/shall conform to the Food Safety and Standards Act, Regulations/ Bye-laws enacted there under, and specifically to the Guidelines on Hygiene and Sanitary Practices provided under Schedule 4 of the Registration and Licensing Regulations published by the Food Safety and Standards Authority of India or any person authorized on its behalf from time to time.

Dated:
(Signature)

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Annexure-2

Documents to be enclosed for new application for license to State/Central Licensing Authority

1. Form-B duly completed and signed (in duplicate) by the proprietor/ partner or the authorised signatory
2. Blueprint/layout plan of the processing unit showing the dimensions in metres/square metres and operation-wise area allocation.
3. List of Directors with full address and contact details
4. Name and List of Equipments and Machinery along with the number, installed capacity and horse power used.
5. Photo I.D and address proof issued by Government authority of Proprietor/Partner/Director(s)/Authorised Signatory.
6. List of food category desired to be manufactured. (In case of manufacturers).
7. Authority letter with name and address of responsible person nominated by the manufacturer along with alternative responsible person indicating the powers vested with them viz assisting the officers in inspections, collection of samples, packing & dispatch.
8. Analysis report (Chemical & Bacteriological) of water to be used as ingredient in food from a recognized/ public health laboratory to confirm the portability indicating the name of authorized representative of Lab who collected the sample and date of collecting sample
9. Proof of possession of premises. (Sale deed/ Rent agreement/ Electricity bill, etc.)
10. Partnership Deed/Affidavit/Memorandum & Articles of Association towards the constitution of the firm.
11. Copy of certificate obtained under Coop Act - 1861/Multi State Coop Act - 2002 in case of Cooperatives.
12. NOC from manufacturer in case of Re-labellers
13. Food Safety Management System plan or certificate if any,
14. Source of milk or procurement plan for milk including location of milk collection centres etc in case of Milk and Milk Products processing units.
15. Source of raw material for meat and meat processing plants.
16. Pesticide residues report of water to be used as ingredient in case of units manufacturing Packaged drinking water, packaged Mineral water and/or carbonated water from a recognised/ public health laboratory indicating the name of authorised representative of Lab who collected the sample and date of collecting sample, including source of raw water and treatment plan.
17. Recall plan wherever applicable, with details on whom the product is distributed.
18. NOCs from Municipality or local body and from State Pollution Control Board except in case of notified industrial area.

Documents to be included for renewal or transfer of license given under other existing laws prior to these Regulations

1. Any change in documents or information provided during grant of previous license.
2. Certificate or Plan of Food Safety Management System being adopted (for units under Central Licensing it has to be a certificate from accredited agencies).
3. List of workers with their medical fitness certificates.
4. Name, qualification and details of technical personnel in charge of operation.

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Annexure 3
Conditions of License
All Food Business Operators shall ensure that the following conditions are complied with at all times during the course of its food business.
Food Business Operators shall:
1. Display a true copy of the license granted in Form C shall at all times at a prominent place in the premises.
2. Give necessary access to Licensing Authorities or their authorised personnel to the premises
3. Inform Authorities about any change or modifications in activities /content of license.
4. Employ at least one technical person to supervise the production process. The person supervising the production process shall possess at least a degree in Science with Chemistry/Bio Chemistry/Food and Nutrition/ Microbiology or a degree or diploma in food technology/ Dairy technology/ dairy microbiology/ dairy chemistry/ dairy engineering/ oil technology /veterinary science /hotel management & catering technology or any degree or diploma in any other discipline related to the specific requirements of the business from a recognized university or institute or equivalent.
5. Furnish periodic annual return (1st April to 31st March), within upto 31st May of each year. For collection/ handling/ manufacturing of Milk and Milk Products half yearly returns also to be furnished as specified (1st April to 31st September before 30th November and 1st October to 31st March).
6. Ensure that no product other than the product indicated in the license/ registration is produced in the unit.
7. Maintain factory's sanitary and hygienic standards and worker's Hygiene as specified in the Schedule - 4 according to the category of food business.
8. Maintain daily records of production, raw materials utilization and sales separately.
9. Ensure that the source and standards of raw material used are of optimum quality.
10. Food Business Operator shall not manufacture, store or expose for sale or permit the sale of any article of food in any premises not effectively separated to the satisfaction of the licensing authority from any privy, urinal, sullage, drain or place of storage of foul and waste matter.
11. Ensure Clean-In-Place systems (wherever necessary) for regular cleaning of the machine & equipments.
12. Ensure testing of relevant chemical and/or microbiological contaminants in food products in accordance with these regulations as frequently as required on the basis of historical data and risk assessment to ensure production and delivery of safe food through own or NABL accredited /FSSA notified labs at least once in six months.
13. Ensure that as much as possible the required temperature shall be maintained throughout the supply chain from the place of procurement or sourcing till it reaches the end consumer including chilling, transportation, storage etc.
14. The manufacturer/importer/distributor shall buy and sell food products only from, or to, licensed/registered vendors and maintain record thereof.
Other conditions
1. Proprietors of hotels, restaurants and other food stalls who sell or expose for sale savouries, sweets or other articles of food shall put up a notice board containing separate lists of the articles which have been cooked in ghee, edible oil, vanaspati and other fats for the information of the intending purchasers.
2. Food Business Operator selling cooked or prepared food shall display a notice board containing the nature of articles being exposed for sale
3. Every manufacturer [including ghani operator] or wholesale dealer in butter, ghee, vanaspati, edible oils, Solvent extracted oil, de oiled meal, edible flour and any other fats shall maintain a register showing the quantity of manufactured, received or sold, nature of oil seed used and quantity of de-oiled meal and edible flour used etc. as applicable and the destination of each consignment of the substances sent out from his factory or place of business, and shall present such register for inspection whenever required to do so by the Licensing Authority.
4. No producer or manufacturer of vegetable oil, edible oil and their products shall be eligible for license under this Act, unless he has own laboratory facility for analytical testing of samples.

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5. Every sale or movement of stocks of solvent-extracted oil, 'semi refined' or 'raw grade I', edible groundnut flour or edible coconut flour, or both by the producer shall be a sale or movement of stocks directly to a registered user and not to any other person, and no such sale or movement shall be effected through any third party.
6. Every quantity of solvent-extracted oil, edible groundnut flour or edible coconut flour, or both purchased by a registered user shall be used by him in his own factory entirely for the purpose intended and shall not be re-sold or otherwise transferred to any other person:
Provided that nothing in this sub-clause shall apply to the sale or movement of the following:—
(i) karanjia oil;
(ii) kusum oil;
(iii) mahua oil;
(iv) neem oil;
(v) (vi) tamarind seed oil.
(vii) edible groundnut flour bearing the I.S.I.Certification Mark
(viii) edible coconut flour bearing the I.S.I.Certification Mark
7. No Food Business Operator shall sell or distribute or offer for sale or dispatch or deliver to any person for purpose of sale any edible oil which is not packed, marked and labelled in the manner specified in the regulations unless specifically exempted from this condition vide notification in the official Gazette issued in the public interest by Food Safety Commissioners in specific circumstances and for a specific period and for reasons to be recorded in writing.

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FORM 'C'
License Format
(See Regulation 2.1.4 (6))
Government of India
Food Safety and Standards Authority of India

License under FSS Act, 2006
License No _____
1. Name and Registered Office address of licensee _____
2. Address of authorized premises _____
3. Kind of Business _____
4. For dairy business details of location with address and capacity of Milk Chilling Centers (MCC) / Bulk Milk Cooling Centers (BMCs)/Milk Processing Unit/ Milk Packaging Unit owned by the holder of licensee/RC
5. Category of License:
This license is granted under and is subject to the provisions of FSS Act, 2006 all of which must be complied with by the licensee.

Place: Date:

Stamp and signature of Designated Officer
Food Safety and Standards Authority of India
Validation and Renewal

Renewal Period of License Items of Food products with capacities Installed/ Signature of
Date validity fee paid authorized to Manufacture/ Re-pack/Re-label handling Capacity Designated Officer

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'FORM D-1'
Annual Return
(For business other than Milk and Milk products)
(See Regulation 2.1.13)
1. Name and address of Licensee:-
2. Address of the authorized premises for the manufacturing / Re-Packing / Re-Labelling of food products:
3. License No. .....
4. Statement showing quantities of food products manufactured/handled/imported and exported in Tonnes

Name of the food product manufactured/ handled/imported/ exported.	Size of can / bottle/any other package (like PP) or bulk in Kg	Quantity in MT or Kg of packing	Sale price per unit of packing	Value country or port of Export of package C.I.F. / F.O.B.	Quantity exported	Name of the country	Rate per Kg or per unit	Value	Remarks
1	2	3	4.	5	6	7	8	9	10

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'FORM D-2'
(See Regulation 2.1.13)
Half Yearly Return for Milk and Milk Products
For the period ending
a) 1st April to 30th September
b) 1st October to 31 March
1. Name and address of Licensee:-
2. Address of the authorized premises for the manufacturing milk and milk products:
3. License No. ..... date of issue/validity.....
4. Procurement

Type of milk	Total Qty MT	Total fat MT of milk	Average fat content	Total SNF MT of SNF	Price Rs / kg	Price Rs/kg	Price Rs/kg
1	2	3	4	5	6	7	8
			Fat%	SNF%			
			a	b			
A)Own Sources							
Cow							
Buffalo							
Mixed							
B) Milk supplied by other dairies							
Cow							
Buffalo							
Mixed							
Total A+B							

5. Purchase of Milk Products

Name of Milk Products	Source of purchase	Total quantity purchased (MT)*	Average Fat %	Average SNF%	Quantity used (MT)*	Closing balance (MT)*
1. SMP						
2. WMP						
3. Butter Oil						
4. White Butter						

*Metric Tones

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6. Reconstitution

Utilized for making liquid milk or Whole milk Skimmed milk Butter oil White
milk products powder powder (MT)* butter
(MT)* (MT)* (MT)*

All liquid milks for sale

z In lean season (Apr-Sep)

z In flush season (Oct-Mar)

Other milk products

z In lean season (Apr-Sep)

z In flush season (Oct-Mar)

Sub Total

Grand Total

7. Details of Milk products Manufactured, Sold and Stock position.

Product Name Opening stock Production of Milk Average Sales of milk Closing stock
(Please list out (MT) and milk products products (MT)
the name of (MT)
all products
mentioned
below in
this form) Fat% SNF%
1 2 3 4 5 6

Total

8. Conversion of Milk into Milk Products outsourced to other dairies

Type of milk Quantity (TLPD)* Average Fat % Average SNF % Name of converted Quantity
products (MT)

Cow Milk

Buffalo Milk

Mixed Milk

Concentrated Milk

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9. Milk Marketing

Type of Milk Quantity sold Average Fat % Average SNF% Consumer
*(TLPD) price Rs
per litre

a) Milk sold in Retail

Sub total A

b) Milk sold I bulk
to other dairies

Sub total B

Grand Total A+B

*TLPD Thousand liters per day

10. Statement showing quantities of milk products manufactured and exported in Tonnes with their sale value during the period .....

Name of Size of Qty. in Avg.fat/ Sale Value Qty Name of Rate per Value in Remarks
the milk the can/ M T SNF for Price/kg in Rs. exported/ the kg or / Rs.
products bottle/any milk or per imported country unit of
other products unit of in KG or port packing
package (%) packing of export C.I.F/
(like PP) Rs FOB
or bulk Rs.
package.

1 2 3 4 a 4 b 5 6 7 8 9 10 11

Date:
Signature of the Licensee
A register detailing the above information shall be maintained by each licensee for inspections. '
Name of Milk Products required to be listed in table 8 coloumn no. 1.
Cream Voghurt
White butter Butter milk
Table butter Lassi
Butter oil Paeer
Ghee Khoa
Skimmed milk powder Khoa sweets
Whole milk powder Flavored milk pasteurized
Dairy whitener Flavoured milk sterilized
Infant Milk Food UHT-MILK
Infant formula Ice cream
Malted milk food Casein
Dahi/curd lactorse
Shrikhand/Amarkhand Whey powder
Butter milk powder Any other milk products as lowed in license
Condesned milk

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FORM E
Form of Guarantee
(Refer Regulation 2.1.14(2))
Invoice No. _____ Place:_____
From: _____ Date:_____
To: _____

Date of sale Nature and quality of article/brand name, if any Batch No or Code No. Quantity Price

1 2 3 4 5

I/We hereby certify that food/foods mentioned in this invoice is/are warranted to be of the nature aqnd quality which it/ these purports/purported to be.

Signature of the manufacturer/Distributor/Dealer
Name and address of
Manufacturer/Packer
(in case of packed article)
License No. (wherever applicable)

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SCHEDULE - 3
(See Regulation 2.1.3)
FEE FOR GRANT/ RENEWAL OF LICENSE
REGISTRATION / LICENSE FEE PER ANNUM IN RUPEES

1. Fees for Registration Rs 100
2. Fees for License issued by Central
Licensing Authority: Rs 7500
3. Fees for License issued by State Licensing Authority:
1. Manufacturer /Miller
(i) Above 1MT per day Production or 10,001 to 50,000 LPD of milk or
501 to 2500 MT of milk solids per annum Rs. 5000/—
(ii) Below 1 MT of Production or 501 to 10,000 LPD of milk or 2.5 MT to 500 MT
of milk solids per annum Rs.3000/—
2. Hotels -3 Star and above Rs. 5000/—
3. All Food Service providers including restaurants/boarding houses, clubs etc. serving food,
Canteens (Schools, Colleges, Office, Institutions), Caterers, Banquet halls with food catering
arrangements, food vendors like dabba wallas etc Rs. 2000/—
4. Any other Food Business Operator Rs. 2000/—
The fees paid by any applicant for a license shall not be refundable under any circumstances.
Issue of Duplicate registration or License
(1) Where a registration certificate or license is lost, destroyed, torn, defaced or mutilated, the applicant may apply for a duplicate copy of the registration certificate or license during the validity period, accompanied with a fee amounting to 10% of the applicable License fee.
(2) On receipt of such an application, the Licensing Authority shall grant a duplicate copy of the registration certificate or license, as the case may be to the applicant with the word "Duplicate" appearing prominently thereon.
Mode of Payment
The payment shall be made by the Food Business Operator through Bank draft or online transfer or treasury chalan or any other suitable means as specified by the Licensing Authority.

Schedule 4
(See Regulation 2.1.2)
General Hygienic and Sanitary practices to be followed by Food Business operators
It is hereby recognized and declared as a matter of legislative determination that in the field of human nutrition, safe, clean, wholesome food - is indispensable to the health and welfare of the consumer of the country; that - food is a perishable commodity susceptible to contamination and adulteration; - and that - basic sanitary and hygienic conditions are deemed to be necessary for the production and distribution of milk - Meat products, service establishments etc.
The establishment in which food is being handled, processed, manufactured, stored, distributed by the food business operator whether holder of registration certificate or a license as per the norms laid down in these regulations and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standards as specified below. It shall also be deemed to be the responsibility of the food business operator to ensure adherence to necessary requirements.
These are the basic - compulsory requirements for ensuring safety of the food manufactured in any premise and FBOs shall continuously try to improve the sanitary and hygienic conditions at the premises with a goal of attaining India HACCP standards within a - previously determined period.

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Part I - General Hygienic and Sanitary practices to be followed by Petty Food Business Operators applying for Registration
(See Regulation 2.1.1(2))
In case inspection of the units is directed by the Registering or Licensing Authority, the inspection should confirm that the following measures are adopted by the unit as far as possible:
SANITARY AND HYGIENIC REQUIREMENTS FOR FOOD MANUFACTURER/ PROCESSOR/HANDLER
The place where food is manufactured, processed or handled shall comply with the following requirements:
1. The premises shall be located in a sanitary place and free from filthy surroundings and shall maintain overall hygienic environment. All new units shall set up away from environmentally polluted areas.
2. The premises to conduct food business for manufacturing should have adequate space for manufacturing and storage to maintain overall hygienic environment.
3. The premises shall be clean, adequately lighted and ventilated and sufficient free space for movement.
4. Floors, Ceilings and walls must be maintained in a sound condition. They should be smooth and easy to clean with no flaking paint or plaster.
5. The floor and skirted walls shall be washed as per requirement with an effective disinfectant the premises shall be kept free from all insects. No spraying shall be done during the conduct of business, but instead fly swats/ flaps should be used to kill spray flies getting into the premises. Windows, doors and other openings shall be fitted with net or screen, as appropriate to make the premise insect free The water used in the manufacturing shall be potable and if required chemical and bacteriological examination of the water shall be done at regular intervals at any recognized laboratory.
6. Continuous supply of potable water shall be ensured in the premises. In case of intermittent water supply, adequate storage arrangement for water used in food or washing shall be made.
7. Equipment and machinery when employed shall be of such design which will permit easy cleaning. Arrangements for cleaning of containers, tables, working parts of machinery, etc. shall be provided.
8. No vessel, container or other equipment, the use of which is likely to cause metallic contamination injurious to health shall be employed in the preparation, packing or storage of food. (Copper or brass vessels shall have proper lining).
9. All equipments shall be kept clean, washed, dried and stacked at the close of business to ensure freedom from growth of mould/ fungi and infestation.
10. All equipments shall be placed well away from the walls to allow proper inspection.
11. There should be efficient drainage system and there shall be adequate provisions for disposal of refuse.
12. The workers working in processing and preparation shall use clean aprons, hand gloves, and head wears.
13. Persons suffering from infectious diseases shall not be permitted to work. Any cuts or wounds shall remain covered at all time and the person should not be allowed to come in direct contact with food.
14. All food handlers shall keep their finger nails trimmed, clean and wash their hands with soap, or detergent and water before commencing work and every time after using toilet. Scratching of body parts, hair shall be avoided during food handling processes.
15. All food handlers should avoid wearing, false nails or other items or loose jewellery that might fall into food and also avoid touching their face or hair.
16. Eating, chewing, smoking, spitting and nose blowing shall be prohibited within the premises especially while handling food.
17. All articles that are stored or are intended for sale shall be fit for consumption and have proper cover to avoid contamination.
18. The vehicles used to transport foods must be maintained in good repair and kept clean.
19. Foods while in transport in packaged form or in containers shall maintain the required temperature.
20. Insecticides / disinfectants shall be kept and stored separately and `away from food manufacturing / storing/ handling areas.

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A. SANITARY AND HYGIENIC REQUIREMENTS FOR STREET FOOD VENDORS AND UNITS OTHER THAN MANUFACTURING/PROCESSING

1. Potential sources of contamination like rubbish, waste water, toilet facilities, open drains and stray animals shall be avoided.
2. The surfaces of the Vending carts which come in contact with food or food storage utensils shall be built of solid, rust/ corrosion resistant materials and kept in clean and good condition They shall be protected from sun, wind and dust. When not in use, food vending vans shall be kept in clean place and properly protected.
3. Rubbish bin with cover shall be provided by food stall or vending cart owners for any waste generated in the process of serving and eating by consumers.
4. Working surfaces of vending carts shall be clean, hygienic, impermeable and easy to clean (like stainless steel), and placed at least 60 to 70 cm. from above ground.
5. Sale points, tables, awnings, benches and boxes, cupboards, glass cases, etc. shall be clean and tidy.
6. Cooking utensils and crockery shall be clean and in good condition. It should not be broken/ chipped.
7. All containers shall be kept clean, washed and dried at the close of business to ensure that there is no growth of mould/ fungi and infestation.
8. Water used for cleaning, washing and preparing food shall be potable in nature.
9. Transporting of drinking water (treated water like bottled water, boiled/ filtered water through water purifier etc.) shall be in properly covered and protected containers and it shall be stored in clean and covered containers in a protected area away from dust and filth.
10. Cooking, storage and serving shall not be done in utensils of, cadmium, lead, non food grade plastic and other toxic materials.
11. Utensils shall be cleaned of debris, rinsed, scrubbed with detergent and washed under running tap water after every operation. Wiping of utensils shall be done with clean cloth. Separate cloths shall be used for wiping hands and for clearing surfaces, cloth used for floor cleaning will not be used for cleaning surfaces of tables and working areas and for wiping utensils Person cooking, handling or serving food should use hand gloves and aprons, where necessary. He shall wear head gear and cover his mouth always while at work.
12. Removing dust or crumb from plates or utensils shall be done by using cloth or wiper into dustbin.
13. The person suffering from infectious disease shall not be permitted to work.
14. All food handlers shall remain clean, wear washed clothes and keep their finger nails trimmed, clean and wash their hands with soap/ detergent and water before commencing work and every time after touching food or using toilet.
15. All food handlers should avoid wearing loose items that might fall into food and also avoid touching or scratching their face, head or hair.
16. All articles that are stored or intended for sale shall have proper cover to avoid contamination. Food should be stored only in food grade plastic containers as steel containers to prevent leaking.
17. Eating, chewing, smoking, , spitting and nose blowing shall be prohibited within the premises.
18. Foods shall be prepared or cooked as per the day's requirement to avoid left over which might be used in the next day without ascertaining its safety for consumption or use in food. Consumables left over shall be kept in the refrigerator immediately after their intended use.
19. Adequate number of racks shall be provided for storage of articles of food, with clear identity of each commodity. Proper compartment for each class shall also be provided wherever possible so that there is no cross contamination.
20. Rubbish or garbage bin shall be with a tight cover and shall be cleaned everyday by transferring contents into designated locations.
21. Vegetarian and non-vegetarian items should be segregated.
22. Fridge should be cleaned at least once a week to remove stains, ice particles and food particles. The temperature in the fridge should be in the range of 4°C - 6°C.
23. The location of the vending unit should be in a place approved by the local authorities and not blocking traffic or pedestrians or near unhygienic locations.

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Part-II
(See Regulation 2.1.1(4))
General Requirements on Hygienic and Sanitary Practices to be followed by all Food Business Operators applying for License
The establishment in which food is being handled, processed, manufactured, packed, stored, and distributed by the food business operator and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standards as specified below. It shall also be deemed to be the responsibility of the food business operator to ensure adherence to necessary requirements.
In addition to the requirements specified below, the food business operator shall identify steps in the activities of food business, which are critical to ensure food safety, and ensure that safety procedures are identified, implemented, maintained and reviewed periodically.

1 LOCATION AND SURROUNDINGS
1.1 Food Establishment shall ideally be located away from environmental pollution and industrial activities that produce disagreeable or obnoxious odour, fumes, excessive soot, dust, smoke, chemical or biological emissions and pollutants, and which pose a threat of contaminating food areas that are prone to infestations of pests or where wastes, either solid or liquid, cannot be removed effectively.
1.2 In case there are hazards of other environment polluting industry located nearby, appropriate measures should be taken to protect the manufacturing area from any potential contamination.
1.3 The manufacturing premise should not have direct access to any residential area.

2 LAYOUT AND DESIGN OF FOOD ESTABLISHMENT PREMISES
As far as possible, the layout of the food establishment shall be such that food preparation / manufacturing processes are not amenable to cross-contamination from other pre and post manufacturing operations like goods receiving, pre-processing (viz. packaging, washing / portioning of ready-to-eat food etc).
2.1Floors, ceilings and walls must be maintained in a sound condition to minimize the accumulation of dirt, condensation and growth of undesirable moulds. They should be made of impervious material and should be smooth and easy to clean with no flaking paint or plaster.
2.2Doors shall also be made of smooth and non-absorbent surfaces so that they are easy to clean and wherever necessary, disinfect.
2.3The floor of food processing / food service area shall have adequate and proper drainage and shall be easy to clean and where necessary, disinfect. Floors shall be sloped appropriately to facilitate drainage and the drainage shall flow in a direction opposite to the direction of food preparation / manufacturing process flow.
2.4Adequate control measures should be in place to prevent insects and rodents from entering the processing area from drains.
2.5Windows, doors & all other openings to outside environment shall be well screened with wire-mesh or insect-proof screen as applicable to protect the premise from fly and other insects / pests / animals & the doors be fitted with automatic closing springs. The mesh or the screen should be of such type which can be easily removed for cleaning.
2.6No person shall manufacture, store or expose for sale or permit the sale of any article of food in any premises not effectively separated to the satisfaction of the licensing authority from any privy, urinal, sullage, drain or place of storage of foul and waste matter.

3 EQUIPMENT & CONTAINERS
3.1Equipment and containers that come in contact with food and used for food handling, storage, preparation, processing, packaging and serving shall be made of corrosion free materials which do not impart any toxicity to the food material and should be easy to clean and /or disinfect (other than disposable single use types).
3.2Equipment and utensils used in the preparation of food shall be kept at all times in good order and repair and in a clean and sanitary condition. Such utensil or container shall not be used for any other purpose.
3.3 Every utensil or container containing any food or ingredient of food intended for sale shall at all times be either provided with a properly fitted cover/lid or with a clean gauze net or other material of texture sufficiently fine to protect the food completely from dust, dirt and flies and other insects.

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3.4 No utensil or container used for the manufacture or preparation of or containing any food or ingredient of food intended for sale shall be kept in any place in which such utensil or container is likely by reason of impure air or dust or any offensive, noxious or deleterious gas or substance or any noxious or injurious emanations, exhalation, or effluvium, to be contaminated and thereby render the food noxious.
3.5 Equipment shall be so located, designed and fabricated that it permits necessary maintenance and cleaning functions as per its intended use and facilitates good hygiene practices inside the premise including monitoring and audit.
3.6Appropriate facilities for the cleaning and disinfecting of equipments and instruments and wherever possible cleaning in place (CIP) system shall be adopted.
3.7Equipment and containers for waste, by-products and inedible or dangerous substances, shall be specifically identifiable and suitably constructed.
3.8Containers used to hold cleaning chemicals and other dangerous substances shall be identified and stored separately to prevent malicious or accidental contamination of food.
3.9 If required, a waste water disposal system / effluent treatment plant shall be put in place.
3.10 All items, fittings and equipments that touch or come in contact with food must be:
z kept in good condition in a way that enables them to be kept clean and wherever necessary, to be disinfected.
z Chipped enameled containers will not be used. Stainless steel /aluminum / glass containers, mugs, jugs, trays etc. suitable for cooking and storing shall be used. Brass utensils shall be frequently provided with lining.

4 FACILITIES

4.1 Water supply
4.1.1 Only potable water, with appropriate facilities for its storage and distribution shall be used as an ingredient in processing and cooking.
4.1.2 Water used for food handling, washing, should be of such quality that it does not introduce any hazard or contamination to render the finished food article unsafe.
4.1.3 Water storage tanks shall be cleaned periodically and records of the same shall be maintained in a register.
4.1.4 Non potable water can be used provided it is intended only for cleaning of equipment not coming in contact with food, which does not come into contact with food steam production, fire fighting & refrigeration equipment and provided that pipes installed for this purpose preclude the use of this water for other purposes and present no direct or indirect risk of contamination of the raw material, dairy products or food products so processed, packed & kept in the premise.
4.1.5 Non potable water pipes shall be clearly distinguished from those in use for potable water.

4.2 For Cleaning Utensils / Equipments
Adequate facilities for cleaning, disinfecting of utensils and equipments shall be provided. The facilities must have an adequate supply of hot and cold water if required.

4.3 Washing of Raw materials
Adequate facilities for washing of raw food should be provided. Every sink (or other facilities) for washing food must have an adequate supply of hot and/or cold water. These facilities must be kept clean and, where necessary, disinfected. Preferably, sinks which are used for washing raw foods shall be kept separate and that should not be used for washing utensils or any other purposes.

4.4 Ice and Steam
Ice and steam used in direct contact with food shall be made from potable water and shall comply with requirements specified under 4.1.1. Ice and steam shall be produced, handled and stored in such a manner that no contamination can happen

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4.5 Drainage and waste disposal
4.5.1 Food waste and other waste materials shall be removed periodically from the place where food is being handled or cooked or manufactured to avoid building up. A refuse bin of adequate size with a proper cover preferably one which need not be touched for opening shall be provided in the premises for collection of waste material. This shall be emptied and washed daily with a disinfectant and dried before next use.
4.5.2 The disposal of sewage and effluents (solid, liquid and gas) shall be in conformity with requirements of Factory / Environment Pollution Control Board. Adequate drainage, waste disposal systems and facilities shall be provided and they shall be designed and constructed in such manner so that the risk of contaminating food or the potable water supply is eliminated.
4.5.3 Waste storage shall be located in such manner that it does not contaminate the food process, storage areas, the environment inside and outside the food establishment and waste shall be kept in covered containers and shall be removed at regular intervals.
4.5.4 Periodic disposal of the refuse / waste should be made compulsory. No waste shall be kept open inside the premise and shall be disposed of in an appropriate manner as per local rules and regulations including those for plastics and other non environment friendly materials.

4.6 Personnel facilities and toilets
4.6.1 Personnel facilities shall include those for proper washing and drying of hands before touching food materials including wash basins and a supply of hot and /or cold water as appropriate; separate lavatories, of appropriate hygienic design, for males and females separately; and changing facilities for personnel and such facilities shall be suitably located so that they do not open directly into food processing, handling or storage areas.
4.6.2 Number of toilets should be adequate depending on the number of employees (male /female) in the establishment and they should be made aware of the cleanliness requirement while handling food.
4.6.3 Rest and refreshments rooms shall be separate from food process and service areas and these areas shall not lead directly to food production, service and storage areas.
4.6.4 A display board mentioning do's & don'ts for the workers shall be put up inside at a prominent place in the premise in English or in local language for everyone's understanding.

4.7 Air quality and ventilation
Ventilation systems natural and /or mechanical including air filters, exhaust fans, wherever required, shall be designed and constructed so that air does not flow from contaminated areas to clean areas.

4.8 Lighting
Natural or artificial lighting shall be provided to the food establishment, to enable the employees/workers to operate in a hygienic manner. Lighting fixtures must wherever appropriate, be protected to ensure that food is not contaminated by breakages of electrical fittings.

5 FOOD OPERATIONS AND CONTROLS

5.1 Procurement of raw materials
5.1.1 No raw material or ingredient thereof shall be accepted by an establishment if it is known to contain parasites, undesirable micro-organisms, pesticides, veterinary drugs or toxic items, decomposed or extraneous substances, which would not be reduced to an acceptable level by normal sorting and/or processing.
5.1.2 All raw materials, food additives and ingredients, wherever applicable, shall conform to all the Regulations and standards laid down under the Act.
5.1.3 Records of raw materials, food additives and ingredients as well as their source of procurement shall be maintained in a register for inspection.
5.1.4 All raw materials should be checked & cleaned physically thoroughly.
5.1.5 Raw materials should be purchased in quantities that correspond to storage/ preservation capacity.
5.1.6 Packaged raw material must be checked for 'expiry date'/ 'best before'/ 'use by' date, packaging integrity and storage conditions.

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5.1.7 Receiving temperature of potentially high risk food should be at or below 5 0C
5.1.8 Receiving temperature of frozen food should be -18 0C or below.
5.2 Storage of raw materials and food
5.2.1 Food storage facilities shall be designed and constructed to enable food to be effectively protected from contamination during storage; permit adequate maintenance and cleaning, to avoid pest access and accumulation.
5.2.2 Cold Storage facility, wherever required, shall be provided to raw, processed / packed food according to the type and requirement.
5.2.3 Segregation shall be provided for the storage of raw, processed, rejected, recalled or returned materials or products which will be distinguishably marked and secured. Raw materials and food shall be stored in separate areas from printed packaging materials, stationary, hardware and cleaning materials / chemicals.
5.2.4 Raw food, particularly meat, poultry and seafood products shall be cold stored separately from the area of work-in-progress, processed, cooked and packaged products. The conditions of storage in terms of temperature and humidity requisite for enhancing the shelf life of the respective food materials / products shall be maintained.
5.2.5 Storage of raw materials, ingredients, work-in-progress and processed / cooked or packaged food products shall be subject to FIFO (First in, First Out), FEFO (First Expire First Out) stock rotation system as applicable.
5.2.6 Containers made of non-toxic materials shall be provided for storage of raw materials, work-in-progress and finished / ready to serve products. The food materials shall be stored on racks / pallets such that they are reasonably well above the floor level and away from the wall so as to facilitate effective cleaning and prevent harbouring of any pests, insects or rodents.

5.3 Food Processing / Preparation, Packaging and Distribution / Service

5.3.1.Time and temperature control
5.3.1.1 The Food Business shall develop and maintain the systems to ensure that time and temperature are controlled effectively where it is critical to the safety and suitability of food. Such control shall include time and temperature of receiving, processing, cooking, cooling, storage, packaging, distribution and food service upto the consumer, as applicable.
5.3.1.2 Whenever frozen food / raw materials are being used / handled / transported, proper care should be taken so that defrosted / thawed material are not stored back after opening for future use.
5.3.1.3 If thawing is required then only required portion of the food should be thawed at a time.
5.3.1.4 Wherever cooking is done on open fire, proper outlets for smoke/steam etc. like chimney, exhaust fan etc. shall be provided.

5.4 Food Packaging
5.4.1 Packaging materials shall provide protection for all food products to prevent contamination, damage and shall accommodate required labelling as laid down under the FSS Act & the Regulations there under.
5.4.2 For primary packaging (i.e packaging in which the food or ingredient or additive comes in direct contact with the packaging material), only Food grade packaging materials are to be used . For packaging materials like aluminium plastic and tin, the standards to be followed are as mentioned under the FSS Regulations and rules framed there under.
5.4.3 Packaging materials or gases where used, shall be non-toxic and shall not pose a threat to the safety and suitability of food under the specified conditions of storage and use.

5.5 Food Distribution / Service
5.5.1 All critical links in the supply chain need to be identified and provided for to minimize food spoilage during transportation. Processed / packaged and / or ready-to-eat food shall be protected as per the required storage conditions during transportation and / or service.
5.5.2 Temperatures and humidity which are necessary for sustaining food safety and quality shall be maintained. The conveyances and /or containers shall be designed, constructed and maintained in such manner that they can effectively maintain the requisite temperature, humidity, atmosphere and other conditions necessary to protect food

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conveyances and / or containers used for transporting / serving foodstuffs shall be non toxic, kept clean and maintained in good condition in order to protect foodstuffs from any contamination.
5.5.3 Receptacles in vehicles and / or containers shall not be used for transporting anything other than foodstuffs where this may result in contamination of foodstuffs. Where the same conveyance or container is used for transportation of different foods, or high risk foods such as fish, meat, poultry, eggs etc., effective cleaning and disinfections shall be carried out between loads to avoid the risk of cross- contamination. For bulk transport of food, containers and conveyances shall be designated and marked for food use only and be used only for that purpose.

6 Management and Supervision
6.1 A detailed Standard Operating Procedure (SOP) for the processing of food as well as its packing, despatch and storage will be developed for proper management which in turn would help in identifying any problem and the exact point, so that damage control would be faster.
6.2 The Food Business shall ensure that technical managers and supervisors have appropriate qualifications, knowledge and skills on food hygiene principles and practices to be able to ensure food safety and quality of its products, judge food hazards, take appropriate preventive and corrective action, and to ensure effective monitoring and supervision.

7 Food Testing Facilities
7.1 A well equipped, laboratory for testing of food materials / food for physical, microbiological and chemical analysis in accordance with the specification/standards laid down under the rules and regulations shall be in place inside the premise for regular / periodic testing and when ever required.
7.2 In case of any suspicion or possible contamination, food materials / food shall be tested before dispatch from the factory.
7.3 If there is no in house laboratory facility, then regular testing shall be done through an accredited lab notified by FSSAI . In case of complaints received and if so required, the company shall voluntarily do the testing either in the in-house laboratory or an accredited lab or lab notified by FSSAI.

8 Audit, Documentation and Records
8.1 A periodic audit of the whole system according to the SOP shall be done to find out any fault / gap in the GMP / GHP system.
8.2 Appropriate records of food processing / preparation, production / cooking, storage, distribution, service, food quality, laboratory test results, cleaning and sanitation, pest control and product recall shall be kept and retained for a period of one year or the shelf-life of the product, whichever is more.

9 SANITATION AND MAINTENANCE OF ESTABLISHMENT PREMISES

9.1 Cleaning and Maintenance
9.1.1 A cleaning and sanitation programme shall be drawn up and observed and the record thereof shall be properly maintained, which shall indicate specific areas to be cleaned, cleaning frequency and cleaning procedure to be followed, including equipment and materials to be used for cleaning. Equipments used in manufacturing will be cleaned and sterilized at set frequencies.
9.1.2 Cleaning chemicals shall be handled and used carefully in accordance with the instructions of the manufacturer and shall be stored separately away from food materials, in clearly identified containers, to avoid any risk of contaminating food.

9.2 Pest Control Systems
9.2.1 Food establishment, including equipment and building shall be kept in good repair to prevent pest access and to eliminate potential breeding sites. Holes, drains and other places where pests are likely to gain access shall be kept in sealed condition or fitted with mesh / grills / claddings or any other suitable means as required and animals, birds and pets shall not be allowed to enter into the food establishment areas/ premises.
9.2.2 Food materials shall be stored in pest-proof containers stacked above the ground and away from walls.
9.2.3 Pest infestations shall be dealt with immediately and without adversely affecting the food safety or suitability. Treatment with permissible chemical, physical or biological agents, within the appropriate limits, shall be

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carried out without posing a threat to the safety or suitability of food. Records of pesticides / insecticides used along with dates and frequency shall be maintained.

10 PERSONAL HYGIENE

10.1 Health Status
10.1.1 Personnel known, or believed, to be suffering from, or to be a carrier of a disease or illness likely to be transmitted through food, shall not be allowed to enter into any food handling area . The Food Business shall develop system, whereby any person so affected, shall immediately report illness or symptoms of illness to the management and medical examination of a food handler shall be carried out apart from the periodic checkups, if clinically or epidemiologically indicated.
10.1.2 Arrangements shall be made to get the food handlers / employees of the establishment medically examined once in a year to ensure that they are free from any infectious, contagious and other communicable diseases. A record of these examinations signed by a registered medical practitioner shall be maintained for inspection purpose.
10.1.3 The factory staff shall be compulsorily inoculated against the enteric group of diseases as per recommended schedule of the vaccine and a record shall be kept for inspection.
10.1.4 In case of an epidemic, all workers are to be vaccinated irrespective of the scheduled vaccination.

10.2 Personal Cleanliness
10.2.1 Food handlers shall maintain a high degree of personal cleanliness. The food business shall provide to all food handlers adequate and suitable clean protective clothing, head covering, face musk, gloves and footwear and the food business shall ensure that the food handlers at work wear only clean protective clothes, head covering and footwear every day.
10.2.2 Food handlers shall always wash their hands with soap and clean potable water, disinfect their hands and then dry with hand drier or clean cloth towel or disposable paper at the beginning of food handling activities immediately after handling raw food or any contaminated material, tools, equipment or work surface, where this could result in contamination of other food items or after using the toilet.
10.2.3 Food handlers engaged in food handling activities shall refrain from smoking, spitting, chewing, sneezing or coughing over any food whether protected or unprotected and eating in food preparation and food service areas.
10.2.4 The food handlers should trim their nails and hair periodically, do not encourage or practice unhygienic habits while handling food.
10.2.5 Persons working directly with and handling raw materials or food products shall maintain high standards of personal cleanliness at all times. In particular:
a) they shall not smoke, spit, eat or drink in areas or rooms where raw materials and food products are handled or stored;
b) wash their hands at least each time work is resumed and whenever contamination of their hands has occurred; e.g. after coughing / sneezing, visiting toilet, using telephone, smoking etc.
c) avoid certain hand habits - e.g. scratching nose, running finger through hair, rubbing eyes, ears and mouth, scratching beard, scratching parts of bodies etc.- that are potentially hazardous when associated with handling food products, and might lead to food contamination through the transfer of bacteria from the employee to product during its preparation. When unavoidable, hands should be effectively washed before resuming work after such actions.

10.3 Visitors
10.3.1 Generally visitors should be discouraged from going inside the food handling areas. Proper care has to be taken to ensure that food safety & hygiene is not getting compromised due to visitors in the floor area.
10.3.2 The Food Business shall ensure that visitors to its food manufacturing, cooking, preparation, storage or handling areas must wherever appropriate, wear protective clothing, footwear and adhere to the other personal hygiene provisions envisaged in this section.

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11 PRODUCT INFORMATION AND CONSUMER AWARNESS
All packaged food products shall carry a label and requisite information as per provisions of Food Safety and Standards Act, 2006 and Regulations made there under so as to ensure that adequate and accessible information is available to the each person in the food chain to enable them to handle, store, process, prepare and display the food products safely and correctly and that the lot or batch can be easily traced and recalled if necessary.

12 TRAINING
12.1 The Food Business shall ensure that all food handlers are aware of their role and responsibility in protecting food from contamination or deterioration. Food handlers shall have the necessary knowledge and skills which are relevant to food processing / manufacturing, packing, storing and serving so as to ensure the food safety and food quality.
12.2 The Food Business shall ensure that all the food handlers are instructed and trained in food hygiene and food safety aspects along with personal hygiene requirements commensurate with their work activities, the nature of food, its handling, processing, preparation, packaging, storage, service and distribution.
12.3 Periodic assessments of the effectiveness of training, awareness of safety requirements and competency level shall be made, as well as routine supervision and checks to ensure that food hygiene and food safety procedures are being carried out effectively.
12.4 Training programmes shall be routinely reviewed and updated wherever necessary.

PART-III
(See Regulation 2.1.2.(1)(5))
Specific Hygienic and Sanitary Practices to be followed by Food Business Operators engaged in manufacture, processing, storing and selling of Milk and Milk Products
In addition to Part-II, the dairy establishment in which dairy based food is being handled, processed, manufactured, stored, distributed and ultimately sold by the food business operator, and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standard as specified below.

I. SANITARY REQUIREMENTS
1. Dairy Establishments shall have the following:
(a) Facilities for the hygienic handling and protection of raw materials and of non-packed or non-wrapped dairy products during loading and unloading, transport & storing including Bulk Milk cooling facilities.
(b) Special watertight, non-corrodible containers to put raw materials or dairy products intended for human consumption. Where such raw materials or dairy products are removed through conduits, these shall be constructed and installed in such a way so as to avoid any risk of contamination of other raw materials or dairy products;
(c) a waste water disposal system which is hygienic and approved ;
(d) facilities for cleaning & disinfecting of tanks used for transporting dairy products and raw milk. These containers have to be cleaned after every use.
2. The occupier of a dairy establishment shall take appropriate measures to avoid cross-contamination of dairy products in accordance with the cleaning program as specified in point 9.1 of Part II.
3. Where a dairy establishment produces food stuffs containing dairy products together with other ingredients, which have not undergone heat treatment or any other treatment having equivalent effect, such dairy products and ingredients shall be stored separately to prevent cross-contamination.
4. The production of heat-treated milk or the manufacture of milk-based products, which might pose a risk of contamination to other dairy products, shall be carried out in a clearly separated working area.
5. Equipment, containers and installations which come into contact with dairy products or perishable raw materials used during production shall be cleaned and if necessary disinfected according to a verified and documented cleaning programme.
6. Equipment, containers, instruments and installations which come in contact with microbiologically stable dairy products and the rooms in which they are stored shall be cleaned and disinfected according to a verified and documented Food Safety management programme drawn up by the owner/occupier of the dairy establishment.

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7. Disinfectants and similar substances used shall be used in such a way that they do not have any adverse effects on the machinery, equipment, raw materials and dairy products kept at the dairy establishment. They shall be in clearly identifiable containers bearing labels with instructions for their use and their use shall be followed by thorough rinsing of such instruments and working equipment with potable water, unless supplier's instructions indicate otherwise.

II. PERSONAL HYGIENE REQUIREMENTS
1. The Food Business Operator shall employ those persons only in such an establishment to work directly with and handle raw materials or dairy products if those persons have proved to the occupier's satisfaction by means of a medical certificate, on recruitment, that there is no medical impediment to their employment in that capacity.
2. Persons working directly with and handling raw materials or dairy products shall maintain the highest standards of personal cleanliness at all times. In particular they shall
(a) wear suitable, clean working clothes and headgear which completely encloses their hair;
(b) wash their hands at least each time work is resumed and whenever contamination of their hands has occurred; e.g. after coughing / sneezing, visiting toilet, using telephone, smoking etc.
(c) cover wounds to the skin with a suitable waterproof dressing. No person with injury on hand, even with dressing, shall be placed in any product making/handling section.
(d) avoid certain hand habits - e.g. scratching nose, running finger through hair, rubbing eyes, ears and mouth, scratching beard, scratching parts of bodies etc. that are potentially hazardous when associated with handling dairy products, and might lead to food contamination through the transfer of bacteria from the employee to product during its preparation. When unavoidable, hands should be effectively washed before resuming work after such actions

III. .SANITARY REQUIREMENTS FOR STORAGE
1. Immediately after procuring, raw milk shall be placed in a clean place, which is suitably equipped so as to prevent any kind of contamination.
2. The cans/ containers made up of mild steel metal and plastic material used for storage and transportation of milk and milk products shall not be allowed.
3. If raw milk is brought to the dairy plant by a producer or farmer then it shall be ensured that he brings it within four hours of milking and it shall be cooled as soon as practicable to a temperature of 4ºC or lower and maintained at that temperature until processed.
4. Where raw milk is collected daily from a producer, it shall be cooled immediately to a temperature of 4ºC to 6ºC or lower and maintained at that temperature until processed;
5. When the pasteurization process is completed, pasteurized milk shall be cooled immediately to a temperature of 4ºC or lower.
6. Subject to Paragraph 7 below, any dairy product not intended to be stored at ambient temperature shall be cooled as quickly as possible to the temperature established by the manufacturer of that product as suitable to ensure its durability and thereafter stored at that temperature.
7. Where dairy products other than raw milk are stored under cooled conditions, their storage temperatures shall be registered and the cooling rate shall be such that the products reach the required temperature as quickly as possible.
8. The maximum temperature at which pasteurized milk may be stored until it leaves the treatment establishment shall not exceed 5ºC.

IV. WRAPPING AND PACKAGING
1. The wrapping and packaging of dairy products shall take place under satisfactory hygienic conditions and in rooms provided for that purpose.
2. The manufacture of dairy products and packaging operations may take place in the same room if the following conditions are satisfied: —
(a) The room shall be sufficiently large and equipped to ensure the hygiene of the operations;
(b) the wrapping and packaging shall have been brought to the treatment or processing establishment in protective cover in which they were placed immediately after manufacture and which protects the wrapping or

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packaging from any damage during transport to the dairy establishment, and they shall have been stored there under hygienic conditions in a room intended for that purpose;
(c) the rooms for storing the packaging material shall be free from vermin and from dust which could constitute an unacceptable risk of contamination of the product and shall be separated from rooms containing substances which might contaminate the products. Packaging shall not be placed directly on the floor;
(d) packaging shall be assembled under hygienic conditions before being brought into the room, except in the case of automatic assembly or packaging, provided that there is no risk of contamination of the products;
(e) packaging shall be done without delay. It shall be handled by separate group of staff having experience in handling and product wrapping and
(f) immediately after packaging, the dairy products shall be placed in the designated rooms provided for storage under required temperature.
3. Bottling or filling of containers with heat-treated milk and milk product shall be carried out hygienically.
4. Wrapping or packaging may not be re-used for dairy products, except where the containers are of a type which may be re-used after thorough cleaning and disinfecting.
5. Sealing shall be carried out in the establishment in which the last heat-treatment of milk or liquid milk-based products have been carried out, immediately after filling, by means of a sealing device which ensures that the milk is protected from any adverse effects of external origin on its characteristic. The sealing device shall be so designed that once the container has been opened, the evidence of opening remains clear and easy to check.

PART IV
(See Regulation 2.1.2 (1)(5))
Specific Hygienic and Sanitary Practices to be followed by Food Business Operators engaged in manufacture, processing, storing and selling of Meat and Meat Products

A. Slaughter House
Food Business Operator which slaughters large animals and small animals including sheep and goat or poultry birds within the premises of his factory for production of meat/ meat products for supply / sale/ distribution to the public shall comply with the following requirements:—

1. General Requirements:
1.1 No Objection Certificate to be obtained from local Authority before grant of license.

2. Location of Premises:
Such establishments / Slaughter Houses should be linked to a meat market located away from Vegetable, fish or other food markets and shall be free from undesirable odour, smoke, dust or other contaminants. The premises shall be located at elevated level in a sanitary place.

3. Premise requirements:
3.1 The slaughter house shall have a reception area/animal holding yard/resting yard, lairage, slaughter hall, side halls for hide collection, paunch collection, offals collection, and separation, holding room for suspected/ condemned carcass, by-product harvesting, refrigeration room/cold room etc.
3.2 Every such establishment / Slaughter House shall make separate provision in the slaughter hall for the slaughter of different species which are proposed to be slaughtered (like large animal viz; Cattle and Buffalo, Pigs and small animals like Sheep & Goat) and for different methods of slaughter (like Halal, Jewish and Jhatka). After every type of operation the slaughter house shall be cleaned, washed wiped/dried and sanitized thoroughly.
3.3 The slaughter house shall have separation between clean and dirty sections and shall be so organized that from the introduction of a live animal into the slaughter house up to the emergence of meat and offal classed as fit for human consumption there shall be a continuous forward movement without any possibility of reversal, intersection or overlapping between the live animal meat, and between meat and bye products or waste.

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3.4 The reception area/animal holding yard/ resting yard shall have facilities for watering and examining animals before they are sent to holding pens/lairage. Animals suspected of contagious or infectious diseases shall be segregated and kept in separate isolation pens which shall also be provided with arrangements for watering and feeding. After confirmation for any notifiable disease, the designated Veterinary Authority shall notify the disease as per the existing procedures. The resting yard must have overhead protective shelter.(This is not mandatory for registration category)
3.5 The lairage shall be adequate in size for the number of animals to be laired.
3.6 Separate space shall be provided for stunning (Wherever applicable), for collection of blood and for dressing of the carcasses. The slaughtering of an animal shall not be done in the sight of other animals. The dressing of the carcass shall not be done on the floor. Suitable hoists will be provided to hang the carcass before it is eviscerated.
3.7 All the floors in lairage, slaughter halls, work rooms, hanging rooms shall be of impervious and non-slippery material.
3.8 The internal walls will be paved with impervious glazed tiles up to 1 meter height in case of poultry and small ruminant animals and 5 meter height in case of large ruminant animals . The walls and floors should be epoxy coated so as to avoid accumulation/absorption of dust, blood/meat particles, microbial/fungal growth.
3.9 Ceiling or roofs shall be so constructed and finished so as to minimise condensation, mould development, flaking and accumulation of dirt.
3.10 Suitable and sufficient accommodation shall be provided for segregation, storage and disposal of condemned meat.
3.11 The establishments / Slaughter Houses shall be so constructed and maintained as to permit hygienic production.
3.12 Windows, doors and other openings suited to screening shall be fly proof. All doors shall have strong springs so that they may close automatically.
3.13 All operations in connection with the preparation or packing of meat / meat food products shall be carried out under hygienic conditions. No portion of the establishments / Slaughter Houses premises shall ever be used for living or sleeping purposes unless it is separated from the factory by a wall.
3.14 There shall be efficient drainage and plumbing systems and all drains and gutters shall be properly and permanently installed. There shall be provision for the disposal of refuse.
3.15 The drainage system for blood shall either be underground with facility for easy cleaning or a portable receptacle with lid. All drainages will have traps and screens so as to prevent entry of scavengers like rats, mice, vermin etc.
3.16 The rooms and compartments where edible products are handled shall be separate and distinct from the rooms and compartments for inedible products.
3.17 Suitable and separate space shall be provided for the storage of hides and skins. This room shall have a separate exit.
3.18 A constant and sufficient supply of clean potable cold water with pressure hose pipes and supply of hot water should be made available in the slaughter hall during working hours.
3.19 Suitable and sufficient facilities shall be provided for persons working in the slaughter house for changing their clothes and cleaning their footwear, and cleaning their hands before entering rooms used for the preparation and storage of meat.
3.20 Provision for latrines, toilets and change rooms will be made . Sufficient number of latrines, urinals, washbasins and bathrooms for each sex shall be provided.
3.21 Suitable and sufficient facilities shall be provided in convenient places within the slaughter house for the sterilisation of knives and sharpner (mushtala) and other equipment used in the slaughter house. The knives and sharpner (mushtala) shall be of stainless steel only.
3.22 Whenever cooking is done on open fire, chimneys shall be provided for removal of smoke and soot.
3.23 Whenever the dressed meat is not used up for the preparation of meat food products and some portion has to be stored without further immediate processing, such storage shall be in a room maintained at 0° C to 2°C.

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3.24 All slaughter house refuse and waste materials will be suitably processed to prepare animal bye products or dumped in pits that are suitably covered so as to prevent its access to scavengers. For large slaughter houses, a suitable provision of Effuent Treatment Plant will be made.
3.25 In case of small slaughter houses, waste material should be composted which can be used for manure purpose and in case of large slaughter houses, waste material should be rendered (cooked) in a rendering plant to produce meat, bone meal and inedible fats.
3.26 Suitable and sufficient facilities shall be provided for the isolation of meat requiring further examination by the authorised veterinary officer in a suitable laboratory (within the premises of the slaughter house).
3.27 Consistent with the size of the factory and volume and variety of meat food products manufactured, a laboratory shall be provided, equipped and staffed with qualified (chemist/analyst and Veterinary Microbiologist) and trained personnel. The licensing authority shall accord approval of the laboratory after inspection.
3.28 The Chemist/analyst shall have passed graduation with Chemistry as one subject and the. Veterinary Microbiologist shall be a qualified veterinarian with two years of experience in Meat analysis or having degree of Master in Veterinary Public Health with specialization in Meat Hygiene.
3.29. Adequate natural or artificial lighting should be provided throughout the abattoir/ meat processing unit. Where appropriate, the lighting should not alter colours and the intensity should not be less than 540 Lux (50 foot candles) at all inspection points, 220 Lux (20 foot candles) in work rooms and 110 Lux (10 foot candles) in other areas. Light bulbs and fixtures suspended over meat in any stage of production should be of safety type and protected to prevent contamination of meat in case of breakage. As far as possible meat inspection shall be carried out in day light. Every abattoir shall be provided with well distributed artificial light.

4. Sanitary Practices:
4.01 Every part of the internal surface above the floor or pavement of such slaughter house shall be washed thoroughly with hot lime wash within the first 10 days of March, June, September and December. Every part of the floor or pavement of the slaughter house and every part of the internal surface of every wall on which any blood or liquid refuse or filth may have been spilt or splashed or with which any offensive or noxious matter have been brought into contact during the process of slaughtering, dressing and cutting, shall be thoroughly cleaned, washed with water, wiped/dried and disinfectant within three hours after the completion of slaughter.
4.02 Rooms and compartments in which animals are slaughtered or any product is processed or prepared shall be kept sufficiently free from steam, vapours and moisture and obnoxious odours so as to ensure clean and hygienic operations. This will also apply to overhead structures in those rooms and compartments.
4.03 All parts of the establishments / Slaughter Houses shall always be kept clean, adequately lighted and ventilated and shall be regularly cleaned, and disinfected. The floorings shall be impervious and washed daily. Lime washing, colour washing or painting as the case may be, shall be done at least once in every twelve months.
4.04 All yards, outhouses, stores and all approaches to the establishments / Slaughter Houses shall always be kept clean and in a sanitary condition.
4.05 Suitable and sufficient receptacles furnished with closely fitted covers shall be provided for collection and removal of all garbage, filth and refuse from the slaughter house at a convenient time to a place away from the factory for disposal.
4.06 All blood , manure, garbage, filth or other refuse from any animal slaughtered and the hide, fat, viscera and offal there from, shall be removed from the slaughter house within 8 hours after the completion of the slaughtering and in such a manner and by such means as will not cause nuisance at the premises or elsewhere. Every such vessel or receptacle shall be thoroughly cleaned and disinfected immediately after use and shall be kept thoroughly clean when not in actual use.
4.07 The inner side of the skin shall not be rubbed or caused to be rubbed upon the ground within any portion of the slaughter hall. Hides and skins shall not be dragged within the slaughter hall. No gut-scraping, tripe cleaning, manufacture or preparation of meat food products, household washing of clothes or work of any nature other than is involved in the slaughter and dressing of the carcass shall be permitted in any slaughter hall except in the adjuncts to the slaughter hall intended for these products and purposes.
4.08 The premises shall be cleaned thoroughly with disinfectants, one day in advance of production of meat food products and the equipments shall be sterilized/sanitized before use. The rooms and compartments in which

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any meat food product is prepared or handled shall be free from dust and from odours emanating from dressing rooms, toilet rooms, catch basins, hide cellars, casing rooms and livestock pens.
4.09 Every practicable precaution shall be taken to exclude flies, rats, mice and vermin from the establishments / Slaughter Houses. The use of poisons for any purpose in rooms or compartments where any unpacked product is stored or handled is forbidden. The use of approved bait poisons in hide cellars, compartments where inedible products are stored, outhouses or similar buildings containing canned products is, however, not forbidden.
4.10 It shall be ensured that dogs, cats or birds do not have access to the slaughter hall. Open areas in the factory shall have covered wire rope netting to prevent carrion birds from access to the slaughter hall or the factory.
4.11 Water used in the establishments / Slaughter Houses shall be potable and suitable arrangements shall be made for ensuring potability of water if bore well water is used for production of meat and meat products. If required by the licensing authority, the water shall be got examined chemically and bacteriologic ally by a recognised laboratory. The water quality shall comply the standards prescribed by the licensing Authority.
4.12 Warm meat' meant for immediate sale need not be stored in cool conditions. It can be transported in a hygienic and sanitary condition in clean insulated containers with covers (lids) to the meat shops/selling units with precautions to ensure that no contamination/cross contamination or deterioration takes place.

5. Equipment & Machinery:
5.1 The equipment and fittings in slaughter hall except for chopping blocks, cutting boards and brooms, shall be of such material and of such construction as to enable them to be kept clean. The implements shall be of metal or other cleanable and durable material resistant to corrosion.
5.2 No vessel, container or other equipment, the use of which is likely to cause metallic contamination injurious to health shall be employed in the preparation, packing or storage of meat food products. (Copper or brass vessels shall always be heavily lined. No iron or galvanised iron shall come in contact with meat food products).

6. Personnel Hygiene:
6.1 No person suffering from infectious or contagious diseases shall be allowed to work in the factory. Arrangements shall be made to get the factory staff medically examined at such intervals as the licensing authority deems fit, to ensure that they are free from infectious, contagious and other diseases. A record of these examinations signed by a registered medical practitioner shall be maintained for inspection.
6.2 The staff shall be inoculated against the enteric group of diseases and a certificate thereof shall be kept for inspection.
6.3 In case of an epidemic, all workers should be inoculated or vaccinated.
6.4 The workers working in processing and preparation shall be provided with proper aprons and head wears which shall be clean. The management shall ensure that all workers are neat, clean and tidy.
(a) Animal Welfare
Animal welfare is a major concern in meat production. It is essential that animals be reared, handled, transported, and slaughtered using humane practices. A healthy and peaceful animal is an essential requirement for hygienic slaughter and safety of the meat product.
Careful handling of animals during loading / unloading, transportation and at slaughtering helps in improving the quality of meat and reduction in losses in the value of the carcass/meat.

1. Pre Slaughter Handling of Animal:
Livestock are transported en masse from the farm to the slaughterhouse, a process called "live export". Depending on its length and circumstances, this exerts stress and injuries on the animals and some may die en route. Apart from being inhumane, unnecessary stress in transport may adversely affect the quality of the meat. In particular, the muscles of stressed animals are low in water and glycogen, and their pH fails to attain acidic values.

Transportation of Animals
Following requirements shall be satisfied for Transportation of Animals from a farm to the slaughter house.
1.0 General Conditions

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1.1 Only healthy animals in good condition shall be transported unless they are meant for emergency slaughter. These animals should be certified by a qualified veterinary inspector for freedom from infectious diseases and ecto-parasitic diseases and their fitness to undertake the journey.
1.2 When animals are to be transported from endemic areas of a disease to non-endemic areas, the animals should be given protective vaccination and kept in quarantine for 30 days, before transportation.
1.3 Female animals in advanced stages of pregnancy shall not be transported.
1.4 When transporting large animals particularly bears/bulls, special arrangements by providing suitable partitions should be made to protect the animals from infighting. Similar arrangements should also be made to protect the young ones from being crushed when they are transported.
1.5 To avoid exhaustion, the animals shall be given humane treatment and care during transportation. The animals shall not be bound or chained during transit and space provided for them shall be large enough to stand or lie.
1.6 An attendant along with first aid equipment shall accompany the animals in transit.
1.7 Before loading, the animals should not be fed heavily. Only light feed may be allowed. For journeys less than 12 hours no feed need be carried but for longer journeys sufficient feed shall be carried to last during the journey. Watering facilities shall be provided at regular intervals.
1.8 Light and heavy animals shall be separated by providing partitions; animals from different pens/sheds shall not be mixed during transportation. Male stock shall not be transported with female stock (adults).
1.9 All vehicles should be inspected for safety, suitability and cleanliness before loading the animals. The floor and walls should be undamaged and there should be no nails or sharp projections which may injure the animals.
1.10 The Vehicles should be thoroughly sprayed with suitable disinfectant before loading the animals.
1.11 A layer of clean sand to cover the floor to a thickness of not less than 6 cm shall be provided. This layer of sand shall be moistened with water during the summer months. During hot months arrangements shall be made to sprinkle water on the animals at frequent intervals. In winter, a 2-cm layer of clean sand with another 6-cm layer of whole-straw shall be provided.
1.12 Animals when driven for loading or unloading shall never be struck with stick. Driving could best be done by soft-rubber pipe.
1.13 If animals are to be transported in extreme cold or hot climate, it is preferable to transport them in covered Lorries on road so that they may not die or get exhausted or suffer from acute respiratory disease. Journey under such adverse climate shall be minimised.
1.14 Each consignment should bear a label showing the following particulars:
a) Number and kind of the animals loaded;
b) Name, address and telephone number, if any, of the consignor;
c) Name address and telephone number, if any, of the consignee;
d) Instructions regarding feeding and watering.

2.0 Loading
2.1 Loading during extremes of temperatures shall be avoided.
2.2 Suitable ramp shall be provided for loading and unloading the animals. The floor of the ramp shall have cleats at intervals, so that animals do not slip as they climb or descend. The ramp shall be covered with straw to avoid slipping. At any time of loading and unloading the vehicle shall be kept clean to avoid slipping of animals. Bale
2.3 In case of railway wagons when loading is done on the platform, the door of the wagon may be used as ramp. In such cases, bales or bags of hay, agricultural wastes etc. may be placed on the either side of the dropped door to prevent the animals from getting their legs between the sides of the wagons and platform.

3.0 Space Requirements
3.1 Overcrowding shall be avoided. Each animal shall have enough space to lie down.

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3.2 Railway wagons shall not accommodate more animals than those specified in IS specifications.
3.3 The speed of truck transporting animals shall not exceed 40 kilometres per hour, avoiding jerks and jolts. The truck shall not load any other merchandise and shall avoid unnecessary stops on the road.
3.4 For journeys, exceeding 12 hours, the animals shall be transported by railway. Loading shall be done by evening.

4.0 Slaughter:
Animals are slaughtered by being first stunned and then exsanguinated (bled out). Stunning can be effected through asphyxiating the animals with carbon dioxide, shooting them with a gun or a captive bolt pistol, or shocking them with electric current.

4.1. Stunning:
Stunning before slaughter should be mandatory. By inducing unconsciousness and insensibility, stunning can avoid and minimise reactions of fear and anxiety as well as pain, suffering and distress among the animals concerned. Stunning methods induce temporary loss of consciousness and rely on prompt and accurate sticking procedures to cause death.
It is important that the equipment utilized for stunning and slaughter is maintained in good working condition and that all operators involved are well trained and have a positive attitude towards the welfare of animals.
Electrical stunning consists of passing electricity through the brain to produce instantaneous insensibility.
The following method of slaughter shall be considered humane:—
(i) Mechanical stunning of cattle may be carried out by one of three methods; captive bolt stunning, mushroom head percussive stunning and pneumatic percussive stunning. For cattle, pneumatic stunning should be preferred and the optimum position is that the centre of the stunner should contact the animal at a point of intersection of lines drawn from the medial corners of the eyes and the base of the ears. The best position for pigs is on the midline just above eye level, with the host directed down the line of the spinal cord. The optimum position for sheep and goat is behind the poll, aiming towards the angle of the jaw. If an animal shows signs of regaining consciousness after the initial stun, the animal must be immediately killed by the use of a captive bolt gun.
(ii) Electrical stunning - Electrical Head Stunners may be preferred for sheep and goat where both electrodes are placed on the head region. Water bath electrical stunning may be used for poultry birds. A low and controlled voltage must be maintained so that the stunning will not damage the heart and brain or cause physical disability and death to the animals. The minimum current level recommended for stunning are indicated in the table below.

Species Minimum current levels for head-only stunning

Cattle 1.5 Amps
Calves (bovines of less than 6 month of age) 1.0 Amps
Pigs 1.25 Amps
Sheep and goats 1.0 Amps
Lambs 0.7 Amps
Broilers 100 milli Amps
Turkeys 150 milli Amps

(iii) Gas stunning - Stunning of pigs by exposure to carbon dioxide (CO_2) may be preferred. The concentration of CO_2 should be 90% by volume but shall not be less than 80% by volume. Ideally pigs should be exposed for 3 minutes. Sticking should be done immediately after exit from the gas chamber. Over-crowding of animals should be avoided in the gas chamber.

5. Precautions for animal welfare:

a. General:
(1) The floor of the slaughter area should not cause slipping or falling of animals.

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(2) Vocalization is an indicator of animal discomfort and need to be watched for.
(3) Use of electric pods for moving animal should be discouraged. Movement of animals can be managed by grouping, use of plastic wrapped sticks etc.
(4) Pen stocking density should be monitored. All animals should have room to lie down simultaneously. The condition of animals arriving for slaughter should be closely monitored so that injured, diseased animals are not slaughtered.
(5) High pitch sounds such as whistling and yelling should be avoided to spare distress to animals.
b. The following factors have been identified as critical to animal welfare:
(a) supervision and training of employees.
(b) Designing of animal transport cart and unloading bay.
(c) Proper construction of holding/resting pen, stunning box, maintenance of stunning equipment, restraining systems, gates and other animal handling equipment.
(d) Avoiding distractions that make animals refuse to move.
(e) Monitoring the condition of animals arriving at the plant.
(f) Proper design of equipment in the slaughter house.
Keeping this in view, the following need to be observed to ensure humane treatment of animals brought for slaughter:—
z Pre-slaughter handling of animal should be carefully done to reduce stress. Resting of the animals is essential. Only animals which are disease free and in a condition to walk should be brought for slaughter.
z Distractions that impede animal movements such as, reflections, air blowing towards animals and movement or high pitch noise, need to be avoided. Herding of animals should not be done through electric prods but with the help of plastic bags or sticks.
z A high standard of training is required for employees to ensure that the basic hygiene and safety practices are followed while handling animals.
z Equipment which is used for slaughter such as captive bolt stunner, gates, hooks etc should be kept in good working condition and cleanliness of floors etc. needs to be ensured. There should be daily check to ensure the smooth working of equipment and cleanliness of floors.
z The condition of the animals arriving at the plant should be monitored. Animals which are injured or not in a condition to walk should not be slaughtered.
z Inspecting personnel should pay particular attention to these points to ensure reasonable standards of animal welfare.

6. Poultry welfare:

Welfare programme
The conditions under which broilers are housed and the way that they are managed during their growing phase, transportation and slaughter are set down in several government/industry endorsed Model Codes of Practice designed to safeguard their welfare.
A model welfare program needs to be developed for pick-up, transport and broiler/chicken processing sectors. Processing unit shall incorporate elements of this welfare audit in their own quality plans and manuals.
A Model programme shall envisage following:
Poultry Suppliers and processors must have a documented program for poultry welfare envisaging following;
(a) Catching: Poultry intended for slaughter plant should be clean and in good health. Every reasonable precaution should be taken to minimize injury to poultry. The catcher needs to be trained to this effect.
(b) Transport: For transport of poultry crates shall be in good repair. There shall be no crate/cage damage that would allow injury to poultry or allow crates to accidentally open. Transport crates should not be over-filled and enough space should be provided to allow all poultry to lie down.

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(c) Holding: Poultry held in storage sheds should be provided adequate ventilation and climate control such as fans or curtains.
(d) Stunning: Stunning equipment should be properly maintained to confirm that poultry are insensible prior to slaughter, and the time between stunning and slaughter should be limited to minimize any likelihood that poultry may regain consciousness prior to slaughter.

Economic performance and welfare:
High standards of poultry welfare and high levels of flock performance and economic performance are not incompatible - quite the contrary, they go hand in hand. It simply makes good economic sense as well as being in the poultry's best interests to ensure that flocks are maintained in an environment, in which they are thermally comfortable, protected from injury, fed optimally and kept healthy. Therefore, all measures described elsewhere to ensure that chickens are kept in conditions which optimize their comfort (in terms of temperature, humidity, air flow and air quality), in which they are provided with water, shelter, and a high quality diet that matches their physiological needs, and which optimize their health have just as important effect in terms of poultry welfare as they do on the overall efficiency of the farming operation.

Poultry health and welfare:
When producing chicken meat in a welfare-friendly manner it is also important that the poultry receive prompt and appropriate medication and treatment to prevent and treat diseases if this should become necessary, and that they do not suffer any unnecessary pain, distress, fear or physical injury. It is also important that sick or injured poultry that cannot be adequately or successfully treated are culled quickly and in a humane manner so that they do not suffer.

Humane slaughter (poultry):
While the chickens are reared specifically for human consumption and they therefore at some stage have to be slaughtered, they should be slaughtered in a humane manner, and all poultry should be stunned (rendered insensible to pain) prior to slaughter.
Slaughter equipment at all supply facilities should be properly maintained to confirm that the poultry are slaughtered quickly.

7. Ante-mortem inspection
(1) All animals shall be rested before slaughter and shall be subjected to ante-mortem examination and inspection well in advance of the time of slaughter.
(2) No animal which has been received into a slaughter hall for the purpose of being slaughtered shall be removed from the slaughter hall before being slaughtered except with the written consent of the Qualified Veterinary Doctor. An animal which, on inspection is found to be not fit for slaughter shall be marked as "suspect" and kept separately. Each such animal shall be marked as "suspect" only by or under the personal supervision of the Qualified Veterinary Doctor and the marking shall not be removed or obliterated except by the Qualified Veterinary Doctor himself.
(3) An animal showing signs of any disease at the time of ante-mortem inspection that would cause its carcass being ultimately condemned on post-mortem shall be marked as "condemned" and rejected.
(4) An animal declared as "suspect" on ante-mortem inspection but which does not plainly show any disease or condition that would cause its entire carcass to be condemned shall maintain its identity as "suspect" until its carcass and all organs are finally inspected by the Qualified Veterinary Doctor.
(5) No animal in a febrile condition shall be permitted for slaughter. No suspect animal shall be slaughtered until all other animals intended for slaughter on the same day have been slaughtered. All animals which, on ante-mortem inspection, show symptoms of railroad sickness, parturient paresis, rabies, tetanus or any other communicable diseases shall be marked as "condemned" and disposed of in accordance with the provisions contained in sub paragraph (8) below.
(6) Animals presented for slaughter and found in a dying condition on the premises of a factory due to recent disease shall be marked as "condemned" and disposed of as provided for "condemned" animals.
(7) Every animal which, upon examination, is found to show symptoms of or is suspected of being diseased or animals declared as "suspect" shall at once be removed for treatment to such special pen and kept there for observation for such period as may be considered necessary to ascertain whether the animal is diseased or not.

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(8) All animals declared as "condemned" on ante-mortem inspection shall be marked as "condemned" and killed if not already dead. Such carcasses shall not be taken into the factory to be slaughtered or dressed, nor shall they be conveyed into any department of the factory used for edible products.

8. Post-mortem inspection—
1. A careful and detailed post-mortem examination and inspection of the carcasses and parts thereof of all animals slaughtered shall be made soon after slaughter. All organs and parts of the carcasses and blood to be used in the preparation of meat food products shall be held in such a manner as to preserve their identity till the completion of the post-mortem inspection so that they can be identified in the event of the carcasses being condemned.
2. Every carcass including all detached parts and organs thereof which show evidence of any condition which will render the meat or any part or organ unfit for human consumption and which for that reason may require subsequent inspection, shall be retained by the Qualified Veterinary Doctor. The identity of such carcass including the detached parts and organs thereof shall be maintained until the final inspection is completed. Retained carcasses, detached parts and organs thereof shall be maintained until the final inspection is completed. Retained carcasses, detached parts and organs thereof shall in no case be washed, trimmed or mutilated in any manner unless otherwise authorized by the Qualified Veterinary Doctor.
3. No air shall be blown by mouth into the tissues of any carcass or part of a carcass.
4. Every carcass or part thereof which has been found to be unfit for human consumption shall be marked by the Qualified Veterinary Doctor as "Inspected and condemned".
5. All such condemned carcasses, parts and organs thereof shall remain in the custody of the Qualified Veterinary Doctor pending disposal at or before the close of the day on which they are marked "Inspected and condemned" in accordance with sub-paragraphs (11),(12) and (13) below.
6. Carcasses, parts and the organs thereof found to be sound, wholesome, healthful and fit for human consumption shall be marked as "Inspected and passed".
7. Carcasses found affected with anthrax before evisceration shall not be eviscerated but condemned and disposed of immediately in accordance with sub-paragraph (12) below. Any part of a carcass contaminated with anthrax infected material through contact with soiled instruments or otherwise shall be immediately condemned and disposed of as provided in sub-paragraph (12) below.
8. The portion of the slaughtering department including equipment, employees' boots and aprons, etc., contaminated by contact with anthrax material shall be cleaned and thoroughly disinfected immediately.
9. When on inspection only a portion of a carcass on account of slight bruises is decided to be condemned, either the bruised portion shall be removed immediately and disposed of in accordance with sub-paragraph (13) below or the carcass shall be retained and kept till such time it is chilled and the bruised portion removed and disposed of as provided above.
10. Post-mortem inspection shall be a detailed one and shall cover all parts of the carcass, the viscera, lymph glands and all organs and glands.
11. The post-mortem inspection shall be in accordance with the general rules laid down for such inspection in public slaughter houses under the control of local bodies besides special instructions that may be issued from time to time by the licensing authority.
12. All condemned carcasses, organs or parts thereof shall be completely destroyed in the presence of the Qualified Veterinary Doctor by incineration or denatured, after being slashed freely with a knife, with crude carbolic acid, cresylic-disinfectant or any other prescribed agent unless such carcasses, organs or parts thereof are sterilized for the preparation of bone-cum-meat meal before leaving the slaughter house premises, subject to sub-paragraph (13) below.
13. Carcasses, organs or parts thereof condemned on account of anthrax shall be disposed of either by (i) complete incineration or (ii) thorough denaturing with prescribed denaturant in the manner prescribed in the foregoing paragraphs and also in accordance with the rules and regulations prescribed by the local authority.
14. Destruction of condemned carcasses, organs or parts thereof shall be carried out under the direct supervision of the Qualified Veterinary Doctor.
15. If in the opinion of the Qualified Veterinary Doctor a carcass, organ or part thereof is to be held back for further detailed examination, the carcass, organ or part concerned shall not be released till the examination in detail is completed by the Qualified Veterinary Doctor and it is declared thereafter by him as fit. When it is to be detained for detailed

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examination, the carcass, organ or part thereof shall be marked as "Held". If on subsequent inspection, the carcass, organ or part thereof is found to be unwholesome and unfit for human food, the Qualified Veterinary Doctor shall mark such a carcass, organ or part thereof as "condemned" and shall dispose it of as described in the foregoing paragraphs.

a. Sanitary and Hygienic Requirements for Meat processing units
Following Sanitary and Hygienic requirements shall be satisfied by the meat processing unit.
1. Location:
1.1 Meat processing unit should be located in areas not subjected to regular and frequent flooding and free from objectionable odours, smoke dust and other contaminants;
1.2 Roadways and areas serving the meat processing unit which are within its boundaries or in its immediate vicinity should have a hard paved surface suitable for wheeled traffic. There should be adequate drainage and provision for cleaning;
1.3 Where appropriate, meat processing unit should be so designed that access can be controlled.
2. Building and Facilities:
2.1 The meat processing unit should provide adequate working space for the satisfactory performance of all operations.
2.2 The construction should be sound and ensure adequate ventilation, good natural or artificial lighting and easy cleaning.
2.3 The meat processing unit should be laid out and equipped so as to facilitate proper supervision of meat hygiene including performance of inspection and control;
2.4 The meat processing unit should be of such construction as to protect against the entrance and harbouring of insects, birds, rodents or other vermin as well as the entry of environmental contaminants such as smoke, dust etc.
2.5 Buildings and facilities should be designed to provide separation by partition, location or other effective means, between those operations which may cause cross-contamination;
2.6 Meat processing unit should be laid out and equipped so as to ensure, that edible meat does not come into contact with floors, walls or other fixed structures, except those which are specifically designed for contact with meat;
2.7 The construction and lay out of any chilling room, freezing room, freezer store or freezer should satisfy the requirements of these rules;
2.8 In meat handling areas :
— Floors should be of waterproof, non-absorbent, washable non-slippery and made of nontoxic materials, without crevices and should be easy to clean and slope sufficiently for liquids to drain to trapped outlets;
— Walls should be of waterproof, non-absorbent, washable and nontoxic materials and should be light coloured. Up to a height of at least 1.5 metres, they should be smooth and without crevices, and should be easy to clean , space between walls and ceilings should be sealed and covered to facilitate cleaning;
— Ceilings should be so designed, constructed and finished as to prevent any accumulation of dirt and minimize condensation, mould development and flaking and should be easy to clean;
— Windows and other openings should be so constructed as to avoid accumulation of dirt and those which open should be fitted with insect screen. Screens should be easily movable for cleaning and kept in good repair. Internal window sills, if present, should be sloped to prevent use as shelves;
— Doors should have smooth, non-absorbent surfaces and where appropriate, be self-closing and close fitting; and
— Stairs, lift cages and auxiliary structures such as platforms, ladders, chutes, should be so situated and constructed as not to cause contamination of meat. They should be capable of being effectively cleaned. Chutes should be constructed with inspection and cleaning hatches;

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2.9 The use of construction materials which cannot be adequately cleaned and disinfected such as wood, should be avoided unless its use would clearly not be a source of contamination, and
2.10 Office accommodation should be provided for the use of the meat inspection agency.

3. Sanitary Facilities:

3.1 Water Supply:
3.1.1. Supply of potable water under pressure should be available with facilities for its storage, where necessary for distribution, and with protection against contamination;
3.1.2. An supply of hot potable water should be available at all times during working hours;
Note - This provision is intended to cover water for both cleaning purposes and the destruction of microorganisms (especially those pathogenic to man) on knives, utensils etc., and coming into direct contact with meat. For cleaning purposes the temperature of the water should be 65 degree Celsius. The hot water for disinfection purposes should be at 82 degree Celsius and dispensed in such a way (e.g. in specially designed boxes near the working area) that blades of knives etc., can be submerged in the water for a contact time (no less than two minutes). Often this water supply is separate from other hot water supplies used for cleaning, hand washing etc. But if there is only one hot water supply the term "adequate" should mean that even at times where large amounts of hot water is used (e.g. during cleaning operations) the water supply from any tap in the establishment should not be decreased;
3.1.3 Ice should be made from potable water and should be manufactured, handled and stored so as to protect it from contamination; and
3.1.4 Steam used in contact directly with meat should be produced from potable water and contain no substances which may be hazardous to health or may contaminate the food.
3.2 Effluent and Waste Disposal - Meat processing unit should have an efficient effluent and waste disposal system. All effluent lines (including sewer systems) should be large enough to carry peak loads and should be constructed in such a manner as to avoid contamination of potable water supplies. Biological oxygen demand level shall be less than 1500, and for that an effluent treatment plant, if necessary may be installed.
3.3 Facilities for Storage of Waste and Inedible Material. - Facilities should be provided for the storage of waste and inedible material prior to removal from the establishment. These facilities should be designed to prevent access to waste or inedible material by pests and to avoid contamination of food, potable water and equipment or building.
3.4 Changing Facilities and Toilets.- Suitable and conveniently located changing facilities and toilets should be provided in all establishments. Toilets should be so designed as to ensure hygienic removal of waste matter. These areas should be well lit and ventilated and should not open directly on to food handling areas. Hand washing facilities with warm or hot and cold water with suitable hygienic means of drying hands should be provided adjacent to toilets and in such a position that the employee must pass them when returning to the processing area. Where hot and cold water are available, mixing taps should be provided. Where paper towels are used, a sufficient number of dispensers and receptacles should be provided near to each washing facility. Taps of non-hand operable type are preferable. Notices should be posted directing personnel to wash their hands after using the toilets.
3.5 Hand Washing Facilities in Processing Areas:
3.5.1 Adequate and conveniently located facilities for hand washing and drying should be provided wherever the process demands. Where appropriate, facilities for hand disinfection should be provided. The facilities should be furnished with properly trapped waste pipes leading to drains.
3.5.2 All rooms used for deboning, preparing, packing or other handling of meat should be equipped with adequate facilities for cleaning and disinfecting implements, conveniently located for the use of personnel during operations. These facilities are for use exclusively in the cleaning and disinfection of knives, steels, cleavers, saws and other implements.
3.5.3 All facilities for cleaning and disinfecting implements should be of such nature and sizes as to permit proper cleaning and disinfection of implements . These facilities should be constructed of corrosion - resistant materials and should be capable of being easily cleaned.
3.5.4 All facilities for cleaning and disinfecting of implements should be fitted with suitable means of supplying hot water in sufficient quantity at all times while meat is being handled in that part of the Meat Processing Unit.

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3.5.5 Lighting - Adequate natural or artificial lighting should be provided throughout the meat processing unit. Where appropriate, the lighting should not alter colours and the intensity should not be less than
540 Lux (50 foot candles) at all inspection points.
220 Lux (20 foot candles) in work rooms.
110 Lux (10 foot candles) in other areas.
Light bulbs and fixtures suspended over meat in any stage of production should be of a safety type and protected to prevent contamination of meat in case of breakage.
3.6 Ventilation - Ventilation should be provided to prevent excessive heat, steam condensation, dust and to remove contaminated air. The direction of the air flow should never be from a dirty area to clean area. Ventilation openings should be provided with an insect screen or other protective enclosure of non-corrodible material. Screens should be easily removable for cleaning.

4. Equipment and Utensils :
4.1 Materials - All equipments, implements and utensils used in establishments which come into contact with exposed meat and meat products should present a smooth impervious surface and be resistant to corrosion and should be made of material which is non-toxic, does not transmit odour or taste, is free from pits and crevices, is non-absorbent and capable of withstanding repeated exposure to normal cleaning and disinfection. Such equipment should be so constructed that they may be easily cleaned.

4.2 Sanitary Design, Construction and Installation:
4.2.1 All equipments and utensils should be so designed and constructed as to prevent hygiene hazards and permits easy and thorough cleaning and disinfection and where practicable be visible for inspection. Stationary equipment should be installed in such a manner as to permit easy access and thorough cleaning.
4.2.2 Containers for inedible material and waste should be leak proof, constructed of non-corrosive metal or other suitable impervious materials which should be easy to clean or disposable and where appropriate, able to be closed securely; and
4.2.3 All refrigerated spaces should be equipped with temperature measurement or recording devices.
4.3 Equipment Identification - Equipment and utensils used for inedible material or waste should be so identified and should not be used for edible products.

5. Hygiene Requirements :
5.1 Maintenance. The buildings, rooms, equipment and all other physical facilities of the meat processing unit, including drains, should be maintained in good repair and in orderly condition. Except for rooms where meat processing or cleaning operations are performed, they should be free from steam, vapour and surplus water.
5.2 Cleaning and Disinfection - Cleaning and disinfection should meet the following requirements :
(i) Amenities provided for the use of employee and the inspection service including changing facilities, toilets and the inspection office space should be kept clean at all times.
(ii) If rooms, intended and most of the time used for the handling, preparation, processing, packaging on storage of meat, are used for any other food preparation purposes, then cleaning and disinfection are necessary immediately before and after such use.
(iii) The temperature in rooms for boning out and trimming should be controlled and held suitably low, unless cleaning of equipment and utensils are carried out at least every four hours;
(iv) To prevent contamination of meat, all equipments, implements, tables, utensils including knives, cleaves, knife pouches, saws, mechanical instruments and containers should be cleaned at frequent intervals during the day and immediately cleaned and disinfected whenever they come into contact with diseased material, infective material or otherwise become contaminated. They shall also be cleaned and disinfected at the conclusion of each working day.
(v) If any skip or trolley or any container used in a department where edible material is handled, enters an area where inedible material is handled it should be cleaned and disinfected immediately before re-entering the edible department.

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(vi) Immediately after the cessation of work for the day or at such other times as may be required, the floors and wails should be cleaned to remove contamination. Floor drains should be kept in good condition and repair with strainers in place; and
(vii) Roadways and yards in the immediate vicinity of and serving the meat processing unit should be kept clean.
5.3 Hygiene Control Programme.-It is desirable that each meat processing unit in its own interest designates a single individual whose duties are diverted from production, to be held responsible for the cleanliness of the meat processing unit. His staff should be a permanent part of the organisation or employed by the organisation and should be well trained in the use of special cleaning tools, methods of dismantling the equipment for cleaning and in the significance of contamination and the hazards involved. A permanent cleaning and disinfection schedule should be drawn up to ensure that all parts of the meat processing unit are cleaned appropriately and that critical areas, equipment and material and designed for cleaning and/or disinfection daily or more frequently if required.
5.4 Storage and Disposal of Waste - Waste material should be handled in such a manner so as to exclude contamination of food or potable water. Precautions should be taken to prevent access to waste by pests. Waste should be removed from the meat handling and other working areas at intervals and at least daily. Immediately after disposal of the waste, receptacles used for storage and any equipment which has come into contact with the taste should be cleaned and disinfected. At least daily the waste storage area should also be cleaned and disinfected.
5.5 Dogs, cats or other pet animals should be not allowed to enter meat processing unit.

6. Pest Control
6.1 There should be an effective and continuous programme for the control of insects, birds, rodents or other vermin. Meat processing unit and surrounding areas should be regularly examined for evidence of infestation.
6.2 Should pests gain entrance to the meat processing unit or surrounding areas, eradication measures should be instituted. Control measures involving treatment with physical or chemical or biological agents should only be undertaken by or under direct supervision of personnel who have a thorough understanding of the potential hazards to health resulting from the use of these agents, including those which may arise from residues retained in the product. Such measures should be carried out in accordance with the recommendation of the official agency having jurisdiction and with the full knowledge of its inspector, and
6.3 Pesticides should only be employed if other precautionary methods cannot be used effectively. Only pesticides approved for use in the meat processing unit by competent authority should be used and the greatest care should be exercised to prevent any contamination of the meat equipment or utensils. Before pesticides are applied all meat should be removed from the room and all equipment and utensils should be thoroughly washed prior to being used again.
6.4 Handling and Storage of Hazardous substances - Pesticides or other substance which may represent a hazard should be labelled with a warning about their toxicity and use. Except as required for purpose of hygiene such substance which may contaminate meat packing material and ingredients should be handled and stored in a part of the meat processing unit which is not used for preparation, processing, handling, packing or storage of meat. They should be handled and dispensed only by authorised and properly trained personnel. Extreme care should be taken to avoid contamination of meat. However, materials employed in the construction and maintenance of an establishment may be used at any time with the approval of Food Safety Officer.
6.5 Personal Effects and Clothing : - Personal effects and clothing should not be deposited in meat handling areas.
6.6 Maintenance Tools - Cleaning and maintenance tools and products should not be stored in meat handling area.

7. Personnel Hygiene and Health Requirements :
7.1 Medical examination - Persons who come into contact with meat in the course of their work should have a medical examination prior to their employment. Medical examination of a meat handler shall be carried out routinely and when clinically or epidemiologically indicated, at least once in 12 months.
7.2 Communicable Diseases - The management should take care to ensure that no person, while known or suspected to be suffering from, or to be a carrier of a disease likely to be transmitted through meat or while afflicted with infected wounds, skin infections, sores or with diarrhoea, is permitted to work in any area in any capacity in which there is any likelihood of such a person directly or indirectly contaminating meat with pathogenic microorganisms. Any person so affected should immediately report to the management that he is ill.

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7.3 Injuries - Any person who is cut or injured should discontinue working with meat and until he is suitably bandaged should not be engaged in any meat processing unit in the preparation, handling, packing or transportation of meat. No person working in any meat processing unit should wear exposed bandage unless the bandage is completely protected by a water proof covering which is conspicuous in colour and is of such a nature that it cannot become accidentally detached. first aid facilities should be provided for this purpose.
7.4 Washing of Hands : Every person engaged in a meat handling area should wash his hands frequently and thoroughly with a suitable hand cleaning preparation under running potable water while on duty. Hands should always be washed before commencing work, immediately after using the toilets, after handling contaminated material and whenever else necessary. After handling diseased or suspect materials hands should be washed and disinfected immediately. Notices requiring hand-washing should be displayed.

8. Personnel Cleanliness:
8.1 Every person engaged in an area in meat processing unit where meat is handled should maintain a high degree of personnel cleanliness while on duty, and should at all times while so engaged wear suitable protective clothing including head covering and foot wear, all of which should be washed unless designed to be disposed and which should be maintained in a clean condition consistent with the nature of the work in which the person is engaged.
8.2 Aprons and similar items should not be washed on the floor; and
8.3 Such items should not be left on equipment in the working area.
8.4 Personal Behavior : Any behavior which can potentially contaminate the meat such as eating, use of tobacco, chewing, spitting, should be prohibited in any part of meat processing unit used for the preparation, handling, packaging or transportation of meat.
8.5 Visitors: Every person who visits an area in any meat processing unit where meat is handled should wear clean protective clothing and head cover.
b) Sanitary &Hygienic Requirements for the Retail Meat Shops
For ensuring the hygiene and safety of meat being sold at retail meat shops, the following requirements should be followed under the supervision of the qualified Veterinary staff.

1. Location of Meat Shop
1. The meat shop / sale outlet should preferably be a unit of meat market located away from Vegetable, fish or other food markets and shall be free from undesirable odour, smoke, dust or other contaminants. Wherever a meat market is not available, individual meat shop can be set up considering the above factors, which have a direct bearing on the hygiene conditions of the premises and health of consumers.
(a) The minimum distance between the licensed meat shop and any place of worship should not be less than 50 meters;
(b) The condition of 100 meters distance will apply in case the premises situated directly opposite to the entry gate of religious place of any community.
2. All the meat shops located in the vicinity of religious places shall be fitted with black glass doors, which must be kept closed all times except in case of entry or exit. It must be the responsibility of the meat shop owners to maintain a high standard of hygiene not only inside the shops, but also in the way leading to the shops road pavements or other adjoining place, particularly for insanitary materials originating from the meat business for example, blood, part of offal, meat scraps etc.

2. Size of Meat Shops
2.1 Considering the constraints of commercial space in residential areas in concerned Panchayats / Municipalities the size of meat shops may vary according to the size of business and activities being carried out there in the meat shops.
2.2 The height of shop in all above categories of meat shops should be not less than 3 meters, while in case of air-conditioned meat shops, it should not be less than 2.5 meters.

3. Premises
3.01 The premises shall be structurally sound. The walls up to the height of minimum 5 feet from the floor level shall be made of impervious concrete material (e.g. glazed tiles or hygienic panels, etc.) for easy washing and cleaning purposes.

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3.02 The floor should be made of impervious and non-slippery materials with a slope for easy cleaning and removal of filth, waste and dirty water. The slope of the floor shall not be less than 5 cm. for a floor of 3 meters.
3.03 All the fittings in the stall should be of non-corroding and non-rusting type.
3.04 All processing tables, racks, shelves, boards, etc. shall have zinc/aluminium/stainless steel/marble-granite top to facilitate proper cleaning.
3.05 A sign board indicating the type of meat sold shall be displayed prominently. Nothing else but meat should be sold at the premises.
3.06 The premises should have provision of sewer connection for drainage of wastewater.
3.07 There should be provision of continuous supply of potable water inside the premises. In case the water supply is from bore well the arrangement for softening of water for making the same potable shall be made in the premises and intermittent store arrangement should be made.
3.08 The door of the shop should be of self-closing type. The door of the shop should be of dark glass top and be kept closed. No carcasses should be kept in a manner so as to be seen by the public from outside.

4. Ventilation
4.01 The meat shop should be ventilated with facility of cross ventilation and may be provided with at-least one electric fan and one exhaust fan.
4.02 The rails and hanging hooks, if provided for hanging carcasses, should be of non-corrosive metal. The non-corrosive hanging hooks for carcasses shall be 30 cm. apart and the distance between rails shall be 60 to 70 cm. depending upon the size of animals slaughtered and carcasses hanged.

5. Equipment and Accessories
5.01 The meat shop should have suitable arrangement for fly proofing in the form of air-curtains, flytraps, etc.
5.02 It should have display cabinet type refrigerator of size for maintaining a temperature of 4 to 8 degrees C. or freezing cabinet if the meat is to be stored for more than 48 hours.
5.03 The weighing scales used shall be of a type which obviates unnecessary handling and contamination and the plate sketch of the scale shall be made of stainless steel or nickel coated
5.04 The knives, tools and hooks used shall be made of stainless steel. Sufficient cupboards or racks should be for storing knives, hooks, clothes and other equipments.
5.05 There should be a provision of geysers in all the meat shops to have hot water at a temperature not less than 82 degree C to clean the premises and equipment used in meat shop.
5.06 Washbasin made of stainless steel / porcelain shall be provided with liquid soap dispenser or other soap and nail brush for thorough cleaning of hands.
5.07 The chopping block should be of food-grade synthetic material, which does not contaminate the meat. If the block is of wooden it should be of hardwood trunk, which is solid enough and should not contaminate the meat.
5.08 A waste bin with a pedal operated cover shall be provided in the premises for collection of waste material.

6. Transportation
6.01 The transportation of carcasses from the slaughter house to the premises shall be done under hygienic conditions in boxes of adequate size linked with zinc/aluminium/stainless steel or wire gauze meat safes, which must be washed daily.
6.02 The transportation of carcasses from the slaughter house to the meat shops should be done in insulated refrigerated vans. Under no circumstances, carcasses will be transported in vehicles used for commuting of human beings, or in an exposed condition.

7. Pest Control
7.01 The meat shop should have an effective and continuous programme for control of insects, rodents or other vermin within the premises. The surrounding area of the shop should also be free from insects, birds, rodents and other vermin.

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7.02 The pest control measures adopted by the owner of shop should be kept as a record in the premises to be shown to any officer of the concerned Panchayats / Municipalities responsible for local administration/Corporation at the time of inspection.
7.03 Chlorinated hydrocarbons, organo-phosphorus compounds and synthetic perithroids, rodenticides etc should neither be used as pesticide nor shall be stored at the meat shop.
7.04 No live animals or birds should be allowed inside or adjacent to the meat shops.

8. Personnel Hygiene
8.01. Every person employed for meat handling at the meat shop shall be medically examined annually by a authorized registered medical practitioner and examination shall include examination of sputum and x-ray of the chest for tuberculosis. The medical examination shall also include examination of stool for protozoal and helminthic infestations for those parasites, which are transmitted by ingestion, and also for the presence of enteropathogenic Escherichia coli, Salmonella, Shigella spieces and Vibrio cholera.
8.02. A certificate / records of medical fitness of all workers handling meat should be kept as a record in the premises to be shown to any officer of the concerned Panchayats / Municipalities responsible for local administration / Corporation at the time of inspection.
8.03. No worker suspected to be suffering from fever, vomiting, diarrhoea, typhoid, dysentery or boils, cuts and sores and ulcers (however small) shall be permitted to work in the meat shops.
8.04 All the workers of the meat shop shall keep their finger nails short and clean and wash their hands with soap or detergent and hot water before commencement of work and after each absence, especially after using sanitary conveniences.
8.05. Eating, spitting, nose cleaning or the use of tobacco in any form or chewing betel leaves shall be prohibited within the premises of meat shop processing, packing and storage area of the unit. "No smoking "and "No Spitting "boards shall be prominently displayed in the shop.

9. Sanitary Practices
9.01 The chopping block should be sanitized daily by covering its top with sea-salt, after cleaning it with hot water at close of business activity.
9.02 The floor should be washed with appropriate disinfectant / detergent / sanitizer at the start and close of the business each working day.
9.03 There should be high standard of cleanliness and tidiness in the working area of shop with no organic or other material lying on the floor.
9.04 The refrigerated / freezing cabinet should be regularly cleaned and well maintained.
9.05 Slaughtering of animal / birds inside the shop premises should be strictly prohibited.
9.06 The carcasses shall not be allowed to be covered with wet-clothes.
9.07 Wholesome meat obtained from the authorized slaughter house shall only be sold at the meat shops and a record thereof shall be kept in the premises to be shown to any officer of the concerned Panchayats / Municipalities responsible for local administration Corporation at the time of inspection.
9.08 Waste bins should be emptied, transported for disposal as per the arrangements made by the concerned Panchayats / Municipalities and waste bin / dhalau (burial pits) shall be treated daily with a disinfectant.
9.09 The premises shall not be used for residential purposes nor it shall communicate with any residential quarter. No personal belonging like clothing, bedding, shoes etc. shall be kept in the premises. Only dressed carcasses of clean meat shall be stored at the premises.
9.10 Hides, skins, hoofs, heads and unclean gut will not be allowed to be stored in the premises at any time.
9.11 The chopping instruments should be cleaned with hot water at a temperature of 82 degree C.
9.12 The preparation of food of any type inside the meat sale outlet should be strictly prohibited.
9.13 The meat obtained from unauthorized sources or unstamped meat is liable to be confiscated and destroyed.
9.14 Waste of the meat shop to be disposed of packed in heavy polythene bags in dhalaos (burial pits).

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10. Other Requirements
10.01 The prepared meat shall be packed in waxed paper and then placed in polyethylene bags or packed directly in bags made of food grade plastics.
10.02 Failure to comply with any of these instructions may entail legal action against the defaulters, and even result in cancellation of license by the appropriate authority of the concerned Panchayats/Municipalities/Corporation.
10.03 No Objection Certificate from law and order point of view to be obtained from police department or the concerned Panchayats/Municipalities/Corporation before grant of license for buffalo meat and pork shop.
10.04 The concerned Panchayats/Municipalities responsible for local administration in the country shall appoint qualified Veterinary staff for the meat inspection (Ante mortem and Post mortem inspection) or if regular staff cannot be made available or deployed for the purpose shall make contractual arrangements for availing the services of qualified Veterinary staff for meat inspection available with the Animal Husbandry Depts. of the concerned state/UT in the country.
10.05 Retail meat shop license shall be granted subject to fulfillment of all the above technical and administrative instructions in relation to the trade.

Part - V
Specific Hygienic and Sanitary Practices to be followed by Practices to be followed by Food Business Operators engaged in catering / food service establishments
In addition to Part-II the Catering/ food Service establishment in which food is being handled, processed, manufactured, stored, distributed and ultimately sold to the customers and the persons handling them should conform to the sanitary and hygienic requirement, food safety measures and other standard as specified below.
It includes premises where public is admitted for repose or for consumption of any food or drink or any place where cooked food is sold or prepared for sale. It includes:
(a) Eating Houses
(b) Restaurants & Hotels
(c) Snack Bars,
(d) Canteens (Schools, Colleges, Office, Institutions)
(e) Food Service at religious places
(f) Neighbourhood Tiffin Services / dabba walas
(g) Rail and airline catering
(h) Hospital catering

I. GOOD MANUFACTURING PRACTICES FOR WHOLE PREMISE

I. Food Preparation Areas
The following rules apply to rooms where food is prepared. There will be no smoke nuisance in the food preparation area. Wherever cooking or frying of any kind is being done, a chimney having appropriate suction capacity as per the size of the kitchen has to be installed prior to start of business.

II . Hand washing facilities and toilets
(1) Adequate number of wash-hand basins made of porcelain/stainless steel shall be provided along with soap to wash hands, with hot and cold running water, and materials for cleaning hands and drying them hygienically. Clean and dry towels shall be kept for the use of customers.
(2) Separate sinks must be provided, where necessary, for washing raw food and cleaning equipment.
(3) Sinks with a draining board, detergent and hot water shall be provided to ensure proper cleaning of utensils, crockery and cutlery there will be a separate place for washing pots and pains.

2. Changing facilities:
Facilities for staff to change their clothes, where necessary must be provided.

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II. GOOD FOOD HYGIENE PRACTICES

1. Cleaning
z Food areas and equipment between different tasks, especially after handling raw food shall be cleaned.
z The surface shall be thoroughly cleaned in case if somebody spills food / water / drink.
z A systematic cleaning schedule and instructions has to be developed by the FBO.
z Food handlers should strictly follow the systematic cleaning schedule to make sure that surfaces and equipment are cleaned when they need to be.
The schedule should include:
z what needs to be cleaned
z how often it needs to be cleaned
z how the cleaning should be done
Cleaning instructions should indicate:
z what cleaning products should be used
z how the products should be stored (away from raw, cooked, packed food) and used
z how much they should be used or diluted
z how long that should be left in contact with the surface (following the manufacturer's instructions)

2. Raw materials
1. Raw materials shall be purchased from reliable and known dealers and checked for visible deterioration & off- odour.
2. There should be no physical hazards and foreign body contamination.
1. Raw paste, sauces etc. should be stored in properly covered containers made of food grade material and checked regularly for fungal growth, deterioration etc.

Preparation of fruits/ vegetables:
(1) Fruits and vegetables that have been protected from cross-contamination and properly conserved should be used.
(3) Whole fruits and vegetables should be washed in potable water before being cut, mixed with other ingredients. Uncooked, ready-to-eat fruits & vegetables should be with 50 ppm chlorinated water before cutting, peeling or serving.
(4) Fruits and vegetables should be peeled, squeezed and/or cut, as appropriate, with clean equipment/ utensils made of non-absorbent food grade materials.
(5) Previously prepared fruits/vegetables should be kept in clean and properly covered food grade containers under refrigeration or at a maximum temperature suitable for the product in question.

Preparation of Non-veg. Products:—
(1) Raw meat and processed meat should be separated from other foods; items and surfaces.
(2) Separate items (e.g. cutting boards, dishes, knives) and preparation area for raw meats and poultry and marine products should be used to avoid cross contamination of food.
(3) Hands should be thoroughly washed before switching from preparing raw meat or poultry or marine products to any other activity.
(4) Ensure proper cooking of all non vegetarian products.
(5) Used surfaces should be washed with antibacterial cleaning agent, rinsed properly with water and sanitized after preparing raw meat/poultry.
(6) Ensure that frozen products are thawed as per point no. 9 under special requirements for high risk foods.

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3. Cooking
(a) The preparation/ processing/ cooking should be adequate to eliminate and reduce hazards to an acceptable level which might have been introduced at the raw food level.
(b) The preparation/ processing/ cooking methods should ensure that the foods are not re- contaminated.
(c) The preparation/ processing/ cooking of veg. & non-veg. products should be segregated.
(d) Whenever cooking or reheating of food is done, it should be hot all the way through, It is especially important to make sure that food is cooked thoroughly.
(e) Re-use of cooking oil should be avoided.
(f) Food hot held at 60°c and cooled at 21°c within 2 hrs or cooled to 5°c in 4 hours and thereafter refrigerated might be reheated.
(g) Reheated food must reach a minimum internal temperature of 74°C.When using microwave to reheat, food must reach a minimum temperature of 74°C and stayed covered for 5 mins to allow the temperature to equilibrate.
(h) Reheat food quickly in ovens, steamer, microwave oven and/or on top of range in a steam kettle.
(i) Never reheat food on a steam table, in a bain marie, in a bun drawer and/or under a heat lamp.
(j) In case of reheating of oil use maximum three times to avoid the formation of trans fat. It is ideal to use once if possible.

4. Chilling
z Semi cooked or cooked dishes and other ready-to-eat foods such as prepared salads and desserts having short shelf life should not be left standing at room temperature.
z Chilled food intended for consumption should be cold enough.
z Food items that need to be chilled should be put straight away into the fridge.
z Cooked food should be cooled as quickly as possible and then put it in the fridge.
z Chilled food should be processed in the shortest time possible.
z Fridge and display units should be cold enough and as per requirement.
z In practice, fridge should be set at 5?C to make sure that food is kept in chilled condition. Also, fridge and display units should be maintained in good working condition to avoid food spoilage and contamination.

5. Cross-contamination
Following should be done to avoid cross - contamination.
z Raw food/ meat/poultry and ready-to-eat foods should be kept separate at all times.
z Hands should be thoroughly washed after touching raw meat/poultry.
z Work surfaces, chopping boards and equipments should be thoroughly cleaned before the preparing of food starts and after it has been used.
z Separate chopping boards and knives for raw fruit/ vegetables/ meat/poultry and ready-to-eat food should be used.
z Raw meat/poultry below ready-to-eat food should be kept in the fridge.
z Separate fridge for raw meat/poultry should be kept.
z Staff should be made aware how to avoid cross-contamination.

III. PERSONAL HYGIENE
1. High standards of personal hygiene should be maintained.
2. All employees handling food should wash their hands properly:
z before preparing food
z after touching raw food or materials, specially meat/poultry or eggs

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z after breaks
z after using the toilet
z after cleaning the raw materials or utensils / equipments
3. Street shoes inside the food preparation area should not be worn while handling & preparing food.
4. Food handlers should ensure careful food handling & protect food from environmental exposure.
5. Food handlesr should not handle soiled currency notes to avoid cross contamination.

IV. TRANSPORTATION AND HANDLING OF FOOD
(1) The vehicle/transportation being used to carry cooked/prepared/processed food should be clean and, dedicated for this purpose and should not carry anything else.
(2) Time required for transportation should be minimum, to avoid microbial proliferation.
(3) Cooked food served hot should be kept at a temperature of at least 600 C to prevent microbial growth.
(4) Cooked food to be served cold should be kept below 50 C to prevent growth of pathogens.
(5) All foods during transportation must be kept covered and in such a way as to limit pathogen growth or toxin formation by controlling time of transportation, exposure, temperature control and using safe water for cleaning etc.
(7) Handling of food should be minimal. It should be ensured that utensils, crockery, cutlery and specially hands of the food handlers/seller are clean and sanitized.
(8) All surplus food and unused thawed food should be discarded.
(9) Food to be kept for cold storage should be distributed in small volumes to ensure uniform cooling.
(10) Dry, fermented and acidified foods should be stored in cool and dry place.
(11) All packaged food viz. sterilized milk, bottled beverages, canned foods etc. should be stored properly during transportation to ensure that seals remain intact and undamaged.

V. STORAGE
1. It is very important to store food properly for the purpose of food safety. Following things must be ensured:
z Foods should be cooked, stored and kept at right temperature
z Raw meat/poultry should be stored separately from other foods
z Veg. foods should always be stored above non-veg. foods and cooked foods above uncooked foods on separate racks in the refrigerator.
z Storage temperature of frozen food should be -18oC or below.
z Cooked food to be eaten later should be cooled quickly, and kept it in the refrigerator - It is advisable to put date on food packages or containers, using stickers or any other way of identification , before keeping inside the refrigerator to keep track of food prepared date wise and use accordingly to minimise wastage .
z Storage instructions over food packaging should be followed.
z Dried foods (such as grains and pulses) should be stored off the floor, ideally in sealable containers, to allow proper cleaning and protection from pests.

Stock rotation
The rule for stock rotation is FIFO (first in, first out) to make sure that older food is used first. This will help to prevent wastage.

VI. SPECIAL REQUIREMENTS FOR HIGH RISK FOODS
This section deals selectively with varieties of food which are high risk as per HACCP and may need special attention. The type of foods covered here are as follows:

1. Cut fruits/salads, fresh juices and beverages

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(1) Fresh fruits /vegetables cut or juiced should be used immediately; however, short storage should be only under refrigeration in sanitized and properly covered vessels.
(2) Water used in beverages should be potable.
(3) Ice used should be made of potable water only.
(4) Food or beverages should not be stored in the same container used to store the ice intended for consumption.
(5) Juice concentrates must be checked regularly for any fungal growth / change of colour, odour or gas formation in the bottle.
(6) Juice dispensing machine should be cleaned and rinsed with water regularly.

2. Confectionery products
(1) Prepared confectionery products should be kept in airtight containers and displayed hygienically.
(2) Cream to be used should be stored covered under refrigeration.
(3) Finished products should be refrigerated with proper labels indicating date of expiry.
(4) Products should be properly wrapped/ packaged after proper cooling.

3. Meat, poultry & fish products
(1) Non veg. products/raw materials should be purchased (chilled products temperature should be at 50C or below and frozen products at -18 deg C or below) from authorized/ licensed slaughter houses/vendors.
(2) Processing area should be cleaned and disinfected promptly.
(3) Preparation and processing of meat, poultry and marine products should be separate.
(4) Non-veg. products are washed with potable water before use.
(5) Non-veg. products are cooked thoroughly (core temperature 750 C) for at least 15 seconds or an effective time/temperature control e.g. 65 0C for 10 minutes, 70 0C for 2 minutes.
(6) Non-veg. products should be stored covered in refrigerator below the veg. products.
(7) Raw and cooked products should be stored physically separated with cooked products at the top.
(8) All refuse/waste should be promptly removed from preparation area.

4. Water based chutneys, sauces etc.
(1) All fruits/vegetables should be washed properly before processing.
(2) Clean and disinfected chopping boards/grinding stone/machine should be used.
(3) Personal hygiene of food handlers need to be ensured.
(4) Water used in the chutneys should be safe and potable.
(5) Only permitted food additives should be used, if required, and be added in recommended quantities only.
(6) Spoiled products should be discarded immediately after confirmation of spoilage (change in colour/ texture/ odour).
(7) Sauces and chutneys should be stored in glass/food grade plastic containers with proper lids.
(8) Clean and intact containers should be used for storing sauces and chutneys.
(9) Sauces and chutneys should be stored in refrigerator when not in use.
(10) Perishable/uncooked chutneys should be consumed immediately.

5. Foods transported to point of sale from the point of cooking
(1) Food should be reheated more than 740 C before consumption.
(2) Food should be consumed or served for consumption within 4 hours of reheating.

6. Foods with Gravy
(1) Food products should not be stored at room temperature for more than 2 hours during display or sale.

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(2) For prolonged storage, foods should be stored in refrigerators or kept for hot holding at or above 60°C.
(3) No water should be added after cooking/reheating/boiling.

7. Fried Foods
(1) Good quality / branded oils/fats should be used for food preparation, frying etc.
(2) Use packaged oil only.
(3) Use of oils with high trans fats (like vanaspati) should be avoided as far as possible.
(4) Re-heating and reuse of oil should be avoided as far as possible. Avoid using leftover oil wherever possible.

8. Adding ingredients after cooking
(1) Ingredients added to the cooked food should be thoroughly washed/ cleaned.
(2) After cooking or post cooked mixing, the food should be used immediately.
(3) Garnishes etc., if added, should be prepared using fresh, thoroughly washed and freshly cut vegetables and used immediately.
Reuse of cooked food is not recommended.
z Potentially hazardous foods and high risk foods such as hollandaise sauce, refried beans, scrambled eggs and cut fruits are to be discarded.
z All food at banquet setting that has been on display are to be discarded.
z Food kept at more than 60°C during service may be reused, only by following the procedure indicated below:
z never mix leftover with fresh product. If in doubt, throw out the product.
z Reheat leftover food temperature to more than74°C

9. Thawing of Frozen Products.
Thawing-In Refrigerator
z Items being thawed should be labelled with defrost date to indicate the beginning of 2nd shelf life.
z Thaw food at 5°C or less.
z Temperature controlled thawing is recommended for meat, poultry and fish.
z Any other means of thawing apart from running water and microwave is not allowed.
Thawing In Running Water
Items being thawed should be labelled with date and time.
z Thawing in running water advisable shellfish and seafood.
z Thawing in running water should not exceed 90 minutes.
z Ensure air break between tap and water.
z Use sanitized food grade container.
z Sink must not be used for other purposes during thawing
z After thawing, product must be used within 12 hours.
z Cold running water (from mains) should be at 15°C or less
[F.No. 2-15015/30/2010]

V.N. GAUR,
Chief Executive Officer

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EXTRAORDINARY
PART II — Section 1
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PUBLISHED BY AUTHORITY

No. 54] NEW DELHI, FRIDAY, AUGUST 9, 2019/SHRAVANA 18, 1941 (SAKA)

bl Hkkx esa fHkUu i`"B la[;k nh tkrh gS ftlls fd ;g vyx ladyu ds :i esa j[kk tk ldsA
Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE
(Legislative Department)

New Delhi, the 9th August, 2019/Shravana 18, 1941 (Saka)

The following Act of Parliament received the assent of the President on the 9th August, 2019, and is hereby published for general information:—

THE CONSUMER PROTECTION ACT, 2019

NO. 35 OF 2019
[9th August, 2019.]
An Act to provide for protection of the interests of consumers and for the said purpose, to establish authorities for timely and effective administration and settlement of consumers' disputes and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventieth Year of the Republic of India as follows:—

CHAPTER I

PRELIMINARY

1. (1) This Act may be called the Consumer Protection Act, 2019. Short title, extent,
(2) It extends to the whole of India except the State of Jammu and Kashmir. commencement
(3) It shall come into force on such date as the Central Government may, by notification, and application.
appoint and different dates may be appointed for different States and for different provisions of this Act and any reference in any such provision to the commencement of this Act shall be construed as a reference to the coming into force of that provision.
(4) Save as otherwise expressly provided by the Central Government, by notification, this Act shall apply to all goods and services.

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Definitions. 2. In this Act, unless the context otherwise requires,—

(1) "advertisement" means any audio or visual publicity, representation, endorsement or pronouncement made by means of light, sound, smoke, gas, print, electronic media, internet or website and includes any notice, circular, label, wrapper, invoice or such other documents;

(2) "appropriate laboratory" means a laboratory or an organisation—

(i) recognised by the Central Government; or

(ii) recognised by a State Government, subject to such guidelines as may be issued by the Central Government in this behalf; or

(iii) established by or under any law for the time being in force, which is maintained, financed or aided by the Central Government or a State Government for carrying out analysis or test of any goods with a view to determining whether such goods suffer from any defect;

(3) "branch office" means—

(i) any office or place of work described as a branch by the establishment; or

(ii) any establishment carrying on either the same or substantially the same activity carried on by the head office of the establishment;

(4) "Central Authority" means the Central Consumer Protection Authority established under section 10;

(5) "complainant" means—

(i) a consumer; or

(ii) any voluntary consumer association registered under any law for the time being in force; or

(iii) the Central Government or any State Government; or

(iv) the Central Authority; or

(v) one or more consumers, where there are numerous consumers having the same interest; or

(vi) in case of death of a consumer, his legal heir or legal representative; or

(vii) in case of a consumer being a minor, his parent or legal guardian;

(6) "complaint" means any allegation in writing, made by a complainant for obtaining any relief provided by or under this Act, that—

(i) an unfair contract or unfair trade practice or a restrictive trade practice has been adopted by any trader or service provider;

(ii) the goods bought by him or agreed to be bought by him suffer from one or more defects;

(iii) the services hired or availed of or agreed to be hired or availed of by him suffer from any deficiency;

(iv) a trader or a service provider, as the case may be, has charged for the goods or for the services mentioned in the complaint, a price in excess of the price—

(a) fixed by or under any law for the time being in force; or

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(b) displayed on the goods or any package containing such goods; or

(c) displayed on the price list exhibited by him by or under any law for the time being in force; or

(d) agreed between the parties;

(v) the goods, which are hazardous to life and safety when used, are being offered for sale to the public—

(a) in contravention of standards relating to safety of such goods as required to be complied with, by or under any law for the time being in force;

(b) where the trader knows that the goods so offered are unsafe to the public;

(vi) the services which are hazardous or likely to be hazardous to life and safety of the public when used, are being offered by a person who provides any service and who knows it to be injurious to life and safety;

(vii) a claim for product liability action lies against the product manufacturer, product seller or product service provider, as the case may be;

(7) "consumer" means any person who—

(i) buys any goods for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment and includes any user of such goods other than the person who buys such goods for consideration paid or promised or partly paid or partly promised, or under any system of deferred payment, when such use is made with the approval of such person, but does not include a person who obtains such goods for resale or for any commercial purpose; or

(ii) hires or avails of any service for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment and includes any beneficiary of such service other than the person who hires or avails of the services for consideration paid or promised, or partly paid and partly promised, or under any system of deferred payment, when such services are availed of with the approval of the first mentioned person, but does not include a person who avails of such service for any commercial purpose.

Explanation.—For the purposes of this clause,—

(a) the expression "commercial purpose" does not include use by a person of goods bought and used by him exclusively for the purpose of earning his livelihood, by means of self-employment;

(b) the expressions "buys any goods" and "hires or avails any services" includes offline or online transactions through electronic means or by teleshopping or direct selling or multi-level marketing;

(8) "consumer dispute" means a dispute where the person against whom a complaint has been made, denies or disputes the allegations contained in the complaint;

(9) "consumer rights" includes,—

(i) the right to be protected against the marketing of goods, products or services which are hazardous to life and property;

(ii) the right to be informed about the quality, quantity, potency, purity, standard and price of goods, products or services, as the case may be, so as to protect the consumer against unfair trade practices;

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(iii) the right to be assured, wherever possible, access to a variety of goods, products or services at competitive prices;

(iv) the right to be heard and to be assured that consumer's interests will receive due consideration at appropriate fora;

(v) the right to seek redressal against unfair trade practice or restrictive trade practices or unscrupulous exploitation of consumers; and

(vi) the right to consumer awareness;

(10) "defect" means any fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained by or under any law for the time being in force or under any contract, express or implied or as is claimed by the trader in any manner whatsoever in relation to any goods or product and the expression "defective" shall be construed accordingly;

(11) "deficiency" means any fault, imperfection, shortcoming or inadequacy in the quality, nature and manner of performance which is required to be maintained by or under any law for the time being in force or has been undertaken to be performed by a person in pursuance of a contract or otherwise in relation to any service and includes—

(i) any act of negligence or omission or commission by such person which causes loss or injury to the consumer; and

(ii) deliberate withholding of relevant information by such person to the consumer;

(12) "design", in relation to a product, means the intended or known physical and material characteristics of such product and includes any intended or known formulation or content of such product and the usual result of the intended manufacturing or other process used to produce such product;

(13) "direct selling" means marketing, distribution and sale of goods or provision of services through a network of sellers, other than through a permanent retail location;

(14) "Director-General" means the Director-General appointed under sub-section (2) of section 15;

(15) "District Commission" means a District Consumer Disputes Redressal Commission established under sub-section (1) of section 28;

(16) "e-commerce" means buying or selling of goods or services including digital products over digital or electronic network;

(17) "electronic service provider" means a person who provides technologies or processes to enable a product seller to engage in advertising or selling goods or services to a consumer and includes any online market place or online auction sites;

(18) "endorsement", in relation to an advertisement, means—

(i) any message, verbal statement, demonstration; or

(ii) depiction of the name, signature, likeness or other identifiable personal characteristics of an individual; or

(iii) depiction of the name or seal of any institution or organisation,

which makes the consumer to believe that it reflects the opinion, finding or experience of the person making such endorsement;

(19) "establishment" includes an advertising agency, commission agent, manufacturing, trading or any other commercial agency which carries on any business, trade or profession or any work in connection with or incidental or ancillary to any

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commercial activity, trade or profession, or such other class or classes of persons including public utility entities in the manner as may be prescribed;

(20) "express warranty" means any material statement, affirmation of fact, promise or description relating to a product or service warranting that it conforms to such material statement, affirmation, promise or description and includes any sample or model of a product warranting that the whole of such product conforms to such sample or model;

(21) "goods" means every kind of movable property and includes "food" as defined in clause (j) of sub-section (1) of section 3 of the Food Safety and Standards 34 of 2006. Act, 2006;

(22) "harm", in relation to a product liability, includes—

(i) damage to any property, other than the product itself;

(ii) personal injury, illness or death;

(iii) mental agony or emotional distress attendant to personal injury or illness or damage to property; or

(iv) any loss of consortium or services or other loss resulting from a harm referred to in sub-clause (i) or sub-clause (ii) or sub-clause (iii),

but shall not include any harm caused to a product itself or any damage to the property on account of breach of warranty conditions or any commercial or economic loss, including any direct, incidental or consequential loss relating thereto;

(23) "injury" means any harm whatever illegally caused to any person, in body, mind or property;

(24) "manufacturer" means a person who—

(i) makes any goods or parts thereof; or

(ii) assembles any goods or parts thereof made by others; or

(iii) puts or causes to be put his own mark on any goods made by any other person;

(25) "mediation" means the process by which a mediator mediates the consumer disputes;

(26) "mediator" means a mediator referred to in section 75;

(27) "member" includes the President and a member of the National Commission or a State Commission or a District Commission, as the case may be;

(28) "misleading advertisement" in relation to any product or service, means an advertisement, which—

(i) falsely describes such product or service; or

(ii) gives a false guarantee to, or is likely to mislead the consumers as to the nature, substance, quantity or quality of such product or service; or

(iii) conveys an express or implied representation which, if made by the manufacturer or seller or service provider thereof, would constitute an unfair trade practice; or

(iv) deliberately conceals important information;

(29) "National Commission" means the National Consumer Disputes Redressal Commission established under sub-section (1) of section 53;

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(30) "notification" means a notification published in the Official Gazette and the term "notify" shall be construed accordingly;

(31) "person" includes—

(i) an individual;

(ii) a firm whether registered or not;

(iii) a Hindu undivided family;

(iv) a co-operative society;

(v) an association of persons whether registered under the Societies Registration Act, 1860 or not; 21 of 1860.

(vi) any corporation, company or a body of individuals whether incorporated or not;

(vii) any artificial juridical person, not falling within any of the preceding sub-clauses;

(32) "prescribed" means prescribed by rules made by the Central Government, or, as the case may be, the State Government;

(33) "product" means any article or goods or substance or raw material or any extended cycle of such product, which may be in gaseous, liquid, or solid state possessing intrinsic value which is capable of delivery either as wholly assembled or as a component part and is produced for introduction to trade or commerce, but does not include human tissues, blood, blood products and organs;

(34) "product liability" means the responsibility of a product manufacturer or product seller, of any product or service, to compensate for any harm caused to a consumer by such defective product manufactured or sold or by deficiency in services relating thereto;

(35) "product liability action" means a complaint filed by a person before a District Commission or State Commission or National Commission, as the case may be, for claiming compensation for the harm caused to him;

(36) "product manufacturer" means a person who—

(i) makes any product or parts thereof; or

(ii) assembles parts thereof made by others; or

(iii) puts or causes to be put his own mark on any products made by any other person; or

(iv) makes a product and sells, distributes, leases, installs, prepares, packages, labels, markets, repairs, maintains such product or is otherwise involved in placing such product for commercial purpose; or

(v) designs, produces, fabricates, constructs or re-manufactures any product before its sale; or

(vi) being a product seller of a product, is also a manufacturer of such product;

(37) "product seller", in relation to a product, means a person who, in the course of business, imports, sells, distributes, leases, installs, prepares, packages, labels, markets, repairs, maintains, or otherwise is involved in placing such product for commercial purpose and includes—

(i) a manufacturer who is also a product seller; or

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(ii) a service provider,

but does not include—

(a) a seller of immovable property, unless such person is engaged in the sale of constructed house or in the construction of homes or flats;

(b) a provider of professional services in any transaction in which, the sale or use of a product is only incidental thereto, but furnishing of opinion, skill or services being the essence of such transaction;

(c) a person who—

(I) acts only in a financial capacity with respect to the sale of the product;

(II) is not a manufacturer, wholesaler, distributor, retailer, direct seller or an electronic service provider;

(III) leases a product, without having a reasonable opportunity to inspect and discover defects in the product, under a lease arrangement in which the selection, possession, maintenance, and operation of the product are controlled by a person other than the lessor;

(38) "product service provider", in relation to a product, means a person who provides any service in respect of such product;

(39) "regulations" means the regulations made by the National Commission, or as the case may be, the Central Authority;

(40) "Regulator" means a body or any authority established under any other law for the time being in force;

(41) "restrictive trade practice" means a trade practice which tends to bring about manipulation of price or its conditions of delivery or to affect flow of supplies in the market relating to goods or services in such a manner as to impose on the consumers unjustified costs or restrictions and shall include—

(i) delay beyond the period agreed to by a trader in supply of such goods or in providing the services which has led or is likely to lead to rise in the price;

(ii) any trade practice which requires a consumer to buy, hire or avail of any goods or, as the case may be, services as condition precedent for buying, hiring or availing of other goods or services;

(42) "service" means service of any description which is made available to potential users and includes, but not limited to, the provision of facilities in connection with banking, financing, insurance, transport, processing, supply of electrical or other energy, telecom, boarding or lodging or both, housing construction, entertainment, amusement or the purveying of news or other information, but does not include the rendering of any service free of charge or under a contract of personal service;

(43) "spurious goods" means such goods which are falsely claimed to be genuine;

(44) "State Commission" means a State Consumer Disputes Redressal Commission established under sub-section (1) of section 42;

(45) "trader", in relation to any goods, means a person who sells or distributes any goods for sale and includes the manufacturer thereof, and where such goods are sold or distributed in package form, includes the packer thereof;

(46) "unfair contract" means a contract between a manufacturer or trader or service provider on one hand, and a consumer on the other, having such terms which

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cause significant change in the rights of such consumer, including the following, namely:—

(i) requiring manifestly excessive security deposits to be given by a consumer for the performance of contractual obligations; or

(ii) imposing any penalty on the consumer, for the breach of contract thereof which is wholly disproportionate to the loss occurred due to such breach to the other party to the contract; or

(iii) refusing to accept early repayment of debts on payment of applicable penalty; or

(iv) entitling a party to the contract to terminate such contract unilaterally, without reasonable cause; or

(v) permitting or has the effect of permitting one party to assign the contract to the detriment of the other party who is a consumer, without his consent; or

(vi) imposing on the consumer any unreasonable charge, obligation or condition which puts such consumer to disadvantage;

(47) "unfair trade practice" means a trade practice which, for the purpose of promoting the sale, use or supply of any goods or for the provision of any service, adopts any unfair method or unfair or deceptive practice including any of the following practices, namely:—

(i) making any statement, whether orally or in writing or by visible representation including by means of electronic record, which—

(a) falsely represents that the goods are of a particular standard, quality, quantity, grade, composition, style or model;

(b) falsely represents that the services are of a particular standard, quality or grade;

(c) falsely represents any re-built, second-hand, renovated, reconditioned or old goods as new goods;

(d) represents that the goods or services have sponsorship, approval, performance, characteristics, accessories, uses or benefits which such goods or services do not have;

(e) represents that the seller or the supplier has a sponsorship or approval or affiliation which such seller or supplier does not have;

(f) makes a false or misleading representation concerning the need for, or the usefulness of, any goods or services;

(g) gives to the public any warranty or guarantee of the performance, efficacy or length of life of a product or of any goods that is not based on an adequate or proper test thereof:

Provided that where a defence is raised to the effect that such warranty or guarantee is based on adequate or proper test, the burden of proof of such defence shall lie on the person raising such defence;

(h) makes to the public a representation in a form that purports to be—

(A) a warranty or guarantee of a product or of any goods or services; or

(B) a promise to replace, maintain or repair an article or any part thereof or to repeat or continue a service until it has achieved a specified result,

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if such purported warranty or guarantee or promise is materially misleading or if there is no reasonable prospect that such warranty, guarantee or promise will be carried out;

(i) materially misleads the public concerning the price at which a product or like products or goods or services, have been or are, ordinarily sold or provided, and, for this purpose, a representation as to price shall be deemed to refer to the price at which the product or goods or services has or have been sold by sellers or provided by suppliers generally in the relevant market unless it is clearly specified to be the price at which the product has been sold or services have been provided by the person by whom or on whose behalf the representation is made;

(j) gives false or misleading facts disparaging the goods, services or trade of another person.

Explanation.—For the purposes of this sub-clause, a statement that is,—

(A) expressed on an article offered or displayed for sale, or on its wrapper or container; or

(B) expressed on anything attached to, inserted in, or accompanying, an article offered or displayed for sale, or on anything on which the article is mounted for display or sale; or

(C) contained in or on anything that is sold, sent, delivered, transmitted or in any other manner whatsoever made available to a member of the public,

shall be deemed to be a statement made to the public by, and only by, the person who had caused the statement to be so expressed, made or contained;

(ii) permitting the publication of any advertisement, whether in any newspaper or otherwise, including by way of electronic record, for the sale or supply at a bargain price of goods or services that are not intended to be offered for sale or supply at the bargain price, or for a period that is, and in quantities that are, reasonable, having regard to the nature of the market in which the business is carried on, the nature and size of business, and the nature of the advertisement.

Explanation.—For the purpose of this sub-clause, "bargain price" means,—

(A) a price that is stated in any advertisement to be a bargain price, by reference to an ordinary price or otherwise; or

(B) a price that a person who reads, hears or sees the advertisement, would reasonably understand to be a bargain price having regard to the prices at which the product advertised or like products are ordinarily sold;

(iii) permitting—

(a) the offering of gifts, prizes or other items with the intention of not providing them as offered or creating impression that something is being given or offered free of charge when it is fully or partly covered by the amount charged, in the transaction as a whole;

(b) the conduct of any contest, lottery, game of chance or skill, for the purpose of promoting, directly or indirectly, the sale, use or supply of any product or any business interest, except such contest, lottery, game of chance or skill as may be prescribed;

(c) withholding from the participants of any scheme offering gifts, prizes or other items free of charge on its closure, the information about final results of the scheme.

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Explanation.—For the purpose of this sub-clause, the participants of a scheme shall be deemed to have been informed of the final results of the scheme where such results are within a reasonable time published, prominently in the same newspaper in which the scheme was originally advertised;

(iv) permitting the sale or supply of goods intended to be used, or are of a kind likely to be used by consumers, knowing or having reason to believe that the goods do not comply with the standards prescribed by the competent authority relating to performance, composition, contents, design, constructions, finishing or packaging as are necessary to prevent or reduce the risk of injury to the person using the goods;

(v) permitting the hoarding or destruction of goods, or refusal to sell the goods or to make them available for sale or to provide any service, if such hoarding or destruction or refusal raises or tends to raise or is intended to raise, the cost of those or other similar goods or services;

(vi) manufacturing of spurious goods or offering such goods for sale or adopting deceptive practices in the provision of services;

(vii) not issuing bill or cash memo or receipt for the goods sold or services rendered in such manner as may be prescribed;

(viii) refusing, after selling goods or rendering services, to take back or withdraw defective goods or to withdraw or discontinue deficient services and to refund the consideration thereof, if paid, within the period stipulated in the bill or cash memo or receipt or in the absence of such stipulation, within a period of thirty days;

(ix) disclosing to other person any personal information given in confidence by the consumer unless such disclosure is made in accordance with the provisions of any law for the time being in force.

CHAPTER II

CONSUMER PROTECTION COUNCILS

Central Consumer Protection Council.

3. (1) The Central Government shall, by notification, establish with effect from such date as it may specify in that notification, the Central Consumer Protection Council to be known as the Central Council.

(2) The Central Council shall be an advisory council and consist of the following members, namely:—

(a) the Minister-in-charge of the Department of Consumer Affairs in the Central Government, who shall be the Chairperson; and

(b) such number of other official or non-official members representing such interests as may be prescribed.

Procedure for meetings of Central Council.

4. (1) The Central Council shall meet as and when necessary, but at least one meeting of the Council shall be held every year.

(2) The Central Council shall meet at such time and place as the Chairperson may think fit and shall observe such procedure in regard to the transaction of its business as may be prescribed.

Objects of Central Council.

5. The objects of the Central Council shall be to render advice on promotion and protection of the consumers' rights under this Act.

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6. (1) Every State Government shall, by notification, establish with effect from such State
date as it may specify in such notification, a State Consumer Protection Council for such Consumer
State to be known as the State Council. Protection
Councils.
(2) The State Council shall be an advisory council and consist of the following members,
namely:—

(a) the Minister-in-charge of Consumer Affairs in the State Government who
shall be the Chairperson;

(b) such number of other official or non-official members representing such
interests as may be prescribed;

(c) such number of other official or non-official members, not exceeding ten, as
may be nominated by the Central Government.

(3) The State Council shall meet as and when necessary but not less than two meetings
shall be held every year.

(4) The State Council shall meet at such time and place as the Chairperson may think
fit and shall observe such procedure in regard to the transaction of its business, as may be
prescribed.

7. The objects of every State Council shall be to render advice on promotion and Objects of
protection of consumer rights under this Act within the State. State Council.

8. (1) The State Government shall, by notification, establish for every District with District
effect from such date as it may specify in such notification, a District Consumer Protection Consumer
Protection
Council to be known as the District Council. Council.
(2) The District Council shall be an advisory council and consist of the following
members, namely:—

(a) the Collector of the district (by whatever name called), who shall be the
Chairperson; and

(b) such number of other official and non-official members representing such
interests as may be prescribed.

(3) The District Council shall meet as and when necessary but not less than two
meetings shall be held every year.

(4) The District Council shall meet at such time and place within the district as the
Chairperson may think fit and shall observe such procedure in regard to the transaction of
its business as may be prescribed.
9. The objects of every District Council shall be to render advice on promotion and Objects of
Districtprotection of consumer rights under this Act within the district. Council.

CHAPTER III

CENTRAL CONSUMER PROTECTION AUTHORITY
10. (1) The Central Government shall, by notification, establish with effect from such Establishment
of Centraldate as it may specify in that notification, a Central Consumer Protection Authority to be Consumer
known as the Central Authority to regulate matters relating to violation of rights of consumers, Protection
unfair trade practices and false or misleading advertisements which are prejudicial to the Authority.
interests of public and consumers and to promote, protect and enforce the rights of consumers
as a class.

(2) The Central Authority shall consist of a Chief Commissioner and such number of
other Commissioners as may be prescribed, to be appointed by the Central Government to
exercise the powers and discharge the functions under this Act.

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(3) The headquarters of the Central Authority shall be at such place in the National Capital Region of Delhi, and it shall have regional and other offices in any other place in India as the Central Government may decide.

Qualifications, 11. The Central Government may, by notification, make rules to provide for the method of qualifications for appointment, method of recruitment, procedure for appointment, term ofrecruitment, etc., of Chief office, salaries and allowances, resignation, removal and other terms and conditions of the Commissioner service of the Chief Commissioner and Commissioners of the Central Authority.
and
Commissioners.

Vacancy, etc., 12. No act or proceeding of the Central Authority shall be invalid merely by reason of—
not to
invalidate (a) any vacancy in, or any defect in the constitution of, the Central Authority; or
proceedings
of Central (b) any defect in the appointment of a person acting as the Chief Commissioner
Authority. or as a Commissioner; or

(c) any irregularity in the procedure of the Central Authority not affecting the merits of the case.

Appointment 13. (1) The Central Government shall provide the Central Authority such number of
of officers, officers and other employees as it considers necessary for the efficient performance of its
experts,
professionals functions under this Act.
and other (2) The salaries and allowances payable to, and the other terms and conditions ofemployees of
Central service of, the officers and other employees of the Central Authority appointed under this
Authority. Act shall be such as may be prescribed.

(3) The Central Authority may engage, in accordance with the procedure specified by regulations, such number of experts and professionals of integrity and ability, who have special knowledge and experience in the areas of consumer rights and welfare, consumer policy, law, medicine, food safety, health, engineering, product safety, commerce, economics, public affairs or administration, as it deems necessary to assist it in the discharge of its functions under this Act.

Procedure of 14. (1) The Central Authority shall regulate the procedure for transaction of its business
Central and allocation of its business amongst the Chief Commissioner and Commissioners as may
Authority.
be specified by regulations.

(2) The Chief Commissioner shall have the powers of general superintendence, direction and control in respect of all administrative matters of the Central Authority:

Provided that the Chief Commissioner may delegate such of his powers relating to administrative matters of the Central Authority, as he may think fit, to any Commissioner (including Commissioner of a regional office) or any other officer of the Central Authority.

Investigation 15. (1) The Central Authority shall have an Investigation Wing headed by a Director-
Wing. General for the purpose of conducting inquiry or investigation under this Act as may be directed by the Central Authority.

(2) The Central Government may appoint a Director-General and such number of Additional Director-General, Director, Joint Director, Deputy Director and Assistant Director, from amongst persons who have experience in investigation and possess such qualifications, in such manner, as may be prescribed.

(3) Every Additional Director-General, Director, Joint Director, Deputy Director and Assistant Director shall exercise his powers, and discharge his functions, subject to the general control, supervision and direction of the Director-General.

(4) The Director-General may delegate all or any of his powers to the Additional Director-General or Director, Joint Director or Deputy Director or Assistant Director, as the case may be, while conducting inquiries or investigations under this Act.

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(5) The inquiries or the investigations made by the Director- General shall be submitted to the Central Authority in such form, in such manner and within such time, as may be specified by regulations.

16. The District Collector (by whatever name called) may, on a complaint or on a reference made to him by the Central Authority or the Commissioner of a regional office, inquire into or investigate complaints regarding violation of rights of consumers as a class, on matters relating to violations of consumer rights, unfair trade practices and false or misleading advertisements, within his jurisdiction and submit his report to the Central Authority or to the Commissioner of a regional office, as the case may be. Power of District Collector.

17. A complaint relating to violation of consumer rights or unfair trade practices or false or misleading advertisements which are prejudicial to the interests of consumers as a class, may be forwarded either in writing or in electronic mode, to any one of the authorities, namely, the District Collector or the Commissioner of regional office or the Central Authority. Complaints to authorities.

18. (1) The Central Authority shall— Powers and functions of Central Authority.

(a) protect, promote and enforce the rights of consumers as a class, and prevent violation of consumers rights under this Act;

(b) prevent unfair trade practices and ensure that no person engages himself in unfair trade practices;

(c) ensure that no false or misleading advertisement is made of any goods or services which contravenes the provisions of this Act or the rules or regulations made thereunder;

(d) ensure that no person takes part in the publication of any advertisement which is false or misleading.

(2) Without prejudice to the generality of the provisions contained in sub-section (1), the Central Authority may, for any of the purposes aforesaid,—

(a) inquire or cause an inquiry or investigation to be made into violations of consumer rights or unfair trade practices, either suo motu or on a complaint received or on the directions from the Central Government;

(b) file complaints before the District Commission, the State Commission or the National Commission, as the case may be, under this Act;

(c) intervene in any proceedings before the District Commission or the State Commission or the National Commission, as the case may be, in respect of any allegation of violation of consumer rights or unfair trade practices;

(d) review the matters relating to, and the factors inhibiting enjoyment of, consumer rights, including safeguards provided for the protection of consumers under any other law for the time being in force and recommend appropriate remedial measures for their effective implementation;

(e) recommend adoption of international covenants and best international practices on consumer rights to ensure effective enforcement of consumer rights;

(f) undertake and promote research in the field of consumer rights;

(g) spread and promote awareness on consumer rights;

(h) encourage non-Governmental organisations and other institutions working in the field of consumer rights to co-operate and work with consumer protection agencies;

(i) mandate the use of unique and universal goods identifiers in such goods, as may be necessary, to prevent unfair trade practices and to protect consumers' interest;

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(j) issue safety notices to alert consumers against dangerous or hazardous or unsafe goods or services;

(k) advise the Ministries and Departments of the Central and State Governments on consumer welfare measures;

(l) issue necessary guidelines to prevent unfair trade practices and protect consumers' interest.

Power of Central Authority to refer matter for investigation or regulation.

19. (1) The Central Authority may, after receiving any information or complaint or directions from the Central Government or of its own motion, conduct or cause to be conducted a preliminary inquiry as to whether there exists a prima facie case of violation of consumer rights or any unfair trade practice or any false or misleading advertisement, by any person, which is prejudicial to the public interest or to the interests of consumers and if it is satisfied that there exists a prima facie case, it shall cause investigation to be made by the Director-General or by the District Collector.

(2) Where, after preliminary inquiry, the Central Authority is of the opinion that the matter is to be dealt with by a Regulator established under any other law for the time being in force, it may refer such matter to the concerned Regulator along with its report.

(3) For the purposes of investigation under sub-section (1), the Central Authority, the Director General or the District Collector may call upon a person referred to in sub-section (1) and also direct him to produce any document or record in his possession.

Power of Central Authority to pass orders.

20. Where the Central Authority is satisfied on the basis of investigation that there is sufficient evidence to show violation of consumer rights or unfair trade practice by a person, it may pass such order as may be necessary, including—

recall goods, etc.

(a) recalling of goods or withdrawal of services which are dangerous, hazardous or unsafe;

(b) reimbursement of the prices of goods or services so recalled to purchasers of such goods or services; and

(c) discontinuation of practices which are unfair and prejudicial to consumers' interest:

Provided that the Central Authority shall give the person an opportunity of being heard before passing an order under this section.

Power of Central Authority to issue directions and penalties against false or misleading advertisements.

21. (1) Where the Central Authority is satisfied after investigation that any advertisement is false or misleading and is prejudicial to the interest of any consumer or is in contravention of consumer rights, it may, by order, issue directions to the concerned trader or manufacturer or endorser or advertiser or publisher, as the case may be, to discontinue such advertisement or to modify the same in such manner and within such time as may be specified in that order.

(2) Notwithstanding the order passed under sub-section (1), if the Central Authority is of the opinion that it is necessary to impose a penalty in respect of such false or misleading advertisement, by a manufacturer or an endorser, it may, by order, impose on manufacturer or endorser a penalty which may extend to ten lakh rupees:

Provided that the Central Authority may, for every subsequent contravention by a manufacturer or endorser, impose a penalty, which may extend to fifty lakh rupees.

(3) Notwithstanding any order under sub-sections (1) and (2), where the Central Authority deems it necessary, it may, by order, prohibit the endorser of a false or misleading advertisement from making endorsement of any product or service for a period which may extend to one year:

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Provided that the Central Authority may, for every subsequent contravention, prohibit such endorser from making endorsement in respect of any product or service for a period which may extend to three years.

(4) Where the Central Authority is satisfied after investigation that any person is found to publish, or is a party to the publication of, a misleading advertisement, it may impose on such person a penalty which may extend to ten lakh rupees.

(5) No endorser shall be liable to a penalty under sub-sections (2) and (3) if he has exercised due diligence to verify the veracity of the claims made in the advertisement regarding the product or service being endorsed by him.

(6) No person shall be liable to such penalty if he proves that he had published or arranged for the publication of such advertisement in the ordinary course of his business:

Provided that no such defence shall be available to such person if he had previous knowledge of the order passed by the Central Authority for withdrawal or modification of such advertisement.

(7) While determining the penalty under this section, regard shall be had to the following, namely:—

(a) the population and the area impacted or affected by such offence;

(b) the frequency and duration of such offence;

(c) the vulnerability of the class of persons likely to be adversely affected by such offence; and

(d) the gross revenue from the sales effected by virtue of such offence.

(8) The Central Authority shall give the person an opportunity of being heard before an order under this section is passed.

22. (1) For the purpose of conducting an investigation after preliminary inquiry under Search and sub-section (1) of section 19, the Director-General or any other officer authorised by him in seizure. this behalf, or the District Collector, as the case may be, may, if he has any reason to believe that any person has violated any consumer rights or committed unfair trade practice or causes any false or misleading advertisement to be made, shall,—

(a) enter at any reasonable time into any such premises and search for any document or record or article or any other form of evidence and seize such document, record, article or such evidence;

(b) make a note or an inventory of such record or article; or

(c) require any person to produce any record, register or other document or article.

2 of 1974. (2) The provisions of the Code of Criminal Procedure, 1973, relating to search and seizure shall apply, as far as may be, for search and seizure under this Act.

(3) Every document, record or article seized under clause (a) of sub-section (1) or produced under clause (c) of that sub-section shall be returned to the person, from whom they were seized or who produced the same, within a period of twenty days of the date of such seizure or production, as the case may be, after copies thereof or extracts therefrom certified by that person, in such manner as may be prescribed, have been taken.

(4) Where any article seized under sub-section (1) are subject to speedy or natural decay, the Director-General or such other officer may dispose of the article in such manner as may be prescribed.

(5) In the case of articles other than the articles referred to in sub-section (4), provisions contained in clause (c) of sub-section (2) of section 38 shall mutatis mutandis apply in relation to analysis or tests.

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Designation of any statutory Central Authority
23. The Central Government may, if it considers necessary, by notification, designate any authority or body to exercise the powers and perform the functions of the statutory Central Authority referred to in section 10.

Appeal.
24. A person aggrieved by any order passed by the Central Authority under sections 20 and 21 may file an appeal to the National Commission within a period of thirty days from the date of receipt of such order.

Grants by Central Government.
25. The Central Government may, after due appropriation made by Parliament by law in this behalf, make to the Central Authority grants of such sums of money as that Government may think fit for being utilised for the purposes of this Act.

Accounts and audit.
26. (1) The Central Authority shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form and manner as may be prescribed in consultation with the Comptroller and Auditor-General of India.

(2) The accounts of the Central Authority shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the Central Authority to the Comptroller and Auditor-General of India.

(3) The Comptroller and Auditor-General of India or any other person appointed by him in connection with the audit of the accounts of the Central Authority shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India generally has, in connection with the audit of the Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Central Authority.

(4) The accounts of the Central Authority as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government which shall cause the same to be laid before each House of Parliament.

Furnishing of annual reports, etc.
27. (1) The Central Authority shall prepare once in every year, in such form, manner and at such time as may be prescribed, an annual report giving full account of its activities during the previous year and such other reports and returns, as may be directed, and copies of such report and returns shall be forwarded to the Central Government.

(2) A copy of the annual report received under sub-section (1) shall be laid, as soon as may be after it is received, before each House of Parliament.

CHAPTER IV

CONSUMER DISPUTES REDRESSAL COMMISSION

Establishment of District Consumer Disputes Redressal Commission
28. (1) The State Government shall, by notification, establish a District Consumer Disputes Redressal Commission, to be known as the District Commission, in each district of the State:

Provided that the State Government may, if it deems fit, establish more than one District Commission in a district.

(2) Each District Commission shall consist of—

(a) a President; and

(b) not less than two and not more than such number of members as may be prescribed, in consultation with the Central Government.

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29. The Central Government may, by notification, make rules to provide for the Qualifications, qualifications, method of recruitment, procedure for appointment, term of office, resignation etc., of and removal of the President and members of the District Commission. President and members of District Commission.

30. The State Government may, by notification, make rules to provide for salaries and Salaries, allowances and other terms and conditions of service of the President, and members of the allowances and other terms District Commission. and conditions of service of President and members of District Commission.

31. Any person appointed as President or, as the case may be, a member of the District Transitional Commission immediately before the commencement of this Act shall hold office as such as provision. President or, as the case may be, as member till the completion of his term for which he has been appointed.

32. If, at any time, there is a vacancy in the office of the President or member of a Vacancy in District Commission, the State Government may, by notification, direct— office of member of

(a) any other District Commission specified in that notification to exercise the District jurisdiction in respect of that district also; or Commission.

(b) the President or a member of any other District Commission specified in that notification to exercise the powers and discharge the functions of the President or member of that District Commission also.

33. (1) The State Government shall provide the District Commission with such officers Officers and and other employees as may be required to assist the District Commission in the discharge other of its functions. employees of District

(2) The officers and other employees of the District Commission shall discharge their Commission. functions under the general superintendence of the President of the District Commission.

(3) The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the District Commission shall be such as may be prescribed.

34. (1) Subject to the other provisions of this Act, the District Commission shall have Jurisdiction of jurisdiction to entertain complaints where the value of the goods or services paid as District Commission. consideration does not exceed one crore rupees:

Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit.

(2) A complaint shall be instituted in a District Commission within the local limits of whose jurisdiction,—

(a) the opposite party or each of the opposite parties, where there are more than one, at the time of the institution of the complaint, ordinarily resides or carries on business or has a branch office or personally works for gain; or

(b) any of the opposite parties, where there are more than one, at the time of the institution of the complaint, actually and voluntarily resides, or carries on business or has a branch office, or personally works for gain, provided that in such case the permission of the District Commission is given; or

(c) the cause of action, wholly or in part, arises; or

(d) the complainant resides or personally works for gain.

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(3) The District Commission shall ordinarily function in the district headquarters and may perform its functions at such other place in the district, as the State Government may, in consultation with the State Commission, notify in the Official Gazette from time to time.

Manner in 35. (1) A complaint, in relation to any goods sold or delivered or agreed to be sold or which delivered or any service provided or agreed to be provided, may be filed with a District complaint
shall be made. Commission by—
(a) the consumer,—

(i) to whom such goods are sold or delivered or agreed to be sold or delivered or such service is provided or agreed to be provided; or

(ii) who alleges unfair trade practice in respect of such goods or service;

(b) any recognised consumer association, whether the consumer to whom such goods are sold or delivered or agreed to be sold or delivered or such service is provided or agreed to be provided, or who alleges unfair trade practice in respect of such goods or service, is a member of such association or not;

(c) one or more consumers, where there are numerous consumers having the same interest, with the permission of the District Commission, on behalf of, or for the benefit of, all consumers so interested; or

(d) the Central Government, the Central Authority or the State Government, as the case may be:

Provided that the complaint under this sub-section may be filed electronically in such manner as may be prescribed.

Explanation.—For the purposes of this sub-section, "recognised consumer association" means any voluntary consumer association registered under any law for the time being in force.

(2) Every complaint filed under sub-section (1) shall be accompanied with such fee and payable in such manner, including electronic form, as may be prescribed.

Proceedings 36. (1) Every proceeding before the District Commission shall be conducted by the before President of that Commission and atleast one member thereof, sitting together:
District
Commission. Provided that where a member, for any reason, is unable to conduct a proceeding till it is completed, the President and the other member shall continue the proceeding from the stage at which it was last heard by the previous member.

(2) On receipt of a complaint made under section 35, the District Commission may, by order, admit the complaint for being proceeded with or reject the same:

Provided that a complaint shall not be rejected under this section unless an opportunity of being heard has been given to the complainant:

Provided further that the admissibility of the complaint shall ordinarily be decided within twenty-one days from the date on which the complaint was filed.

(3) Where the District Commission does not decide the issue of admissibility of the complaint within the period so specified, it shall be deemed to have been admitted.

Reference to 37. (1) At the first hearing of the complaint after its admission, or at any later stage, if mediation. it appears to the District Commission that there exists elements of a settlement which may be acceptable to the parties, except in such cases as may be prescribed, it may direct the parties to give in writing, within five days, consent to have their dispute settled by mediation in accordance with the provisions of Chapter V.

(2) Where the parties agree for settlement by mediation and give their consent in writing, the District Commission shall, within five days of receipt of such consent, refer the

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matter for mediation, and in such case, the provisions of Chapter V, relating to mediation, shall apply.

38. (1) The District Commission shall, on admission of a complaint, or in respect of Procedure on cases referred for mediation on failure of settlement by mediation, proceed with such admission of complaint. complaint.

(2) Where the complaint relates to any goods, the District Commission shall,—

(a) refer a copy of the admitted complaint, within twenty-one days from the date of its admission to the opposite party mentioned in the complaint directing him to give his version of the case within a period of thirty days or such extended period not exceeding fifteen days as may be granted by it;

(b) if the opposite party on receipt of a complaint referred to him under clause (a) denies or disputes the allegations contained in the complaint, or omits or fails to take any action to represent his case within the time given by the District Commission, proceed to settle the consumer dispute in the manner specified in clauses (c) to (g);

(c) if the complaint alleges a defect in the goods which cannot be determined without proper analysis or test of the goods, obtain a sample of the goods from the complainant, seal it and authenticate it in the manner as may be prescribed and refer the sample so sealed to the appropriate laboratory along with a direction that such laboratory to make an analysis or test, whichever may be necessary, with a view to finding out whether such goods suffer from any defect alleged in the complaint or from any other defect and to report its findings thereon to the District Commission within a period of forty-five days of the receipt of the reference or within such extended period as may be granted by it;

(d) before any sample of the goods is referred to any appropriate laboratory under clause (c), require the complainant to deposit to the credit of the Commission such fees as may be specified, for payment to the appropriate laboratory for carrying out the necessary analysis or test in relation to the goods in question;

(e) remit the amount deposited to its credit under clause (d) to the appropriate laboratory to enable it to carry out the analysis or test mentioned in clause (c) and on receipt of the report from the appropriate laboratory, it shall forward a copy of the report along with such remarks as it may feel appropriate to the opposite party;

(f) if any of the parties disputes the correctness of the findings of the appropriate laboratory, or disputes the correctness of the methods of analysis or test adopted by the appropriate laboratory, require the opposite party or the complainant to submit in writing his objections with regard to the report made by the appropriate laboratory;

(g) give a reasonable opportunity to the complainant as well as the opposite party of being heard as to the correctness or otherwise of the report made by the appropriate laboratory and also as to the objection made in relation thereto under clause (f) and issue an appropriate order under section 39.

(3) The District Commission shall, if the complaint admitted by it under sub-section (2) of section 36 relates to goods in respect of which the procedure specified in sub-section (2) cannot be followed, or if the complaint relates to any services,—

(a) refer a copy of such complaint to the opposite party directing him to give his version of the case within a period of thirty days or such extended period not exceeding fifteen days as may be granted by the District Commission;

(b) if the opposite party, on receipt of a copy of the complaint, referred to him under clause (a) denies or disputes the allegations contained in the complaint, or omits or fails to take any action to represent his case within the time given by the District Commission, it shall proceed to settle the consumer dispute—

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(i) on the basis of evidence brought to its notice by the complainant and the opposite party, if the opposite party denies or disputes the allegations contained in the complaint, or

(ii) ex parte on the basis of evidence brought to its notice by the complainant, where the opposite party omits or fails to take any action to represent his case within the time given by the Commission;

(c) decide the complaint on merits if the complainant fails to appear on the date of hearing.

(4) For the purposes of sub-sections (2) and (3), the District Commission may, by order, require an electronic service provider to provide such information, documents or records, as may be specified in that order.

(5) No proceedings complying with the procedure laid down in sub-sections (1) and (2) shall be called in question in any court on the ground that the principles of natural justice have not been complied with.

(6) Every complaint shall be heard by the District Commission on the basis of affidavit and documentary evidence placed on record:

Provided that where an application is made for hearing or for examination of parties in person or through video conferencing, the District Commission may, on sufficient cause being shown, and after recording its reasons in writing, allow the same.

(7) Every complaint shall be disposed of as expeditiously as possible and endeavour shall be made to decide the complaint within a period of three months from the date of receipt of notice by opposite party where the complaint does not require analysis or testing of commodities and within five months if it requires analysis or testing of commodities:

Provided that no adjournment shall ordinarily be granted by the District Commission unless sufficient cause is shown and the reasons for grant of adjournment have been recorded in writing by the Commission:

Provided further that the District Commission shall make such orders as to the costs occasioned by the adjournment as may be specified by regulations:

Provided also that in the event of a complaint being disposed of after the period so specified, the District Commission shall record in writing, the reasons for the same at the time of disposing of the said complaint.

(8) Where during the pendency of any proceeding before the District Commission, if it appears necessary, it may pass such interim order as is just and proper in the facts and circumstances of the case.

(9) For the purposes of this section, the District Commission shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 while trying a 5 of 1908. suit in respect of the following matters, namely:—

(a) the summoning and enforcing the attendance of any defendant or witness and examining the witness on oath;

(b) requiring the discovery and production of any document or other material object as evidence;

(c) receiving of evidence on affidavits;

(d) the requisitioning of the report of the concerned analysis or test from the appropriate laboratory or from any other relevant source;

(e) issuing of commissions for the examination of any witness, or document; and

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(f) any other matter which may be prescribed by the Central Government.

(10) Every proceeding before the District Commission shall be deemed to be a judicial
45 of 1860. proceeding within the meaning of sections 193 and 228 of the Indian Penal Code, and the District Commission shall be deemed to be a criminal court for the purposes of section 195
2 of 1974. and Chapter XXVI of the Code of Criminal Procedure, 1973.

(11) Where the complainant is a consumer referred to in sub-clause (v) of clause (5) of section 2, the provisions of Order I Rule 8 of the First Schedule to the Code of Civil Procedure,
5 of 1908. 1908 shall apply subject to the modification that every reference therein to a suit or decree shall be construed as a reference to a complaint or the order of the District Commission thereon.

(12) In the event of death of a complainant who is a consumer or of the opposite party against whom the complaint has been filed, the provisions of Order XXII of the First Schedule
5 of 1908. to the Code of Civil Procedure, 1908 shall apply subject to the modification that every reference therein to the plaintiff and the defendant shall be construed as reference to a complainant or the opposite party, as the case may be.

39. (1) Where the District Commission is satisfied that the goods complained against Findings of suffer from any of the defects specified in the complaint or that any of the allegations District contained in the complaint about the services or any unfair trade practices, or claims for Commission. compensation under product liability are proved, it shall issue an order to the opposite party directing him to do one or more of the following, namely:—

(a) to remove the defect pointed out by the appropriate laboratory from the goods in question;

(b) to replace the goods with new goods of similar description which shall be free from any defect;

(c) to return to the complainant the price, or, as the case may be, the charges paid by the complainant along with such interest on such price or charges as may be decided;

(d) to pay such amount as may be awarded by it as compensation to the consumer for any loss or injury suffered by the consumer due to the negligence of the opposite party:

Provided that the District Commission shall have the power to grant punitive damages in such circumstances as it deems fit;

(e) to pay such amount as may be awarded by it as compensation in a product liability action under Chapter VI;

(f) to remove the defects in goods or deficiencies in the services in question;

(g) to discontinue the unfair trade practice or restrictive trade practice and not to repeat them;

(h) not to offer the hazardous or unsafe goods for sale;

(i) to withdraw the hazardous goods from being offered for sale;

(j) to cease manufacture of hazardous goods and to desist from offering services which are hazardous in nature;

(k) to pay such sum as may be determined by it, if it is of the opinion that loss or injury has been suffered by a large number of consumers who are not identifiable conveniently:

Provided that the minimum amount of sum so payable shall not be less than twenty-five per cent. of the value of such defective goods sold or service provided, as the case may be, to such consumers;

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(l) to issue corrective advertisement to neutralise the effect of misleading advertisement at the cost of the opposite party responsible for issuing such misleading advertisement;

(m) to provide for adequate costs to parties; and

(n) to cease and desist from issuing any misleading advertisement.

(2) Any amount obtained under sub-section (1) shall be credited to such fund and utilised in such manner as may be prescribed.

(3) In any proceeding conducted by the President and a member and if they differ on any point or points, they shall state the point or points on which they differ and refer the same to another member for hearing on such point or points and the opinion of the majority shall be the order of the District Commission:

Provided that the other member shall give his opinion on such point or points referred to him within a period of one month from the date of such reference.

(4) Every order made by the District Commission under sub-section (1) shall be signed by the President and the member who conducted the proceeding:

Provided that where the order is made as per majority opinion under sub-section (3), such order shall also be signed by the other member.

Review by District Commission in certain cases.

40. The District Commission shall have the power to review any of the order passed by it if there is an error apparent on the face of the record, either of its own motion or on an application made by any of the parties within thirty days of such order.

Appeal against order of District Commission.

41. Any person aggrieved by an order made by the District Commission may prefer an appeal against such order to the State Commission on the grounds of facts or law within a period of forty-five days from the date of the order, in such form and manner, as may be prescribed:

Provided that the State Commission may entertain an appeal after the expiry of the said period of forty-five days, if it is satisfied that there was sufficient cause for not filing it within that period:

Provided further that no appeal by a person, who is required to pay any amount in terms of an order of the District Commission, shall be entertained by the State Commission unless the appellant has deposited fifty per cent. of that amount in the manner as may be prescribed:

Provided also that no appeal shall lie from any order passed under sub-section (1) of section 81 by the District Commission pursuant to a settlement by mediation under section 80.

Establishment of State Consumer Disputes Redressal Commission.

42. (1) The State Government shall, by notification, establish a State Consumer Disputes Redressal Commission, to be known as the State Commission, in the State.

(2) The State Commission shall ordinarily function at the State capital and perform its functions at such other places as the State Government may in consultation with the State Commission.

(3) Each State Commission shall consist of—

(a) a President; and

(b) not less than four or not more than such number of members as may be prescribed in consultation with the Central Government.

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43. The Central Government may, by notification, make rules to provide for the Qualifications, qualification for appointment, method of recruitment, procedure of appointment, term of etc., of President and
office, resignation and removal of the President and members of the State Commission. members of State
Commission.

44. The State Government may, by notification, make rules to provide for salaries and Salaries, allowances and other terms and conditions of service of the President and members of the allowances and State Commission. other terms
and conditions
of service of
President and
members of
State
Commission.

45. Any person appointed as President or, as the case may be, a member of the State Transitional Commission immediately before the commencement of this Act shall hold office as such, as provision. President or member, as the case may be, till the completion of his term.

46. (1) The State Government shall determine the nature and categories of the officers Officers and and other employees required to assist the State Commission in the discharge of its functions employees of and provide the Commission with such officers and other employees as it may think fit. State Commission.
(2) The officers and other employees of the State Commission shall discharge their functions under the general superintendence of the President.

(3) The salaries and allowances payable to and the other terms and conditions of service of, the officers and other employees of the State Commission shall be such as may be prescribed.

47. (1) Subject to the other provisions of this Act, the State Commission shall have Jurisdiction of jurisdiction— State
Commission.
(a) to entertain—

(i) complaints where the value of the goods or services paid as consideration, exceeds rupees one crore, but does not exceed rupees ten crore:

Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit;

(ii) complaints against unfair contracts, where the value of goods or services paid as consideration does not exceed ten crore rupees;

(iii) appeals against the orders of any District Commission within the State; and

(b) to call for the records and pass appropriate orders in any consumer dispute which is pending before or has been decided by any District Commission within the State, where it appears to the State Commission that such District Commission has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested or has acted in exercise of its jurisdiction illegally or with material irregularity.

(2) The jurisdiction, powers and authority of the State Commission may be exercised by Benches thereof, and a Bench may be constituted by the President with one or more members as the President may deem fit:

Provided that the senior-most member shall preside over the Bench.

(3) Where the members of a Bench differ in opinion on any point, the points shall be decided according to the opinion of the majority, if there is a majority, but if the members are equally divided, they shall state the point or points on which they differ, and make a reference to the President who shall either hear the point or points himself or refer the case for hearing on such point or points by one or more of the other members and such point or points shall

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be decided according to the opinion of the majority of the members who have heard the case, including those who first heard it:

Provided that the President or the other members, as the case may be, shall give opinion on the point or points so referred within a period of one month from the date of such reference.

(4) A complaint shall be instituted in a State Commission within the limits of whose jurisdiction,—

(a) the opposite party or each of the opposite parties, where there are more than one, at the time of the institution of the complaint, ordinarily resides or carries on business or has a branch office or personally works for gain; or

(b) any of the opposite parties, where there are more than one, at the time of the institution of the complaint, actually and voluntarily resides, or carries on business or has a branch office or personally works for gain, provided in such case, the permission of the State Commission is given; or

(c) the cause of action, wholly or in part, arises; or

(d) the complainant resides or personally works for gain.

Transfer of cases. 48. On the application of the complainant or of its own motion, the State Commission may, at any stage of the proceeding, transfer any complaint pending before a District Commission to another District Commission within the State if the interest of justice so requires.

Procedure 49. (1) The provisions relating to complaints under sections 35, 36, 37, 38 and 39 shall, applicable to with such modifications as may be necessary, be applicable to the disposal of complaints by State the State Commission.Commission.
(2) Without prejudice to the provisions of sub-section (1), the State Commission may also declare any terms of contract, which is unfair to any consumer, to be null and void.

Review by State Commission in certain cases. 50. The State Commission shall have the power to review any of the order passed by it if there is an error apparent on the face of the record, either of its own motion or on an application made by any of the parties within thirty days of such order.

Appeal to National Commission. 51. (1) Any person aggrieved by an order made by the State Commission in exercise of its powers conferred by sub-clause (i) or (ii) of clause (a) of sub-section (1) of section 47 may prefer an appeal against such order to the National Commission within a period of thirty days from the date of the order in such form and manner as may be prescribed:

Provided that the National Commission shall not entertain the appeal after the expiry of the said period of thirty days unless it is satisfied that there was sufficient cause for not filing it within that period:

Provided further that no appeal by a person, who is required to pay any amount in terms of an order of the State Commission, shall be entertained by the National Commission unless the appellant has deposited fifty per cent. of that amount in the manner as may be prescribed.

(2) Save as otherwise expressly provided under this Act or by any other law for the time being in force, an appeal shall lie to the National Commission from any order passed in appeal by any State Commission, if the National Commission is satisfied that the case involves a substantial question of law.

(3) In an appeal involving a question of law, the memorandum of appeal shall precisely state the substantial question of law involved in the appeal.

(4) Where the National Commission is satisfied that a substantial question of law is involved in any case, it shall formulate that question and hear the appeal on that question:

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Provided that nothing in this sub-section shall be deemed to take away or abridge the power of the National Commission to hear, for reasons to be recorded in writing, the appeal on any other substantial question of law, if it is satisfied that the case involves such question of law.

(5) An appeal may lie to the National Commission under this section from an order passed ex parte by the State Commission.

52. An appeal filed before the State Commission or the National Commission, as the Hearing of case may be, shall be heard as expeditiously as possible and every endeavour shall be made appeal. to dispose of the appeal within a period of ninety days from the date of its admission:

Provided that no adjournment shall ordinarily be granted by the State Commission or the National Commission, as the case may be, unless sufficient cause is shown and the reasons for grant of adjournment have been recorded in writing by such Commission:

Provided further that the State Commission or the National Commission, as the case may be, shall make such orders as to the costs occasioned by the adjournment, as may be specified by regulations:

Provided also that in the event of an appeal being disposed of after the period so specified, the State Commission or the National Commission, as the case may be, shall record in writing the reasons for the same at the time of disposing of the said appeal.

53. (1) The Central Government shall, by notification, establish a National Consumer Establishment Disputes Redressal Commission, to be known as the National Commission. of National Consumer
(2) The National Commission shall ordinarily function at the National Capital Region Disputes and perform its functions at such other places as the Central Government may in consultation Redressal Commission.
with the National Commission notify in the Official Gazette:

Provided that the Central Government may, by notification, establish regional Benches of the National Commission, at such places, as it deems fit.

54. The National Commission shall consist of— Composition of National
(a) a President; and Commission.

(b) not less than four and not more than such number of members as may be prescribed.

55. (1) The Central Government may, by notification, make rules to provide for Qualifications, qualifications, appointment, term of office, salaries and allowances, resignation, removal etc., of and other terms and conditions of service of the President and members of the National President and members of
Commission: National
Commission.
Provided that the President and members of the National Commission shall hold office for such term as specified in the rules made by the Central Government but not exceeding five years from the date on which he enters upon his office and shall be eligible for re-appointment:

Provided further that no President or members shall hold office as such after he has attained such age as specified in the rules made by the Central Government which shall not exceed,—

(a) in the case of the President, the age of seventy years;

(b) in the case of any other member, the age of sixty-seven years.

(2) Neither the salary and allowances nor the other terms and conditions of service of President and members of the National Commission shall be varied to his disadvantage after his appointment.

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Transitional provision. 56. The President and every other member appointed immediately before the commencement of section 177 of the Finance Act, 2017 shall continue to be governed by the provisions of the Consumer Protection Act, 1986 and the rules made thereunder as if this Act had not come into force. 7 of 2017. 68 of 1986.

Other officers and employees of National Commission. 57. (1) The Central Government shall provide, in consultation with the President of the National Commission, such number of officers and other employees to assist the National Commission in the discharge of its functions as it may think fit.

(2) The officers and other employees of the National Commission shall discharge their functions under the general superintendence of the President of the National Commission.

(3) The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the National Commission shall be such as may be prescribed.

Jurisdiction of National Commission. 58. (1) Subject to the other provisions of this Act, the National Commission shall have jurisdiction—

(a) to entertain—

(i) complaints where the value of the goods or services paid as consideration exceeds rupees ten crore:

Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit;

(ii) complaints against unfair contracts, where the value of goods or services paid as consideration exceeds ten crore rupees;

(iii) appeals against the orders of any State Commission;

(iv) appeals against the orders of the Central Authority; and

(b) to call for the records and pass appropriate orders in any consumer dispute which is pending before or has been decided by any State Commission where it appears to the National Commission that such State Commission has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity.

(2) The jurisdiction, powers and authority of the National Commission may be exercised by Benches thereof and a Bench may be constituted by the President with one or more members as he may deem fit:

Provided that the senior-most member of the Bench shall preside over the Bench.

(3) Where the members of a Bench differ in opinion on any point, the points shall be decided according to the opinion of the majority, if there is a majority, but if the members are equally divided, they shall state the point or points on which they differ, and make a reference to the President who shall either hear the point or points himself or refer the case for hearing on such point or points by one or more of the other members and such point or points shall be decided according to the opinion of the majority of the members who have heard the case, including those who first heard it:

Provided that the President or the other member, as the case may be, shall give opinion on the point or points so referred within a period of two months from the date of such reference.

Procedure in National Commission. 59. (1) The provisions relating to complaints under sections 35, 36, 37, 38 and 39 shall, applicable to with such modifications as may be considered necessary, be applicable to the disposal of complaints by the National Commission.

(2) Without prejudice to sub-section (1), the National Commission may also declare any terms of contract, which is unfair to any consumer to be null and void.

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60. The National Commission shall have the power to review any of the order passed Review by
by it if there is an error apparent on the face of the record, either of its own motion or on an National Commission in
application made by any of the parties within thirty days of such order. certain cases.

61. Where an order is passed by the National Commission ex parte, the aggrieved Power to set
party may make an application to the Commission for setting aside such order. aside ex parte
orders.

62. On the application of the complainant or of its own motion, the National Commission Transfer of
may, at any stage of the proceeding, in the interest of justice, transfer any complaint pending cases.
before the District Commission of one State to a District Commission of another State or
before one State Commission to another State Commission.

63. When the office of President of the National Commission is vacant or a person Vacancy in
occupying such office is, by reason of absence or otherwise, unable to perform the duties of office of
his office, these shall be performed by the senior-most member of the National Commission: President of National
Provided that where a retired Judge of a High Court or a person who has been a Commission.
Judicial Member is a member of the National Commission, such member or where the number
of such members is more than one, the senior-most person amongst such members, shall
preside over the National Commission in the absence of President of that Commission.

64. No act or proceeding of the District Commission, the State Commission or the Vacancies or
National Commission shall be invalid by reason only of the existence of any vacancy amongst defects in
appointment
its members or any defect in the constitution thereof. not to
invalidate
orders.

65. (1) All notices, required by this Act to be served, shall be served by delivering or Service of
transmitting a copy thereof by registered post acknowledgment due addressed to opposite notice, etc.
party against whom complaint is made or to the complainant by speed post or by such
courier service, approved by the District Commission, the State Commission or the National
Commission, as the case may be, or by any other mode of transmission of documents
including electronic means.

(2) Without prejudice to the provisions contained in sub-section (1), the notice required
by this Act may be served on an electronic service provider at the address provided by it on
the electronic platform from where it provides its services as such and for this purpose, the
electronic service provider shall designate a nodal officer to accept and process such notices.

(3) When an acknowledgment or any other receipt purporting to be signed by the
opposite party or his agent or, as the case may be, by the complainant is received by the
District Commission, the State Commission or the National Commission, as the case may be,
or postal article containing the notice is received back by such District Commission, State
Commission or the National Commission, with an endorsement purporting to have been
made by a postal employee or by any person authorised by the courier service to the effect
that the opposite party or his agent or complainant had refused to take delivery of the postal
article containing the notice or had refused to accept the notice by any other means specified
in sub-section (1) when tendered or transmitted to him, the District Commission or the State
Commission or the National Commission, as the case may be, shall declare that the notice
has been duly served on the opposite party or to the complainant, as the case may be:

Provided that where the notice was properly addressed, pre-paid and duly sent by
registered post acknowledgment due, a declaration referred to in this sub-section shall be
made notwithstanding the fact that the acknowledgment has been lost or misplaced, or for
any other reason, has not been received by the District Commission, the State Commission
or the National Commission, as the case may be, within thirty days from the date of issue of
notice.

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(4) All notices required to be served on an opposite party or to complainant, as the case may be, shall be deemed to be sufficiently served, if addressed in the case of the opposite party, to the place where business or profession is carried on, and in case of the complainant, the place where such person actually and voluntarily resides.

Experts to assist National Commission or State Commission.

66. Where the National Commission or the State Commission, as the case may be, on an application by a complainant or otherwise, is of the opinion that it involves the larger interest of consumers, it may direct any individual or organisation or expert to assist the National Commission or the State Commission, as the case may be.

Appeal against order of National Commission.

67. Any person, aggrieved by an order made by the National Commission in exercise of the powers conferred by sub-clause (i) or (ii) of clause (a) of sub-section (1) of section 58, may prefer an appeal against such order to the Supreme Court within a period of thirty days from the date of the order:

Provided that the Supreme Court may entertain an appeal after the expiry of the said period of thirty days if it is satisfied that there was sufficient cause for not filing it within that period:

Provided further that no appeal by a person who is required to pay any amount in terms of an order of the National Commission shall be entertained by the Supreme Court unless that person has deposited fifty per cent. of that amount in the manner as may be prescribed.

Finality of orders.

68. Every order of a District Commission or the State Commission or the National Commission, as the case may be, shall, if no appeal has been preferred against such order under the provisions of this Act, be final.

Limitation period.

69. (1) The District Commission, the State Commission or the National Commission shall not admit a complaint unless it is filed within two years from the date on which the cause of action has arisen.

(2) Notwithstanding anything contained in sub-section (1), a complaint may be entertained after the period specified in sub-section (1), if the complainant satisfies the District Commission, the State Commission or the National Commission, as the case may be, that he had sufficient cause for not filing the complaint within such period:

Provided that no such complaint shall be entertained unless the District Commission or the State Commission or the National Commission, as the case may be, records its reasons for condoning such delay.

Administrative control.

70. (1) The National Commission shall have the authority to lay down such adequate standards in consultation with the Central Government from time to time, for better protection of the interests of consumers and for that purpose, shall have administrative control over all the State Commissions in the following matters, namely:—

(a) monitoring performance of the State Commissions in terms of their disposal by calling for periodical returns regarding the institution, disposal and pendency of cases;

(b) investigating into any allegations against the President and members of a State Commission and submitting inquiry report to the State Government concerned along with copy endorsed to the Central Government for necessary action;

(c) issuance of instructions regarding adoption of uniform procedure in the hearing of matters, prior service of copies of documents produced by one party to the opposite parties, furnishing of english translation of judgments written in any language, speedy grant of copies of documents;

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(d) overseeing the functioning of the State Commission or the District Commission either by way of inspection or by any other means, as the National Commission may like to order from time to time, to ensure that the objects and purposes of the Act are best served and the standards set by the National Commission are implemented without interfering with their quasi-judicial freedom.

(2) There shall be a monitoring cell to be constituted by the President of the National Commission to oversee the functioning of the State Commissions from the administrative point of view.

(3) The State Commission shall have administrative control over all the District Commissions within its jurisdiction in all matters referred to in sub-section (1).

(4) The National Commission and the State Commissions shall furnish to the Central Government periodically or as and when required, any information including the pendency of cases in such form and manner as may be prescribed.

(5) The State Commission shall furnish, periodically or as and when required to the State Government any information including pendency of cases in such form and manner as may be prescribed.

71. Every order made by a District Commission, State Commission or the National Enforcement Commission shall be enforced by it in the same manner as if it were a decree made by a Court of orders of in a suit before it and the provisions of Order XXI of the First Schedule to the Code of Civil District Commission,
5 of 1908. Procedure, 1908 shall, as far as may be, applicable, subject to the modification that every State reference therein to the decree shall be construed as reference to the order made under this Commission Act. and National
Commission.
72. (1) Whoever fails to comply with any order made by the District Commission or the Penalty for State Commission or the National Commission, as the case may be, shall be punishable with non-imprisonment for a term which shall not be less than one month, but which may extend to compliance of order.
three years, or with fine, which shall not be less than twenty-five thousand rupees, but which may extend to one lakh rupees, or with both.

2 of 1974. (2) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, the District Commission, the State Commission or the National Commission, as the case may be, shall have the power of a Judicial Magistrate of first class for the trial of offences under sub-section (1), and on conferment of such powers, the District Commission or the State Commission or the National Commission, as the case may be, shall be deemed to be a Judicial Magistrate of first class for the purposes of the Code of Criminal Procedure, 1973.

(3) Save as otherwise provided, the offences under sub-section (1) shall be tried summarily by the District Commission or the State Commission or the National Commission, as the case may be.

2 of 1974. 73. (1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, Appeal against where an order is passed under sub-section (1) of section 72, an appeal shall lie, both on order passed facts and on law from— under section 72.

(a) the order made by the District Commission to the State Commission;

(b) the order made by the State Commission to the National Commission; and

(c) the order made by the National Commission to the Supreme Court.

(2) Except as provided in sub-section (1), no appeal shall lie before any court, from any order of a District Commission or a State Commission or the National Commission, as the case may be.

(3) Every appeal under this section shall be preferred within a period of thirty days from the date of order of a District Commission or a State Commission or the National Commission, as the case may be:

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Provided that the State Commission or the National Commission or the Supreme Court, as the case may be, may entertain an appeal after the expiry of the said period of thirty days, if it is satisfied that the appellant had sufficient cause for not preferring the appeal within the said period of thirty days.

CHAPTER V

MEDIATION

Establishment of mediation cell. 74. (1) The State Government shall establish, by notification, a consumer mediation cell to be attached to each of the District Commissions and the State Commissions of that State.

(2) The Central Government shall establish, by notification, a consumer mediation cell to be attached to the National Commission and each of the regional Benches.

(3) A consumer mediation cell shall consist of such persons as may be prescribed.

(4) Every consumer mediation cell shall maintain—

(a) a list of empanelled mediators;

(b) a list of cases handled by the cell;

(c) record of proceeding; and

(d) any other information as may be specified by regulations.

(5) Every consumer mediation cell shall submit a quarterly report to the District Commission, State Commission or the National Commission to which it is attached, in the manner specified by regulations.

Empanelment of mediators. 75. (1) For the purpose of mediation, the National Commission or the State Commission or the District Commission, as the case may be, shall prepare a panel of the mediators to be maintained by the consumer mediation cell attached to it, on the recommendation of a selection committee consisting of the President and a member of that Commission.

(2) The qualifications and experience required for empanelment as mediator, the procedure for empanelment, the manner of training empanelled mediators, the fee payable to empanelled mediator, the terms and conditions for empanelment, the code of conduct for empanelled mediators, the grounds on which, and the manner in which, empanelled mediators shall be removed or empanelment shall be cancelled and other matters relating thereto, shall be such as may be specified by regulations.

(3) The panel of mediators prepared under sub-section (1) shall be valid for a period of five years, and the empanelled mediators shall be eligible to be considered for re-empanelment for another term, subject to such conditions as may be specified by regulations.

Nomination of mediators from panel. 76. The District Commission, the State Commission or the National Commission shall, while nominating any person from the panel of mediators referred to in section 75, consider his suitability for resolving the consumer dispute involved.

Duty of mediator to disclose certain facts. 77. It shall be the duty of the mediator to disclose—

(a) any personal, professional or financial interest in the outcome of the consumer dispute;

(b) the circumstances which may give rise to a justifiable doubt as to his independence or impartiality; and

(c) such other facts as may be specified by regulations.

Replacement of mediator in certain cases. 78. Where the District Commission or the State Commission or the National Commission, as the case may be, is satisfied, on the information furnished by the mediator or on the information received from any other person including parties to the complaint and after hearing the mediator, it shall replace such mediator by another mediator.

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79. (1) The mediation shall be held in the consumer mediation cell attached to the Procedure for
District Commission, the State Commission or the National Commission, as the case may be. mediation.

(2) Where a consumer dispute is referred for mediation by the District Commission or
the State Commission or the National Commission, as the case may be, the mediator nominated
by such Commission shall have regard to the rights and obligations of the parties, the
usages of trade, if any, the circumstances giving rise to the consumer dispute and such other
relevant factors, as he may deem necessary and shall be guided by the principles of natural
justice while carrying out mediation.

(3) The mediator so nominated shall conduct mediation within such time and in such
manner as may be specified by regulations.

80. (1) Pursuant to mediation, if an agreement is reached between the parties with Settlement
respect to all of the issues involved in the consumer dispute or with respect to only some of through
the issues, the terms of such agreement shall be reduced to writing accordingly, and signed mediation.
by the parties to such dispute or their authorised representatives.

(2) The mediator shall prepare a settlement report of the settlement and forward the
signed agreement along with such report to the concerned Commission.

(3) Where no agreement is reached between the parties within the specified time or the
mediator is of the opinion that settlement is not possible, he shall prepare his report
accordingly and submit the same to the concerned Commission.

81. (1) The District Commission or the State Commission or the National Commission, Recording
as the case may be, shall, within seven days of the receipt of the settlement report, pass settlement and
suitable order recording such settlement of consumer dispute and dispose of the matter passing of order.
accordingly.

(2) Where the consumer dispute is settled only in part, the District Commission or the
State Commission or the National Commission, as the case may be, shall record settlement of
the issues which have been so settled and continue to hear other issues involved in such
consumer dispute.

(3) Where the consumer dispute could not be settled by mediation, the District
Commission or the State Commission or the National Commission, as the case may be, shall
continue to hear all the issues involved in such consumer dispute.

CHAPTER VI

PRODUCT LIABILITY

82. This Chapter shall apply to every claim for compensation under a product liability Application of
action by a complainant for any harm caused by a defective product manufactured by a Chapter.
product manufacturer or serviced by a product service provider or sold by a product seller.

83. A product liability action may be brought by a complainant against a product Product
manufacturer or a product service provider or a product seller, as the case may be, for any liability
action.
harm caused to him on account of a defective product.

84. (1) A product manufacturer shall be liable in a product liability action, if— Liability of
product
(a) the product contains a manufacturing defect; or manufacturer.

(b) the product is defective in design; or

(c) there is a deviation from manufacturing specifications; or

(d) the product does not conform to the express warranty; or

(e) the product fails to contain adequate instructions of correct usage to prevent
any harm or any warning regarding improper or incorrect usage.

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(2) A product manufacturer shall be liable in a product liability action even if he proves that he was not negligent or fraudulent in making the express warranty of a product.

Liability of product service provider. 85. A product service provider shall be liable in a product liability action, if—

(a) the service provided by him was faulty or imperfect or deficient or inadequate in quality, nature or manner of performance which is required to be provided by or under any law for the time being in force, or pursuant to any contract or otherwise; or

(b) there was an act of omission or commission or negligence or conscious withholding any information which caused harm; or

(c) the service provider did not issue adequate instructions or warnings to prevent any harm; or

(d) the service did not conform to express warranty or the terms and conditions of the contract.

Liability of product sellers. 86. A product seller who is not a product manufacturer shall be liable in a product liability action, if—

(a) he has exercised substantial control over the designing, testing, manufacturing, packaging or labelling of a product that caused harm; or

(b) he has altered or modified the product and such alteration or modification was the substantial factor in causing the harm; or

(c) he has made an express warranty of a product independent of any express warranty made by a manufacturer and such product failed to conform to the express warranty made by the product seller which caused the harm; or

(d) the product has been sold by him and the identity of product manufacturer of such product is not known, or if known, the service of notice or process or warrant cannot be effected on him or he is not subject to the law which is in force in India or the order, if any, passed or to be passed cannot be enforced against him; or

(e) he failed to exercise reasonable care in assembling, inspecting or maintaining such product or he did not pass on the warnings or instructions of the product manufacturer regarding the dangers involved or proper usage of the product while selling such product and such failure was the proximate cause of the harm.

Exceptions to product liability action. 87. (1) A product liability action cannot be brought against the product seller if, at the time of harm, the product was misused, altered, or modified.

(2) In any product liability action based on the failure to provide adequate warnings or instructions, the product manufacturer shall not be liable, if—

(a) the product was purchased by an employer for use at the workplace and the product manufacturer had provided warnings or instructions to such employer;

(b) the product was sold as a component or material to be used in another product and necessary warnings or instructions were given by the product manufacturer to the purchaser of such component or material, but the harm was caused to the complainant by use of the end product in which such component or material was used;

(c) the product was one which was legally meant to be used or dispensed only by or under the supervision of an expert or a class of experts and the product manufacturer had employed reasonable means to give the warnings or instructions for usage of such product to such expert or class of experts; or

(d) the complainant, while using such product, was under the influence of alcohol or any prescription drug which had not been prescribed by a medical practitioner.

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(3) A product manufacturer shall not be liable for failure to instruct or warn about a danger which is obvious or commonly known to the user or consumer of such product or which, such user or consumer, ought to have known, taking into account the characteristics of such product.

CHAPTER VII

OFFENCES AND PENALTIES

88. Whoever, fails to comply with any direction of the Central Authority under sections 20 and 21, shall be punished with imprisonment for a term which may extend to six months or with fine which may extend to twenty lakh rupees, or with both. Penalty for non-compliance of direction of Central Authority.

89. Any manufacturer or service provider who causes a false or misleading advertisement to be made which is prejudicial to the interest of consumers shall be punished with imprisonment for a term which may extend to two years and with fine which may extend to ten lakh rupees; and for every subsequent offence, be punished with imprisonment for a term which may extend to five years and with fine which may extend to fifty lakh rupees. Punishment for false or misleading advertisement.

90. (1) Whoever, by himself or by any other person on his behalf, manufactures for sale or stores or sells or distributes or imports any product containing an adulterant shall be punished, if such act— Punishment for manufacturing for sale or storing, selling or distributing products containing adulterant.

(a) does not result in any injury to the consumer, with imprisonment for a term which may extend to six months and with fine which may extend to one lakh rupees; or

(b) causing injury not amounting to grievous hurt to the consumer, with imprisonment for a term which may extend to one year and with fine which may extend to three lakh rupees;

(c) causing injury resulting in grievous hurt to the consumer, with imprisonment for a term which may extend to seven years and with fine which may extend to five lakh rupees; and

(d) results in the death of a consumer, with imprisonment for a term which shall not be less than seven years, but which may extend to imprisonment for life and with fine which shall not be less than ten lakh rupees.

(2) The offences under clauses (c) and (d) of sub-section (1) shall be cognizable and non-bailable.

(3) Notwithstanding the punishment under sub-section (1), the court may, in case of first conviction, suspend any licence issued to the person referred to in that sub-section, under any law for the time being in force, for a period up to two years, and in case of second or subsequent conviction, cancel the licence.

Explanation.—For the purposes of this section,—

(a) "adulterant" means any material including extraneous matter which is employed or used for making a product unsafe;

(b) "grievous hurt" shall have the same meaning as assigned to it in section 320 of the Indian Penal Code. 45 of 1860.

91. (1) Whoever, by himself or by any other person on his behalf, manufactures for sale or stores or sells or distributes or imports any spurious goods shall be punished, if such act— Punishment for manufacturing for sale or for storing or selling or distributing or importing spurious goods.

(a) causing injury not amounting to grievous hurt to the consumer, with imprisonment for a term which may extend to one year and with fine which may extend to three lakh rupees;

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(b) causing injury resulting in grievous hurt to the consumer, with imprisonment for a term which may extend to seven years and with fine which may extend to five lakh rupees;

(c) results in the death of a consumer, with imprisonment for a term which shall not be less than seven years, but may extend to imprisonment for life and with fine which shall not be less than ten lakh rupees.

(2) The offences under clauses (b) and (c) of sub-section (1) shall be cognizable and non-bailable.

(3) Notwithstanding the punishment under sub-section (1), the court may, in case of first conviction, suspend any licence issued to the person referred to in that sub-section, under any law for the time being in force, for a period up to two years, and in case of second or subsequent conviction, cancel the licence.

Cognizance of offence by court.

92. No cognizance shall be taken by a competent court of any offence under sections 88 and 89 except on a complaint filed by the Central Authority or any officer authorised by it in this behalf.

Vexatious search.

93. The Director General or any other officer, exercising powers under section 22, who knows that there are no reasonable grounds for so doing, and yet—

(a) searches, or causes to be searched any premises; or

(b) seizes any record, register or other document or article,

shall, for every such offence, be punished with imprisonment for a term which may extend to one year, or with fine which may extend to ten thousand rupees or with both.

CHAPTER VIII

MISCELLANEOUS

Measures to prevent unfair trade practices in e-commerce, direct selling and also to protect the interest and rights of consumers, the Central Government may take such measures in the manner as may be prescribed.

94. For the purposes of preventing unfair trade practices in e-commerce, direct selling etc.

Presidents, members, Chief Commissioner, Commissioner and certain Assistant Director and officers to be public servants.

95. The Presidents and members of the District Commission, the State Commission and the National Commission, and officers and other employees thereof, the Chief Commissioner, Commissioner and the Commissioner of the Central Authority, the Director General, the Additional Director General, the Director, the Joint Director, the Deputy Director and the officers to be persons performing any duty under this Act, while acting or purporting to act in pursuance of any of the provisions of this Act, shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code. 45 of 1860.

Compounding of offences.

96. (1) Any offence punishable under sections 88 and 89, may, either before or after the institution of the prosecution, be compounded, on payment of such amount as may be prescribed:

Provided that no compounding of such offence shall be made without the leave of the court before which a complaint has been filed under section 92:

Provided further that such sum shall not, in any case, exceed the maximum amount of the fine, which may be imposed under this Act for the offence so compounded.

(2) The Central Authority or any officer as may be specially authorised by him in this behalf, may compound offences under sub-section (1).

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(3) Nothing in sub-section (1) shall apply to person who commits the same or similar offence, within a period of three years from the date on which the first offence, committed by him, was compounded.

Explanation.—For the purposes of this sub-section, any second or subsequent offence committed after the expiry of a period of three years from the date on which the offence was previously compounded, shall be deemed to be a first offence.

(4) Where an offence has been compounded under sub-section (1), no proceeding or further proceeding, as the case may be, shall be taken against the offender in respect of the offence so compounded.

(5) The acceptance of the sum of money for compounding an offence in accordance with sub-section (1) by the Central Authority or an officer of the Central Authority empowered in this behalf shall be deemed to amount to an acquittal within the meaning of the Code of 2 of 1974. Criminal Procedure, 1973.

97. The penalty collected under section 21 and the amount collected under section 96 Manner of shall be credited to such fund as may be prescribed. crediting penalty.

98. No suit, prosecution or other legal proceeding shall lie against the Presidents and Protection of members of the District Commission, the State Commission and the National Commission, action taken in good faith.
the Chief Commissioner, the Commissioner, any officer or employee and other person performing any duty under this Act, for any act which is in good faith done or intended to be done in pursuance of this Act or under any rule or order made thereunder.

99. (1) Without prejudice to the foregoing provisions of this Act, the Central Authority, Power to give shall, in exercise of its powers or the performance of its functions under this Act, be bound directions by by such directions on questions of policy, as the Central Government may give in writing to Central Government.
it from time to time:

Provided that the Central Authority shall, as far as practicable, be given an opportunity to express its views before any direction is given under this sub-section.

(2) The decision of the Central Government whether a question is one of policy or not shall be final.

100. The provisions of this Act shall be in addition to and not in derogation of the Act not in provisions of any other law for the time being in force. derogation of
any other law.

101. (1) The Central Government may, by notification, make rules for carrying out any Power of of the provisions contained in this Act. Central
Government
(2) Without prejudice to the generality of the foregoing power, such rules may provide to make rules. for, —

(a) the other class or classes of persons including public utility entities under clause (19) of section 2;

(b) the contest, lottery, game of chance or skill which are to be exempted under item (b) of sub-clause (iii) of clause (47) of section 2;

(c) the manner of issuing bill or cash memo or receipt for goods sold or services rendered under sub-clause (vii) of clause (47) of section 2;

(d) the number of other official or non-official members of the Central Council under clause (b) of sub-section (2) of section 3;

(e) the time and place of meeting of Central Council and the procedure for the transaction of its business under sub-section (2) of section 4;

(f) the number of Commissioners in the Central Authority under sub-section (2) of section 10;

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(g) the qualifications for appointment, method of recruitment, procedure of appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the Chief Commissioner and other Commissioners of the Central Authority under section 11;

(h) the salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the Central Authority under sub-section (2) of section 13;

(i) the qualifications for appointment of Director General, Additional Director General, Director, Joint Director, Deputy Director and Assistant Director and the manner of appointment under sub-section (2) of section 15;

(j) the manner of taking copies or extracts of document, record or article seized or produced before returning to the person under sub-section (3) of section 22;

(k) the officer and the manner of disposing of articles which are subject to speedy or natural decay under sub-section (4) of section 22;

(l) the form and manner for preparing annual statement of accounts by the Central Authority in consultation with the Comptroller and Auditor-General of India under sub-section (1) of section 26;

(m) the form in which, and the time within which, an annual report, other reports and returns may be prepared by the Central Authority under sub-section (1) of section 27;

(n) the qualifications for appointment, method of recruitment, procedure for appointment, term of office, resignation and removal of President and members of the District Commission under section 29;

(o) the other value of goods and services in respect of which the District Commission shall have jurisdiction to entertain complaints under proviso to sub-section (1) of section 34;

(p) the manner of electronically filing complaint under the proviso to sub-section (1) of section 35;

(q) the fee, electronic form and the manner of payment of fee for filing complaint under sub-section (2) of section 35;

(r) the cases which may not be referred for settlement by mediation under sub-section (1) of section 37;

(s) the manner of authentication of goods sampled in case of the National Commission under clause (c) of sub-section (2) of section 38;

(t) any other matter which may be prescribed under clause (f) of sub-section (9) of section 38;

(u) the fund where the amount obtained may be credited and the manner of utilisation of such amount under sub-section (2) of section 39;

(v) the form and the manner in which appeal may be preferred to the State Commission under section 41;

(w) the qualifications for appointment, method of recruitment, procedure for appointment, term of office, resignation and removal of the President and members of the State Commission under section 43;

(x) the other value of goods and services in respect of which the State Commission shall have jurisdiction under the proviso to sub-clause (i) of clause (a) of sub-section (1) of section 47;

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(y) the form and manner of filing appeal to the National Commission, and the manner of depositing fifty per cent. of the amount before filing appeal, under sub-section (1) of section 51;
(z) the number of members of the National Commission under clause (b) of section 54;
(za) the qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the President and members of the National Commission under sub-section (1) of section 55;
(zb) the salaries and allowances payable to, and other terms and conditions of service of, the officers and other employees of the National Commission under sub-section (3) of section 57;
(zc) the other value of goods and services in respect of which the National Commission shall have jurisdiction under the proviso to sub-clause (i) of clause (a) of sub-section (1) of section 58;
(zd) the manner of depositing fifty per cent. of the amount under the second proviso to section 67;
(ze) the form in which the National Commission and the State Commission shall furnish information to the Central Government under sub-section (4) of section 70;
(zf) the persons in the consumer mediation cell under sub-section (3) of section 74;
(zg) the measures to be taken by the Central Government to prevent unfair trade practices in e-commerce, direct selling under section 94;
(zh) the amount for compounding offences under sub-section (1) of section 96;
(zi) the fund to which the penalty and amount collected shall be credited under section 97; and
(zj) any other matter which is to be, or may be, prescribed, or in respect of which provisions are to be, or may be, made by rules.

Power of State Government to make rules.

102. (1) The State Governments may, by notification, make rules for carrying out the provisions of this Act:

Provided that the Central Government may, frame model rules in respect of all or any of the matters with respect to which the State Government may make rules under this section, and where any such model rules have been framed in respect of any such matter, they shall apply to the State until the rules in respect of that matter is made by the State Government and while making any such rules, so far as is practicable, they shall conform to such model rules.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—
(a) the other class or classes of persons including public utility entities under clause (19) of section 2;
(b) the contest, lottery, game of chance or skill which are to be exempted under item (b) of sub-clause (iii) of clause (47) of section 2;
(c) the number of other official or non-official members of the State Council under clause (b) of sub-section (2) of section 6;
(d) the time and place of meeting of the State Council and the procedure for the transaction of its business under sub-section (4) of section 6;
(e) the number of other official and non-official members of District Council under clause (b) of sub-section (2) of section 8;

(f) the time and place of meeting of the District Council and procedure for the transaction of its business under sub-section (4) of section 8;

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(g) the number of members of the District Commission under clause (b) of sub-section (2) of section 28;

(h) the salaries and allowances payable to, and other terms and conditions of service of, the President and members of the District Commission under section 30;

(i) the salaries and allowances payable to, and other terms and conditions of service of, the officers and other employees of the District Commission under sub-section (3) of section 33;

(j) the manner of authentication of goods sampled by the State Commission and the District Commission under clause (c) of sub-section (2) of section 38;

(k) the manner of depositing fifty per cent. of the amount before filing appeal under second proviso to section 41;

(l) the number of members of the State Commission under sub-section (3) of section 42;

(m) the salaries and allowances payable to, and other terms and conditions of service of, the President and members of the State Commission under section 44;

(n) the salaries and allowances payable to, and other terms and conditions of service of, the officers and other employees of the State Commission under sub-section (3) of section 46;

(o) the form in which the State Commission shall furnish information to the State Government under sub-section (5) of section 70;

(p) the persons in the consumer mediation cell under sub-section (3) of section 74;

(q) any other matter which is to be, or may be prescribed, or in respect of which provisions are to be, or may be, made by rules.

Power of 103. (1) The National Commission may, with the previous approval of the Central National Government, by notification, make regulations not inconsistent with this Act to provide for Commission
all matters for which provision is necessary or expedient for the purpose of giving effect toto make regulations. the provisions of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may make provisions for—

(a) the costs for adjournment to be imposed by the District Commission under the second proviso to sub-section (7) of section 38;

(b) the costs for adjournment to be imposed by the State Commission or the National Commission, as the case may be, under the second proviso to section 52;

(c) the maintenance of any other information by the consumer mediation cell under sub-section (4) of section 74;

(d) the manner of submission of quarterly report by consumer mediation cell to the District Commission, the State Commission or the National Commission under sub-section (5) of section 74;

(e) the qualifications and experience required for empanelment as mediator, the procedure for empanelment, the manner of training empanelled mediators, the fee payable to empanelled mediator, the terms and conditions for empanelment, the code of conduct for empanelled mediators, the grounds on which, and the manner in which, empanelled mediators shall be removed or empanelment shall be cancelled and the other matters relating thereto under sub-section (2) of section 75;

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(f) the conditions for re-empanelment of mediators for another term under sub-section (3) of section 75;

(g) the other facts to be disclosed by mediators under clause (c) of section 77;

(h) the time within which, and the manner in which, mediation may be conducted under sub-section (3) of section 79; and

(i) such other matter for which provision is to be, or may be, made by regulation.

104. (1) The Central Authority may, with the previous approval of the Central Power of Government, by notification, make regulations not inconsistent with this Act, for the purpose Central Authority to
of giving effect to the provisions of this Act. make
regulations.
(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:—

(a) the procedure for engaging experts and professionals and the number of such experts and professionals under sub-section (3) of section 13;

(b) the procedure for transaction of business and the allocation of business of the Chief Commissioner and Commissioner under sub-section (1) of section 14;

(c) the form, manner and time within which, inquiries or investigation made by the Director-General shall be submitted to the Central Authority under sub-section (5) of section 15; and

(d) such other matter for which provision is to be, or may be, made by regulation.

105. (1) Every rule and every regulation made under this Act shall be laid, as soon as Rules and may be after it is made, before each House of Parliament, while it is in session, for a total regulations to be laid before
period of thirty days which may be comprised in one session or in two or more successive each House of sessions, and if, before the expiry of the session immediately following the session or the Parliament. successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

(2) Every rule made by a State Government under this Act shall be laid as soon as may be after it is made, before the State Legislature.

106. If any difficulty arises in giving effect to the provisions of this Act, the Central Power to Government may, by order in the Official Gazette, make such provisions not inconsistent remove difficulties.
with the provisions of this Act as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of a period of two years from the commencement of this Act.

68 of 1986. 107. (1) The Consumer Protection Act, 1986 is hereby repealed. Repeal and savings.
(2) Notwithstanding such repeal, anything done or any action taken or purported to have been done or taken under the Act hereby repealed shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act.

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(3) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect the general application of section 6 of the General Clauses Act, 1897 with regard to the effect of repeal. 10 of 1897.

————

DR. G. NARAYANA RAJU,
Secretary to the Govt. of India.

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Government of India
Ministry of Tourism
(H&R Division)
C-1 Hutments
Dara Shukoh Road
New Delhi — 110 011
Tel: 011-23012810
No. 8-TH-I (3)/2013-Pt-1 Dated: 19.01.2018
To,
1 Secretary (Tourism), All State Governments/UT Administrations
2 President, Federation of Hotel & Restaurant Associations of India (FHRAI)
3. President, Hotel Association of India (HAI)
4. President, Indian Heritage Hotels Association (IHHA)
5. President, Travel Agents Association of India (TAA)
6. President, Indian Association of Tour Operators (ATO)
7. Principal, IHMs
8. Alll Indiatourism Offices in India
Subject: Revised Guidelines for approval of Hotels at Project Stage and Star Classification / Re-Classification of Operational Hotels
Madam / Sir,
1. The undersigned is directed to enclose herewith a copy ofthe revised Guidelines for Approval of Hotels at Project Stage and Star Classification / Re-Classification of Operational Hotels.
2. These guidelines are required to be adhered to by all the existing Classified hotels/ Hotel Projects and those seeking Approval / Classification/Re-classification by the Ministry of Tourism under all categories and will come into force with immediate effect.
3. You are requested to kindly circulate these revised guidelines to all concerned.
4 ‘These guidelines are also available on the official website of the Ministry of Tourism www.tourism.gov.in,
‘ Yours faithfully,
=
(Sagnik Chowdhury)
Assistant Director General (H&R)
., Member Searetary (HRACC)
1|

SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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Government of India
Ministry of Tourism
(H&R Division)
C-1, Hutments
Dara Shukoh Road
New Delhi-— 110011
No. 13. HRACC (14)/2018-H&R Date: 31.12.2018
To,
1 Secretary (Tourism), All State Governments/UT Administrations
a Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAI)
| President, Hotel Association of India (HAI)
- 4. President, Indian Heritage Hotels Association (IHHA)
5 President, Travel Agents Association of India (TAAI)
6. President, Indian Association of Tour Operators ([ATO)
7. Principal, IHMs
8. All Indiatourism Offices in India
Subject: Guidelines for Classification / Re-classification of Hotels.
Madam / Sir, in
Kind reference is invited to this Ministry’s communication no. 8-TH-I(3)/2013-Pt.I dated 19.01.2018 on the subject cited above. It has been observed that at Annexure III of the said guidelines, that is, in the checklist of facilities for classification / re-classification of operational hotels, the facility of Barber’s Shop has appeared twice, as under:

FACILITIES & af 3* 4 5*/ Yes/	COMMENTS
SERVICES | 5*D__| No	
Health — Fitness N Indian system of and Barber’s Shop treatments should preferably be offered	
Beauty Salon and Barber’s Shop	

It is hereby clarified that the facility of Barber’s Shop is a desirable criterion for all categories of classified hotels. Thus, the above may be read as undes:. -

FACILITIES & 2* SK, Yes/ | COMMENTS
SERVICES 5*D No
Health — Fitness D D D N Indian system of | treatments should
| A east | MO preferably be offered
Beauty Salon and|/D |D |D D

This issues with the approval of Competent Authority.
urs fe ly,
< "
(Sagnik Chowdhury)
Assistant Director General
& Member Secretary CC)

SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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GOVERNMENT OF INDIA
MINISTRY OF TOURISM
(H&R DIVISION)

GUIDELINES FOR APPROVAL OF HOTEL PROJECTS AND STAR CLASSIFICATION OF OPERATIONAL HOTELS

Hotels are an important component of the tourism product. They contribute to the overall tourism experience through the standards of facilities, amenities and services offered by them. With the aim to provide contemporary standards of facilities and services, the Ministry of Tourism has a voluntary scheme for approval of Hotel Projects in the following categories:

i. 5 – Star
ii. 4 – Star
iii. 3 – Star
iv. 2 – Star
v. 1 – Star
vi. Heritage (Basic)

The Ministry of Tourism also has a voluntary scheme for Classification/Reclassification of Operational Hotels in the following categories:

i. 5 – Star Deluxe
ii. 5 – Star with or without alcohol service
iii. 4 – Star with or without alcohol service
iv. 3 – Star
v. 2 – Star
vi. 1 – Star

2. Hotel Projects are approved at implementation stage. Hotels are classified under the aforementioned categories once they become operational, subject to the hotel applying for such classification and being found fit for classification.

3. Applications for Approval of Hotels at the Project Stage under any of the categories mentioned in para 1 above, should be submitted online on the portal https://wvvw.hotelclould.nic.in along with the fee payable by digital mode only in respect of application for the project approval and subsequent extension if any.

4. Applications for Approval of Hotels at the Project Stage and Classification/Re-classification of Operational Hotels under 3 Star, 2 Star and 1 Star categories with the requisite fee may be submitted online to the concerned Regional Director, India Tourism Office in whose region the hotel project or Operational hotel is located at https://www.hotelcloud.nic.in. Queries in this regard may be addressed to the concerned Regional Director, India Tourism Office. The office addresses of the Regional Directors are as under:

i. Regional Director, Indiatourism (Western & Central Region), 123 Maharshi Karve Road, Mumbai - 400 020
ii. Regional Director, Indiatourism (Northern Region), 88 Janpath, New Delhi - 110 001
iii. Regional Director, Indiatourism (Southern Region), 154 Anna Salai, Chennai-600002
iv. Regional Director, Indiatourism (Eastern Region), 'Embassy', 4 Shakespeare Sarani, Kolkata - 700 071
v. Regional Director, Indiatourism (North Eastern Region), Assam Paryatan Bhawan, 3rd Floor, Near Nepali Mandir, A.K. Azad Road, Paltan Bazar, Guwahati - 781 008

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SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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5. Applications for Approval of Hotels at the Project Stage and Classification/Re-classification of Operational Hotels under 4 Star, 5 Star, 5 Star D e l u x e and Heritage (Basic) categories with the requisite fee may be made on www.hotelcloud.nic.in. Queries in this regard may be addressed to Member Secretary (HRACC), Hotels and Restaurants Division, Ministry of Tourism, Government of India, C-1 Hutments, Dara Shukoh Road, New Delhi 110011, Tel: 011-23012810.

6. The detailed Guidelines for the Approval of Hotel at the Project Stage and for Classification Re-classification of Operational Hotels are at Annexure-I and Annexure II respectively.

7. The Ministry of Tourism reserves the right to modify the Guidelines / Terms and Conditions from time to time.

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SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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ANNEXURE-I

GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR APPROVAL OF HOTELS AT THE PROJECT LEVEL

1. Ministry of Tourism will approve hotels at project stage based on documentation. Project approval is given for the following categories:

i. 5 – Star
ii. 4 – Star
iii. 3 – Star
iv. 2 – Star
v. 1 – Star
vi. Heritage (Basic)

2. Project approval will be granted for a period of 5 years. However, the Project Approval will cease to be valid 3 months prior to the date of expiry of such approval, or with effect from the date the hotel becomes operational, even if all its rooms are not ready, whichever is earlier. The project approval granted for a period of 5 years may be extended by another one year on genuine grounds or extenuating circumstances, at the discretion of Chairman HRACC. Request for such extension, if any, shall be considered if and only if such request is proffered to Chairman HRACC 3 clear months prior to the expiry of the original project approval. A fee equal to the full fee prevalent for project approval for the relevant category will have to be paid by the applicant in case such extension is permitted by Competent Authority. Incomplete applications will not be accepted.

3. The hotel must apply for Star Classification within 3 months of the hotel becoming operational. The application for Project Approval will be submitted online on the portal https://wwvv.hotelcloud.nic.in complete in all respect as per details given below.

4. Application Form should have the following details:

i. Proposed name of the Hotel
ii. Name of the promoters with a note on the business antecedents in not more than 60 words
iii. Complete postal address of the promoter with Telephone, Fax and Email address.
iv. Status of the owner/promoter:

a. If Public/private limited company, the copies of Memorandum and Articles of Association.
b. If Partnership, a copy of Partnership Deed and Certificate of Registration.
c. If proprietary concern, name and address of proprietor / Certificate of Registration.

v. Location of hotel site with postal address
vi. Details of the site:

a) Area (in sq. feet)
b) Title - owned / leased with copies of sale / lease deed.
c) Copy of Land Use Permit issued by Competent Authority to construct Hotel from local authorities.
d) Distance (in Km) from: (a) Railway station (b) Airport (c) Main Shopping center / water body.

vii. Details of the project:

a) Copy of Feasibility Report
b) Star category planned
c) Number of rooms (with attached bathrooms) and size for each type of room (in sq. ft)
d) Size of bathrooms (in sq. ft.)

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SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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e) Details of public areas with size in sq. ft. - Lobby / Lounge; Restaurants; Bar; Shopping; Banquet / Conference halls; Business centre; Health club; Swimming pool; Parking facilities (no. of vehicles)
f) Facilities for the differently abled guests (room with attached bathroom earmarked for this purpose, designated parking, ramps for free accessibility in public areas and to at least one restaurant, designated toilet (unisex) at the lobby level etc.
g) Eco-friendly Practices (a) Sewage Treatment Plant (b) rain water harvesting (c) waste management (d) pollution control method for air, water and light (e) introduction of non CFC equipment for refrigeration and air conditioning.
h) Energy / water conservation (use of CFL lamps, solar energy, water saving devices/ taps).
i) Details of Fire Fighting Measures / Hydrants etc.
j) Date by which project is expected to be completed and become operational.
k) Any other additional facilities.
l) Security related features.
m) The architecture of the hote1 building in hilly and ecologically fragile areas should incorporate creative architecture keeping in mind sustainability and energy efficiency and as far as possible in conformity with local art and architecture with use of local materials.

5. Blue prints/ Building Plans signed by the owner, the architect and approved by the competent authority showing:

i. Site plan
ii. Front and side elevation
iii. Floor plans for all floors
iv. Detail of guest rooms and bath rooms with dimensions in sq. ft.
v. Details of Fire Fighting Measures/ Hydrants etc.
vi. Air-conditioning details for guest rooms, public areas

6. Local approvals by:

i. Municipal Authority
ii. Concerned Police Authority
iii. Any other local authority as may be applicable / required (viz. Pollution Control Board/ Ministry of Environment & Forests etc.)
iv. Approval / NOC from Airports Authority of India for projects located near Airport

7. Note: The above mentioned approvals/ NOCs are the responsibility of the promoter / concerned company as the case may be. The Ministry's approval is no substitute for any statutory approval and the approval given is liable to be withdrawn in case of any violation without notice.

8. Proposed capital structure:

a) Total project cost
b) Equity component with details of paid up capital
c) Debt - with current and proposed sources of funding

9. Submission of 'Undertaking' for observance of regulatory conditions / terms & conditions to be furnished by the applicant (Format enclosed at Annexure IV).

10. Applications for project approvals under any category should be submitted online on the portal https://www.hotelclould.nic.in along with the fee payable by digital mode only in respect of application for the project approval and subsequent extension if any. (further details are given at clause 14).

11. In the event of any change in the project plan, the applicant should apply afresh for approval under the desired category

4 | P a g e

SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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12. Authorized officers of the Ministry of Tourism should be allowed free access to inspect the project from time to time without prior notice

13. The hotel must immediately inform the Ministry of the date from which the hotel becomes operational and may apply for Classification within 3 months from the date of operation

14. The fee payable for the Project Approval and subsequent extension, if required, which is payable only by RTGS / NEFT/ Debit/Credit Card, is as under.

Star Category Amount in Rs.

5- star 15,000

4-star 12,000

3-star 8,000

2-star 6,000

1-star 5,000

Heritage Category 12,000

15. The promoter must file online returns showing quarterly progress in prescribed format on the portal https://www.hotelcloud.nic.in failing which the project approval is liable to be withdrawn. On completion of the Hotel Project, the promoter shall submit a completion certificate issued by the competent authority.

16. The originals of documents are required to be uploaded on the online portal. All documents must be valid at the time of application. Documents in local language should be accompanied by a translated version in English which should also be duly certified / attested / notarized.

17. The application for Hotel Project Approval should indicate whether a few rooms or all rooms are to be let out on a Time Share basis. Hotel Projects, where it is proposed to let out part or whole of the hotel on 'Time Share basis', will not be covered under these guidelines but under a separate scheme Guideline of Timeshare Resort which are available at www.tourism.gov.in

18. Any change in the project plan or management for Heritage, 5 Star and 4 Star categories should be informed to the Ministry of Tourism and for 3 Star, 2 Star and 1 Star categories to the respective Regional Indiatourism Office within 30 days of such change being effected, failing which the approval will stand withdrawn / terminated.

19. The Project Approval is only applicable for new hotels coming up and not for additional rooms coming up in existing hotels.

20. The minimum size of rooms and bathrooms for all categories have been specified in the Guidelines for Classification / Re-classification of hotels. Hotels of 1 Star, 2 Star, 3 Star and 4 Star categories availing subsidy / tax benefits / other benefits from the Central / State Government would be subject to a Lock- in period of 8 years so that these hotels continue to serve as budget category hotels. Hotels would be permitted to apply for upgradation to a higher star category after the completion of the lock in period. All projects seeking approval of the Ministry of Tourism are required to submit an undertaking in this regard in the format at Annexure – IV and an Affidavit at Annexure V.

21. Applicants are requested to go through the Checklist of Facilities & Services (Annexure-III) contained in this document before applying for Approval of Hotels at the Project Stage/Classification of Operational Hotels.

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22. Application for approval of Hotel Project forwarded through post or delivered by hand will be summarily rejected and no action whatsoever shall be taken on such applications.

23. Only one application for approval of Hotel Project shall be permissible at a given point of time. Multiple applications for approval made under one or more categories for the same hotel project at a given point of time will be summarily rejected.
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ANNEXURE – II

GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/
RE-CLASSIFICATION OF OPERATIONAL HOTELS

1. With the aim to provide contemporary standards of facilities and services, the Ministry of Tourism has a voluntary scheme for Classification / Reclassification of Operational Hotels in the following categories:

i. 5 – Star Deluxe
ii. 5 – Star with alcohol service / without alcohol service
iii. 4 – Star with alcohol service / without alcohol service
iv. 3 – Star
v. 2 – Star
vi. 1 – Star

2. Classification for newly operational hotels, if approved by Ministry of Tourism at project stage, must be sought within 3 months of commencing of the operations. Operating hotels may opt for Classification at any stage. However, hotels seeking Re-classification should apply for the same and complete the process at least six months prior to the expiry of the current period of classification

3. If a hotel fails to apply for Re-classification and complete its documentation free of all deficiencies a clear six months prior to the expiry of the classification period, the application will be treated as a fresh case of classification

4. Once a hotel applies for Classification / Re-classification, it should be ready at all times for inspection by the inspection committee of the HRACC. No request for deferment of inspection will be entertained

5. Classification will be valid for a period of 5 (Five) years from the date of approval of Chairman HRACC, or in the case of Re-classification, from the date of expiry of the last classification, provided that the application complete in all respect and free of all deficiencies has been received six months prior to the expiry of the current period of classification, along with all valid documents. Incomplete applications will not be accepted.

6. The application for Classification/Reclassification should indicate whether the hotel proposes to let out a few rooms or all rooms on 'Time Share basis'. Hotels which propose to let out part of or all its rooms on Time-share basis, will not be eligible for classification under this scheme.

7. Hotels applying for Classification/Re-classification must provide the following information/ documentation.

i. Name of the Hotel
ii. Complete postal address of the hotel with telephone, fax and Email address
iii. Status of the owner / promoter;

a) If Public/Private Limited Company Copy of Memorandum and Articles of Association
b) If Partnership, a copy of Partnership Deed and Certificate of Registration
c) If proprietary concern, name and address of proprietor/certificate of registration

iv. Date on which the hotel became operational
v. Details of hotel site with postal address and distance (in kms) from

a) Airport
b) Railway Station
c) City centre / downtown/shopping area

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8. Details of the hotel:

i. Area of Hotel site (in sq. metres) with title - owned/ leased with copies of sale/lease deed.
ii. Star category being applied for
iii. Number of rooms and size for each type of room in sq. ft. (Single/ Double/ Suites - all rooms to have attached bathrooms.
iv. Size of bathrooms (in sq. ft.).
v. Air-conditioning details for guest rooms, public areas.

9. Details of public areas:

i. Lobby/lounge
ii. Restaurants with No. of covers
iii. Bar
iv. Shopping area
v. Banquet / conference halls
vi. Health club/ Business centre /Swimming pool
vii. Parking facilities (no. of vehicles which can be parked).
viii. Facilities for the differently abled guests: Dedicated room with attached bath room, designated parking, ramps, free accessibility in public areas and at least to one restaurant, designated toilet (unisex) at the lobby level etc.
ix. Eco-friendly Practices (a) Sewage Treatment Plant (b) rain water harvesting (c) waste management (d) pollution control method for air, water and light (e) Introduction of non CFC equipment for refrigeration and air conditioning and other Eco-friendly measures and initiatives.

A Sewage treatment plant will not be a mandatory condition for hotels which have obtained completion certificate for construction before 01.04.2012.

x. Measures for energy and water conservation, water harvesting (use of CFL lamps, solar energy, water saving devices/ taps etc.).
xi. Details of Fire Fighting Measures.
xii. Security features viz. CCIV, X-Ray check, verification of staff etc.
xiii. The architecture of the hotel building in hilly and ecologically fragile areas should incorporate creative architecture keeping in mind sustainability and energy efficiency and as far as possible in conformity.
xiv. Any other additional facilities

10. Originals of Certificates / No Objection Certificates to be uploaded (copies should be current/ valid and duly self-attested / certified by an authorized representative of the hotel):

i. Certificate / license from Municipality / Corporation to show that the establishment is registered as a Hotel
ii. No Objection Certificate from the Fire Service Department (Local Fire Brigade Authority).
iii. Affidavit on prescribed format for all clearances on Stamp Paper of Rs.100.00 (Annexure VI)
iv. Bar License is mandatory if the hotel is applying for 4 Star with Alcohol Service, 5 Star with Alcohol Service, and 5 Star Deluxe.
v. If classified earlier, a copy of the Classification Order issued by the Ministry of Tourism

The above-mentioned approvals / Licenses / No Objection Certificates are the responsibility of the Owner / Promoter / concerned Company as the case may be. The approval of the Ministry of Tourism is no substitute for any statutory approval and the approva1 given is liable to be withdrawn without notice in case of any violations or misrepresentation of facts.

11. Hotel will show the following NOCs / Licenses / Certificates which should be current, valid and in original at the time of its inspection by HRACC and upload the same on hotelcloud portal:

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a) Trade license to operate as hotel
b) NOC from Fire Department
c) Clearance certificate from Municipal Health Officer/Sanitary Inspector (Health NOC)
d) NOC from Police Department
e) Consent to operate from the State Pollution Control Board
f) Bar License, wherever applicable
g) NOC from Ministry of Environment & Forests (wherever applicable)
h) NOC from Airport Authority of India for hotels located near the Airport (wherever applicable)
i) CRZ clearance (wherever applicable)
j) Land use permission
k) Building plans duly sanctioned/approved by the competent authority
l) Occupancy certificate
m) Sewage Treatment Plan

12. All applications for Classification and Re-Classification must be complete in all respects viz. application form, application fee, prescribed clearances / NOCs / certificates etc. Incomplete applications will not be accepted.

13. The application fees for Classification / Re-classification is payable only by RTGS/NEFT/Debit/Credit Cards and are as follows.

Star Category Classification / Re-classification fee in Rs.
1 – Star 6,000
2 – Star 8,000
3 – Star 10,000
4 – Star (with or without Alcohol service) 15,000
5 – Star (with or without Alcohol service) 20,000
5 – Star Deluxe 25,000

14. Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC). The Committee will be constituted as follows:

A. For 4 & 5 Star category with and without Alcohol Service and 5 Star Deluxe categories:

 Chaired by Additional Director General (Tourism), Govt. of India/ Chairperson (HRACC) or a representative nominated by him/her
 Representative from FHRAI
 Representative from HAI
 Representative from IATO
 Representative from TAAI
 Principal Institute of Hotel Management OR his / her representative who shall be the member of teaching faculty of the Institute
 Regional Director, Indiatourism Office/ Director or Manager of Local Indiatourism office
 Member Secretary HRACC

The HRACC representatives / nominees of FHRAI, HAI, IATO and TAAI should have requisite expertise and experience of the hospitality and tourism industry (hands on experience)

B. For 1, 2 & 3 Star category hotels:

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 Secretary (Tourism) of the concerned State Govt. or Additional Secretary (Tourism) or Director (Tourism) or Additional Director (Tourism) of the concerned State Govt. (provided the last two are not below the rank of Joint Secretary to the concerned State Govt. / UT Administration) or Regional Director of concerned Indiatourism Office, Regional Director, India tourism who is also Member Secretary, Regional HRACC, will Chair the Committee.
 Regional Director, Indiatourism Office / Director or Manager of Local Indiatourism office
 Representative from FHRAI
 Representative from HAI
 Representative from IATO
 Representative from TAAI
 Principal Institute of Hotel Management OR his / her representative who shall be the member of teaching faculty of the Institute

The HRACC representatives / nominees of FHRAI, HAI, IATO and TAAI should have requisite expertise and experience of the hospitality and tourism industry (hands on experience).

C. The Chairperson and any 3 members will constitute a quorum.

D. The recommendations duly signed by the inspection Committee will be uploaded on the hotelcloud portal along with all necessary licenses /NOCs /permissions etc. and the recommendation of the inspection committee will be approved/ rejected by the Chairperson (HRACC)/Joint Secretary(Tourism) / Addl. Director General (Tourism) expeditiously provided all the necessary documentation are complete in all respect.

E. Appellate Authority: In case of any dissatisfaction with the decision of the HRACC, the hotel may appeal to Secretary (Tourism), Government of India for review and reconsideration within 30 days of receiving the communication regarding Classification/Re-classification. No request will be entertained beyond this period.

15. Hotels will be classified following a two stage procedure:

a) The presence of facilities and services will be evaluated against the enclosed Checklist of Facilities and Services available at Annexure III.

b) The quality of facilities and services will be evaluated by the HRACC inspection committee as per the prescribed parameters.

16. The hotel is expected to maintain required standards at all times. The Classification Committee may inspect a hotel at any time without previous notice. The Committee may request that its members be accommodated overnight to inspect the level of services.

17. Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with the hotel representatives during inspection. The maximum time that may be given by the committee for rectification of deficiencies shall not exceed 3 months. If the observations of the committee on deficiencies are not complied within the said time frame, the application of the hotel will be rejected and the hotel may apply afresh under an appropriate category. Failure to comply within the stipulated time will result in rejection of the application.

18. The Committee may assign a Star category lower but not higher than that applied for.

19. The hotel must be able to convince the committee that they are taking sufficient steps to conserve energy and harvest water, garbage segregation, and disposal/ recycling as per Pollution Control Board (PCB) norms and following other Eco-friendly measures.

20. For any change in the Star category, the promoter must apply afresh along with requisite fee.

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21. Any changes in the Building Plans or Management of the hotel should be informed to the HRACC, Ministry of Tourism, Govt. of India within 30 days, otherwise the classification will stand withdrawn / terminated.

In case of change of company name / hotel name, a copy of the fresh 'Certificate of Incorporation' or a copy of the 'Resolution of the Board of Directors' regarding the name change along with any other relevant documents should be submitted.

22. The minimum size of rooms and bathrooms for all categories have been specified in the Guidelines. Hotels of 1, 2, 3 and 4 star categories availing subsidy/tax benefits/ other benefits from the Central / State Government would be subject to a lock- in period of 8 years, so that these hotels continue to serve as budget category hotels. Hotels would be permitted to apply for up- gradation to a higher star category only after the completion of the lock in period.

23. Applicants are requested to go through the Checklist of Facilities and Services (Annexure III) contained in this document while applying for Classification / Re-classification. The checklist must be duly filled up and should be submitted along with the online application.

24. The Hotel should adhere to the tenets of the Code of Conduct for Safe & Honourable Tourism for which the following action would have to be taken:

i. A signed copy of the Pledge and Undertaking of commitment towards "Safe & Honourable Tourism" should be attached with the application. The format of the 'Pledge & Undertaking - Code of Conduct for Safe & Honorable Tourism' are attached at Annexure VII and Annexure VIII respectively.
ii. On the day a new staff member joins the Hotel, he / she would be required to take / sign the pledge. The pledge would be incorporated in the appointment letter I joining report of the staff.
iii. Two focal points/Nodal Officers would be nominated (i.e., from HRD, security side etc.) at the time of applying for approval by the Hotel in the case of hotels which have more than 25 personnel. In the case of Hotels with less than 25 personnel, one focal point would have to be nominated.
iv. The training would be provided to the staff of the classified/approved hotels by Ministry of Tourism under its Capacity Building of Service Providers (CBSP) scheme in connection with "Safe & Honourable Tourism". The focal points of the hotel would be trained first within first six months of MOT approval. Subsequently, the trained focal points in turn would impart further in-house training to the staff which would be arranged within next six months.
v. The Pledge of Commitment towards "Safe & Honourable Tourism" would have to be displayed prominently in the staff areas / back areas of the Hotels / Restaurants etc. and in the office premises of all the Head of the Departments (HODs).
vi. The signatories of the Code of Conduct would be required to maintain a record of action taken by them in compliance of the provisions of this para, which shall be kept in their office & shown to the Committee(s) at the time of Classification/Re- classification.

25. It is mandatory for hotels applying for fresh Classification or Reclassification under the categories 1 Star to 5 Star Deluxe to have facility/ infrastructure for accepting /making payments by digital transactions.

As per Government of India's initiative for Promotion of Digital Transaction, it is mandatory for all Hotels classified/re-classified by the Ministry of Tourism, to submit data pertaining to Occupancy Reports and Digital Transaction as per prescribed template available online at https://wvvw.hotelcloud.nic.in positively by 20th of every month for the previous month.

26. Incomplete applications for Classification / Reclassification will not be entertained. Efforts will be made to ensure that all cases of classification are given final decision within three months from the date of receipt of the application, subject to the following:

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i. Receipt of the application complete in all respect (without deficiencies)
ii. All essential documents of the inspected hotel being found to be current, valid and satisfactory by the inspection Committee (HRACC).
iii. Timely uploading of all essential documents produced before the inspection committee (HRACC) on hotelcloud portal by the inspected hotel.
iv. Compliance/rectification of deficiencies pointed out by the inspection committee at the time of inspection within the stipulated time.

27. Only one application for classification for an operational Hotel shall be permissible at a given point of time. Multiple applications for classification made under one or more categories for the same hotel project at a given point of time will be summarily rejected.

28. Cases of hotels where classification is pending due to the non-fulfilment of HSRT Targets under the present guidelines would be considered for classification without insisting upon HSRT targets. The requirement of attainment of HSRT targets would be waived off for such hotels. However, hotels whose application have been given a final decision prior to the amended guidelines coming into force, would need to apply afresh, if they are desirous of classification.

29. The timelines for clearance of classification application of hotels would be as follows:

I. For 4 Star, 5 Star, and 5 Star Deluxe hotels.

1. Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from all deficiencies, and confirmation of receipt of application fee by PAO, MoT.

2. Inspection of Hotels: Inspection has to be scheduled within 40 working days of communication of nomination of an officer as Chairperson, by the nominated officer.

3. Uploading of Inspection report by Chairperson of Inspection Committee: Within 7 working days of inspection.

a. In case of recommendation for rejection, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation.
b. In case of compliance observations pertaining to physical compliances, online compliance verification will be done and submitted for online compliance approval of Competent Authority within 7 working days of online receipt of compliance observations.
c. In case of recommendation for approval, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents free from all deficiencies. However, once the uploaded inspection report is received by the hotel through hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of receipt of uploaded inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.

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4. After submission of compliance report by the hotel.

a. In cases where re-visit by a committee / sub-committee is required, allotment of hotel, for inspection, to officer(s) nominated as Chairperson / Member (in case of a sub-committee where no officer is nominated as Chairperson) of inspection committee/ sub-committee will be done within 15 working days of online submission of compliance report by the hotel. Inspection has to be scheduled within 40 working days of communication of such allotment / nomination of an officer as Chairperson, by the nominated officer. Uploading of Inspection report by Chairperson / Member of Inspection Committee will be done within 7 working days of inspection. In case of recommendation for rejection, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation. In case of recommendation for approval, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.

b. In cases where re-visit is not required, the proposal will be processed for approval of Competent Authority within 15 working days of online receipt of compliance report, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.

5. Approval of Competent Authority for classification / rejection – within 10 working days of receipt of recommendation (except in cases where there are queries / observations of Competent Authority necessitating further action / clarification.

6. Uploading of Classification letter – within 5 working days of online approval of Competent Authority.

II. For 1 Star, 2 Star, and 3 Star hotels.

1. Allotment of hotels for inspection to an officer nominated as Chairperson of inspection committee: Within 15 working days of receipt of application free from all deficiencies, and confirmation of receipt of application fee by PAO, MoT.

2. Inspection of Hotels: Inspection has to be scheduled within 40 working days of communication of nomination of an officer as Chairperson, by the nominated officer.

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3. Uploading of Inspection report by Chairperson of Inspection Committee: Within 7 working days of inspection.

a. In case of recommendation for rejection, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation.
b. In case of compliance observations pertaining to physical compliances, online compliance verification will be done and submitted for online compliance approval of Competent Authority within 7 working days of online receipt of compliance observations.
c. In case of recommendation for approval, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.

4. After submission of compliance report by the hotel.

a. In cases where re-visit by a committee / sub-committee is required, allotment of hotel, for inspection, to officer(s) nominated as Chairperson / Member (in case of a sub-committee where no officer is nominated as Chairperson) of inspection committee/ sub-committee will be done within 15 working days of online submission of compliance report by the hotel. Inspection has to be scheduled within 40 working days of communication of such allotment / nomination of an officer as Chairperson, by the nominated officer. Uploading of Inspection report by Chairperson / Member of Inspection Committee will be done within 7 working days of inspection. In case of recommendation for rejection, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation. In case of recommendation for approval, the proposal will be processed for approval of Competent Authority within 12 working days of online receipt of recommendation, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.

b. In cases where re-visit is not required, the proposal will be processed for approval of Competent Authority within 15 working days of online receipt of compliance report, subject to the uploaded documents being found to be free of all deficiencies. In case of deficiencies being found in uploaded documents, the same will be sent back to the hotel for rectification. This cycle will be repeated till such time the hotel uploads all documents

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free from all deficiencies. However, once the inspection report is uploaded on the online hotelcloud portal, the hotel will upload documents / complete all requirements as per the guidelines within three months of uploading of inspection report. If the hotel fails to upload documents/ complete all requirements as per the guidelines within three months, the application will be summarily rejected.

5. Approval of Competent Authority for classification / rejection – within 10 working days of receipt of recommendation (except in cases where there are queries / observations of Competent Authority necessitating further action / clarification.

6. Uploading of Classification letter – within 5 working days of online approval of Competent Authority.

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ANNEXURE – III
CHECKLIST OF FACILITIES FOR CLASSIFICATION / RE-CLASSIFICATION OF OPERATIONAL HOTELS

FACILITIES & SERVICES	1* 2* 3* 4* 5*D	5*/ Yes/ No	COMMENTS
GENERAL			
Full time operation 7 days a week in season	N N N N N		
Establishment to have all necessary trading licenses / Permissions	N N N N N		
Establishment to have public liability insurance	D D D D D		
24hr. lifts for buildings higher than ground plus two floors	N N N N N		Mandatory for all hotels. Local laws may require a relaxation of this condition.
Easy access for the differently abled guests.			
Bedrooms, Bathrooms, Public areas and kitchen fully services daily	N N N N N		
All floor surfaces clean and in good shape	N N N N N		Floor may be of any type.
GUEST ROOM			
Minimum 10 lettable rooms, all rooms with outside windows / ventilation.	N N N N N		
Minimum size of bedroom excluding bathroom in sq.ft.	120 120 130 140 200		Rooms should not be less than the specified size. The area may include the vestibule and other covered area within the room but exclude outdoor verandah/ balcony. Single occupancy rooms may be 20 sq.ft. less.
Air – conditioning - % of Rooms	25% 25% 50% 100% 100%		Air –conditioning / heating depends on climatic conditions and architecture.
Room Temperature should be between 20 to 28 degree Celsius.			
A clean change of bed and bath linen daily and between check – in. On check –in alternate days for 1 & 2 Star category hotels.	N N N N N		Definitely required between
Guest linen			Good quality linen to be provided.
Minimum bed width for single 90 cm and double180 cm.	D N N N N		
Mattress thickness minimum 10 cm	D D N N N		Coir, foam or spring foam

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Minimum bedding 2 sheets, pillow and case, blanket, mattress protector / bed cover N N N N N Blankets available in air conditioned room as per seasonal requirement in non A/C rooms. Mattress protector is ‘desirable’ in 1 Star and 2 Star category hotels and ‘necessary’ for the other categories.

Suite (2 rooms or 2 room- bays having a bedroom and separate sitting area, having one bathroom and one powder room.) D D D N N Minimum 1 suite. A suite must be sold as one room.

Hairdryers D D N N N Where not provided in bathroom, must be available on request.

3 Star, 4 Star, 5 Star and 5 Star Deluxe category hotels shall provide hair dryer facility in the room on complimentary basis. In 1 Star and 2 Star hotels, this facility will be made available on request on complimentary basis.

Safe keeping / in room safe D D D N N 1,2, and 3 Star hotels to have facilities for safe keeping in the reception.

All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide a safe in the room.

Mini bar / Fridge D D N N N Contents must conform to All 3 Star hotels shall have local laws. facility of a mini fridge and all 4 Star, 5 Star, and 5 Star Deluxe hotels shall have a the facility of mini bar.

Drinking water with minimum one glass per guest. N N N N N All star category hotels to provide 2 sealed bottles of branded packaged drinking water of minimum 500 ml per person per day on complimentary basis. Ultra violet treated water will not be acceptable.

Guest Linen Good quality linen to be provided.

Shelves / drawer space N N N N N Necessary for hotels of 1,2 and 3 Star category to have a wardrobe.

Wardrobe with minimum 4 clothes hangers per bedding N N N N N In one star or two star hotels, this may be without doors.

Sufficient lighting (1 lamp per bed) N N N N N

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A 5 amp earthed power N N N N N
socket
A bedside table and drawer N N N N N 1 per twin bed and two for a
double bed.
TV Cable if available D D N N N TV must have a remote.
Exception: for eco and
nature resorts TV cable is
not mandatory for 3 Star to
5 Star Deluxe category
hotels. However, it is
mandatory that they provide
a television with cable in the
lobby or other common
area.
A writing surface with D D N N N
sufficient lighting
Chairs N N N N N Preferably one per bed

Waste paper basket N N N N N

Opaque curtains or screening N N N N N All 4 Star, 5 Star, and 5 Star
at all windows Deluxe hotels shall have
blackout curtains
A mirror at least half length (3 N N N N N
ft.)
A stationary folder containing D D N N N
stationary
A ‘do not disturb’ notice N N N N N

Night spread / bed cover N N N N N

Energy saving lighting N N N N N

Linen Room N N N N N Should be well ventilated

BATHROOM

Number of rooms with All All All All All bathrooms to have a
attached bathrooms sanitary bin with lid.
Minimum size of bathroom in 30 30 36 36 45 25% of bathrooms in 1 &2
square feet Star hotels to have western
style WC.
For hotels built before
1.1.2012, the Minimum
bathroom size may be
relaxed by 10% (to be
rounded off to the next
integer) provided the total
size of the room and the
bathroom taken together are
as follows: 1 Star & 2 Star –
150 sq. ft., 3 Star-166 sq. ft.,
4 Star – 176 sq. ft., 5 Star &
5 Star Deluxe – 245 sq. ft.

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1 bath towel and 1 hand towel to be provided per guest	N	N	N	N	N	
Bath Mat	D	D	N	N	N	
Guest toiletries to be provided. Minimum 1 soap per guest.	N	N	N	N	N	Quality products depending on Star category.
Bottled toiletry products to be provided.	D	D	D	N	N	
Clothes – hooks in each bath / shower room	N	N	N	N	N	All star category hotels shall provide two (2) clothes hooks in the bath / shower room
Sanitary bin	N	N	N	N	N	These must be covered
Each western WC toilet to have a seat with lid and toilet paper.	N	N	N	N	N	
All Star hotels shall provide water sprays or bidets or washlets or other modern water based post- toilet – paper hygiene facilities.	N	N	N	N	N	
Floors and walls to have non – porous surfaces	N	N	N	N	N	
Hot and Cold running water available 24 hours	N	N	N	N	N	
Shower cabin	N	N	N	N	N	A shower with shower curtain will suffice where shower cabin is not available.
Bath tubs	D	D				
Water saving taps and showers	N	N	N	N	N	
Energy saving lighting	N	N	N	N	N	
PUBLIC AREA						
Lounge or seating area in the lobby	N	N	N	N	N	Lobby shall have furniture and fixtures which shall include chairs / arm chairs, sofa, tables and fresh floral display.
Door man on duty for 4 star categories and below 4 star categories, the presence of a door man on duty in the lounge or sitting area in the lobby shall not be mandatory. However, in such areas, the presence of staff on duty shall be obligatory around the clock 24/7						

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Reception facility N N N N N Manned minimum 16 hours.
Call service 24 hours. Local
directions to hotel including
city street maps to be
available.
Valet (parking) services to be D D N N N
available
Availability of Room, F&B N N N N N
and other tariff
Heating and cooling to be - - - N N Temperatures to be between
provided in public areas 20 degrees Celsius to 28
degrees Celsius.
Air – conditioning in
common areas like lobby,
restaurants, verandahs, bar
where they are open to
nature on one or more sides,
shall not be mandatory for
beach, lake, backwater,
river, hill, mountain, forest
or nature hotels & Resorts.
Public rest rooms for ladies N N N N N
and gents, a wash basin with
running hot and cold water, a
mirror, a sanitary bin with lid
in unisex 7 ladies toilet.
ROOM AND FACILITIES FOR THE DIFFERENTLY ABLED GUEST

At least one room for the N N N N N The room shall have low
differently abled guest height furniture, low peep
hole, cupboard with low
clothe hangers, audible and
visible (blinking light)
alarm system and doorbell.

The almirah / cupboard
doors in the differently
abled room should be
sliding to enable opening
the same by the differently
abled person.

Blinking light in the room
and bathroom should also be
connected with the door bell
for the hearing impaired.

Cordless telephone in the
room. Direct calling facility
to the front desk or operator.
Bathroom N N N N N Door width for room of the
differently abled persons
and bathroom of such rooms
should allow easy
accessibility of wheel chair
made available by the
hotel).

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For new hotels coming up after 01.04.2017, the minimum door width of such rooms and their bathroom shall be minimum 90 cm.

The door width of the room and bathroom for differently abled persons in existing hotels shall be 90 cm. with effect from 01.04.2023

Bathroom for the differently abled guest shall have suitable fixtures like low wash basin with wheel chair accessibility, low vanity unit, Wall mounted seat in shower area, hand shower, Grab bars net to the WC and shower area.

Ramps with anti-slip floors at the entrance. Minimum door width should be one meter to allow wheel chair access

N N N N N Fixed and anti – slip ramp to be provided in all public areas.

Free accessibility in all public areas, and to at least one restaurant in 5 star and 5 star deluxe hotel.

Public Restrooms N N N N N All star category hotels should have a public restroom for differently abled guests (unisex) with minimum door width which allows easy accessibility of wheel chair (made available by the hotel). Low height urinal with grab bars.

For new hotels coming up after 01.04.2017, the minimum door width of such public rest room (unisex) shall be minimum 90 cm.

For existing hotels, the minimum door width of public restroom (unisex) shall be mandatory after 01.04.2023

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FOOD & BEVERAGE OUTLETS

1 Star & 2 Star	1 & 2 Star categories should have minimum one dining room serving all meals.
3 Star Category	One Multi – cuisine Restaurant cum Coffee Shop open from 07.00 am. To 11.00 pm. And 24 hr. Room Service.
4 Star category (with alcohol service or with no alcohol service)	Grade A cities: One Multi – cuisine Restaurant cum Coffee Shop open from 07.00 am. To 11.00 pm., one specialty Restaurant and 24 hr. Room Service. The specialty Restaurant may either be indoors with air-conditioning, or outdoors. The Specialty Restaurant must serve specific form of cuisine. The Specialty Restaurant may be open for lunch / dinner. Cities other than grade A cities: One Multi – cuisine Restaurant cum Coffee Shop open from 07.00 am. To 11.00 pm. and 24 hr. Room Service.
5 Star category (with alcohol service or with no alcohol service)	Grade A cities: and One 24 hour Multi Cuisine 5 Star Deluxe Restaurant cum Coffee Shop, one Specialty Restaurant and 24 hr. Room Service. The Specialty Restaurant may either be indoors with air – conditioning, or outdoors. The Specialty restaurant must serve specific form of cuisine. The Specialty Restaurant may be open for lunch / dinner. Cities other than Grade A cities: One 24 hour Multi Cuisine Restaurant cum Coffee Shop and 24 hr. Room Service. One Specialty Restaurant would be desirable.

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Grade A: Delhi, ** Mumbai, Kolkata, Chennai, Bangalore, Pune, Hyderabad, Secunderabad.

Note: The Ministry of Tourism may review and revise the cities falling under the Grande 'A' from the time to time.

** Delhi would include the hotels falling Gurgaon, Faridabad, Ghaziabad, Noida, And Greater Noida"

Crockery and glassware N N N N N Plastic ware acceptable in pool area.
Cutlery to be at least N N N N N All category hotel should see stainless steel good quality metal cutlery. Aluminum cutlery is prohibited.
Bar D D D N N Bar will not be mandatory wherever bar licence is prohibited as per local law.

Wherever bar is allowed as per local law, the hotel will have to first obtain bar license before applying to the Ministry of Tourism for Classification of the hotel.

Liquor shops/ liquor stores will not be considered while granting classification under 'with alcohol' category.
KITCHEN / FOOD PRODUCTION AREA

Refrigerator with deep N N N N N Capacity based on quantum of freezer F&B Operations.
Segregated storage of meat, N N N N N Meat, fish and vegetables to be fish and vegetables kept in separate freezers
Tiled walls, non slip floors N N N N N

Colour coded synthetic N N N N N Wooden chopping boards chopping boards
Head covering for N N N N N production staff
Daily germicidal cleaning N N N N N of floors
Good quality cooking N N N N N Use of aluminum vessels is vessels / utensils prohibited except for bakery
All food grade equipment N N N N N containers.
Drinking water N N N N N Water treated with UV+ filtration
Ventilation system N N N N N

Garbage to be segregated – N N N N N To encourage recycling wet and dry
Wet garbage area to be air- D D N N N conditioned.
Receiving areas and stores N N N N N Should have sink with table distinct from garbage area. surface, weighing machine

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quality control and pre wash
area.
Six monthly medical check N N N N N Records to be submitted along
ups for production staff with pathological records to
HRACC during inspection of the
hotel
First aid training for all N N N N N
kitchen staff
Pest control N N N N N Record to be shown to the
HRACC during inspection of the
hotel
STAFF

Staff uniforms for front of N N N N N Uniforms to be clean and in good
the house. condition.
English speaking front D D N N N This may be relaxed outside the
office staff metros / sub-metros for 1 Star
and 2 Star category hotels.
Percentage of Supervisory 20% 20% 40% 40% 80% Hotels of 4 Star category and
staff above should have qualified
Heads of Departments.

The supervisory or the skilled
staff may have training or skill
certification as follows:

Degree / Diploma from Central
or Star IHMs/ FCIs or from
NCHMCT affiliated IHMs or
from other reputed Hospitality
Schools.
Percentage of skilled staff 20% 20% 30% 30% 60% The supervisory or the skilled
staff may have t raining or skill
certification as follows:

Degree / Diploma from Central
or Star IHMs/ FCIs or from
NCHMCT affiliated IHMs or
from other reputed Hospitality
Schools.

Skill training certificate issued
under the guidelines and scheme
of the Ministry of Tourism
STAFF WELFARE FACILITIES

Staff Rest Rooms D D N N N Separate for male and female
employees, with bunk beds.
Rooms should be well lighted
and ventilated
Staff locker Rooms D D N N N

Toilet facilities N N N N N Full length mirror, hand dryer
with liquid soap dispenser
Separate Dining area & D D N N N
Facility

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CODE OF CONDUCT FOR SAFE & HONOURABLE TOURISM

Display of pledge N N N N N Pledge to be displayed prominently in the staff/ back areas / office premises of all the Heads of Departments (HODs)
Training for 'Code of Conduct for safe & Honourable Tourism' N N N N N At time of Joining (orientation programme and subsequent in – house training)
Maintenance of Action Taken Report with regards to compliance of the provisions of the Code. N N N N N Signatories of the 'Code of Conduct' to maintain record of action taken in compliance of the provisions of the code.
Focal points / Nodal officers N N N N N Two nodal officers to be nominated (from HRD and Security side etc.) for hotel with more than 25 personnel and one focal point for hotel with less than 25 personnel.
GUEST SERVICES

Provision for wheelchair for the differently abled guest N N N N N Wheel chair to be made available on complimentary basis in hotels of all categories.
Valet (parking) services to be available D D N N N
Dry cleaning / laundry D D D N N In house for 5 Star Deluxe hotels. For 5 Star category and below, may be outsourced.
Tea / coffee making facility in the room D D D N N Tea / coffee making facilities in the room to be made available on complimentary basis in all 4 Star, 5 Star and 5 Star Deluxe hotels.
Iron and Iron Board facility N N N N N Each hotel up to the level of 4 star to have a number of irons and ironing board equal to 20% of the number of lettable rooms, to be provided to a resident guest on request. 5 star and 5 star deluxe hotels to have iron and ironing board in every lettable room.

Paid transportation on call D D N N N Guest should be able to travel from hotel
Shoe cleaning shoe horn & slippers D D D N N Free facility to be provided for in house guest
Ice (from drinking water) on demand D D N N N Complimentary on request
Acceptance of common credit cards and facility/ infrastructure for accepting/ making payments by digital transactions N N N N N
Assistance with luggage on request N N N N N

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A public telephone on premises. Unit charges made known from floor level in Deluxe (to also cater to differently abled guest)	D	D	N	N	N	There should be at least one telephone no higher than 24” in 5 and 5 Star
Wake – up call service on request	N	N	N	N	N	
Messages for guests to be recorded and delivered	N	N	N	N	N	A prominently displayed message board will suffice for 1 & 2 Star Categories
Name address and telephone number of doctors with front desk	N	N	N	N	N	Doctor on call in 3,4,5 & 5 Star Deluxe
Stamps and mailing facilities	D	D	D	D	D	
Newspapers available	D	D	D	N	N	This may be placed in the lounge for 1,2,& 3 Star hotels
Access to travel desk facilities for 1,2&3 Star categories	N	N	N	N	N	This need not be on the premise
Left luggage facilities	D	D	N	N	N	This must be in a well secured room / 24 hours manned area. All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide luggage racks, portable or fixed, for two large suitcases. This will be stated on the hotel’s website under the head ‘Facilities and Amenities provided on complimentary basis’ and mentioned to guest while checking in.
Provision for emergency supplies toiletries / first aid kit	D	D	N	N	N	
Health – Fitness and Beauty Salon and Barber’s Shop	D	D	D	D	N	Indian system of treatments should preferably be offered
Florist	D	D	D	D	D	
Utility shop / kiosk	D	D	D	D	D	The presence of a utility kiosk / shop will not be a mandatory condition for classification under 1 to 5 Star Deluxe categories. NO separate book shop shall be necessary.
Money changing facilities	D	D	D	D	D	Money changing facility to be made available.
SAFETY & SECURITY						
Metal detectors (door frame or hand held)	D	D	N	N	N	
CCTV at strategic location	N	N	N	N	N	

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X-Ray Machine D D D D N For 5 Star Deluxe category, it would be ‘Necessary’ to have an x-ray machine at the guest entrance for screening of baggage Manual check may be conducted for staff and suppliers at designated entry points.
Under belly scanners to D D D N N screen vehicles.
Verification N N N N N All hotels should conduct antecedent verification of their staff and suppliers by the Police / private security.
Staff trained in firefighting N N N N N All hotels to conduct periodic Drill fire drills and maintain ‘Manuals’ for disaster management, First Aid and Fire Safety
Security arrangements for N N N N N all hotels entrances.
Each bedroom door to be D D N N N A safety chain / wishbone latch is fitted with lock and key, acceptable in place of viewport / viewport / peephole & peephole. internal securing device.
Smoke Detectors N N N N N These can be battery operated.

Fire and Emergency alarms N N N N N should have visual & audible signals.
First aid kit with over the N N N N N counter medicines at the front desk
Fire Exit Signs on guest N N N N N floors with emergency / backup power.
COMMUNICATION FACILITIES

Telephone facility within D D D N N arm’s reach of the toilet seat
Provide at least two multi – N N N N N All Star hotels shall provide at purpose sockets least two multi-purpose sockets capable of handling US, European Community and Japanese plugs at or just above the table level. It should be possible for guest to charge a laptop and cell phone simultaneously. This condition shall be applicable to all new hotels that will start operating from 01.04.2016.

For the hotels which have come into operation before 31.03.2016 this parameter will be applicable from 01.04.2022. However, till such time as this facility is
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provided on a permanent basis, it will be mandatory for all Star hotels to provide multi-socket adapter plugs on request.
A telephone for incoming & outgoing calls in the room direct dialing and STD / ISD facilities. D N N N N 4 star and above should have 1,2 and 3 Star category hotels may go through a telephone exchange.
PC available for guest use with internet access D D N N N This can be a paid service. Upto 3 Star, PC can be in the executive offices, Internet subject to local access being available.
E-mail service D D N N N Subject to local internet access being available.
Fax, photocopy and printing N N N N N
Services.
In room Internet / wi-fi connection D D D N N Subject to local internet access being available. Wi-Fi wherever possible.
Business Centre D D D N N This should be a dedicated area.

(This provision may be relaxed for resort destinations, tourist and pilgrimage centers).
Swimming Pool D D D D N This can be relaxed for hill destinations. Mandatory to have trained Life Guard, Board containing Do’s and Don’ts, No Diving sign, pool depth etc. should be displayed at a strategic location in the pool area.

All 4 Star, 5 Star and 5 Star Deluxe hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools
Parking Facilities D D N N N Should be adequate in relation to the number of rooms & banquet / convention hall capacity.

Exclusively earmarked accessible parking nearest to the entrance for differently abled guest.
Conference Facilities. D D D D N

ECO FRIENDLY PRACTICES

Sewage Treatment Plant N N N N N A Sewage Treatment Plant will not be a mandatory condition for hotels which have obtained completion certificate for construction before 01.04.2012.

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Rain Water Harvesting N N N N N

Waste management N N N N N

Pollution control methods N N N N N
for air, water and light
Introduction of non CFC N N N N N
equipment for refrigeration
and air conditioning and
other Eco-friendly measures
/ initiatives.
Checklist of Services and Facilities (Annexure III)

D Desirable

N Necessary

There is no relaxation in the 'Necessary' criteria of the Checklist of Services and Facilities (Annexure II), except as specified in the comments column of said checklist.
Note1.
All hotels should clearly indicate on their websites the facilities and amenities provided to guests "free of cost" like complimentary breakfast (indicating broad classification like Indian breakfast, Continental breakfast or American breakfast), iron and iron board facility, shoe cleaning facility, shoe horn and slippers, other "free" facilities like dental kit, shaving kit etc.

If any facility is provided only 'on request' but is included in the room rent, this should be mentioned on the hotel's website under the head 'Facilities and Amenities Provided on complimentary basis' and also be mentioned to the guest when the hotel staff introduce the room to him / her on arrival. In case the 'complimentary breakfast' is not a buffet, the guest must be shown a list stating in English the name of all complimentary items.

(All hotels shall submit a compliance of Note 1 in the form of a screen shot of their website showing the "Facilities & Amentias provided on complimentary basis")
Note 2.
It will be mandatory for all the hotels classified under all category to display their classification status prominently on their websites under a separate icon on the opening page, which on the click will display the order of classification issued by the Ministry of Tourism, Government of India, and at the reception.
Note 3.
All the hotels shall be required to submit an affidavit with respect to clearances along with their applications for approval of Hotel at the Project Stage and for Classification / Re-classification of Operational Hotels, as given in Annexure V and VI respectively.
Note 4:
a. If any hotel is found to obtain classification on a false pretext or on the basis of misrepresentation of facts, or is found to display wrong classification status, or found to promote / market the hotel on the basis of wrongful claims pertaining to hotel classification, then the unit / hotel will stand declassified with immediate effect and it shall be debarred from applying for classification under any category for a minimum period of two years from the date of debarment by the competent authority i.e. the Chairman, HRACC.
b. If a hotel which has applied for classification under any category to the Ministry of Tourism is found to display false classification status, or found promote / market the hotel on the basis of wrongful claims pertaining to hotel classification, then the application for classification of the unit / hotel will stand summarily rejected and it shall be debarred from applying for classification under any category for a minimum period of two years from the date of debarment by the competent authority i.e. the Chairman, HRACC.
c. In case of debarment, a hotel, which is found to otherwise fulfil to the satisfaction of the inspection committee, all criteria pertaining to the classification parameters of the star / heritage category under which it was found to wrongfully promote itself, will have the one-time opportunity for revocation of the debarment by paying a penalty prescribed below. Such observation of the committee, if any, will

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have to be recorded in the inspection marks sheet by the committee. However, if a hotel is found to evoke the grounds for debarment mentioned hereinabove, at any point of time subsequent to the one-time revocation, it shall be declassified (if classified earlier) and debarred from applying for classification under any category for a minimum period of two years from the date of debarment by the competent authority i.e. the Chairman, HRACC.

Amount of Penalty to be paid for one time revocation of debarment:

- 1 Star – Rs. 25,000.00
- 2 Star – Rs. 50,000.00
- 3 Star – Rs. 1.00 lakh
- 4 Star – Rs. 2.00 lakh
- 5 Star & 5 Star Deluxe – 3.00 lakh

Hotels that have been debarred from applying for classification prior to these guidelines coming into force, will also be extended a one-time opportunity for revocation of the debarment by paying a penalty as prescribed above. However, the conditions specified under this Note shall be applicable to such hotels.

d. However, this Note shall not be applicable to hotels that have successfully applied online for “RE-CLASSIFICATION”, for the interim period between the date of expiry of the period of the previous classification and date of final decision on their application for re-classification.

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ANNEXU RE-IV

FORMAT FOR UNDERTAKING
(To be on official company
letterhead)

To,
The Secretary (Tourism)
Ministry of Tourism
Govt. of India
New Delhi
UNDERTAKING

I have read and understood all the terms and conditions mentioned in the Guidelines for Approval of Hotel Project under the Star category and hereby agree to abide by them. The information and documents provided are correct and authentic to the best of my knowledge.

I understand that the approval of the Ministry of Tourism is no substitute for any statutory approval, and the approval given is liable to be withdrawn in case of any violation or misrepresentation of facts or non-compliance of directions that may be issued by the Ministry of Tourism, Government of India, without notice

It is also to certify that in the event the hotel avails of subsidy / tax benefits I other benefits from the Government, the hotel will (would) not seek upgradation to a higher category for a period of eight (8) years.

In case of any dispute/ legal measure, the same may be eligible in the jurisdiction falling under the NCT of Delhi.

Signature
Name in block letters
Seal of the applicant
Place: ----------

Date: ----------

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ANNEXURE-V
(For Approval of Hotel at Project Stage)
On Stamp Paper of Rs. 100.00

I.....son / daughter of Shri..... a resident of..... and Director / Partner / Owner / Chairman / Managing Director / CEO / Authorised representative of the Hotel Project..... On.....day of..... month..... year.....do hereby affirm and declare as follows:

That the Hotel Project..... under proposed.....Star category located at (town/city)..... (State).....has obtained all necessary approvals / Permissions / clearances/ No objection certificates from the concerned authorities for construction of the Hotel Project from the Coastal Regulation Zone (CRZ), Environment & Forests, State Pollution Control Board (Consent to Establish), Police, Fire, Municipal/ Local Authority (s), Airports Authority of India etc. and that the Hotel Project..... will be constructed / is being constructed as per the Acts, Rules, Regulations and guidelines prescribed by the Local Authorities (Panchayat or Municipal) and / or State Government / Union Territory Administration and / or Government of India.

If at any stage, it is found that the Hotel Project has not obtained any clearance/permission/Noc from the local Authorities (Panchayat or Municipal) and /or State Government I Union Territory Administration and / or Government of India or any other relevant authority, or if it is found that such clearance (s) has / have been obtained on the basis of misrepresentation of fact (s), or if it is found that any fact mentioned in the application seeking the Hotel Project Approval is incorrect, then the Hotel Project Approval granted by the Ministry of Tourism, Government of India, shall stand withdrawn with immediate effect and I..... Director/Owner/Partner/Chairman/ Managing Director/ CEO I Authorised representative of the Hotel Project .....shall be liable for facing criminal proceedings for misrepresentation of facts to the Ministry of Tourism, Government of India.

(Deponent)

I, the undersigned, Notary Public, do hereby affirm that Shri/Smt ..... personally appeared before me on the..... day of..... and signed the above Affidavit.

Signature and stamp of the Notary Public

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ANNEXURE VI

(For Classification/Re-classification of Operational Hotels
On Stamp Paper of Rs. 100.00

I, ..., son/daughter of Shri ....., a resident of ....., and Director / Partner / Owner / Chairman / Managing Director / CEO and Authorised representative of the Hotel ....., on ..... day of . . . . (month), ... (year), do hereby affirm and declare as follows:

That the Hotel..... has obtained all necessary approvals from the concerned authorities for construction and running of the hotel ..... like clearances / no objection certificates from the Coastal Regulation zone (CRZ), Environment & Forests, Pollution Control, Police, Fire and Municipal / Local Authorities and that the hotel ..... has been constructed and is being run as per the Acts, Rules, Regulations and guidelines prescribed by the local Authorities (Panchayat or Municipal) and / or State Government / Union Territory Administration and / or Government of India.

If at any stage it is found that the hotel has not obtained any clearance from the local Authorities (Panchayat or Municipal) and / or State Government / Union Territory Administration and / or Government of India or it is found that such clearance (s) has / have been obtained on the basis of misrepresentation of fact (s) or if it is found that any fact mentioned in the application seeking the classification / re-classification status / approval is incorrect, then the classification / re-classification status / approval granted by the Ministry of Tourism, Government of India shall stand withdrawn with immediate effect and I, ..., Director / Owner/ Partner / Chairman / Managing Director / CEO and Authorized representative of the Hotel ..... shall be liable for facing criminal proceedings for misrepresentation of facts to the Ministry of Tourism, Government of India.

(Deponent)

I, undersigned, Notary Public, do hereby affirm that Shri / Smt..... Personally appeared before me on the ..... day of ....., and signed the above Affidavit.

(Notary Public)

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SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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ANNEXURE - VII

PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM AND SUSTAINABLE TOURISM (For internal circulation and use of hotel)

I / we solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization and the tolerant and accommodating nature of our multicultural society and protect all individuals, especially women and children from all derogatory acts which are contrary to the spirit of our country. We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.

Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage protection standards, such that my / our present tourism resource requirements optimize both local community benefit and further sustainable uses.

Signature

Name

On behalf of

In the presence of

34 | P a g e

SOURCE TEXT EXTRACT: Hotel Project Approval and Star Classification Guidelines

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ANNEXURE-VIII

Format of 'Undertaking' in respect of the "Pledge for Commitment towards Safe & Honourable Tourism"
(To be on official company letterhead)

To
The Secretary,
Ministry of Tourism,
Govt. of India,
New Delhi.

UNDERTAKING

It is to hereby confirm that I / we have read and understood the "Code of Conduct for Safe and Honourable Tourism" adopted on 1st October 2010 as per copy attached with application with respect to Project Approval / Classification / Re-classification of hotels under the Star / Heritage categories and hereby agree to abide by them.

That I/ We solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization, and the tolerant and accommodating nature of our multicultural society and protect all individuals, especially women and children from all derogatory acts which are contrary to the spirit of our country. I / We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.

Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage protection standards, such that my / our present tourism resource requirements optimize both local community benefit and further sustainable uses.

Signature
Name in 'BLOCK LETTERS'

Seal

Place.....
Date.....

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SOURCE TEXT EXTRACT: Legacy Vintage Hotel Classification Guidelines

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Es
Government of India
Ministry of Tourism
(H&R Division)
C-1 Hutments
Dara Shukoh Road
New Delhi~ 110011
Tel: 011-23012810
No. 8-TH-I (1)/2017-H&R 7 Dated: 19.04.2018
To,
i Secretary (Tourism), All State Governments/UT Administrations
24 Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAI)
& President, Hotel Association of India (HAI)
4. President, Indian Heritage Hotels Association (IHHA)
BS President, Travel Agents Association of India (TAAI)
6. President, Indian Association of Tour Operators (IATO)
i Principal, IHMs
8. All Indiatourism Offices in India
Subject: Guidelines for Classification / Re- Classification of Legacy Vintage Hotels.
Madam / Sir,

1. Enclosed please find enclosed a copy ofthe Guidelines for Classification / Re- Classification of Hotels.

2. These. guidelines are required to be adhered to by all the hotels seeking Classification/Re-classification under the Legacy Vintage Category by the Ministry of Tourism and will come into force with immediate effect.

3. You are requested to kindly circulate these revised guidelines to all concerned.

4. These guidelines are also available on the official websitg of the Ministry of Tourism

Yours faithfully,

" :

(Saghik Chowfhyry)

Assistant DirectorGeneral

& Member Secretary (HRACC)

her’ SAGNIK CHOWDHURY)

5 iPr / Ass. Director General
cet area / sy of Tourism
- ‘sre Sere / Government of India

1g eal /New Deli

SOURCE TEXT EXTRACT: Legacy Vintage Hotel Classification Guidelines

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GUIDELINES FOR CLASSIFICTION / RECLASSIFICATION
OF LEGACY VINTAGE HOTELS

Definition:

The definition of Legacy Vintage Hotel covers a hotel constructed / built with materials from heritage properties / buildings (i.e. properties or buildings which were built/ constructed / erected prior to the year 1950), provided that at least 50% of the material used to construct / build the hotel is sourced from heritage properties or buildings.

The certifying authority for the extent of usage and age of materials used for construction would be the appropriate Central / State / Local Government Authority.

Further, a hotel would be covered under the definition of Legacy Vintage Hotel only if the facade, architectural features and general construction have the distinctive qualities and ambience in keeping with the traditional way of life and heritage of the area and any extension, improvement, renovation, change in the structures should be in keeping with the traditional architectural styles and constructional techniques.

Legacy Vintage Hotels will be sub-classified in the following categories:

Legacy Vintage Basic:

This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1950. The hotel should have a minimum of 5 rooms (10 beds).

SPECIAL FEATURES:

General features and ambience should conform to the overall concept of heritage and architectural distinctiveness. At least 50% of the rooms should be air-conditioned (except in hill stations where there should be heating arrangements).

CUISINE:

The hotel should offer traditional cuisine of the area.

Legacy Vintage Classic:

This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1935. The hotel should have a minimum of 15 room (30 beds).

SPECIAL FEATURES:

General features and ambience should conform to the overall concept of heritage and architectural distinctiveness. 100% of the rooms should be air-conditioned (except in hill

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stations where there should be heating arrangements). The hotel should provide at least one of the under mentioned sporting facilities.

CUISINE:

The hotel should offer traditional cuisine but should have 4 to 5 items which have close approximation to continental cuisine.

Legacy Vintage Grand:

This category will cover hotels built with materials sourced from heritage properties/ Buildings / Structures built prior to 1935. The hotel should have a minimum of 15 room (30 beds).

SPECIAL FEATURES:

General features and ambience should conform to the overall concept of heritage and architectural distinctiveness. However, all public and private areas including rooms should have superior appearance and decor. 100% of the rooms should be air-conditioned (except in hill stations where there should be heating arrangements). The hotel should also provide at least two of the under mentioned sporting facilities.

CUSINE:

The hotel should offer traditional and continental cuisine.

SPORTING FACILITIES:

Swimming Pool, Health Club, Lawn Tennis, squash, Riding, Golf Course, provided the ownership vests with the concerned hotel. Apart from these facilities, credit would also be given for supplementary sporting facilities such as Golf, Boating, Sailing, Fishing or other adventure sports such as Ballooning, Parasailing, Wind-surfing, Safari excursions, Trekking etc. and indoor games.

Room & Bath Size:

The Minimum Bedroom and Bathroom sizes for the respective sub-categories should be as follows:

S.No. Name of Sub-Category Room Size (sq.ft.) Bathroom Size (sq.ft.)
1. Legacy Vintage Basic 130 36
2. Legacy Vintage Classic 140 36
3. Legacy Vintage Grand 200 45

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MANAGEMENT:

The Hotel may be managed and run by the owning family and/or professionals.

Note: Classification in any of the above categories will be given keeping in view the overall standard of the property. The hotel would be judged by the quality of service and the years of experience that the owner/staff have had in the business.

GENERAL FEATURES:

 There should be adequate parking space for cars.
 All public rooms and areas and the guest rooms should be well maintained and well equipped with quality carpets/area rugs/good quality durries, furniture, fittings etc. in good taste and in keeping with the traditional lifestyle.
 If carpeting is not provided, the quality of flooring should be very good (This is not to suggest that old and original flooring whether in stone or any other material cannot be used).
 The guest rooms should be clean, airy, pest free without dampness and musty odour, and of reasonably large size with attached bathrooms with modern facilities (e.g. flush commodes, wash basins, running hot and cold water, etc.).
 There should be a well-appointed lobby and/or lounge equipped with furniture of high standard with separate ladies and gents cloak rooms with good fittings.

FACILITIES:

 There should be a reception, cash and information counter attended by trained and experienced personnel.
 There should be money changing facilities and left luggage room.
 There should be a well-equipped, well-furnished and well maintained dining room on the premises and, wherever permissible by law, there should be an elegant, well equipped bar/permit room.
 In the case of Legacy Vintage Grand and Legacy Vintage Classic, Bar is “necessary” and “desirable” in the case of Legacy Vintage Basic.”
 The kitchen and pantry should be professionally designed to ensure efficiency of operation and should be well equipped. Crockery, cutlery, glassware should be of high standard and in sufficient quantity, keeping in view the lifestyle and commensurate with the number of guests to be served.
 Drinking water must be bacteria free; the kitchen must be clean, airy, well lighted and protected from pests. There must be a filtration/purification plant for drinking water.
 There must be three tier washing system with running hot and cold water; hygienic garbage disposal arrangements; and frost free deep freezer and refrigerator. A standby generator with capacity to electrify the entire hotel premises including the refrigeration should be present.

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SERVICES:

 The hotel should offer good quality cuisine and the food and beverage service should be of high standard.
 There should be qualified, trained, experienced, efficient and courteous staff in service and clean uniforms and the staff coming in contact with the guests should understand English.
 Housekeeping at these hotels should be of the highest possible standard and there should be a plentiful supply of linen, blankets, towels, etc. which should be of the highest possible standard.
 Each guest room should be provided with a vacuum jug/flask with bacteria free drinking water.
 Arrangements for heating/cooling must be provided for the guest rooms depending upon the season.
 Places which have telephone lines must have at least one phone in the office. All guest rooms should have intercom facility.
 Arrangements for medical assistance must be there in case of need.
 The staff/room ratio must be in keeping with the number of guest room in each property.
 These hotels must be run on a professional basis while losing none of their ambience and services.
 The hotel should be environment friendly.
 The gardens and grounds should be very well maintained.
 There should be an efficient system of disposal of garbage and treatment of wastes and effluents.
 The hotel should present authentic and specially choreographed local entertainment to the guests.
 They should also have, wherever possible, arrangements for special services such as wildlife viewing, water sports, horse/camel/elephant riding or safaris etc.

Applications for Classification / Reclassification of operational hotels under any of

the above categories should be submitted online on the portal

https://www.hotelclould.nic.in along with the fee payable by digital mode only (further

details are given at point No. 7 of Annexure - I).

1. Applications for Classification/Re-classification of Legacy Vintage – Grand, Classic

and Basic categories with the requisite fee may be made on www.hotelcloud.nic.in.

Queries in this regard may be addressed to Member Secretary (HRACC)/ Hotel and

Restaurants Division, Ministry of Tourism, Government of India, C-1 Hutments, Dara

Shukoh Road, New Delhi 110011, Tel: 011 – 23012810.

2 . T h e detailed Guidelines for the Classification/Re-classification of Legacy

Vintage Hotels are at Annexure-I.

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3. The Ministry of Tourism reserves the right to modify the Guidelines / Terms and

Conditions from time to time.

*****

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ANNEXURE I

GENERAL TERMS, CONDITIONS & APPLICATION FORMAT FOR CLASSIFICATION/RE-CLASSIFICATION OF OPERATIONAL LEGACY VINTAGE HOTELS

1. With the aim to provide contemporary standards of facilities and services, the Ministry of Tourism has introduced a voluntary scheme for Classification / Reclassification of Operational Hotels in the following categories:

i. Legacy Vintage- Basic

ii. Legacy Vintage- Classic

iii. Legacy Vintage- Grand

2. Operating hotels may opt for Classification at any stage. However, hotels seeking Re-classification should apply for the same and complete the process at least six months prior to the expiry of the current period of classification

3. If a hotel fails to apply for Re-classification and complete its documentation six months before the expiry of the classification period, the application will be treated as a fresh case of classification

4. Once a hotel applies for Classification / Re-classification, it should be ready at all times for inspection by the inspection committee of the HRACC. No request for deferment of inspection will be entertained

5. Classification will be valid for a period of 5 (Five) years from the date of approval of Chairman HRACC, or in the case of Re-classification, from the date of expiry of the last classification, provided that the application complete in all respect has been received six months prior to the expiry of the current period of classification, along with all valid documents. Incomplete applications will not be accepted.

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6. The application for Classification/Reclassification should indicate whether the hotel proposes to let out some rooms or all rooms on 'Time Share basis'. Hotels which propose to let out part of or all its rooms on Time-share basis, will not be eligible for classification under this scheme.

All applications for Classification and Re-Classification must be complete in all respects viz. application form, application fee, prescribed clearances / NOCs / certificates etc. Incomplete applications will not be accepted.

7. The application fees for Classification / Re-classification is payable only by RTGS/NEFT/Debit/Credit Cards and are as follows.

Star Category Classification/Reclassification fee (in Rs.)

Legacy Vintage- Basic 15,000

Legacy Vintage- Classic 15,000

Legacy Vintage- Grand 15,000

8. Upon receipt of application complete in all respects, the hotel will be inspected by the Hotel & Restaurant Approval and Classification Committee (HRACC). The Committee for all Legacy Vintage sub-categories will be constituted as follows:

 Chaired by Additional Director General (Tourism), Govt. of India/ Chairperson (HRACC) or a representative nominated by him/her

 Representative from FHRAI

 Representative from HAI

 Representative from IATO

 Representative from TAAI

 Representative from IHHA

 Principal Institute of Hotel Management OR his / her representative who shall be the member of teaching faculty of the Institute

 Regional Director, Indiatourism Office / local Indiatourism office

 Member Secretary HRACC

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(The HRACC representatives / nominees of FHRAI, HAI, IATO and TAAI should have requisite expertise and experience of the hospitality and tourism industry (hands on experience)

The Chairperson and any 3 members will constitute a quorum

The recommendations duly signed by the inspection Committee will be uploaded on the hotelcloud portal along with all necessary licences/NoCs/permissions etc. and the recommendation of the inspection committee will be approved by the Chairperson (HRACC)/Joint Secretary(Tourism) /Addl. Director General (Tourism) expeditiously provided all the necessary documentation are complete in all respect.

A. Appellate Authority: In case of any dissatisfaction with the decision of the HRACC, the hotel may appeal to Secretary (Tourism), Government of India for review and reconsideration within 30 days of receiving the communication regarding Classification/Re-classification. No request will be entertained beyond this period.

9. Hotels will be classified following a two stage procedure:

a) The presence of facilities and services will be evaluated.

b) The quality of facilities and services will be evaluated by the HRACC inspection committee as per the prescribed checklist (Annexure VI)

10. The hotel is expected to maintain required standards at all times. The Classification Committee may inspect a hotel at any time without previous notice. The Committee may request that its members be accommodated overnight to inspect the level of services.

17. Any deficiencies / rectifications pointed out by the HRACC must be complied with within the stipulated time, which has been allotted in consultation with the hotel representatives during inspection. The maximum time that may be given by the committee for rectification of deficiencies shall not exceed 3 months. In the event, the deficiencies are not complied within the said time frame, the application of the hotel will be rejected and the hotel may apply afresh under an appropriate category. Failure to comply within the stipulated will result in rejection of the application.

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11. The Committee may assign a Legacy Vintage sub-category lower but not higher than that applied for.

12. The hotel must be able to convince the committee that they are taking sufficient steps to conserve energy and harvest water, garbage segregation, and disposal/ recycling as per Pollution Control Board (PCB) norms and following other Eco-friendly measures.

13. For any change in the category/ sub-category, the promoter must apply afresh along with requisite fee.

14. Any changes in the Building Plans or Management of the hotel should be informed to the HRACC, Ministry of Tourism, Govt. of India within 30 days, otherwise the classification will stand withdrawn / terminated.

In case of change of company name / hotel name, a copy of the fresh ‘Certificate of Incorporation’ or a copy of the ‘Resolution of the Board of Directors’ regarding the name change along with any other relevant documents should be submitted.

15. The Hotel should adhere to the tenets of the Code of Conduct for Safe & Honourable Tourism for which the following action would have to be taken:

i. A signed copy of the commitment towards “Safe & Honourable Tourism” should be attached with the application. The format of the Undertaking - Code of Conduct for Safe & Honorable Tourism’ is attached at Annexure II.

ii. On t h e day a new staff member joins t h e Hotel, h e / she would b e required to take / sign the pledge. The pledge would be incorporated in the appointment letter / joining report of the staff.

iii. Two focal points/Nodal Officers would be nominated (i.e., from HR, security side etc.) at the time of applying for approval by the Hotel in the case of hotels which have m o r e than 25 personnel. In the case of Hotels with less than 25 personnel, one focal point would have to be nominated.

iv. The training would be provided to the staff of the classified/approved hotels by Ministry of Tourism under its Capacity Building of Service Providers (CBSP)

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scheme in connection with “Safe & Honourable Tourism”. The focal points of the hotel would be trained first within first six months of MOT approval. Subsequently, the trained focal points in turn would impart further in-house training to the staff which would be arranged within next six months.

v. The Pledge of Commitment towards “Safe & Honourable Tourism” would have to be displayed prominently in the staff areas / back areas of the Hotels / Restaurants etc. and in the office premises of all the Head of the Departments (HODs).

vi. The signatories of the Code of Conduct would be required to maintain a record of action taken by them in compliance of the provisions of this para, which shall be kept in their office & shown to the Committee(s) at the time of Classification/Re- classification.

16. It is mandatory for hotels / property applying for fresh Classification or Reclassification under the Legacy Vintage category to have facility/ infrastructure for accepting /making payments by digital transactions.

As per Government of India's initiative for Promotion of Digital Transaction, it is mandatory for all Hotels classified/re-classified by the Ministry of Tourism, to submit data pertaining to Occupancy Reports and Digital Transaction as per prescribed template available online at https://www.hotelcloud.nic.in positively by 20th of every month for the previous month.

17. Incomplete applications for Classification / Reclassification will not be entertained. Efforts w i l l b e m a d e t o e n s u r e that all cases of classification are given final decision within three months from the date of receipt of the application, subject to all essential documents being found to be current, valid and satisfactory and uploaded timely by the inspected hotel.

******

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ANNEXURE – II

PLEDGE FOR COMMITMENT TOWARDS SAFE & HONOURABLE TOURISM
AND SUSTAINABLE TOURISM

(For internal circulation and use of the hotel)

I / we solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization and the tolerant and accommodating nature of our multicultural society and protects all individuals, especially women and children from all derogatory acts which are contrary to the spirit of our country. We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.

Recognizing that every earth resource is finite and fragile, I / we further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage protection standards, such that my/our present tourism resource requirements optimize both local community benefit and further sustainable uses.

Signature:

Name:

On behalf of

In the presence of

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ANNEXURE-III
Format of 'Undertaking' in respect of the "Pledge for Commitment towards Safe & Honourable Tourism"

(To be on official company letterhead)

To

The Secretary (Tourism)
Ministry of Tourism
Govt. of India
New Delhi

UNDERTAKING

It is to hereby confirm that I / we have read and understood the "Code of Conduct for Safe and Honourable Tourism" adopted on 1st October 2010 as per copy attached with application with respect to Project Approval / Classification / Re-classification of hotels under the Star / Heritage categories and hereby agree to abide by them.

That I / We have read solemnly pledge and reiterate our commitment to conduct our business in a manner that befits the culture and ethos of our rich and ancient civilization, and the tolerant and accommodating nature of our multicultural society and protects all individuals, especially women and children from all derogatory acts which are contrary to the spirit of our country. I / We hereby commit to abide by the Code of Conduct for Safe and Honourable Tourism.

Recognizing that every earth resource is finite and fragile, I / We further pledge to fully implement sustainable tourism practices, consistent with the best environment and heritage project standards, such that my / our present tourism resource requirements optimize both local community benefits and future sustainable uses.

Signature:.....

Name in 'Block letters'

Seal

Place_____

Date_____

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ANNEXURE IV
On Stamp Paper of Rs. 100.00

I ..... son/daughter of Shri..... a resident of.....

and Director / Partner / Owner / Chairman / Managing Director / CEO/ Authorised

representative of the Hotel.....on.....day of ..... month .....

year.....do hereby affirm and declare as follow:

That the Hotel..... has obtained all necessary approvals from the concerned

authorities for construction and running the hotel.....like clearances/no

objection certificates from the Coastal Regulation Zone (CRZ), Environment & Forests,

Pollution Control, Police, Fire and Municipal/ Local Authorities and that the

hotel.....has been constructed and is being run as per the Acts, Rules,

Regulations and guidelines prescribed by the local Authorities (Panchayat or

Municipal) and / or State Government / Union Territory Administration and / or

Government of India.

If at any stage it is found that the hotel has not obtained any clearance from the local

Authorities (Panchayat or Municipal) and /or State Government / Union Territory

Administration and / or Government of India or it is found that such clearance (s) has /

have been obtained on the basis of misrepresentation of fact (s) or if it is found that any

fact mentioned in the application seeking the classification/re-classification

status/approval is incorrect then the classification/re-classification status/approval

granted by the Ministry of Tourism, Government of India shall stand withdrawn with

immediate effect and I..... Director / Owner / Partner/ Chairman/

Managing Director/ CEO / Authorised representative of the Hotel..... shall

be liable for facing criminal proceedings for misrepresentation of facts to the Ministry

of Tourism, Government of India.

(Deponent)

I, undersigned, Notary Public, do hereby affirm that Shri/Smt.....personally

appeared before me on the ----------day of ----------, and signed the above Affidavit.

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Annexure V

LIST OF THE MANDATORY DOCUMENTS REQUIRED AT THE TIME OF APPLICATION SUCH AS CERTIFICATION OF EXTENT OF USAGE AND AGE OF MATERIALS USED FOR CONSTRUCTION ETC. (CHECKLIST)

Sl. No.	Licenses / NOCs	Validity Status at the time of inspection Yes / No Current validity	Remarks / period of
1	Trade license to operate as hotel		
2	Certificate of extent of usage and age of materials used for construction from appropriate central / state/ local government authority.		
3	NOC from Fire Department		
4	Clearance certificate from Municipal Health Officer / Sanitary Inspector (Health NOC)		
5	NOC from Police Department		
6	Consent to operate from the State Pollution Control Board		
7	Bar license wherever applicable		
8	NOC from Ministry of Environment & Forests (wherever applicable)		
9	NOC from Airport Authority of Indian for hotels located near the Airport		
10	CRZ clearance if applicable		
11	Land Use Permission		
12	Building plans duly sanctioned / approved by the competent		

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authority

13 Documents indicating nature of business (Certificate of Registration/ Partnership Deed/ Memorandum of Articles of Association etc.)

14. Ownership deed/ Lease Deed

15. Affidavit as per format prescribed at Annexure - IV

16. Occupancy Certificate

17 Sewage Treatment Plant (whether found operational)

*****

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ANNEXURE VI

CHECKLIST OF FACILITIES FOR CLASSIFICATION/RE-CLASSIFICATION OF OPERATIONAL LEGACY VINTAGE HOTELS

FACILITIES & SERVICES	Legacy Vintage No (Basic)	Legacy Vintage (Classic)	Legacy Vintage (Grand)	Yes/ No	COMMENTS
Full time operation 7 days a week in season	N	N	N		
Establishment to have all necessary trading licenses/ Permissions/ NOC’s	N	N	N		
Establishment to have public liability insurance	D	D	D		
24 hr. lifts for buildings higher than ground plus two floors	N	N	N		Mandatory for all hotels. Local laws may require a relaxation of this condition.
Easy access for the differently abled guests	N	N	N		
Bedrooms, Bathroom, Public areas and kitchen fully serviced daily	N	N	N		
All floor surfaces clean and in good shape	N	N	N		Floor may be of any type
Minimum no. of lettable rooms, all rooms with outside windows / Ventilation.	10	15	15		
Minimum size of bedroom excluding the bathroom in sq. ft	130	140	200		Rooms should not be less than specified size. The area may include the vestibule and other covered areas within the room but exclude outdoor verandah.

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Air-conditioning - 50% 100% 100% Air-conditioning/ heating depends on climatic conditions % of Rooms & architecture. Room temp. should b e between 20c % to 28c.

A clean change of bed and N N N Definitely required between bath linen daily and each check-in. On alternate between check-in days for 1 & 2 Star category hotels.

Guest linen N N N Good quality linen to be provided.

Minimum bed width for N N N single 90 cm and double 180 cm

Mattress thickness N N N Coir, foam or spring foam minimum 10 cm

Minimum bedding 2 sheets, N N N Blankets available in air pillow and case, blanket, conditioned rooms as per mattress protector/bed cover seasonal requirement in non A/C rooms. Mattress protector is ‘desirable’ in 1 Star and 2 Star category hotels and ‘necessary’ for the other categories.

Suite D N N Minimum 2 suites. A suite must be sold as one room. (Room with larger area than an average room having a bedroom and separate sitting area which may include a sofa cum bed).

Hairdryers N N N Where not provided in bathroom, must be available on request.

This facility will be made available on complimentary basis.

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Safe keeping/ in room safe D N N Legacy Vintage (Basic) hotels to have facilities for safe keeping in the reception. All Legacy Vintage (Classic) & Legacy Vintage (Grand) hotels shall provide a safe in the room.

Mini bar/Fridge N N N Contents must conform to local laws.

Drinking water with minimum one glass per guest N N N All Legacy Vintage hotels to provide 2 sealed bottles of branded bottled water of minimum 500 ml per person per day on complimentary basis. There should also be a vacuum jug/ flask with bacteria-free drinking water.

Shelves /drawer space N N N Necessary for all Legacy Vintage t o have a wardrobe.

Wardrobe with minimum 4 clothes hangers per bedding N N N

Sufficient lighting (1 lamp per bed) N N N

A 5 a m p earthed power socket N N N

A bedside table and drawer N N N 1 per two twin bed and two for a double bed.

Cable TV if available D D D TV, if present, must have a remote.

It is mandatory to provide a television with cable in the lobby or other common area.

A writing surface with sufficient lighting N N N

Chairs N N N Preferably one per bed

Waste paper basket N N N

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Opaque curtains or screening at all windows N N N

A mirror at least half length (3”) N N N

A stationary folder containing stationary N N N

A ‘do not disturb’ notice N N N

Night spread/bedcover N N N

Energy saving lighting N N N

Linen Room D D D Should be well ventilated

Number of rooms with attached bathrooms All All All All bathrooms to have a sanitary bin with lid.

Minimum size of bathroom in square feet 36 36 45 Bathrooms to have western style WC.
There is no ceiling / cap on the maximum floor area of bathroom.
Bathroom in suite 36 36 45 Bathrooms to have western style WC.

1 bath towel and 1 hand towel to be provided per guest N N N

Bath mat N N N

Guest toiletries to be provided. Minimum 1 new soap per guest N N N

Bottled toiletry products to be provided D N N

Clothes - hooks i n each bath / shower room N N N All Star category hotels shall provide two (2) clothes hooks in the bath/shower room

Sanitary bin N N N These must be covered.

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Each western WC toilet to have a seat with lid and toilet paper	N N N	
All Star hotels shall provide water sprays or bidets or washlets or other modern water based post-toilet- paper hygiene facilities.	N N N	For the hotels which came into operation before 31.03.2016, these facilities will be mandatory from 01.04.2022.
Floors and walls to have non - porous surfaces	N N N	
Hot and cold running water available 24 hours	N N N	Necessary for all categories.
Shower cabin	N N N	A s h o w e r w i t h shower curtain will suffice where shower cabin is not available.
Bath tubs	D D	
Water saving taps and showers	N N N	
Energy saving lighting	N N N	
Lounge or seating area in the lobby a n d fixtures which shall include chairs /arm chairs, sofa, tables and fresh floral display.	N N N	Lobby shall h a v e furniture
Door man on duty for Legacy Vintage Classic and Grand categories. However, for all categories, the presence of staff on duty shall be obligatory around the clock 24x7.		
Reception facility	N N N	Manned minimum 16 hours. Call service 24 hours. Local directions to hotel including city street maps to be available. Money-changing facility is mandatory.
Valet (parking) services to be available	D N N	
Availability of Room, F&B and other tariff	N N N	

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Heating and cooling -- N N Temperatures to be between 20 to be provided in public areas degrees Celsius to 28 degrees Celsius.		
Air-conditioning in common areas like lobby, restaurants, verandahs, bar where they are open to nature on one or more sides, shall not be mandatory for beach, lake, backwater, river, hill, mountain, forest or nature Legacy Vintage Hotels.		
Public rest rooms for ladies and gents, a wash basin with running hot and cold water, a mirror, a sanitary bin with lid in unisex & ladies' toilet.	N	N N N
At least one room for the differently abled guest	N	N N The room shall have low height furniture, low peep hole, cupboard with low clothe hangers, audible and visible (blinking light) alarm system and doorbell.
The almirah/cupboard doors in the differently abled room should be sliding to enable opening the same by the differently abled person.		
Blinking light in the room and bathroom should also be connected with the doorbell for the hearing impaired.		
Cordless telephone in the room. Direct calling facility to the front desk or operator.		

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Bathroom for room of the differently abled persons and bathroom of such rooms should allow easy accessibility of wheel chair (made available by the hotel).	N	N	N
For hotels that have come up after 01.04.2017, the minimum door width of such rooms and their bathroom shall be minimum 90 cm.			
The door width of the room and bath room for differently abled persons in existing hotels shall be 90 cm. with effect from 01.04.2023.			
Bathroom for the differently abled guest shall have suitable fixtures like low wash basin with wheel chair accessibility, low vanity counter, low seating on the WC, Wall mounted seat in shower area, hand shower, Grab bars next to the WC and shower area.			
Ramps with anti-slip floors at the entrance. Minimum door width should be one meter to allow wheel chair access	N	N	N
Fixed and anti-slip ramp to be provided in a l l public areas.	l	l	
Free accessibility in all public areas, and to at least one restaurant.			

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Public Restrooms N N N All Legacy Vintage hotels should have a public rest room for differently abled guests (unisex) with minimum door width which allows easy accessibility of wheel chair (made available by the hotel). Low height urinal with grab bars.

For hotels that have come up after 01.04.2017, the minimum door width of such public rest room (unisex) shall be minimum 90 cm.

For existing hotels, the minimum door width of public rest room (unisex) shall be mandatory after 01.04.2023.

Food and Beverage Outlets N N N At least one Multi-cuisine Restaurant cum Coffee Shop offering, among others, traditional local cuisine, open from 07:00 a.m. to 11:00 p.m. and 24 hr. Room Service

Crockery and glassware N N N Plastic ware acceptable in pool area

Cutlery to be at least N N N All category hotels should use stainless steel good quality metal cutlery. Aluminium cutlery is prohibited.

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D N N Bar will not be mandatory wherever bar licence is prohibited as per local law.

Wherever bar is allowed as per local law, the hotel will have to first obtain bar licence before applying to the Ministry of Tourism for Classification of the hotel.

Liquor shops will not be considered while granting classification.

Refrigerator with deep N N N Capacity based on size of F&B
freezer service.

Segregated storage of meat, N N N Meat, fish and vegetables to be
fish and vegetables kept in separate freezers.

Tiled walls, non-slip floors N N N

Colour coded synthetic N N N Wooden chopping boards
chopping boards

Head covering for N N N
production staff

Daily germicidal cleaning of N N N
floors

Good quality cooking N N N Use of aluminium vessels is
vessels/utensils prohibited except for bakery.

All food grade equipment N N N
containers

Drinking water N N N Water treated with UV +
filtration

Ventilation system N N N

Garbage to be segregated - N N N To encourage recycling
wet and dry

Wet garbage area to N N N

be air- conditioned

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Receiving areas and N N N Should have sink with table surface, weighing machine
Stores distinct from garbage area quality control and pre wash area.

Six monthly medical check- up for production staff N N N Records to be submitted along with pathological records to HRACC during inspection of the hotel.

First aid training for all kitchen staff N N N

Pest control N N N Record to be shown to the HRACC during inspection of the hotel.

Staff uniforms for front of the house N N N Uniforms to be clean and in good condition.

English speaking front office staff N N N This may be relaxed outside the metros/sub-metros for Legacy Vintage (Basic) hotels.

Percentage of skilled staff 30% 30% 60% The supervisory or the skilled staff may have training or skill certification as follows:

Degree/Diploma from Central or State IHMs/FCIs or from NCHMCT affiliated IHMs or from other reputed Hospitality Schools.

Skill training certificate issued under the guidelines and scheme of the Ministry of Tourism.

Staff Rest Rooms N N N Separate for male a n d female employees, with bunk beds. Rooms should be well lighted and ventilated

Staff Locker Room N N N

Toilet facilities N N N Full length mirror, hand dryer with liquid soap dispenser

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Separate Dining area & Facility	N	N	N	
Display of Pledge	N	N	N	Pledge to be displayed prominently in the staff/back areas/office premises of all the Heads of Departments (HODs)
Training for ‘Code of Conduct for Safe & Honourable Tourism’	N	N	N	At time of joining (orientation programme and subsequent in-house training)
Maintenance of Action Taken Report with regards to Conduct’	N	N	N	Signatories of the ‘Code of compliance of the provisions of the Code
Focal points/Nodal Officers	N	N	N	Two nodal officers to be nominated (from HRD and Security side etc.) for hotel with more than 25 personnel and one focal point for Hotel with less than 25 personnel.
Provision for wheelchair for the differently abled guest	N	N	N	Wheel chair to be made available on complimentary basis in hotels of all categories.
Valet (parking) services to be available	N	N	N	
Dry cleaning / laundry	D	N	N	
Tea/coffee making facility in the room	N	N	N	To be provided on complimentary basis.

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Iron and Iron Board facility D N N Iron and iron board (properly secured) to be made available on request in Legacy Vintage (Basic) hotels on complimentary basis.

For Legacy Vintage Classic and Grand categories- to be available in the room on complimentary basis.

Paid transportation on call N N N Guest should be able to travel from hotel.

Shoe cleaning, shoe horn & slippers D N N Free facility to be provided for in house guests.

Ice (from drinking water) on demand N N N Complimentary on request

Acceptance of common credit cards and facility / infrastructure for accepting/ making payments by digital transactions N N N

Assistance with luggage on request N N N

A public telephone on premises. Unit charges made known from floor level N N N There should be at least one in 5 and 5 Star Deluxe (to also cater to differently abled guests)

Wake - up call service on request N N N

Messages for guests to be recorded and delivered N N N A prominently displayed message board will suffice for 1 & 2 Star categories.

Name Address and telephone numbers of doctors with front desk N N N Doctor on call in 3, 4, 5 & 5 Star Deluxe

Stamps and mailing facilities D D D

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Newspapers available	N	N	N To be provided in all occupied guestrooms.
Access to travel desk facilities	N	N	N
Left luggage facilities	D	D	N This must be in a well secured room / 24-hour manned area.
Provision for emergency supplies/ toiletries /first aid kit	N	N	N
Health - Fitness facilities	D	D	N Indian system of treatments should preferably be offered
Beauty Salon and Barber’s Shop	D	D	D
Florist	D	D	D
Utility shop / kiosk	D	D	D
Metal detectors (door frame or hand held)	N	N	N
CCTV at strategic locations	N	N	N
X-Ray Machine	D	D	N For Legacy Vintage (Grand) category, it would be ‘Necessary’ to have an X-Ray Machine at the guest entrance for screening of baggage. Manual checks may be conducted for staff and suppliers at designated entry points.
Under belly scanners to screen vehicles.	D	N	N
Verification	N	N	N All hotels should conduct a antecedent verification of their staff and suppliers by the Police/ private security agencies.

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Staff trained in fire fighting N N N All hotels to conduct periodic fire drills and maintain Drill. ‘Manuals’ for Disaster Management, First Aid and Fire Safety.

Quarterly drills as per Law.

Security arrangements for all hotel entrances N N N

Each bedroom door to be fitted with lock and key, latch is acceptable in place of viewport/ peephole & viewport/ peephole. internal securing device. N N N A safety c h a i n / wishbone

Smoke Detectors. N N` N These may be battery operated.

Fire and emergency alarms should have visual & audible signals. N N N

First aid kit with over the counter medicines at the front desk N N N

Fire Exit signs on guest floors with emergency/ backup power. N N N

Telephone facility within arm’s reach of the toilet seat N N N

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Provide at least two multi-purpose sockets.	N	N	N	All Legacy Vintage hotels shall provide at least two multi-purpose sockets capable of handling US, European Community and Japanese plugs at or just above the table level. It should be possible for guests to charge a laptop and cell phone simultaneously. For hotels which have come into operation prior to 31.03.2016, this guideline will be applicable from 1.4.2022.
A telephone for incoming & outgoing calls in the room.	N	N	N	The calls may go through a telephone exchange for Legacy Vintage (LV) Basic and Classic categories. Direct dialling facility is mandatory for LV (Grand) category.
PC available for guest use with internet access subject to local access being available	N	N	N	May be a paid service. Internet
Fax, photocopy and printing Services.	N	N	N	
In room Internet /Wi-Fi connection being available.	D	N	N	Subject to local internet access Wi- Fi wherever possible.

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Swimming Pool/ Health D N N At least one of the sporting Club/ Lawn Tennis/ Squash/ facilities is mandatory for LV Horse-riding/ Golf Course Classic hotels and at least two of the sporting facilities are mandatory for LV Grand hotels. Mandatory to have trained Life Guard/ Swimming pool attendant (for pools upto depth of 4 feet). Board containing Do’s and Don’ts, No Diving sign, pool depth etc. should be displayed at a strategic location in the pool area.

All hotels shall provide a luminous LED wall clock with numerals of three inches or more on display near their swimming pools.

It will be desirable for LV (Grand) hotels to have heated swimming pool.

Parking facilities N N N Should be adequate in relation t o t h e number o f rooms & banquet / convention hall ca p a c i t i e s . E xclusively earmarked accessible parking nearest to the entrance for differently abled guests.

Conference Facilities D D D

Sewage Treatment Plant N N N A Sewage Treatment Plant will not be a mandatory condition for hotels which have obtained completion certificate for construction before 1.4.2012.

Rain water harvesting N N N

Waste management N N N

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Pollution control methods for air, water and light	N	N	N
Non CFC equipment for refrigeration and air conditioning and other Eco-friendly measures/initiatives	N	N	N
Standby Generator	N	N	N	Generator should have the capacity to electrify the entire hotel premises including refrigeration.

*****

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Government of India
Ministry of Tourism
(H&R Division)

GUIDELINES FOR APPROVAL OF GUEST HOUSES
(Revised – December 2009)

In order to meet the rising demand of hotel accommodation for budget tourists both domestic and foreign, Ministry of Tourism has decided to standardize and ensure good, clean, hygienic, fair and upgraded facilities and practices in the large number of Guest Houses and unregulated accommodation units that spring up in cities and towns. These measures may not only augment hotel accommodation in budget category but also generate employment and revenue for the States. With this aim in view, Govt. of India, Ministry of Tourism has a voluntary Scheme for approval of Guest Houses in the country.

Guest Houses seeking approval should have the following features:-

I. Necessary Requirement

(i) Minimum 6 (six) lettable rooms with proper ventilation and 6 meters approach road for Taxi / Ambulance (the road width of minimum 6 metres would not be mandatory in those cities, where Guest Houses on road width of less than 6 metres are permitted as per bye-laws/ local rules)
(ii) Minimum size of the room should be 120 sq. ft. for double bed (or more). For single bed room, the minimum size of the room should be 80 sq.ft.
(iii) Minimum size of the bathroom should be 30 sq. ft. for double room. For single bed room, the minimum bathroom size should be 20 sq.ft.
(iv) 25% of the rooms should have air–conditioning / heating facilities
(v) Sufficient lighting, wardrobe, shelves, opaque curtains or screening on all windows
(vi) Western W.C. toilet
(vii) Reception facility with telephone
(viii) Dining room serving breakfast and dinner with proper cutlery and glassware (dining room would not be mandatory in cases where the local bye-laws of the concerned State / local body do not permit dining room in Guest houses. (Similarly, bar would not be mandatory in cases where the local bye-laws of the concerned State / local body do not permit dining room in Guest Houses)
(ix) Segregated wet and dry garbage disposal system should be available
(x) Cleanliness & Hygiene: Front areas/ public areas, rooms, kitchen, store, pantry, refrigerator, dining area/ bar (where applicable as per bye-laws), garbage area, staff facilities and back areas including maintenance areas
(Note: Minimum 60% marks are required under criteria No. 6 of the Mark Sheet regarding Cleanliness/ Hygiene)
(xi) Tie-up with nearby Hospital or Doctor-on-Call facility
(xii) Safe- keeping facilities at the reception
(xiii) Fire and emergency measures
(xiv) RO treated/UV treated water / Branded bottled water to be made available for guests. Availability of 24 hours water. RO treated/UV treated water to be used for cooking
(xv) Facility for adequate parking space
(xvi) Pest control of all front of the house, guest rooms, kitchen (where permitted), staff facilities and back areas to be done regularly

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(xvii) Registration with local authorities like Police, Municipality, Electricity, Water, Fire, State Tourism Department or Corporation
(xviii) CCTV in public areas with data backup is mandatory

II. DESIRABLE SERVICES

(i) Staff quality with 10% of the staff experienced or one year certificate course from the Catering / Hotel Management Institute
(ii) Recycling of waste water
(iii) Dishwasher
(iv) Coffee, tea dispenser
(v) Credit Card facilities
(vi) Tie-up with travel agents / nearby Hospital or Doctor-on-Call facility
(vii) Room, ramp and dedicated public restroom for the physically challenged persons

The Hotel & Restaurant Approval & Classification Committee (HRACC) inspects and assesses the Guest Houses based on facilities and services offered. For approval of Guest Houses, application along with the requisite fees may be sent to the Regional Director, Indiatourism Office in whose region the Guest House is located:

1. Regional Director 2. Regional Director
Indiatourism Indiatourism
West & Central Region Northern Region
23, M. Karve Road 88, Janpath
Mumbai-400020 New Delhi-110001
Tel: 022-22033144/5 Tel: 011-23320342
E-mail: indiatourism@mtnl.net.in Email:goitodelhi@tourism.nic.in

2. Regional Director 4.Regional Director
Indiatourism Indiatourism
Southern Region Eastern Region
154 Anna Salai, Embassy, 4
Chennai- 600 002 Shakespeare Sarani
Tel: 044-8461459 Kolkata -700 071
E –mail: indtour@dataone.in Tel: 033-22821402
Email: indtour@cal2.vsnl.net.in
5. Regional Director,
Indiatourism
North Eastern Region
Amarawati Path
Christian Basti
G. S. Road, Guwahati - 781 005
Tel: 0361- 2341603
E-mail indtour@asm.nic.in

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Government of India
Ministry of Tourism
(H&R Division)

GUIDELINES FOR APPROVAL OF GUEST HOUSES
(Revised – December 2009)

General Terms and Conditions- Application Format For Approval of Guest Houses

Guest Houses applying for approval must provide the following documentation:-

1. Name of the Guest House

2. Name and address of the promoters/ owners with a note on their business antecedents

3. Complete postal address of the Guest House with Telephone No. / Fax / E-mail

4. Status of the owners/ promoters
(i) If public /private limited company with copy of Memorandum and Articles of Association
(ii) If partnership, a copy of Partnership Deed and Certificate of Registration
(iii) If proprietor concern, name and address of proprietor/ certificate of registration

5. Date on which the Guest House became operational

6. Distance of Guest House (in kms.) from:
a. Airport
b. Railway Station
c. City centre
d. Downtown shopping area

7. Details of the Guest House:
(i) Area (in sq. meters) with title- owned/ leased with copies of sale/ lease deed
(ii) Copy of Land Use Permit / Licence to run Guest House from appropriate authority / Registration from local authorities
(iii) Number of rooms
(iv) Public restroom facilities for ladies and gents
(v) Details of public areas, lobby, bar (where applicable), parking facilities (the area for each facility should be indicated in sq. ft.)
(vi) Facilities for the physically challenged persons (dedicated room with bathroom, ramps and access to public areas)
(vii) Eco-friendly practices and any other additional facilities (water harvesting, solar heating)
(viii) Details of Fire Fighting Measures/ Hydrants, etc.
(viii) Details of measures for energy saving / water conservation and other initiatives.
(ix) Details of air-conditioning.
(ix) Facilities for power back–up (generators etc.)

3

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(x) Details of CCTV with data backup (mandatory for all public areas)

8. Certificates / No Objection Certificates (attested copies).

(i) Certificate / licence from Municipality/ Corporation to show that the establishment is registered as a Guest House including Clearance by competent authority to the establishment on sanitary / hygienic point of view.
(ii) Certificate/ licence from concerned police department authorizing the running of a Guest House.
(iii) No Objection Certificate with respect to fire fighting arrangements from the Fire Service Department (Local Fire Brigade Authorities).
(iv) Public liability insurance (Desirable)
(v) Bar Licence (required where permissible as per local laws and regulations)
(vi) Money Changers Licence (if any).
(vii) Sanctioned building plans/ occupancy certificate.
(viii) If approved earlier, a copy of the earlier Certificate of Approval issued by Ministry of Tourism.
(ix) Segregation of areas for smoking, non- smoking under the rules.
(x) Any other Clearance / Licence required from local authority.

Note: The above mentioned approvals/ No Objection Certificates are the responsibility of the owners/ promoters/ concerned Company as the case may be. The Ministry’s approval is no substitute for any statutory approval and the approval given is liable to be withdrawn without notice in case of any violations or misrepresentation of facts.

9. All applications for approval of Guest Houses must be complete in all respects- application form, application fee, prescribed clearances, NOCs, Certificates etc. Incomplete application is liable to be rejected.

10. The application fee payable for approval and renewal of a Guest House is Rs. 5000/-. The demand draft maybe made payable to "Pay & Accounts Officer, Ministry of Tourism, New Delhi".

11. The Committee for approval of Guest Houses will consist of the following:-

(i) The Committee will be chaired by the Regional Director, Indiatourism Office of the concerned region; Director, State Tourism Department or his nominee; IATO; TAAI; IHM. In addition, a nominee of the Guest House Federation will be a member. The recommendations will be sent to HRACC Division, Ministry of Tourism, Govt. of India within 3 weeks.
(ii) The Chairman and any 3 members will constitute a quorum.
(iii) The minutes will be approved by the Chairman (HRACC).
(iv) The quality of facilities and services will be evaluated against the mark sheet.

12. The Guest House is expected to maintain required standards at all times. The Approval Committee may inspect a Guest House at any time without previous notice.

4

SOURCE TEXT EXTRACT: Guest House Approval Guidelines

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13. Any deficiencies/ rectification pointed out by the HRACC during inspection, must be complied within the stipulated time. Failure to do so will result in rejection of the application.

14. The Guest House must be able to convince the committee that they are taking sufficient steps to conserve energy and water, garbage segregation and disposal/ recycling as per Pollution Control Board (PCB) norms and other Eco-friendly measures.

15. Any changes in the plans for management of the Guest Houses should be informed to the HRACC, Govt. of India, Ministry of Tourism within 30 days otherwise the approval will stand withdrawn/ terminated.

16. Applicants are requested to go through the check list of facilities and services contained in this document before applying.

17. Incomplete applications will not be considered. As far as possible, cases of approval would be finalized within 3 months of the application being made.

18. Guest Houses seeking approval should apply 3 months prior to the expiry of the current period of approval.

19. Approval will be valid for five (5) years from the date of issue of orders or in case of re-approval from the date of expiry of the last approval provided that the application has been received within the stipulated time mentioned above, along with all valid documents. Incomplete applications will not be accepted.

20. In case of any dissatisfaction with the decision of HRACC, the Guest House may appeal to Secretary (T), Government of India for review and reconsideration within 30 days of receiving the communication regarding approval/ renewal. No requests will be entertained beyond this period.

21. The Govt. of India, Ministry of Tourism reserves the right to modify the ‘Guidelines/ Terms and Conditions’ from time to time.

*****

5

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FORMAT FOR UNDERTAKING
(To be furnished on official Letter Head)

To
The Regional Director
Indiatourism
New Delhi/ Mumbai/ Kolkata/ Chennai/ Guwahati

Undertaking

I have read and understood all the terms and conditions mentioned above with respect to approval of Guest House and hereby agree to abide by them. The information and documents provided by me are correct and authentic to the best of my knowledge.

Signature
Name in block letters
Seal

Place:
Date:

6

SOURCE TEXT EXTRACT: Guest House Approval Guidelines

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Government of India
Ministry of Tourism
(H&R Division)

GUIDELINES FOR APPROVAL OF GUEST HOUSES
(Revised – December 2009)

Mark Sheet for Assessment by HRACC

Inspection Date: _____

Name of the Guest House: _____

Address: _____

Telephone no. & Fax No. _____

E-mail: _____

S. No.	Criteria & Questions	Maxi mum Marks	Answers/ Details of obtained the facilities Marks offered
1.	Location & décor (Please give brief description, environment, etc.)	10	10
2.	Dining facilities Breakfast/lunch / dinner room service/ self service	10	
3.	Crockery/ Glassware/ tableware/ linen	10	
4.	Maintenance of kitchen/ utensils (3 Tier-Washing system should be applied)	10	
5.	Cold storage facilities	5	
6.	* Cleanliness/Hygiene Front areas/ public areas, rooms, kitchen, store, pantry, refrigerator, dining area/bar (where applicable as per by-laws), garbage area, staff facilities and back areas including maintenance areas (*Note: Minimum 9 marks (60%) in this criteria are required to qualify for approval)	15	
7.	Pest Control front of the house, guest rooms, kitchen and F&B areas, back areas, stores (where permitted), staff facilities and back areas	10	
8.	Staff (Please give list of staff with percentage of trained/ experienced employees)	10	
9.	Uniform and staff facilities (smart & clean uniforms, staff lockers etc.)	5	

7

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10. RO treated/UV treated water / Branded bottled water to be made available for guests. Availability of 24 Hour water . RO treated/UV treated water to be used for cooking 5

11. Parking facilities (There should be adequate space for parking) 5

12. Safety and Security CCTV in public areas with data backup 5

13. Other facilities/ amenities under desirable categories 5

Total Marks: 100

Note:
Minimum 9 marks (60%) is required under criteria No. 6 – Cleanliness/ Hygiene- to qualify for approval.

Overall minimum qualifying marks required for approval 60

Comments:_____
_____
_____
_____
_____

S. No. Members Name & Designation Signature

1. Chairman

2. Director State Tourism Dept./ nominee

3. IATO

4. TAAI

5. IHM

6. Nominee of Guest House Federation

8

SOURCE TEXT EXTRACT: Guest House Approval Guidelines

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9

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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i i
Government of India
Ministry of Tourism
(H&R Division)
C-1 Hutments
Dara Shukoh Road
New Delhi - 110011
Tel: 011-23012810
No. 4-TH-II(21)/2016-Pt-II-H&R Dated: 10.12.2018
To,
erie Secretary (Tourism), All State Governments/UT Administrations
2 Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAT)
3 President, Hotel Association of India (HAT)
4. President, Indian Association of Tour Operators (IATO)
5. President, Travel Agents: Association of India (TAAT)
6. Principal, All State and Central IHMs
z All Indiatourism Offices in India
Subject: Common National Standards and Guidelines for Classification of Incredible India Bed & Breakfast Estabtishments and Incredible India Homestay Establishments.
Madam / Sir,

1. Enclosed please find a copy of the Guidelines for Classification of Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments.

2. These guidelines are required to be adhered to by all the Bed & Breakfast Establishments and Homestay Establishments seeking Classification / Re-classification under the Incredible India Bed & Breakfast Establishments and Incredible India Homestay Establishments Category by the Ministry of Tourism and will come into force with

. immediate effect.

3. These guidelines will also act as the Common National Standards for Classification of Bed & Breakfast Establishments and Homestay Establishments by all State Governments and Union Territory Administrations.

4, You are requested to kindly circulate these revised guidelines to all concerned.
5. These guidelines are also available on the official website of the Ministry of Tourism wiw.tourism. gov.in
Yopys faithfully,
wee

(Sa@nlk Chowdhprry)

Assistant Djrector Geyeral
& Member Secretary (HRACC)

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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Government of India
Ministry of Tourism
(Hotels & Restaurants Division)
4-TH-11(21)/2016-PL-H&R Dated 31.12.2018
OFFICE MEMORANDUM.
Reference is invited to the Common national standards and guidelines for classification of Incredible India Bed & Breakfast Establishments and Incredible India homestay establishments dated 10.12.2018
Queries in this regard may be addressed to the concerned Regional Director, India Tourism Office. The office addresses of the Regional Directors are as under:
_ |.No.___| Establishment is located.
[1 [Haryana SSS _| Regional Director, Indiatourism (Northern Regional Office), 88 Janpath, New Delhi - 110 001
3. Ghat h
EE To rs
:
6 __| Himachal Pradesh
7__| Uttar Pradesh
‘8 | Delhi =
[9 Gujarat Regional Director, Indiatourism (Western & Central
[10 | Daman& Diu ~—_| Regional Office), 123 Maharshi Karve Road, Mumbai - 400 020
[12 [Chhattisgarh
SC eS
[16 [Telangana SS~™~CSCSCSSCCS Regional Director, Indiatourism (Southern Regional Office), 154 Anna Salai, Chennai-600002
[18 [TamilNadu
[19 [Kamataka
[21 [Puducherry
[23] Andaman & Nicobar Regional Director, Indiatourism (Eastem Regional
[24 [tharkhand Office), Embassy’, 4 Shakespeare Sarani, Kolkata - 25 | Odisha 700.071
[26] Bihar
West Bengal
Regional Director, Indiatourism (North Eastern’
29 ‘Assam. Regional Office), AsSam Paryatan Bhawan, 3rd Floor,
50. Neve Nepal ani Ken Row, Plan Bua,
31 [Meghalaya | Guwahati - 781 008
[32 [Mizoram
as
(Saggik Chowdltury)
Assistant Director General (H&R) & Member Secrptary (HRACC)
To,
1 Secretary (Tourism), All State Governments/UT Administrations
2 ae General, Federation of Hotel & Restaurant Associations of India (FHRAI)
a: President, Hotel Association of India (HAI)
4 President, Indian Association of Tour Operators (ATO)
5 President, Travel Agents Association of India (TAAL)
6 Principal, All State and Central IHMs
7. All Indiatourism Offices in India

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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Government of India
Ministry of Tourism
(Hotels & Restaurants Division)
4-TH-11(21)/2016-PLI-H&R Date: 03.01.2019
CORRIGENDUM
Reference is invited to the Common national standards and guidelines for classification of Incredible India Bed & Breakfast Establishments and Incredible India homestay establishments dated 10.12.2018.
Queries in this regard may be addressed to the concerned Regional Director, India Tourism Office, The office address of the Regional Directors are indicated as under:
- Concerned Regional Director, Ministry of Tourism.
No. _| is located.
(1. [Haryana Regional Director, “Indiatourism (Northern Region), 88
Janpath, New Delhi - 110 001
[6 | Himachal Pradesh
CSS Oe
. sy i a ae
. [10 | Gujarat" Regional Director, Indiatourism (Western & Central Region),
[11 | Daman & Diu | 123 Maharshi Karve Road, Mumbai - 400 020
[12 | Dadar and Nagar Haveli
[15 [Maharashtra
a ae
Regional Director, Indiatourism (Southern Region), 154, Anna
[18 | Andhra Pradesh | Salat, Chennai-600002
Ce
[20 | Kamataka
SS 0
Regional Director, Indiatourism (Eastern Region), ‘Embassy’,
4 Shakespeare Sarani, Kolkata - 700 071
EE a
:
[28 | West Bengal
[29 [Arunachal Pradesh S| Regional Director, Indiatourism (North Eastern Region),
Assam Paryatan Bhawan, 3rd Floor, Near Nepali Mandir, A.K.
[31| Manipar | Azad Road, Paltan Baar. Guwahati - 781 008
[32 | Meghalaya
SS a
[35 [Sikkim
VY]
f
(Sqgnik Choyidhury)
Assistant Director General (H&R) & Member Sderetary (HRACC)
pir:
To
1. Secretary (Tourism), All State Governments/UT Administrations
2. Secretary General, Federation of Hotel & Restaurant Associations of India (FHRAD)
3. President, Hotel Association of India (HAI)
4, President, Indian Association of Tour Operators (IATO)
5. President, Travel Agents Association of India (TAAI)
6. Principal, All State & Central [HMs
7. All Indiatourism Offices in India

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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Government of India
Ministry of Tourism
(H&R Division)

Common National Standards and Guidelines for Classification of
Incredible India Bed & Breakfast Establishments
and Incredible India Homestay Establishments

1. Hotels and other supplementary accommodation are an integral part of a tourist's visit to a place and the services offered by them can make his/her visit memorable. With the aim of providing comfortable Bed & Breakfast / Home Stay Facilities of Standardized World Class Services to the tourists, and to supplement the availability of accommodation across destinations, Ministry of Tourism will classify fully operational rooms of Home Stay Facilities in States & Union Territories of India where the respective State Government / UT Administration does not have its own scheme for approval / classification/ accreditation of Bed & Breakfast/ Homestay Establishments, as “Incredible India Bed & Breakfast Establishments” and “Incredible India Homestay Establishments". The basic idea is to provide a clean and affordable place for foreigners and domestic tourists alike including an opportunity for foreign tourists to stay with an Indian family to experience Indian customs and traditions and relish authentic Indian customs.

2. The Incredible India Bed & Breakfast/Homestay facilities will be categorized as follows: -

a) Silver
b) Gold

3. The Regional Classification Committee, as specified in the guidelines, will inspect and assess the Bed & Breakfast / Homestay Establishments, based on facilities and services offered. The details of the standards, facilities, services and the documents required for approval of such establishments will be as per these guidelines. These guidelines will supersede the earlier guidelines for approval and registration of “Incredible India Bed & Breakfast / Homestay Establishments”

4. The Incredible India Bed & Breakfast / Homestay Establishments, once approved by Ministry of Tourism, will be duly publicized. A directory of all such approved establishments will also be prepared, so as to enable domestic as well as foreign tourists to live in a homely environment and to take advantage of the scheme. In addition, efforts will be made to organize short term training in hospitality trade to those who would opt for such training.

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Detailed Guidelines

1. The classification for Incredible India Homestay Establishment will be given only in those cases where the owner /promoter of the establishment along with his / her family is physically residing in the same establishment and letting out minimum one room and maximum six rooms (12 beds).

The classification for Incredible India Bed & Breakfast Establishment will be given only in those cases where the owner / promoter of the establishment does not reside at the establishment himself/ herself, but an agent or operator, so designated by him/ her resides in the establishment premises for providing the necessary services to the visitors / guests. The establishment would have a minimum of 1 lettable room and a maximum of 6 lettable rooms (12 beds).

2. The scheme will be on bed and breakfast basis and charges will have to be levied accordingly. The type of breakfast to be offered will have to be specified, the charges will have to be displayed and the visitors will have to be informed in advance so as to avoid unnecessary dispute.

3. Once an establishment applies for- classification/ re-classification, it will have to be ready at all times for inspection by the Regional Classification Committee. No requests for deferment of inspection will be entertained.

4. Classification will be valid for two years from the date of issue of orders or in case of reclassification from the date of expiry of the last classification provided that the application has been received within the stipulated time i.e. 3 months before the expiry of the previous classification.

5. Establishments desirous of classification as Incredible India Bed & Breakfast Establishments and Homestay Establishments and applying for classification will have to provide all the information supported by required documents as per the following formats:

a) Application format as at Annexure —I.
b) Checklist of facilities as at Annexure -II.
c) Undertaking as at Annexure —III.

6. The application fees payable for classification/reclassification of Incredible India Bed & Breakfast Establishments and Homestay Establishments will be as follows:

Star Category For Classification/Re-classification
Silver Rs. 3,000
Gold Rs. 5,000

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7. An Incredible India Bed & Breakfast Establishments and Homestay Establishment will be classified following two stage procedure.

a) The presence of facilities and services will be evaluated against the enclosed Checklist. (Checklist will have to be duly filled in online and submitted along with the online application).

b) The quality of facilities and Services will be evaluated by the Regional Classification Committee. Due preference will be accorded to the homes, which are able to provide Indian experience by way of Indian decor, authentic and exotic Indian cuisine etc.

8. The Regional Classification Committee will consist of the following:

1. Regional Director, Indiatourism / Director, Indiatourism/ Asst. Director, Indiatourism – Chairman (in case of Director / Asst. Director, Indiatourism, nomination should be made by the concerned Regional Director)

2. Representative from IATO.

3. Representative from TAAI.

4. Representative from local Central / State IHM (member of teaching faculty to be nominated by Principal)

5. Representative from State Tourism Department.

9. The Chairman and any 2 members will constitute a quorum. The recommendation of the Committee will be approved by the Regional Director, Ministry of Tourism under whose jurisdiction the concerned State / UT falls.

10. Any deficiencies/rectifications pointed out by the Regional Classification Committee will have to be complied within the stipulated time which will be allotted in consultation with the representative /representatives of the establishment during inspection. However, such stipulated time will not exceed 3 months in any case. Failure to comply within stipulated time will result in rejection of the application.

11. The Committee may recommend to the concerned Regional Director, Ministry of Tourism, a category lower, but not higher than the one applied for. In case of the category recommended being lower than the one applied for, then there will be no refund / adjustment of classification fee paid.

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12. The Incredible India Homestay Establishment will be expected to maintain required standards at all times. The Chairman, HRACC or the concerned Regional Director, Ministry of Tourism could authorize a surprise inspection of the establishment at any time without previous notice.

13. Any changes in the facilities of the Incredible India Bed & Breakfast Establishment and Homestay Establishment will have to be informed to the Regional Director, Indiatourism Office, within 30 days of such change. If any violation of this comes to the notice of the Approving Authority, then the classification will stand withdrawn/terminated.

14. All cases of classification would be finalised within 30 days of the application, complete in all respects and free from all deficiencies, being made online, and online confirmation of receipt of application fee by Pay and Accounts Office, Ministry of Tourism.

15. In case of any dissatisfaction with the decision of Regional HRACC, the establishment may appeal to Chairman, HRACC, Ministry of Tourism, Government of India for review and reconsideration within 30 days of receiving the communication regarding classification/ reclassification. No requests will be entertained beyond this period.

16. Ministry of Tourism, Government of India reserves the right to modify the guidelines/terms and conditions from time to time.

17. The rate of taxes for property, electricity and water to be paid for classified Incredible India Bed & Breakfast Establishments and Homestay Establishments will be those prescribed by the appropriate authorities.

18. Applications for Approval of Incredible India Bed & Breakfast Establishments and Homestay Establishments under any of the categories mentioned in para 2 above, should be submitted online on the portal https://wvvw.hotelclould.nic.in along with the fee payable by digital mode only in respect of application for the approval and subsequent extension if any.

Queries in this regard may be addressed to the concerned Regional Director, India Tourism Office. The office addresses of the Regional Directors are as under:

Sl. No.	State / UT in which the Homestay Establishment is located.	Concerned Regional Director, Ministry of Tourism.
1.	Haryana	Regional Director, Indiatourism (Northern
2	Jammu & Kashmir	Region), 88 Janpath, New Delhi - 110 001
3	Chandigarh	
4	Daman & Diu	Regional Director, Indiatourism (Western &
5	Dadar and Nagar Haveli	Central Region), 123 Maharshi Karve Road,
6	Chhattisgarh	Mumbai - 400 020

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7 Tamil Nadu Regional Director, Indiatourism (Southern
8 Puducherry Region), 154 Anna Salai, Chennai-600002
9 Lakshawdeep
10 Jharkhand Regional Director, Indiatourism (Eastern
11 Odisha Region), 'Embassy', 4 Shakespeare Sarani,
12 Bihar Kolkata - 700 071
13 West Bengal
14 Arunachal Pradesh Regional Director, Indiatourism (North Eastern
15 Assam Region), Assam Paryatan Bhawan, 3rd Floor,
16 Manipur Near Nepali Mandir, A.K. Azad Road, Paltan
17 Meghalaya Bazar, Guwahati - 781 008
18 Mizoram
19 Nagaland
20 Sikkim
21 Tripura

Note: Items No. 5 (c), 6, 8 and 15 may be suitably amended by the State Govt./ UT Administration.

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Annexure-I

Application format for Classification as Incredible India Homestay Establishment

1) Name of the Bed & Breakfast Establishment/ Homestay Establishment

2) Category applied for

3) Name and address of the promoter(s)/owner(s) with a note on their background

4) Complete postal address of the IIB&B/Homestay Establishment

a) Tel. no

b) Fax

c) E-mail:

d) Mobile No. of the promoter:

5) Distance of the Bed & Breakfast Establishment/ Homestay Establishment in kms. From:

a) Airport:

b) Railway Station:

c) City Centre:

d) Nearest main shopping centre:

e) Nearest bus stand /scheduled city bus stop:

6) Details of the Homestay Establishment

(a) Area (in sq. metres) with title - owned/ leased (copies of sale/ lease deed to be enclosed):

(b) Revenue papers regarding ownership. Affidavit in case of co-sharer of house/land.:

(c) Whether clearance obtained from the Police Authorities regarding the antecedents of the owner /owners and the proposed activity (copy to be enclosed):

(d) Number of rooms and area for each type of room in sq.ft. (single/double/suites):

(e) Number of attached baths:

(f) Details of public areas for the following facilities in sq. ft.:

(i) Lobby/lounge:

(ii) Dining space:

(iii) Par-king facilities:

g) Additional facilities ‘available if any (not mandatory):

(i) Eco -friendly facilities:

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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(ii) Facilities for differently abled persons:

(h) Details of Fire Fighting equipment/ hydrants etc. if any:

7. Photographs of the building including interiors showing types of facilities available, bathroom, living room, bedroom, parking etc.:

8. Check list details as per Annexure II:

9. Consent of acceptance of the regulatory conditions (please enclose a copy of the prescribed undertaking as per Annexure III duly signed by the owner of the establishment)

*****

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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Annexure-II

Checklist for Classification of Incredible India Bed & Breakfast/ Homestay Establishment

S. No.	General facilities	Silver	Gold	Certification by the Committee Yes/No	Observations of the Establishment regarding the Classification
1	Well maintained and well equipped house and guest rooms with quality carpets / area rugs/ tiles or marble flooring, furniture, fittings etc. in keeping with the traditional lifestyle.	M	M		
2	Sufficient parking with adequate road width.	D	M		
3	Guest rooms: Minimum one lettable room and maximum rooms (12 beds). All rooms should be clean, airy, pest free, without dampness and with outside window / ventilation.	M	M		
4	Minimum floor area in sq. ft. for each room.				
	Plains	120	200		
	Hills	100	120		
5	Comfortable bed with good quality linen & bedding preferably of Indian design;	M	M		
6	Attached private bathroom? with every room alongwith toiletries.	M	M		
7	Minimum size of each bathroom in sq.ft.	30	40		
8	WC toilet to have a seat and lid, toilet paper	M	M		
9	24 hours running hot & cold water with proper	M	M		

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sewerage connection
10 Water saving taps D M
/shower
11 Well maintained smoke M M
free, clean, hygienic,
odour free, pest free
kitchen.
12 Dining area serving M M
fresh Continental and /
or traditional Indian
breakfast.
13 Good quality cutlery M M
and crockery.
14 Air-conditioning & M M
heating depending on
climatic conditions with
room temp. between 20
to 25 degrees
Centigrade in the
offered room.
15 Iron with iron board on M M
request.
16 Internet Connection. D M
17 15 amp earthed power M M
socket in the guest
room.
18 Telephone with D M
extension facility in the
room.
19 Wardrobe with at least 4 M M
clothes hangers in the
guest room.
20 Shelves or drawer space M M
in the guest rooms.
21 Complimentary aqua M M
guard / RO / mineral
water.
22 Good quality chairs, M M
working table and other
necessary furniture.
23 Washing machines / D M
dryers in the house with
arrangements for
laundry / dry cleaning
services.
24 Refrigerator in the D M
room.
25 A lounge or seating D M
arrangement in the
lobby area.

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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26	Heating and cooling to be provided in enclosed public rooms.	D
27	Garbage disposal facilities as per Municipal laws.	M
28	Energy Saving Lighting (CFL/ LED) in guest rooms and public areas.	M
29	Acceptance of cash /cheque / D.D.	M
30	Message facilities for guests.	M
31	Name, address and telephone number of doctors.	M
32	Left luggage facilities	D
33	Assistance with luggage, on request.	M
34	Safekeeping facilities in the room.	D
35	Smoke /heat detectors in the house.	D
36	Security guard facilities	D
37	Fire extinguisher / Firefighting system	M
38	Maintenance of register (physical or electronic format) for guest check-in and check-out records including passport details in case of foreign tourists.	M

* 'M' stands for mandatory

** 'D' stands for- desirable.

Note: - The grading in the various categories will depend on the quality of accommodation, facilities and services provided.

SOURCE TEXT EXTRACT: B&B and Homestay Classification Guidelines

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ANNEXURE III

Format for Undertaking

To

The Chairman, HRACC

Government of India

Ministry of Tourism

New Delhi.

UNDERTAKING

I have read and understood all the terms and conditions mentioned in the guidelines with respect to the approval and registration of the Incredible India Bed & Breakfast/ Homestay Establishment and hereby agree to abide by them. The information and documents provided are correct and authentic to the best of my knowledge.

Signature and name of the owner in block letters

Place:

Date:

*****

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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Operational Recommendations for Hotels

Ministry of Tourism
Government of India

Hotel & Restaurant Division

June 2020

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

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Ministry of Tourism, Government of India

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

1. Introduction

Given the current COVID-19 outbreak, it is important that all hotels, restaurants and other hospitality units take suitable measures to restrict any further transmission of the virus while providing accommodation and other tourist services post lockdown. The guidelines aim to minimize all possible physical contacts between Staff and Guest and maintain social distancing and other preventive and safety measures against COVID-19. It also endeavors to make the traceability of the guests easier, in case a situation in future warrants so.

These guidelines are applicable to the Hotels and aTre subject to provisions of any law, rules or any other directions issued by the competent regulatory authorities of the respective State or Central Government from time to time, which will override these guidelines.

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Ministry of Tourism, Government of India

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

2. Hotels

2.1 For Hotel Premises

(i) Hotels in containment zones shall remain closed. Only those outside containment zones will be allowed to open.

(ii) Ensure availability of hygiene and sanitation equipment at pro-active replenishment
 Thermal Gun thermometer for temperature checking of staff and guests.
 Hand Sanitizers, Hand Gloves and Masks to be available in the Reception Area.
 Garbage Bags (separate bio-hazard bags for used masks and other PPEs as per CPCB’s guidelines).
 Sufficient disinfectants like sodium hypochlorite (1%).

(iii) It is recommended to have Gowns/ Aprons & Personal Protective Gears available 24/7.

(iv) All touch points in public areas like door handles, elevator buttons, counter tops, tabletops, railings, etc. are cleaned continuously using a sanitizer/disinfectant. It is advised to use Sodium Hypochlorite 1% solution having at least 70% alcohol to clean these frequently touched points.

(v) Posters/standees should be displayed at various location for information and awareness:
 Emergency helpline numbers - at the reception.
 Social distancing (6 feet) - Reception & other strategic places.
 General Information – Reception.
 Hand Washing - Reception & Inside the room.
 Respiratory hygiene - Reception & Inside the room.
 Dos & Don’ts – At all appropriate places.

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(vi) Adequate isolation facilities should be kept ready and made available in case of any requirement for the suspected COVID guest or staff.

(vii) For air-conditioning/ventilation, the guidelines of CPWD shall be followed which inter alia emphasizes that the temperature setting of all air conditioning devices should be in the range of 24-30 C. Relative humidity should be in the range of 40-70%.

(viii) Ensure the premises has fully functional CCTV cameras to ease tracking and tracing of infected personnel movement.

2.2 For Staff

(i) Ensure all staff wear mask & hand gloves should be changed/ disinfected after handling each customer to avoid cross contamination.

(ii) Ensure daily temperature check via thermal gun thermometer.

(iii) All employees must mandatorily download Aarogya Setu mobile application.

(iv) Ensure all staff maintain respiratory etiquettes i.e covering mouth and nose with bent elbow or tissue when coughing or sneezing. The used tissue should be disposed of immediately in a bin with a lid.

(v) Ensure social distancing is maintained among staff and guests and staff should refraining from hugging & shaking hands with guests as well as among themselves.

(vi) Ensure that all staff should wear shoes while operating at the property and shoes should not be opened while cleaning the property. It is advised to wear a disposable shoe cover while cleaning.

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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(vii) Ensure that staff follow restricted movement (only in cases of work) around rooms.

(viii) Establishing Rapid Response Team.

- A management team should be constituted, to be headed by "Rapid Response Leader", ideally an officer from the higher management or a specially appointed officer and "Rapid Response officers" from each operational department.
- The team should be responsible to prevent incidents, effectively manage cases and mitigate impact among guests, staff and other involved parties.

(ix) The rapid response team should circulate relevant communications to guests and staff and all the other stakeholders to make sure the consistency of the alignment.

(x) The rapid response team should ensure training of employees in hygiene and sanitation practices and troubleshooting risks (log of the training/ video record of session to be kept).

(xi) All employees who are at higher risk i.e. older employees, pregnant employees and employees who have underlying medical conditions, to take extra precautions. They should preferably not be exposed to any front-line work requiring direct contact with the public. Hotel management to facilitate work from home wherever feasible.

2.3 For guests
Following DO's and DON'Ts should be followed by guests:

(i) Do not step out of the room unnecessarily.

(ii) Wear a mask whenever outside the room.

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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(iii) Keep the doors closed and avoid any contact with the doorknobs.

(iv) Always keep a safe distance as per social distancing norms.

(v) Wash your hands frequently with the soaps/sanitizers provided.

(vi) Put all disposable plates /cups/ bottles after use in the garbage bag.

(vii) Guests should not visit containment zone.

2.4 Specific guidelines per area of operation

(i) Reception:
 Ensure check-in formalities are completed in contactless manner (QR code/online forms) to reduce contact and time at the front desk.

 Guests must be requested to maintain a queue with 6 feet distance between them. Standing space signs will be placed on the floor to maintain social distancing.

 All guests must mandatorily download Aarogya Setu mobile application.

 Guest details to be sent in advance for guest registration along with government approved identity card, any other information required by the hotel via Email/WhatsApp.

 Rooms should be kept ready to avoid any crowd at the reception.

 Details of the guest (Travel history, medical condition etc.) along with ID and Self declaration form must be provided by the guest at the reception (for now).

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

 Information on travel history & medical condition are recommended to be captured for all guests.

 Self-reporting forms must be filled for International guests and A&D register must be thoroughly maintained.

 Travel itinerary may be sought from the guests to ensure traceability.

 Guests should be briefed about the Do’s & Don’ts while at the hotel.

 Luggage should be disinfected before sending the luggage to room.

(ii) Check-out:

 Guests should inform at reception using intercom or personal mobile, an hour before the check-out.

 Payments should be made online or via an online platform with cashless transactions only.

(iii) Dining/Room Service

 Gloves should be worn when handling used dishes and utensils.

 Communication between guests and in-house staff should be strictly through intercom or mobile phone.

 Any items required such as water bottle/ toiletries/ medicine/ linen should be given to the guests while maintaining 6 feet distance & trays must be used to avoid hand contact.

 Physical distancing of minimum 6 feet should be maintained in dining area/ restaurants as well.

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

 It is advisable to use disposable cutlery for all purposes which must be disposed inside a garbage bag.

 In case of non-disposable cutlery, the guests should be advised to keep the used cutlery outside their room.

 The guidelines regarding operation of restaurants and food services are given separately and must be followed.

(iv) Room cleaning & Housekeeping

 In case of any repair or maintenance required, staff should get on a video call with the guest to better understand the issue or assist the guest.

 In case it is not possible to resolve via call, maintenance personnel should wear hand gloves and masks while doing the services inside the room. Guests are advised to stay outside the room.

 Cleaning of Common areas and other areas-
Disinfection of common areas like corridors, elevators, stairs etc. must be done regularly.The requirement of cleaning for various areas/ items have been provided in the following table:

Area/Item Item/ Equipment Frequency Method/procedure

General Cleaning & Disinfectant R2/ Warm water, water Twice a day & detergent Scrub floors with hot water using minimal Clean with plain water Allow to dry & MOP with disinfectant

Ministry of Tourism, Government of India

SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

Lockers, Damp Duster Daily Damp dust with regular
Tables with disinfectants
Cupboard, disinfectant
Wardrobes

Railings Detergent/ Twice a Damp dust with warm
Sanitizer-hot day water & detergent followed
water, by disinfection
Disinfectant

Mirrors & Warm water/ Daily Using warm water & a
Glass Detergent small quantity of detergent
water/ Cleaning & using a damp cloth, wipe
solution damp over the mirror, then using
cloth wiper dry cloth buff the mirror &
glass to a clean dry finish

Furniture & Disinfectant, Daily Using disinfectant damp
Fittings Duster dust furniture & fittings,
including chairs, stools,
beds, tables etc.

Light Disinfectant, Daily Light switches to be
Switches/ Duster cleaned of dust, spots&
Over bed finger marks, clean with a
lights damp cloth
 Over bed lighting to be
damp dusted, clean with
damp cloth

Toilet Pot/ R1/ Soap Whenever Inside Of toilet pot/
Commode powder, Long required commode
handle angular Scrub with the R1/ soap
brush powder & angular brush
 Clean with R1/ soap

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

powder & scrubber

Toilet Floor /Sink R1/ Soap powder, scrubbing brush Whenever Scrub with soap powder & required the scrubbing brush Wash with water

Taps & Fittings Warm water, Detergent Shower area scrubber Whenever Wipe over taps & fittings with a damp cloth & powder, Nylon detergent required Care should be taken to clean the underside of taps & fittings

 Cleaning of rooms:
 The Guest will have an option to opt out from daily cleaning.
 Linen should be changed as per the request by the guest.
 Housekeeping staff must wear masks or PPE (wherever applicable) while cleaning/ deep cleaning. Staff must sanitize their hands or wash their hands with soap before & after the cleaning process.
 During the cleaning process, guests should stay in the lobby near the room without touching anything.
 In case of room cleaning after checkout, clean linen and towels to be provided.

 Linen cleaning

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SOURCE TEXT EXTRACT: COVID-19 Hotel Operational Recommendations

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COVID-19 Safety and Hygiene Guidelines for Tourism Sector (Hotels)

 Housekeeping staff should use masks and hand gloves while handling used linen and the same should be kept in a separate place.

 Linen must be changed after every checkout and for longer stays as per the request by the guest.

 The garbage needs to be disposed as – dry, wet, glass, biodegradable.

 PPE’s like gloves, masks etc. to be segregated and disposed separately in bio-hazard bags (as per CPCB’s guidelines, available at: (https://cpcb.nic.in/uploads/Projects/Bio-Medical-Waste/BMW-GUIDELINES-COVID_1.pdf).

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Ministry of Tourism, Government of India

SOURCE TEXT EXTRACT: 2017 Service Charge Guidelines

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1
No. J- 24/9/2014-CPU(pt.)
Government of India
Ministry of Consumer Affairs, Food and Public Distribution
(Department of Consumer Affairs)
Krishi Bhavan, New Delhi
The 21st April, 2017
GUIDELINES ON FAIR TRADE PRACTICES RELATED TO CHARGING OF

SERVICE CHARGE FROM CONSUMERS BY HOTELS/RESTAURANTS

Whereas, the Department of Consumer Affairs, Government of India is mandated to ensure that consumers are protected as per the provisions of the Consumer Protection Act, 1986 (hereinafter referred as 'The Act');

Whereas, a customer visiting a hotel or restaurant for availing its hospitality, which includes buying the food & beverages and availing services connected therewith or incidental thereto for consideration, falls under the definition of consumer as per the Act;

Whereas, it has come to the notice of this Department that some hotels and restaurants are charging tips/gratuities from the customers without their express consent in the name of service charges;

Whereas, it has also come to the notice of this Department that some customers have been paying tips to waiters in addition to service charges under the mistaken impression that service charge is a part of taxes:

Whereas, it has also come to the notice of this Department that in some cases hotels/restaurants are restraining customers from entering the premises if they are not in prior agreement to pay the mandatory ——

(J

Whereas, public interest has ance due to a number of grievances reported against mandatory levy of service charges by the hotels and restaurants;

Now therefore, the Government considers it appropriate to clearly distinguish between the fair and unfair trade practices in respect of service charges, charged by the hotels/restaurants, and issues the following guidelines:

(1) A component of service is inherent in provision of food and beverages ordered by a customer. Pricing of the product therefore is expected to cover both the goods and service components. i

(2) Placing of an order by a customer amounts to his/her agreement to pay the prices displayed on the menu card along with the applicable taxes. Charging for anything other than the afore-mentioned, without express consent of the customer, would amount to unfair trade practice as defined under the Act.

Goat

SOURCE TEXT EXTRACT: 2017 Service Charge Guidelines

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2
(3) Tip or gratuity paid by a customer is towards hospitality received by him/her, beyond the basic minimum service already contracted between him/her and the hotel management. It is a separate transaction between the customer and the staff of the hotel or restaurant, which is entered into, at the customer's discretion.
(4) The point of time when a customer decides to give a tip/gratuity is not when he/she enters the hotel/restaurant and also not when he/she places his/her order®It is only after completing the meal that the customer is in a position to assess quality of service, and decide whether or not to pay a tip/gratuity and if so, how much. Therefore, if a hotel/restaurant considers that entry of a customer to a hotel/restaurant amounts to : his/her implied consent to pay a fixed amount of service charge, it is not correct. Further, any restriction of entry based on this amounts to a trade practice which imposes an : unjustified cost on the customer by way of forcing him/her to pay service charge as condition precedent to placing order of food and beverages, and as such it falls under restrictive trade practice as defined under section 2(1)(nnn) of the Act.
(5) In view of the above, the bill presented to the customer may clearly display that service charge is voluntary, and the service charge column of the bill may be left blank for the customer to fill up before making payment.
(6) A customer is entitled to exercise his/her rights as a consumer, to be heard and : redressed under provisions of the Act in case of unfair/restrictive trade practices, and can approach a Consumer Disputes Redressal Commission/Forum of appropriate jurisdiction.
(GC. ROW)
Hees Secretary to the Government of India

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The
Guidelines for Prevention of Misleading
Advertisements and Endorsements
for Misleading Advertisements, 2022

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The
Guidelines for Prevention of Misleading
Advertisements and Endorsements

for Misleading Advertisements, 2022'

In exercise of the powers conferred by Section 18 of the Consumer Protection Act, 2019 (35 of 2019), the Central Consumer Protection Authority hereby issues the following guidelines to provide for the prevention of false or misleading advertisements and making endorsements relating thereto, namely—

1. Short title and commencement.—(1) These guidelines may be called the Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022.

(2) It shall come into force on the date of its publication in the Official Gazette.

2. Definitions—(1) In these guidelines, unless the context otherwise requires,—

(a) “Act” means the Consumer Protection Act, 2019 (35 of 2019);

(b) “advertiser” means a person who designs, produces and publishes advertisements either by his own effort or by entrusting it to others in

. order to promote the sale of his goods, products or services and includes
3 a manufacturer and service provider of such goods, products or services;
(c) “advertising agency” means a person or an establishment providing
} services in designing and production of advertisements or other related services for a commission or fee;
i (d) “bait advertisement” means an advertisement in which goods, product
q or service is offered for sale at a low price to attract consumers;

(e) “child” means a child as defined in clause (12) of Section 2 of the Juvenile Justice (Care and Protection of Children) Act, 2015 (2 of 2016);

(f) “endorser” includes an individual or a group or an institution making endorsement of any goods, product or service in an advertisement whose opinion, belief, finding or experience being the message which such advertisement appears to reflect;

(g) “service provider” means a person who provides service of any description to a potential user;

(h) “surrogate advertisement” means an advertisement for goods, product or service, whose advertising is otherwise prohibited or restricted by law, by circumventing such prohibition or restriction and portraying it to be an advertisement for other goods, product or service, the advertising of which is not prohibited or restricted by law.

1. Central Consumer Protection Authority, Noti. No. F. No. J-25/4/2020- CCPA (Reg), dated June 9, 2022 and published in the Gazette of India, Extra., Part III, Section 4, dated 9th June, 2022, pp. 6-11, No. 291

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(2) The words and expressions used in these guidelines but not defined, and defined in the Act, shall have the same meaning as respectively assigned to them in the Act.

3. Application.—These guidelines shall apply to—

(a) all advertisements regardless of form, format or medium;

(b) a manufacturer, service provider or trader whose goods, product or service is the subject of an advertisement, or to an advertising agency or endorser whose service is availed for the advertisement of such goods, product or service.

4. Conditions for non-misleading and valid advertisement—(1) An advertisement shall be considered to be valid and not misleading, if—

(a) it contains truthful and honest representation;

(b) it does not mislead consumers by exaggerating the accuracy, scientific validity or practical usefulness or capability or performance or service of the goods or product;

(c) it does not present rights conferred on consumers by any law as a distinctive feature of advertiser’s offer;

(d) it does not suggest that the claims made in such advertisement are universally accepted if there is a significant division of informed or scientific opinion pertaining to such claims;

(e) it does not mislead about the nature or extent of the risk to consumers” personal security, or that of their family if they fail to purchase the advertised goods, product or service;

(f) it ensures that the claims that have not been independently substantiated but are based merely on the content of a publication do not mislead consumers;

(g) it complies with the provisions contained in any other sector specific law and the rules and regulations made thereunder.

(2) Notwithstanding anything contained in sub-paragraph (1), if any occasional and unintentional lapse in the fulfilment of an advertised promise or claim occurs while carrying out mass manufacture and distribution of goods, products and services, such unintentional lapse may not invalidate the advertisement, provided—

(a) Such promise or claim is capable of fulfilment by a typical specimen of the product advertised;

(b) the proportion of product failures is within the generally acceptable limits;

(c) the advertiser has taken prompt action to make good the deficiency to the consumer.

5. Conditions for bait advertisements.—A bait advertisement shall fulfil the following conditions, namely—

SOURCE TEXT EXTRACT: Misleading Advertisement Guidelines, 2022

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(a) such advertisement shall not seek to entice consumers to purchase goods, products or services without a reasonable prospect of selling such advertised goods, products or services at the price offered;

(b) the advertiser shall ensure that there is adequate supply of goods, products or services to meet foreseeable demand generated by such advertisement;

(c) such advertisement shall state the reasonable grounds which the advertiser has for believing that he might not be able to supply the advertised goods, products or services within a reasonable period and in reasonable quantities, and in particular, —

(i) if the estimated demand exceeds the supply, such advertisement shall make clear that the stock of the goods or services is limited;
(ii) if the purpose of the advertisement is to assess potential demand, it shall be clearly stated such advertisement; and
(iii) the advertisement shall not mislead consumers by omitting restrictions, including geographic restrictions and age-limit on the availability of the goods, products or services;

(d) such advertisement does not mislead consumers about the market conditions with respect to the goods, products or services or the lack of their availability in order to induce consumers to purchase such goods,

a products or services at conditions less favourable than normal market
ks conditions.
> 6. Prohibition of surrogate advertising —(1) No surrogate advertisement or
] indirect advertisement shall be made for goods or services whose advertising is otherwise prohibited or restricted by law, by circumventing such prohibition or
T restriction and portraying it to be an advertisement for other goods or services, the
7 advertising of which is not prohibited or restricted by law.

(2) An advertisement shall be considered to be a surrogate advertisement or indirect advertisement, if—

(a) such advertisement indicates or suggests directly or indirectly to consumers that it is an advertisement for the goods, product or service whose advertising is prohibited or restricted by law;

(b) such advertisement uses any brand name, logo, colour, layout and presentation associated with such goods, product or services whose advertisement is prohibited or restricted:

Provided that mere use of a brand name or company name which may also be applied to goods, product or service whose advertising is prohibited or restricted shall not be considered to be surrogate advertisement or indirect advertisement, if such advertisement is not otherwise objectionable as per the provisions set out in these guidelines.

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7. Free claims advertisements.—A free claims advertisement shall—

(a) not describe any goods, product or service to be ‘free’, ‘without charge” or use such other terms if the consumer has to pay anything other than the unavoidable cost of responding to such advertisement and collecting or paying for the delivery of such item;

(b) make clear the extent of commitment that a consumer shall make to take advantage of a free offer;

(c) not describe any goods, product or service to be free, if —

(i) the consumer has to pay for packing, packaging, handling or administration of such free goods, product or service;

(ii) the cost of response, including the price of goods, product or service which the consumer has to purchase to take advantage of such offer, has been increased, except where such increase results from factors unrelated to the cost of promotion; or

(iii) the quality or quantity of the goods, product or service that a consumer shall purchase to take advantage of the offer has been reduced;

(d) not describe an element of a package as free if such element is included in the package price;

(e) not use the term ‘free trial’ to describe a ‘satisfaction or your money back’ offer or an offer for which a non-refundable purchase is required.

8. Children targeted advertisements.—(1) An advertisement that addresses or targets or uses children shall not—

(a) condone, encourage, inspire or unreasonably emulate behaviour that could be dangerous for children;

(b) take advantage of children’s inexperience, credulity or sense of loyalty;

(c) exaggerate the features of goods, product or service in such manner as to lead children to have unrealistic expectations of such goods, product or service;

(d) condone or encourage practices that are detrimental to children’s physical health or mental wellbeing;

(e) imply that children are likely to be ridiculed or made to feel inferior to others or become less popular or disloyal if they do not purchase or make use of such goods, product or service;

(f) include a direct exhortation to children to purchase any goods, product or service or to persuade their parents, guardians or other persons to purchase such goods, product or service for them;

(g) use qualifiers such as ‘just’ or ‘only’ to make the price of goods, product or service seem less expensive where such advertisement includes additional cost or charge;

(h) feature children for advertisements prohibited by any law for the time being in force, including tobacco or alcohol-based products;

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(i) feature personalities from the field of sports, music or cinema for products which under any law requires a health warning for such advertisement or cannot be purchased by children;

(j) make it difficult for children to judge the size, characteristics and performance of advertised products and to distinguish between real life situations and fantasy;

(k) exaggerate what is attainable by an ordinary child using the product being marketed;

(J) exploit children’s susceptibility to charitable appeals and shall explain the extent to which their participation will help in any charity-linked promotions;

(m) resort to promotions that require a purchase to participate and include

a direct exhortation to make a purchase addressed to or targeted at children;

(n) claim that consumption of a product advertised shall have an effect on enhancing intelligence or physical ability or bring exceptional recognition without any valid substantiation or adequate scientific evidence;

(0) claim any health or nutritional claims or benefits without being adequately and scientifically substantiated by a recognized body;

4 (p) be published in any mass media, including advertisement on network & games in respect of medical services, drugs, dietary supplements, ~. medical instruments, cosmetic products, liquor or cosmetic surgery which are adverse to the physical and mental health of children.

j (2) An advertisement of any goods, product or service which addresses or T targets children shall not—
~ (a) be such as to develop negative body image in children;

(b) give any impression that such goods, product or service is better than the natural or traditional food which children may be consuming.

(3) An advertisement for junk foods, including chips, carbonated beverages and such other snacks and drinks shall not be advertised during a program meant for children or on a channel meant exclusively for children.

(4) Any advertisement which offers promotional gifts to persuade children to buy goods, product or service without necessity or promotes illogical consumerism shall be discouraged.

9. Advertisements prohibited by law.—In addition to the prohibited advertisements as set out in these guidelines, no advertisement shall be permitted which is designed, produced and published in respect of goods, products or services which are prohibited from being produced, sold or provided or which are prohibited from being advertised under any law for the time being in force or under any rules or regulations made thereunder.

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10. Guidelines not in derogation of other laws.—Where an advertisement is regulated under any other law for the time being in force, including the Press Council Act, 1978 (37 of 1978) and the Cable Television Networks (Regulation) Act, 1995 (7 of 1995) or the rules or regulations made thereunder, the provisions contained in these guidelines shall be in addition to and not in derogation of, such regulation in other laws.

11. Disclaimers in Advertisements.—(1) A Disclaimer in advertisement-

(a) may expand or clarify a claim made in such advertisement or make qualifications or resolve ambiguities therein in order to explain such claim in further detail, but such disclaimer shall not contradict the material claim made in the advertisement or contradict the main message conveyed by the advertiser or change the dictionary meaning of the words used in the claims received or perceived by a consumer;

(b) shall not attempt to hide material information with respect to any claim made in such advertisement, the omission or absence of which is likely to make the advertisement deceptive or conceal its commercial intent;

(c) shall not attempt to correct a misleading claim made in an advertisement.

(2) A Disclaimer in advertisement shall fulfil the following requirements, namely—

(a) a disclaimer shall be in the same language as the claim made in the advertisement; ;

(b) the font used in a disclaimer shall be the same as that used in the claim;

(c) the placement of the disclaimer shall be at a prominent and visible place on the packaging and ideally be on the same panel of the packaging as that of the claim;

(d) if the claim is presented as voice over, the disclaimer shall be displayed in sync with the voice over and at the same speed as that of original claim made in the advertisement;

(e) a disclaimer shall be so clear, prominent and legible as to make it clearly visible to a normally-sighted person reading the marketing communication once, from a reasonable distance and at a reasonable speed.

12. Duties of manufacturer, service provider, advertiser and advertising agency.—Every manufacturer, service provider, advertiser or advertising agency to whom these guidelines apply shall ensure that—

(a) all descriptions, claims and comparisons in an advertisement which relate to matters of objectively ascertainable facts shall be capable of substantiation and produce such substantiation if required by the Central Authority;

(b) the advertisement indicates the source and date of independent research or assessment in cases where claims in the advertisement are expressly stated to be based on or supported by such research or assessments;

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(c) advertisement shall not contain any reference to a person, firm or institution in a manner which confers an unjustified advantage on the product so advertised or tends to bring such person, firm or institution to ridicule or disrepute, unless requisite permission from such person, firm or institution has been obtained by the advertiser;

(d) advertisement shall not contain statements or visual presentations which directly, or by implication, or by omission, or by ambiguity, or by exaggeration are likely to mislead consumers about the product advertised, or the advertiser, or about any other product or advertiser;

(e) advertisement is so framed as not to abuse the trust of consumers or exploit their lack of experience or knowledge and for this purpose,—

(i) such advertisement may not make claims which use expressions such as “upto five years guarantee” or “Prices from as low as Rs. Y”, instead shall clearly indicate a fixed period of guarantee of the product or a fixed price at which the product is being offered; and in case, the product has different periods of guarantee for different parts or components, it shall clearly indicate the minimum and maximum of such periods of guarantee applicable to the relevant part or components;

(ii) if such advertisements invite the public to take part in lotteries or prize competitions permitted under any law for the time being in & force or hold out the prospect of gifts, it shall clearly set out all > pertinent material terms and conditions so as to enable consumers q to obtain a true and fair view of their prospects in such activities; Provided that such obvious untruths or exaggerations as are 3 intended to amuse or catch the eye of consumers are permissible > subject to the condition they are clearly seen as humorous or hyperbolic and not likely to be understood as making literal or

misleading claims for the advertised product.

13. Due diligence required for endorsement of advertisements.—(1) Any endorsement in an advertisement must reflect the genuine, reasonably current opinion of the individual, group or organisation making such representation and must be based on adequate information about, or experience with, the identified goods, product or service and must not otherwise be deceptive.

(2) Where, Indian professionals, whether resident in India or otherwise, are barred under any law for the time being in force from making endorsement in any advertisement pertaining to any profession, then, foreigner professionals of such profession shall also be not permitted to make endorsement in such advertisement.

Explanation.—For the purposes of this paragraph, “foreigner professional” means a person who is not a citizen of India.

14. Disclosure of material connection—Where there exists a connection between the endorser and the trader, manufacturer or advertiser of the endorsed

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product that might materially affect the value or credibility of the endorsement and the connection is not reasonably expected by the audience, such connection shall be fully disclosed in making the endorsement.

15. Interpretation —In case of any ambiguity or dispute in interpretation of these guidelines, the decision of the Central Authority shall be final.

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The
Consumer Protection (E-Commerce)
Rules, 2020'

In exercise of the powers conferred by sub-clause (zg) of sub-section (1) of Section 101 of the Consumer Protection Act, 2019 (35 of 2019), the Central Government hereby makes the following rules, namely—

1. Short title and commencement.—(1) These rules may be called the Consumer Protection (E-Commerce) Rules, 2020.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Scope and Applicability —(1) Save as otherwise expressly provided by the Central Government by notification, these rules shall apply to:

(a) all goods and services bought or sold over digital or electronic network including digital products;

(b) all models of e-commerce, including marketplace and inventory models of e-commerce;

(c) all e-commerce retail, including multi-channel single brand retailers and single brand retailers in single or multiple formats; and

(d) all forms of unfair trade practices across all models of e-commerce:

: Provided that these rules shall not apply to any activity of a

a natural person carried out in a personal capacity not being part of

¢ any professional or commercial activity undertaken on a regular or

é systematic basis.

a (2) Notwithstanding anything contained in sub-rule (1), these rules shall apply to a e-commerce entity which is not established in India, but systematically offers goods or services to consumers in India.

3. Definitions.—(1) In these rules unless the context otherwise requires,—

(a) “Act” means the Consumer Protection Act, 2019 (35 of 2019);

(b) “e-commerce entity” means any person who owns, operates or manages digital or electronic facility or platform for electronic commerce, but does not include a seller offering his goods or services for sale on a marketplace e-commerce entity;

(c) “grievance” includes any complaints to an e-commerce entity regarding violations of the provisions of the Act and the rules made thereunder;

(d) “GSTIN” means the Goods and Services Tax Identification Number as under the Central Goods and Services Tax Act, 2017 (12 of 2017);

1. Ministry of Consumer Affairs, Food and Public Distribution (Deptt. of Consumer Affairs), Noti. No. G.S.R. 462(E), dated July 23, 2020 and published in the Gazette of India, Extra., Part II, Section 3(i), dated 23rd July, 2020, pp. 7-11, No. 358

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(e) “information” shall have the same meaning as to it clause (v) of sub-section (1) of Section 2 of the Information Technology Act, 2000

(21 of 2000);

(f) “inventory e-commerce entity means an e-commerce entity which owns the inventory of goods or services and sells such goods or services directly to the consumers and shall include single brand retailers and multi-channel single brand retailers;

(g) “marketplace e-commerce entity” means an e-commerce entity which provides an information technology platform on a digital or electronic network to facilitate transactions between buyers and sellers;

(4) “PAN” means Permanent Account Number as under Section 139-A of the Income Tax Act, 1961 (43 of 1961);

() “platform” means an online interface in the form of any software including a website or a part thereof and applications including mobile applications;

Gj) “ranking” means the relative prominence or relevance given to the goods or services offered through a marketplace e-commerce entity as presented, organised or communicated by such entity, irrespective of the technological means used for such presentation, organisation or communication;

(k) “seller” means the product seller as defined in clause (37) of Section 2 of the Act and shall include any service provider;

() “user” means any person who accesses or avails any computer resource 15 of an e-commerce entity. coal

(2) The words and expressions used herein and not defined, but defined in the b Act or in the Information Technology Act, 2000 (21 of 2000) or the rules made } thereunder shall have the same meaning as respectively assigned to them in those Acts or rules.

4. Duties of e-commerce entities —*[(1) Where an e-commerce entity is a company incorporated under the Companies Act, 1956 (1 of 1956) or under the Companies Act, 2013 (18 of 2013) or a foreign company covered under clause (42) of Section 2 of the Companies Act, 2013 (18 of 2013) or an office, branch or agency outside India owned or controlled by a person resident in India as provided in sub-clause (iv) of clause (v) of Section 2 of the Foreign Exchange Management Act, 1999 (42 of 1999), it shall appoint a nodal officer or an alternate senior designated

2. Subs. by G.S.R. 328(E), dated 17-5-2021 (w.e-f. 17-5-2021). Prior to substitution it read as:
“(1) An e-commerce entity shall:
(@) be a company incorporated under the Companies Act, 1956 (1 of 1956) or the Companies

Act, 2013 (18 of 2013) or a foreign company covered under clause (42) of Section 2 of the Companies

Act, 2013 (18 of 2013) or an office, branch or agency outside India owned or controlled by a person

resident in India as provided in sub-clause (iii) of clause (v) of Section 2 of the Foreign Exchange

Management Act, 1999 (42 of 1999); and

(@) appoint a nodal person of contact or an alternate senior designated functionary who is resident in India, to ensure compliance with the provisions of the Act or the rules made thereunder.”

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functionary who is resident in India, to ensure compliance with the provisions of the Act or the rules made thereunder.]

(2) Every e-commerce entity shall provide the following information in a clear and accessible manner on its platform, displayed prominently to its users, namely—

(a) legal name of the e-commerce entity;

(b) principal geographic address of its headquarters and all branches;

(c) name and details of its website; and

(d) contact details like e-mail address, fax, landline and mobile numbers of. customer care as well as of grievance officer.

(3) No e-commerce entity shall adopt any unfair trade practice, whether in the course of business on its platform or otherwise.

(4) Every e-commerce entity shall establish an adequate grievance redressal mechanism having regard to the number of grievances ordinarily received by such entity from India, and shall appoint a grievance officer for consumer grievance redressal, and shall display the name, contact details, and designation of such officer on its platform.

(5) Every e-commerce entity shall ensure that the grievance officer referred to in sub-rule (4) acknowledges the receipt of any consumer complaint within forty-eight hours and redresses the complaint within one month from the date of receipt of the complaint.

(6) Where an e-commerce entity offers imported goods or services for sale, it

= shall mention the name and details of any importer from whom it has purchased such goods or services, or who may be a seller on its platform.

4 (7) Every e-commerce entity shall endeavour on a best effort basis to become a partner in the convergence process of the National Consumer Helpline of the Central Government.

(8) No e-commerce entity shall impose cancellation charges on consumers cancelling after confirming purchase unless similar charges are also borne by the e- commerce entity, if they cancel the purchase order unilaterally for any reason.

(9) Every e-commerce entity shall only record the consent of a consumer for the purchase of any good or service offered on its platform where such consent is expressed through an explicit and affirmative action, and no such entity shall record such consent automatically, including in the form of pre-ticked checkboxes.

(10) Every e-commerce entity shall effect all payments towards accepted refund requests of the consumers as prescribed by the Reserve Bank of India or any other competent authority under any law for the time being in force, within a reasonable period of time, or as prescribed under applicable laws.

(11) No e-commerce entity shall—

(a) manipulate the price of the goods or services offered on its platform in such a manner as to gain unreasonable profit by imposing on | consumers any unjustified price having regard to the prevailing market — conditions, the essential nature of the good or service, any extraordinary

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circumstances under which the good or service is offered, and any other relevant consideration in determining whether the price charged is justified;

(b) discriminate between consumers of the same class or make any arbitrary

classification of consumers affecting their rights under the Act.

5. Liabilities of marketplace e-commerce entities —(1) A marketplace e-commerce entity which seeks to avail the exemption from liability under sub-section (1) of Section 79 of the Information Technology Act, 2000 (21 of 2000) shall comply with sub-sections (2) and (3) of that section, including the provisions of the Information Technology (Intermediary Guidelines) Rules, 2011.

(2) Every marketplace e-commerce entity shall require sellers through an undertaking to ensure that descriptions, images, and other content pertaining to goods or services on their platform is accurate and corresponds directly with the appearance, nature, quality, purpose and other general features of such good or service.

(3) Every marketplace e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently to its users at the appropriate place on its platform:

(a) details about the sellers offering goods and services, including the name of their business, whether registered or not, their geographic address,

customer care number, any rating or other aggregated feedback about such seller, and any other information necessary for enabling consumers 1a to make informed decisions at the prepurchase stage: “ —
Provided that a marketplace e-commerce entity shall, on a request a in writing made by a consumer after the purchase of any goods or ; services on its platform by such consumer, provide him with information regarding the seller from which such consumer has made such purchase, including the principal geographic address of its headquarters and all branches, name and details of its website, its email address and any other information necessary for communication with the seller for effective dispute resolution;

(6) a ticket number for each complaint lodged through which the consumer can track the status of the complaint;

(c) information relating to return, refund, exchange, warranty and guarantee, delivery and shipment, modes of payment, and grievance redressal mechanism, and any other similar information which may be required by consumers to make informed decisions;

(d) information on available payment methods, the security of those payment methods, any fees or charges payable by users, the procedure to cancel regular payments under those methods, charge-back options, if any, and the contact information of the relevant payment service provider;

(e) all information provided to it by sellers under sub-rule (5) of Rule 6; and

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(f an explanation of the main parameters which, individually or collectively, are most significant in determining the ranking of goods or sellers on its platform and the relative importance of those main parameters through an easily and publicly available description drafted

in plain and intelligible language.

(4) Every marketplace e-commerce entity shall include in its terms and conditions generally governing its relationship with sellers on its platform, a description of any differentiated treatment which it gives or might give between goods or services or sellers of the same category.

(5) Every marketplace e-commerce entity shall take reasonable efforts to maintain a record of relevant information allowing for the identification of all sellers who have repeatedly offered goods or services that have previously been removed or access to which has previously been disabled under the Copyright Act, 1957 (14 of 1957), the Trade Marks Act, 1999 (47 of 1999) or the Information Technology Act, 2000 (21 of 2000):

Provided that no such e-commerce entity shall be required to terminate the access of such seller to its platform pursuant to this sub-rule but may do so on a voluntary basis.

6. Duties of sellers on marketplace —(1) No seller offering goods or services through a marketplace e-commerce entity shall adopt any unfair trade practice whether in the course of the offer on the e-commerce entity’ s platform or otherwise.

= (2) No such seller shall falsely represent itself as a consumer and post reviews

¢ about goods or services or misrepresent the quality or the features of any goods

“ or services.

_< (3) No seller offering goods or services through a marketplace e-commerce entity shall refuse to take back goods, or withdraw or discontinue services purchased or agreed to be purchased, or refuse to refund consideration, if paid, if such goods or services are defective, deficient or spurious, or if the goods or services are not of the characteristics or features as advertised or as agreed to, or if such goods or services are delivered late from the stated delivery schedule:

Provided that in the case of late delivery, this sub-rule shall not be applied if such late delivery was due to force majeure.

(4) Any seller offering goods or services through a marketplace e-commerce entity shall:

(a) have a prior written contract with the respective e-commerce entity in order to undertake or solicit such sale or offer;

(b) appoint a grievance officer for consumer grievance redressal and ensure that the grievance officer acknowledges the receipt of any consumer complaint within forty-eight hours and redresses the complaint within one month from the date of receipt of the complaint;

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(c) ensure that the advertisements for marketing of goods or services are consistent with the actual characteristics, access and usage conditions of such goods or services.
(d) provide to the e-commerce entity its legal name, principal geographic address of its headquarters and all branches, the name and details of its website, its e-mail address, customer care contact details such as fax, landline, and mobile numbers and where applicable, its GSTIN and PAN details.
(5) Any seller offering goods or services through a marketplace e-commerce entity shall provide the following information to the e-commerce entity to be displayed on its platform or website:
(a) all contractual information required to be disclosed by law;
(b) total price in single figure of any good or service, along with the breakup price for the good or service, showing all the compulsory and voluntary charges such as delivery charges, postage and handling charges, conveyance charges and the applicable tax, as applicable;
(c) all mandatory notices and information provided by applicable laws, and the expiry date of the good being offered for sale, where applicable;
(d) all relevant details about the goods and services offered for sale by the seller including country of origin which are necessary for enabling the consumer to make an informed decision at the prepurchase stage;
(e) the name and contact numbers, and designation of the grievance officer = for consumer grievance redressal or for reporting any other matter; «
(fname and details of importer, and guarantees related to the authenticity “i 3 or genuineness of the imported products; Z
(g) accurate information related to terms of exchange, returns, and refund > including information related to costs of return shipping in a clear and x accessible manner; 7
(A) relevant details related to delivery and shipment of such goods or services; and
@ any relevant guarantees or warranties applicable to such goods or services.
7. Duties and liabilities of inventory e-commerce entities—(1) Every inventory e-commerce entity shall provide the following information in a clear and accessible manner, displayed prominently to its users:
(a) accurate information related to return, refund, exchange, warranty and guarantee, delivery and shipment, cost of return shipping, mode of payments, grievance redressal mechanism, and any other similar information which may be required by consumers to make informed decisions;
(6) all mandatory notices and information required by applicable laws;
(c) information on available payment methods, the security of those payment methods, the procedure to cancel regular payments under those

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methods, any fees or charges payable by users, charge back options, if any, and the contact information of the relevant payment service provider;

(d) all contractual information required to be disclosed by law;

(e) total price in single figure of any good or service along with the breakup price for the good or service, showing all the compulsory and voluntary charges, such as delivery charges, postage and handling charges, conveyance charges and the applicable tax; and

(f) aticket number for each complaint lodged, through which the consumer. can track the status of their complaint.

(2) No inventory e-commerce entity shall falsely represent itself as a consumer and post reviews about goods and services or misrepresent the quality or the features of any goods or services.

(3) Every inventory e-commerce entity shall ensure that the advertisements for marketing of goods or services are consistent with the actual characteristics, access and usage conditions of such goods or services;

(4) No inventory e-commerce entity shall refuse to take back goods, or withdraw or discontinue services purchased or agreed to be purchased, or refuse to refund consideration, if paid, if such goods or services are defective, deficient spurious, or if the goods or services are not of the characteristics or features as advertised or as agreed to, or if such goods or services are delivered late from the

=. stated delivery schedule:
= Provided that in the case of late delivery, this sub rule shall not apply if suck
5 late delivery was due to force majeure.
of (5) Any inventory e-commerce entity which explicitly or implicitly vouches
> for the authenticity of the goods or services sold by it, or guarantees that such goods
q or services are authentic, shall bear appropriate liability in any action related to the authenticity of such good or service.

8. Contravention of rules.—The provisions of the Consumer Protection Act,

2019 (35 of 2019) shall apply for any violation of the provisions of these rules.

SCREENSHOT-DERIVED SUMMARY: CCPA Service Charge Guidelines, 4 July 2022 (screenshot transcription)

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F.No. J-25/57/2022-CCPA. Central Consumer Protection Authority. Krishi Bhawan, New Delhi. Dated 4 July 2022. Subject: Guidelines to prevent unfair trade practices and protection of consumer interest with regard to levy of service charge in hotels and restaurants. The Central Consumer Protection Authority (CCPA) was established under the Consumer Protection Act, 2019 to regulate matters relating to violations of consumer rights, unfair trade practices and false or misleading advertisements prejudicial to consumer and public interests. The source states that section 18(2)(l) empowers the CCPA to issue necessary guidelines to prevent unfair trade practices and protect consumer interests. It records complaints that hotels and restaurants were adding service charges by default, without informing consumers that payment was voluntary and optional, and sometimes describing the charge under other names. The document states that the price of food and beverages covers goods and service components, and that placing an order amounts to agreement to pay the menu prices and applicable taxes. It says charging anything beyond that amount without consent may amount to an unfair trade practice under the Act.

SCREENSHOT-DERIVED SUMMARY: CCPA Service Charge Guidelines, 4 July 2022 (screenshot transcription)

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The 4 July 2022 CCPA guideline states: (i) no hotel or restaurant shall add service charge automatically or by default to the bill; (ii) service charge shall not be collected from consumers by another name; (iii) a hotel or restaurant shall not force a consumer to pay service charge and shall clearly inform the consumer that it is voluntary, optional and at the consumer's discretion; (iv) no restriction on entry or provision of services based on collection of service charge shall be imposed; and (v) service charge shall not be collected by adding it along with the food bill and levying GST on the total amount. The source says these guidelines are in addition to, and not in derogation of, the Department of Consumer Affairs guidelines dated 21 April 2017. It describes complaint routes: request the hotel or restaurant to remove the charge; contact the National Consumer Helpline (the source states 1915); complain to the Consumer Commission, including through the e-Daakhil portal; or submit a complaint to the District Collector for investigation and subsequent proceedings by the CCPA. This is a structured summary transcribed from user-supplied screenshots, not a full verbatim copy; consult the source image for exact wording, layout and details not repeated here.